# ADMINISTRATIVE GUIDE

| Section: Personnel Matters - General | | Procedure No: 320-01 |
|---|---|---|
| **EXCHANGE OF TOURS FOR UNIFORMED MEMBERS OF THE SERVICE** | | |
| DATE EFFECTIVE: 11/16/22 | LAST REVISION: I.O. 112 | PAGE: 1 of 2 |

**PURPOSE** Permits uniformed members of the service below the rank of captain who are assigned to precincts, transit districts or police service areas to voluntarily exchange tours with another uniformed member of the service of the same rank.

**DEFINITION** EXCHANGE OF TOUR – The voluntary performance of another uniformed member of the service's tour (otherwise known as a "mutual"). The uniformed members of the service must be the same rank, below the rank of captain, assigned to the same command, and be qualified to perform the other uniformed member's duties to ensure there is no interruption in the delivery of police service. The exchange of tours must be performed in the same twenty-eight day Fair Labor Standards Act (FLSA) cycle and no FLSA or contractual overtime will be generated for the tour actually performed.

**PROCEDURE** When a uniformed member of the service below the rank of captain who is assigned to a precinct, transit district or police service area, requests to voluntarily exchange tours with another uniformed member of the service of the same rank:

**REQUESTING UNIFORMED MEMBER OF THE SERVICE**

1. Confer with command timekeeper to ensure exchange of tours is within twenty-eight day FLSA cycle, as appropriate.
2. Prepare **EXCHANGE OF TOUR REQUEST (PD433-160)** and adhere to the following:
   a. Uniformed members of the service are NOT permitted to perform two consecutive tours (i.e., perform duty on a third platoon followed by a first platoon),
   b. Uniformed members of the service are NOT permitted to report Administrative Sick and must report Regular Sick, which requires a visit to the Department surgeon,
   c. Exchanged tours must be performed in the same twenty-eight day FLSA cycle, and
   d. Uniformed members of the service requesting to exchange tours must be qualified to perform each other's duties.
3. Submit **EXCHANGE OF TOUR REQUEST** to replacing uniformed member of the service.

**REPLACING UNIFORMED MEMBER OF THE SERVICE**

4. Review **EXCHANGE OF TOUR REQUEST** for completeness and accuracy, and sign.

**REQUESTING UNIFORMED MEMBER OF THE SERVICE**

5. Submit **EXCHANGE OF TOUR REQUEST** to operations coordinator at least five days in advance.

**OPERATIONS COORDINATOR**

6. Review **EXCHANGE OF TOUR REQUEST** for completeness and accuracy.
7. Approve/disapprove, as appropriate.
   a. Forward approved request to commanding officer.
   b. Return disapproved request, indicating reason for disapproval, to requesting uniformed member of the service.

***NOTE*** *Requests to exchange tours will not be unreasonably denied when there is no interruption in the delivery of police service.*

**COMMANDING OFFICER**

8. Approve/disapprove, as appropriate.
   a. Return approved request to operations coordinator.
   b. Return disapproved request, indicating reason for disapproval, to operations coordinator.

**OPERATIONS COORDINATOR**

9. Ensure uniformed members of the service approved for the exchange of tour are notified, and direct them to perform tour as requested.
10. Ensure Centralized Personnel Resource (CPR) Roll Call System is adjusted and file **EXCHANGE OF TOUR REQUEST** within command.

***ADDITIONAL DATA*** *If a uniformed member of the service fails to perform the exchanged tour, the Department may reschedule ANY uniformed member of the service of the same rank scheduled to perform duty on the date in question without twenty-four hour notice. This includes any uniformed member of the service, including a uniformed member of the service not a party to the exchanged tour, provided the member is qualified to perform the same duties. The uniformed member of the service rescheduled to perform a tour that another uniformed member of the service failed to perform will be compensated in accordance with the provisions of the Fair Labor Standards Act.*

# ADMINISTRATIVE GUIDE

| Section: Personnel Matters - General | | Procedure No: 320-02 |
|---|---|---|
| **MONITORING OFF-DUTY VISITS TO INMATES AT CORRECTIONAL FACILITIES BY MEMBERS OF THE SERVICE** | | |
| DATE EFFECTIVE: 11/18/21 | LAST REVISION: I.O. 110 | PAGE: 1 of 1 |

**PURPOSE** To provide a system to monitor visits by members of the service to city, state, or federal correctional facilities.

**PROCEDURE** When a member of the service intends to visit an inmate at a correctional facility while off-duty:

**MEMBER OF THE SERVICE**

1. Prepare **Typed Letterhead** with the following information and forward to commanding officer at least seven days prior to the intended visit:
   a. Name, rank, shield and tax registry numbers.
   b. Name and I.D. number of inmate to be visited.
   c. Relationship of inmate to member of the service.
   d. Place of incarceration; (include full facility name, address and phone number.)
   e. Date and time of proposed visit.
   f. Packages to be brought to facility.

***NOTE*** *A separate notification must be made for each visit.*

**COMMANDING OFFICER**

2. Notify IAB, Command Center of details.
3. Approve/disapprove request.
4. Notify member of determination.
5. Forward copy of request to Deputy Commissioner, Internal Affairs.
   a. File copy of request in member's personal folder.

***ADDITIONAL DATA*** *Members of the service shall cooperate fully with all rules and procedures of the correctional facility concerned regarding securing weapons, visitor searches, sign-in/sign-out practices etc.*

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# ADMINISTRATIVE GUIDE

| Section: Personnel Matters - General | | Procedure No: 320-03 |
|---|---|---|
| **MAINTENANCE AND TRANSFER OF COMMAND-LEVEL PERSONAL RECORDS** | | |
| DATE EFFECTIVE: 09/11/26 | LAST REVISION: R.O. 81 | PAGE: 1 of 2 |

**PURPOSE** To maintain readily available personnel data for each member of the command and provide for the orderly transfer of records to a member's new command.

**DEFINITION** PERSONAL FOLDER - Folder (11" x 14") inscribed at the top from left to right: last name, first name, middle initial, tax registry number, shield number and date of appointment.

**PROCEDURE** To maintain personal folder:

**COMMANDING OFFICER**

1. Insert following:
   a. Report of original assignment
   b. Duplicate of **FORCE RECORD (PD406-143)** and **FORCE RECORD SUPPLEMENT(PD406-143a)**
   c. **SOURCE DOCUMENT FOR PERSONNEL DATA CARD (PD446-141)**
   d. **EMPLOYEE'S WITHHOLDING EXEMPTION CERTIFICATE (PD138-061)**
   e. **OFFICER PROFILE REPORT**
   f. **SICK REPORT WORKSHEET (PD429-122A)** and related FINEST messages
   g. **SICK REPORT RETURN (PD429-131)**
   h. **SUPERVISOR'S COMPLAINT REPORT/COMMAND DISCIPLINE ELECTION REPORT (PD468-123)**
   i. Copies of all orders in which member's name appears
   j. **Application for Transfer**
   k. Copy of any communication which refers to member
   l. Copy of Armed Forces Discharge or separation certificate
   m. Any other reports commanding officer deems appropriate
   n. Duplicate **PERFORMANCE EVALUATION REPORT**
   o. **Special Leave for Former Members of the Armed Forces (Misc. 899N)**.
   p. **ANNUAL UNIFORM & EQUIPMENT INSPECTION CHECKLIST (PD120-060)**
2. File folders alphabetically by rank and provide security.
3. Remove and destroy reports of Command Discipline as per instructions in *A.G. 318-02, "Issuance of Schedule 'A' and Schedule 'B'* Command Disciplines."
4. Remove following reports (more than six months old) on January 1 and July 1 each year:
   a. **OFFICER PROFILE REPORT**
   b. FINEST messages re: sick reports.
   c. **SICK REPORT RETURN**.

***NOTE*** *These purged reports are to be filed and safeguarded until an Operations Order for destruction is received.*

WHEN A MEMBER OF COMMAND IS TRANSFERRED

**CLERICAL MEMBER**

5. Prepare **PERSONNEL RECORDS TRANSMITTAL (PD449-151)** and forward as indicated.
   a. Complete all pertinent captions.
   b. Enter current year vacation selection.
6. Forward duplicate **INDIVIDUAL CONDUCT SUMMARY (PD439-142)** to command maintaining original, if member is promoted to sergeant.
   a. Command maintaining original will make necessary corrections indicated and destroy duplicate.
7. Forward folder jacket to transferred member's new command in a sealed envelope marked "Confidential."
8. Provide transferred member with a photocopy of **FORCE RECORD** for presentation at new command pending arrival of personal folder.

**COMMANDING OFFICER**

9. Check member's New York State driver's license when assigned.

***ADDITIONAL DATA*** ***OVERTIME REPORT (PD138-064)*** *is to be kept in a separate* ***Time Record Folder (TRF)****.*

*The Police Academy will forward records when a uniformed member of the service is first assigned to another command. The Human Resources Division will send the records to the proper command when a uniformed member of the service resigns or has been dismissed and is subsequently reinstated.*

*Personal folders will not be forwarded to Extended Leave Services when a member of the service (uniformed or civilian) is granted an extended leave of absence. Personal folders will be retained at member's command and forwarded to new command upon return to duty from a leave of absence.*

# ADMINISTRATIVE GUIDE

| Section: Personnel Matters - General | | Procedure No: 320-04 |
|---|---|---|
| **GRANT APPLICATIONS, ACCOUNTABILITY, RESPONSIBILITY AND REPORTING PROCEDURES** | | |
| DATE EFFECTIVE: 05/18/26 | LAST REVISION: R.O. 39 | PAGE: 1 of 4 |

**PURPOSE** To obtain and manage grant funding in order to implement new programs or to supplement existing programs.

**SCOPE** The Grants Section will assist Department executives/commanding officers in enhancing and developing grant programs to obtain funding. Each command will assign a programmatic and fiscal contact for each grant or grant-funded project and those contacts will liaise with the Grants Section. These contacts in conjunction with the staff of the Grants Section will be responsible for ensuring that the Department is in compliance with all aspects of the grant.

***NOTE*** *To ensure that all grant proposals are presented to the Police Commissioner before being acted upon by Department personnel, and to maintain centralized dissemination and recording of grant proposal information, requests received from private entities, elected officials, or any other City or outside agencies (including the Office of the Criminal Justice Coordinator) offering grant assistance/support to this Department are to be forwarded to the Police Commissioner, with a copy to the Director, Grants Section.*

**PURPOSE** When a Department executive/commanding officer is seeking grant funding:

**DEPARTMENT EXECUTIVE/ COMMANDING OFFICER**

1. Submit request on **Typed Letterhead**, through channels, to the Deputy Commissioner, Management and Budget with a copy to the Director, Grants Section.
   a. Request must be submitted prior to making any commitment to the funding agency, grantor or elected official.
2. Include the following information in request:
   a. Objective of the grant
   b. Funding Source (i.e., announcement, solicitation, legislation, legislative contact, etc.)
   c. Substantive elements of the grant funded program:
      (1) Resources required
      (2) Department units involved
      (3) Matching funds, cost share or other resources required
      (4) Identity of subcontractors involved (e.g., other agencies, private organizations, etc.)
      (5) Names and contact information for the programmatic and fiscal contacts.

**GRANTS SECTION**

3. Confer with Commanding Officer, Office of Management Analysis and Planning regarding proposal.
4. Make a recommendation regarding the grant request to the Deputy Commissioner, Management and Budget.

**DEPUTY COMMISSIONER, MANAGEMENT AND BUDGET**

5. Submit appropriate grant requests to the Police Commissioner for approval.
   a. Ensure that grant proposal addresses the needs of the Department.

***NOTE***

*Department executives/commanding officers applying for grant funding should be cognizant of the following:*

*a. Grant funding cannot be used to supplant or take the place of existing funding.*

*b. Grant funds must be expended on schedule.*

*c. Prevention of both over expenditure and underutilization of grant funds will be the direct responsibility of the Department executive/commanding officer involved. Underutilization may result in a decrease in the command's budget as well as the possibility of the granting agency reducing future funds. Overspending of grant funding may cause budgetary problems resulting in the reallocation of funds within the bureau concerned.*

*d. The Chief of Housing has been designated the Department's liaison to the United States Department of Housing and Urban Development (HUD); therefore, all grant proposals to be funded by HUD must be submitted to the Housing Bureau for initial approval.*

*e. Any questions regarding the duties and responsibilities of the programmatic and fiscal contacts shall be directed to the Grants Section.*

UPON APPROVAL BY THE POLICE COMMISSIONER TO PURSUE GRANT PROPOSAL

**DEPARTMENT EXECUTIVE/ COMMANDING OFFICER**

6. Consult the Grants Section regarding preparation of actual grant proposal and provide information as needed.

**GRANTS SECTION**

7. Ensure the format of the application for grant proposal:
   a. Meets the requirements of the grantor, AND
   b. Satisfies the fiscal requirements of the grantor and the City of New York, without conflict.
8. Submit completed application to the Police Commissioner for review and approval.
9. Process and submit the grant proposal to the funding agency in conjunction with the Mayor's Criminal Justice Coordinator or Office of Management and Budget, if applicable.
10. File original contract, if grant funding is awarded.
    a. Forward copy of the grant contract to the Agency Chief Contracting Officer (ACCO) and the Legal Bureau for review.

**COMMAND CONTACTS (FISCAL AND PROGRAMMATIC)**

11. Ensure compliance with grant guidelines.
12. Be responsible for the timely submission of data necessary for the preparation of all fiscal and programmatic reports.

**COMMAND CONTACTS (FISCAL AND PROGRAMMATIC) (continued)**

a. Timely reports are required to satisfy both Department and grantor requirements.

13. Assist with the development of and be required to regularly maintain and monitor the budget for each grant.
14. Organize and maintain, in separate files, all fiscal and programmatic reports, as well as a detailed inventory of all assets purchased, expended or disposed of with grant funding for audit purposes.
15. Provide any additional data as needed for other mandated forms and reports as required by the grantor or an auditor, including all Environmental and Historical Preservation (EHP) compliance data, and Grants Tracking System (GTS) data for inventory and accounting of equipment purchased with grant funds.

***NOTE*** *The command must consult with the Grants Section regarding the length of time these records must be maintained, as well as the information required for asset management.*

**GRANTS SECTION**

16. Review data and draft reports for accuracy and compliance with grant guidance.
17. Prepare reimbursement reports, associated fiscal cost reports, and compile all fiscal back up documentation from Audits and Accounts and the commands concerned for the grant file.
18. Prepare and complete the progress reports and any other programmatic reports based on data provided by the command responsible for the project/grant.
19. Submit grant reports as required and related fiscal reports, for reimbursement.

**DEPARTMENT EXECUTIVE/ COMMANDING OFFICER**

20. Notify the Grants Section promptly of any of the following:
    a. Requests for grant extensions
    b. All budget modifications; and upon direction, prepare a memo (attention Deputy Commissioner, Management and Budget) for the aforementioned budget modification for formal approval
    c. Change in assigned project/grant contacts
    d. Cost overruns and under runs
    e. Purchasing/procurement problems and/or delays
    f. Problems with grant sub-contractors (i.e., performance, contractual, fiscal, etc.)
    g. Any other obstacle preventing the progress of the grant.

***NOTE*** *It is extremely important that Department executives/commanding officers ensure that grant funding is properly expended. When problems exist which hinder or prohibit a command from expending grant funds, the Department executive/commanding officer concerned must notify the Director, Grants Section promptly. Failure to do so could result in the loss or decrease of funding, could initiate budgetary problems, and could cause the reduction of future funding levels.*

**DIRECTOR, BUDGET UNIT**

21. Issue **Revenue Invoice** numbers (Billed Receivables), which are entered in the New York City Financial Management System, for bills prepared by the Grants Section, Housing Bureau, Traffic Enforcement District, and other commands.

**DIRECTOR, BUDGET UNIT (continued)**

22. Forward copies of **Revenue Invoice(s)** along with billings to the Mayor's Office of Management and Budget.
23. Retain copies of **Revenue Invoice(s)** for command file.

**DIRECTOR, GRANTS SECTION/ CHIEF OF HOUSING BUREAU/CHIEF OF TRANSPORTATION**

24. Ensure that grantor reimburses the Department for all applicable expenses.

***ADDITIONAL DATA***

*PERSONAL SERVICE EXPENDITURE OF GRANT FUNDS*

*Personal Service Grant Funds (personnel committed to the grant performing either straight time hours/tours or overtime hours/tours) are expended, in most instances, when a member of the service performs duty (in connection with the grant) at the prevailing cash straight time or overtime rate. Overtime, taken in time, does not expend grant funds. Should a member of the service perform grant funded overtime and elect to receive compensation in time, additional cash overtime hours will have to be performed to expend grant funding.*

*OTHER THAN PERSONAL SERVICES FUNDS*

*Those grants that provide for "Other Than Personal Services" funding components (e.g., equipment purchase, rental, leasing, etc.) require the preparation of an itemized listing of equipment required, prior to the funding date. Equipment cost and availability can be determined by contacting the unit responsible for purchasing the item (i.e., Fleet Services Division, Deputy Commissioner, Information Technology, Quartermaster Section, etc.). This procedure will eliminate delays in entering the equipment bidding process or modifying existing contracts with vendors. Department executives/commanding officers must take into consideration the extensive delays encountered in the equipment bidding process (twelve to eighteen months) and the effect this process will have on meeting the grant's operational objectives and the expenditure of grant funds as scheduled.*

*GRANTS REQUIRING A MATCHING FUNDS OR COST SHARE COMPONENT*

*If a grant has a matching funds or cost share requirement, an appropriate method of meeting the requirement will be determined by the Director, Grants Section and approved by the Deputy Commissioner, Management and Budget. This method will be determined prior to the submission of the grant application.*

# ADMINISTRATIVE GUIDE

| Section: Personnel Matters - General | | Procedure No: 320-05 |
|---|---|---|
| **ASSIGNMENT OF COMMAND INTEGRITY CONTROL OFFICER** | | |
| DATE EFFECTIVE: 09/11/26 | LAST REVISION: R.O. 81 | PAGE: 1 of 3 |

**PURPOSE** To determine the need for a command integrity control officer (ICO), make proper selection, and assign duties commensurate with the position.

**PROCEDURE** When necessary to designate or discontinue the position of a command ICO.

**COMMANDING OFFICER**

1. Identify a qualified supervisory member of the service to act as the command ICO:
   a. Commanding officers must request approval from the Internal Affairs Bureau, Personnel Unit for the designation of an ICO, on **Typed Letterhead** (DIRECT) with a duplicate copy through channels. A statement must be included to verify that the Central Personnel Index (CPI) of the member being considered was checked and the results of the CPI check.
   b. Whenever a designated ICO, previously approved by the Chief of Internal Affairs is transferred, reassigned, or is no longer able to perform the functions of the ICO, the commanding officer will immediately notify the Internal Affairs Bureau, Personnel Unit on **Typed Letterhead** (DIRECT) with a duplicate copy through channels, of the discontinuance. In addition, the identity of a supervisory member, who will perform ICO duties on a provisional basis in the interim, must accompany the request for discontinuance.

***NOTE*** *In Patrol Services Bureau, Transit Bureau and Housing Bureau commands, the integrity control officer, and if required, the assistant integrity control officer,* ***MUST BE UNIFORMED SUPERVISORS*** *and will perform all the duties and responsibilities as delineated in pertinent Department directives and as directed in P.G. 202-29, "Command Integrity Control Officer." A commanding officer's selection of an integrity control officer will reflect the needs of the command considering and consistent with the ranks and number of members assigned, potential corruption hazards, command size, history and any other appropriate and relevant factors.*

*In OTHER THAN Patrol Services Bureau, Transit Bureau and Housing Bureau commands, the commanding officer of the command/unit concerned shall determine if the assignment of an integrity control officer and/or assistant integrity control officer is justified, by taking into consideration the size of the command/unit, potential corruption hazards, whether or not the overhead command has an integrity control officer assigned, and any other special factors. In these commands, the integrity control officer need not be assigned solely to integrity control duties and will perform integrity control functions as directed by the commanding officer. However, in all cases the member performing the duties of the command integrity control officer or assistant integrity control officer must be a uniformed or civilian supervisor.*

**COMMANDING OFFICER (continued)**

2. Review pertinent Department records of member being considered for designation as ICO to determine qualifications for assignment. The following criteria should be considered during the selection process:
   a. Written and oral communication skills
   b. Supervisory experience and time in rank
   c. Prior assignments
   d. Disciplinary history.
3. Conduct a Central Personnel Index background check of the ICO candidate.

***NOTE*** *Based upon the results of the background check, the integrity control officer candidate may perform integrity control officer duties on a provisional basis pending approval by the Chief of Internal Affairs, First Deputy Commissioner and Police Commissioner.*

4. Prepare and forward a request for designation as ICO on **Typed Letterhead** to the Chief of Internal Affairs, Personnel Unit (DIRECT).
   a. Forward a duplicate copy of request, through channels.

***NOTE*** *The Internal Affairs Bureau will direct the integrity control officer candidate to appear before the Integrity Control Officer Screening Board. It is incumbent upon commanding officers to ensure members appear before the Integrity Control Officer Screening Board prior to being designated as an integrity control officer. Upon approval by the Integrity Control Officer Screening Board, the commanding officer must ensure that the candidate attends the three day mandatory integrity control officer training course.*

*The integrity control officer training course is held QUARTERLY. All newly designated integrity control officers are required to attend the three day course one time, with screening and training conducted by the Internal Affairs Bureau.*

**INTERNAL AFFAIRS BUREAU, PERSONNEL UNIT**

5. Conduct a computerized background check of ICO candidates.
6. Schedule ICO candidate for appearance before Integrity Control Officer Screening Board (comprised of ranking members of the Internal Affairs Bureau).
7. Recommend approval or disapproval of candidate(s) to the Chief of Internal Affairs, by endorsement, upon completion of the Integrity Control Officer Screening Board.
8. Maintain a current database of all designated command ICOs within the Department.
9. Notify the Human Resources Division of:
   a. Removal of ICO status
   b. Designation of ICO status after approval is received from the Chief of Internal Affairs, First Deputy Commissioner and Police Commissioner.

**CHIEF OF INTERNAL AFFAIRS**

10. Approve or disapprove request for ICO designation based upon findings of the Integrity Control Officer Screening Board or any other factors deemed appropriate for consideration.
11. Forward all APPROVED requests by endorsement to the First Deputy Commissioner.
    a. Forward all DISAPPROVED requests by endorsement to the borough/bureau commander concerned.

***ADDITIONAL DATA***

*The above procedure will also be adhered to for designation or discontinuance of an assistant integrity control officer.*

*Commanding officers and borough/bureau investigations units must conduct a semi-annual audit of all integrity control officers assigned to their subordinate commands to examine any Paid Detail assignments and ensure compliance with procedures in place governing tours.*

*Personnel officers of bureaus/boroughs will forward a list of all active integrity control officers and assistant integrity control officers within their respective commands/subunits to the Internal Affairs Bureau, Personnel Unit ANNUALLY every January. The bureau/borough personnel officer concerned will ensure that the list includes provisional integrity control officers and assistant integrity control officers not yet approved by the Chief of Internal Affairs. The list must also advise as to the discontinuance of former integrity control officers and assistant integrity control officers that have been reassigned and/or transferred.*

*The Internal Affairs Bureau, Personnel Unit may be contacted with questions regarding the above procedure.*

# ADMINISTRATIVE GUIDE

| Section: Personnel Matters - General | Procedure No: 320-06 | |
|---|---|---|
| **COMPLIANCE WITH MAYORAL EXECUTIVE ORDER 81 OF 2021** | | |
| DATE EFFECTIVE: 05/06/25 | LAST REVISION: R.O. 31 | PAGE: 1 of 1 |

**PURPOSE** To ensure Departmental compliance with Mayoral Executive Order 81 of 2021.

**PROCEDURE** When assigning a Lesbian, Gay, Bisexual, Transgender/Trans, Queer/Questioning, Intersex, Asexual and Other Gender Identities and Sexual Orientations (LGBTQIA+) Liaison to act at the direction of the Police Commissioner:

**POLICE COMMISSIONER**

1. Assign LGBTQIA+ Liaison to work within the Police Commissioner's Office.

**LGBTQIA+ LIAISON**

2. Support all bureaus on LGBTQIA+ related issues.
3. Review and make recommendations on policies under consideration by the Office of Management Analysis and Planning (OMAP) that affect the City and Department's LGBTQIA+ community.
4. Partner with Community Affairs Bureau LGBTQIA+ Outreach Unit to engage external partners.
5. Partner with the Office of Equity and Inclusion and Training Bureau on workforce outreach and institutionalizing trainings.
6. Work to strengthen the LGBTQIA+ Advisory Panel, which convenes with community partners and advocates.

***ADDITIONAL DATA***

*The LGBTQIA+ Liaison is the primary point of contact for all LGBTQIA+ matters related to the Department both internally and externally.*

*The Department's commitment to its relationship with the LGBTQIA+ community is memorialized via a Memorandum of Understanding (MOU) between the Department and the Gay Officers Action League (GOAL). This MOU can be reproduced by the Legal Bureau, as required.*

NYPD

**VACATION POLICY**

1. Vacation selections for police officers and detectives are based on date of appointment to the rank of police officer.
   a. Vacation selections are granted according to seniority in rank and by squad assignment, if appropriate.
      (1) Police officers and detectives with prior service as police cadets, traffic enforcement agents, associate traffic enforcement agents, school safety agents, supervisor of school security, or police communications technican, who were appointed off of a promotional exam, have senority over police officers and detectives with the same appointment date.
   b. Exam numbers will be used to determine seniority for uniformed members of the service with the same appointment date (i.e., the uniformed member of the service hired from the older exam will have seniority).
   c. In instances where uniformed members of the service are appointed on the same date from same exam, the exam list number will determine seniority.
      (1) Contact the Uniform Exams & Promotions Unit to obtain exam and list numbers.
2. Vacation selections for supervisors are based on seniority in rank.
   a. The number of supervisors eligible for vacation at one time will be determined by *A.G. 324-04, "Ranking Officers Vacations."*
3. No more than 12% of police officers and detectives (e.g., precinct, police service area, transit district, etc.) will be permitted to take vacation at the same time.
4. Staff members of uniformed patrol commands and uniformed members of the service of those commands who perform special tours of duty will select vacation separately from other uniformed members of the command.
   a. The 12% limitation will be maintained, if possible.
5. Probationary police officers are not permitted to take vacation while in training at the Police Academy.
   a. After assignment to permanent command probationary police officers are allowed to take vacation in excess of the 12% limitation.
6. Vacations for uniformed members of the service assigned to other than uniformed patrol commands will be granted at the discretion of the commanding officer.
   a. The 12% limitation will be adhered to, if possible.
7. Uniformed members of the service (police officer through deputy chief) may carry over a maximum of 15 days of vacation into the following year subject to the following conditions:
   a. Selection of accrued vacation is subject to exigencies of the Department,
   b. Selection of accrued time will be made after regular vacation picks, and

**VACATION POLICY (continued)**

c. The 12% limitation remains in effect.

8. Uniformed members will apply for vacation lost during the preceding year due to sick leave, without delay, upon return to duty.
   a. Accrued vacation guidelines do not apply to vacation time lost due to uniformed members of the service being on sick report, as per *A.G. 324-03, "Vacation Lost Due to Sick Leave."*
9. Regular days off (RDOs) occurring immediately prior to, within and immediately following vacation are an integral part of such vacation.
   a. RDOs before and after a member's individual vacation day (IVD) are not considered an integral part of their vacation.
   b. Only scheduled work days may be selected as vacation or IVDs.
10. Members shall start vacation at the beginning of a set of tours and consisting of a complete set, if possible.
   a. Members are entitled to use all or any portion of an annual vacation selection elected on the current year's **ANNUAL SQUAD VACATION SELECTION (PD106-142/143/144/145/146)** worksheet.
11. Commanding officer/designee will ensure preparation of annual vacation lists prior to January 1, to permit commencement of vacations on January 1, if possible.
12. Two IVDs must be selected within the calendar year of selection, subject to the following guidelines:
   a. Uniformed members of the service concerned may select individual days when making regular vacation selection; however, if not selected with regular pick, they may be selected at later date subject to exigencies of the service,
   b. Only 2% of uniformed members assigned to uniformed patrol commands may take individual vacation days at one time,
   c. Uniformed members of the service may not select more than one of the following holidays as an IVD: New Year's Day, Independence Day, Labor Day, Thanksgiving Day, or Christmas Day, and
   d. A maximum of two IVDs may be carried into the following year, to be used by the last day of February.
13. Submit a **Digital Leave of Absence Request** using the Centralized Personnel Resource (CPR) System requesting annual vacation selection, IVDs, a prior year's vacation day(s), as well as leave requests for compensatory time, chart days, special leave for former members of the military, or commander's days must be submitted at least five calender days in advance.
   a. Uniformed members of the service may not be denied annual vacation selection, any part of the selection, or an IVD for failure to submit a **Digital Leave of Absence Request** five days in advance if the vacation was properly selected.
   b. Uniformed members of the service may be subject to discipline for failing to submit **Digital Leave of Absence Request** five calendar days in advance.

**VACATION POLICY (continued)**

c. Uniformed members of the service who wish to forgo their entire vacation, or a portion thereof, shall make their intention known to their commanding officer five days prior to the scheduled start of their vacation.

14. Command timekeeper will enter vacation selections in the Command Diary.
15. Vacation selections may be changed to fill a vacant period or when members mutually agree to change vacation selections ONLY with permission of commanding officer.
16. Police officers and detectives retain original vacation selections when transferred.
    a. Minor adjustments to vacation selections may be made to reflect new chart assignments.
17. Supervisory officers, when transferred, may retain original selections if the efficiency of the command is not impaired.
    a. Minor adjustments may be made to reflect new chart assignments.
18. Neither the executive officer nor the operations coordinator are permitted to take vacations at the same time as the commanding officer.
19. Vacation time granted in excess of accrued yearly allowance will result in reduction of vacation allowance in the following year

***ADDITIONAL DATA***

*The combined total number of vacation days a uniformed member of the service may carry into the following year is 17 (15 days vacation and two individual vacation days). Vacation days and individual vacation days carried over from previous years may be scheduled on an ad hoc basis after all uniformed members of the service in the requesting uniformed member of the service's command have made their initial vacation selections as per the needs of the Department.*

*In addition, civilian members of the service with the capability to enter leave of absence requests direct into CityTime, are also required to prepare a* ***Digital Leave of Absence Request****.*

# ADMINISTRATIVE GUIDE

| Section: Leave, Payroll and Timekeeping | | Procedure No: 324-02 |
|---|---|---|
| **WORKING DURING VACATION** | | |
| DATE EFFECTIVE: 05/08/23 | LAST REVISION: R.O. 21 | PAGE: 1 of 3 |

**PURPOSE** To maximize the use of uniformed members of the service by permitting full duty uniformed members of the service who are below the rank of captain, and are able to perform patrol duty in uniform, to work five continuous days of their annual vacation at the discretion of the Department.

**PROCEDURE** When a full duty uniformed member of the service who is below the rank of captain, and is able to perform patrol duty in uniform, requests to work during five continuous days of their annual vacation:

**REQUESTING UNIFORMED MEMBER OF THE SERVICE**

1. Prepare **VACATION WORK REQUEST (PD106-161)** and submit to commanding officer, permanent command, at least six weeks prior, but no earlier than eight weeks prior to desired dates.
   a. Select dates that are continuous and regularly scheduled working days.

***NOTE*** *Days worked must be deducted from vacation time only. Accumulated lost time or other authorized leave may not be used.*

**COMMANDING OFFICER, PERMANENT COMMAND**

2. Review and endorse **VACATION WORK REQUEST** within seven days of receipt.
   a. Verify that requesting member of the service is full duty status and has adequate days available to work during requested vacation selection.
   b. Forward approved request to bureau chief/deputy commissioner concerned, through channels.

***NOTE*** *Commanding Officer may submit a written request justifying the need to retain a supervisor within their permanent command.*

   c. Return disapproved request, indicating reason for disapproval, to requesting uniformed member of the service

**BUREAU CHIEF/ DEPUTY COMMISSIONER CONCERNED**

3. Review and endorse **VACATION WORK REQUEST** within seven days of receipt.
   a. Forward approved request to the Office of the Chief of Department.
   b. Return disapproved request, through channels, indicating reason for disapproval, to originating command to be forwarded to requesting uniformed member of the service.

**OFFICE OF THE CHIEF OF THE DEPARTMENT**

4. Review and endorse **VACATION WORK REQUEST**, as appropriate.
   a. If approved, determine command where duty is to be performed based on the needs of the Department.

**OFFICE OF THE CHIEF OF THE DEPARTMENT (continued)**

(1) Ensure assignment is recorded on **VACATION WORK REQUEST**.

(2) Forward to originating command to be forwarded to requesting uniformed member of the service at least two weeks prior to approved dates.

(3) Forward copy of **VACATION WORK REQUEST** to command where duty is to be performed at least two weeks prior to approved dates.

b. Return disapproved request, through channels, indicating reason for disapproval, to originating command to be forwarded to requesting uniformed member of the service.

**COMMANDING OFFICER, PERMANENT COMMAND**

5. Ensure uniformed member of the service performs assignment as directed.

6. Notify command where member has been assigned to work and the Office of the Chief of the Department, if member is unable to perform assigned tours due to sick leave or other authorized excusal.

**UNIFORMED MEMBER OF THE SERVICE**

7. Perform assigned tours as directed.
   a. Report to desk officer and obtain Command Log entry at start and end of tour (i.e., provide rank, name, tax number, permanent command, and scheduled tour).

8. Submit **VACATION WORK REQUEST** to desk officer upon completion of tour.
   a. Submit **VACATION WORK REQUEST** to immediate supervisor, if command does not have a desk officer.

**SUPERVISOR, COMMAND WHERE DUTY PERFORMED**

9. Review **VACATION WORK REQUEST** for completeness and accuracy, make entry in Command Log, and sign **VACATION WORK REQUEST**, as appropriate.

**UNIFORMED MEMBER OF THE SERVICE**

10. Certify accuracy of dates and tours performed by signing **VACATION WORK REQUEST** upon completion of last tour performed.

11. Submit signed **VACATION WORK REQUEST** to commanding officer/designee, command where duty performed.

**COMMANDING OFFICER/ DESIGNEE, COMMAND WHERE DUTY PERFORMED**

12. Certify accuracy of **VACATION WORK REQUEST** and sign, as appropriate.
   a. Forward certified **VACATION WORK REQUEST** to uniformed member of the service's permanent command.

**COMMANDING OFFICER, PERMANENT COMMAND**

13. Direct appropriate entries to be made on uniformed member's **Electronic Timesheet** upon receipt of completed **VACATION WORK REQUEST**.

***ADDITIONAL DATA***

*Commanding officers of supervisors assigned to patrol commands will indicate on* ***VACATION WORK REQUEST*** *whether there is a need to retain the requesting supervisor at the supervisor's permanent command. This should include the tour that the supervisor will be assigned to, if retained. After receiving commanding officer's endorsement, the Office of the Chief of Department will evaluate personnel needs and assign requesting supervisors, as appropriate.*

*Compensation will be paid at the straight time rate for time period of duty performed. Overtime travel guarantee compensation shall not apply.*

*Requesting uniformed members of the service will ordinarily be assigned to one command for the entire vacation work period. However, in the event that the requesting uniformed member of the service is subsequently reassigned to another command, overtime travel guarantee will apply.*

*Uniformed members of the service whose regular tour consists of four consecutive workdays will work only four vacation days during the vacation work period.*

NYPD

# ADMINISTRATIVE GUIDE

| Section: Leave, Payroll and Timekeeping | | Procedure No: 324-03 |
|---|---|---|
| **VACATION LOST DUE TO SICK LEAVE** | | |
| DATE EFFECTIVE: 11/18/21 | LAST REVISION: I.O. 110 | PAGE: 1 of 2 |

**PURPOSE** To grant uniformed members of the service vacation days lost during the previous year due to illness or injury.

**PROCEDURE** When a uniformed member of the service loses vacation earned during the previous calendar year due to illness or injury:

***NOTE*** *This procedure is applicable for vacation earned during the previous calendar year ONLY. Any additional carry over from prior year is not authorized, except for that earned by uniformed managers (assistant chiefs and above).*

**UNIFORMED MEMBER OF THE SERVICE**

1. Prepare two copies of request for vacation days lost, on **Typed Letterhead**, without delay, addressed to commanding officer, including:
   a. Number of vacation days lost
   b. Number of vacation days taken (indicate dates taken)
   c. Dates of scheduled vacation. If no vacation selection was made, so state and give reasons
   d. Period of sick report. (Include current year if sick report extended therein.) Indicate total number of calendar days in period.
   e. Number of calendar days NOT on sick report
   f. If non-line of duty sick report, indicate the name and location of the hospital, the dates hospitalized and the reason for confinement, if appropriate
   g. If sick report was due to a line of duty injury, include Medical Division control number and whether due to an old injury.
2. Submit request to commanding officer.

**COMMANDING OFFICER**

3. Inspect records to verify request.
4. Grant vacation days lost as follows:
   a. Non line-of-duty sick report - hospitalization not required - lost vacation days may not be taken after March 31st of succeeding year.
   b. Non line-of-duty sick report and member concerned was hospitalized - lost vacation days may not be taken after June 30th of succeeding year.
   c. Sick report due to line-of-duty injury - lost vacation days may not be taken after December 31st of succeeding year.

***NOTE*** *All vacation days lost due to illness or injury MUST be taken prior to the expiration date as indicated in step 4, subdivisions a, b and c, above. Lost vacation days shall not be granted beyond the dates indicated. This does not apply to uniformed managers (assistant chiefs and above).*

5. Notify member and have entry/entries made in pertinent record(s).

VOIDED

**COMMANDING OFFICER (continued)**

6. File copy of request in member's personal folder.
7. Instruct member to take leave without delay.

***ADDITIONAL DATA***

*Authorized vacation quota may be exceeded.*

NYPD

# ADMINISTRATIVE GUIDE

| Section: Leave, Payroll and Timekeeping | | Procedure No: 324-04 |
|---|---|---|
| **RANKING OFFICERS VACATIONS** | | |
| DATE EFFECTIVE: 11/18/21 | LAST REVISION: I.O. 99 | PAGE: 1 of 2 |

**PURPOSE** To maintain adequate coverage by ranking officers and provide an opportunity for ranking officers to select and utilize annual vacation.

**PROCEDURE** During the month of December:

**COMMANDING OFFICER**

1. Prepare ranking officer vacation schedules for the upcoming year in each command using the following formula:

| RANK | NUMBER ACTIVELY PERFORMING DUTY IN COMMAND | NUMBER ON VACATION AT SAME TIME |
|---|---|---|
| Inspector,<br>Deputy Inspector,<br>Borough | 1-8<br>9 or more | 1<br>2 |
| Inspector,<br>Deputy Inspector,<br>Precinct/TD/PSA Commander | 1-8<br>9 or more | 1<br>2 |
| *Captain, Precinct/TD/PSA<br>Commanding Officer,<br>Executive Officer | 1-8<br>9-11<br>12 or more | 1<br>2<br>3 |
| Captain, Borough | 1-8<br>9-11<br>12 or more | 1<br>2<br>3 |
| Lieutenant | 1-4<br>5 or more | 1<br>2 |
| Sergeant | 1-8<br>9-14<br>15-21<br>22 or more | 1<br>2<br>3<br>4 |

***NOTE*** **Captains assigned as Precinct Commanders and Executive Officers will be grouped all together for the purpose of vacation selection. Vacation selections will be determined by date of promotion. In some instances, it may be possible that a Captain Executive Officer will make their vacation selection before the Captain Precinct Commander. A Precinct Commander and their Executive Officer(s) may not be on vacation at the same time.*

***ADDITIONAL DATA***

*Neither the Borough Commander or Borough Executive Officer may select the same vacation pick, unless there is another Borough Executive Officer assigned within the Borough and available to perform duty.*

*In Patrol Borough and Bureau commands, Inspectors and Deputy Inspectors will be grouped together for the purpose of vacation selection. Vacation selection order will be determined by seniority in rank with Inspectors picking first followed by Deputy Inspectors.*

*Precinct/Unit Operations Coordinators will select vacation separately from other lieutenants assigned to the command and may not be on vacation at the same time as the Commanding Officer.*

*Precinct Integrity Control Officers in the rank of either lieutenant or sergeant are to select vacation separately from other lieutenants or sergeants assigned to the command. If there are two ranking officers performing ICO duties, they may not be on vacation at the same time.*

*Bureau/Division/Unit Commanders, other than Patrol Services Bureau, Patrol Borough commands may prepare an alternate vacation selection plan, consistent with the needs of their respective Bureau/Division/Unit. The twelve percent limit on vacations should be adhered to when possible, however, there may be times when due to limited staffing in certain commands this is not possible.*

*Members of the service in the ranks of sergeant and lieutenant are entitled to 27 vacation days per year. Members in the ranks of captain through deputy chief are entitled to 26 vacation days per year, which are accrued on January 1st. Ranking officers may select up to five separate weeks' vacation, however, only three weeks may be type 'A' weeks. Ranking officers should use entire weeks, if possible. Ranking officers are also entitled to two individual vacation days per year to be selected in conjunction with the annual vacation selection. Only two percent of the unit rank complement are entitled to use an individual vacation day on any given day, however, other types of leave may be granted, needs of the service permitting. Ranking officers may not select more than one of the following holidays as an IVD: New Year's Day, Independence Day, Labor Day, Thanksgiving Day, or Christmas Day*

*Ranking officers who are transferred or promoted during the calendar year do not automatically retain their vacation selections. Ranking officers may retain original vacation selections if the efficiency of the command is not impaired, however, minor adjustments may be made to reflect new chart assignments. If this is not possible, ranking officers will select vacation from the weeks remaining.*

**MEMBER OF THE SERVICE REQUESTING AUTHORIZED LEAVE**

1. Prepare **Digital Leave of Absence Request** using the Centralized Personnel Resource (CPR) System and submit to commanding officer/supervisory head, for approval, at least five days before leave commences except an emergency.
   a. Uniformed and civilian members of the service must complete the "Location During Absence" section on the **Digital Leave of Absence Request** including each country, with the city/town or province where the member will be staying, date(s) of departure and date of return, unless on military leave or leave of absence without pay thirty calendar days or more
   b. If member will remain at their residence, member will enter "residence" and include location and dates
   c. Prior to approving recommendation for leave, commanding officer/supervisory head will ensure that each country, with the city/town or province where the member will be staying is entered in Location During Absence section of **Digital Leave of Absence Request**.

***NOTE*** *Civilian members of the service with the capability to enter leave of absence requests direct into CityTime are also required to prepare a Digital Leave of Absence Request.*

2. Leaves may be terminated at discretion of Police Commissioner.
3. Member who is granted extended leave of absence without pay must take all accrued leave prior to the start of leave of absence, except for military leave.
4. Leave without pay for thirty or more consecutive days during a year, except military leave, will reduce authorized vacation by 1/12th for each thirty consecutive days of absence.
5. Member returning from leave without pay for one year or more may not be granted unaccrued vacation until member performs active duty for a minimum of three months, unless otherwise authorized by law.
6. A member of the service (uniformed or civilian) applying for any extended leave, e.g., educational leave with or without pay, hardship leave, etc., is required to communicate with Extended Leave Services for instructions.
7. Leave without pay may be granted to observe a religious holiday. No more than 1/6th of each squad may be granted such leave.

**OPERATIONS COORDINATOR**

8. Ensure all captions are completed in "Location During Absence" section on ***Digital Leave of Absence Request*** including each country, with the city/town or province where member of the service will be staying, date(s) of departure and date of return when member request leave.

**OPERATIONS COORDINATOR (continued)**

9. Ensure all members of the service are submitting ***Digital Leave of Absence Request*** at least five days before leave commences, except in emergencies.
10. Ensure timekeepers make mandatory entries into Leave of Absence – Location During Absence database, when a member submits a ***Digital Leave of Absence Request*** and is traveling to a foreign country.
11. Access Leave of Absence – Location During Absence database to verify mandatory entries are made by command timekeepers for members who are traveling to a foreign country daily during monthly self-inspections.
12. Ensure compliance with required entries on ***Digital Leave of Absence Request*** during monthly self-inspections

***ADDITIONAL DATA***

***GUIDELINES FOR AN EMERGENCY EXCUSAL DAY (E-DAY)***

*If an emergency situation arises and a uniformed member of the service requests an emergency excusal day (E-day) for their next scheduled tour of duty, the requesting uniformed member of the service must receive approval from the desk officer on duty at the time of the request.*

*Members of the service may only request an E-Day during the interval between the member's last tour of duty performed and the start of their next scheduled tour of duty.*

*All other requests for a leave of absence, that does not fall under the guidelines for an E-Day, will be submitted on a* ***Digital Leave of Absence Request*** *to the member's commanding officer/supervisory head.*

*Once a decision has been rendered regarding the E-Day request, the desk officer will make an entry within the CPR System Roll Call. The entry will consist of the requesting member's rank, name and whether the E-Day request was granted or denied. If the E-Day has been granted, the desk officer will ensure a* ***Digital Leave of Absence Request*** *is prepared for the requesting member.*

*A denial of an E-Day by the desk officer is a final decision. If the request is denied, members are prohibited from attempting to receive approval of the same request from another supervisor and may be subject to disciplinary action.*

*Commanding officers will ensure that supervisors are aware of the command's criteria for the granting of E-Days. This includes, but is not limited to, the reason for requested excusal, number of emergency day requests made by the member, and the operational impact on the command.*

***ADDITIONAL DATA (continued)***

***GUIDELINES FOR THE USE OF ACCRUED COMPENSATORY TIME***

*A member of the service covered by the Fair Labor Standards Act (FLSA), as detailed in A.G. 332-20, 'Guidelines for Members of the Service (Uniformed and Civilian) Governed by the Fair Labor Standards Act (FLSA), as well as Lieutenant Special Assignment, or Lieutenant Commander Detective Squad, will use compensatory time in the following order:*

*a. First - FLSA time (Post-April 14, 1986 FLSA compensatory time),*
*b. Second - Non-FLSA time (Post-April 14, 1986 non-FLSA compensatory time),*
*c. Third - Compensatory or exempt time (Pre-April 15, 1989 compensatory time).*

*Any member who has filed for retirement will be permitted to utilize accrued non-FLSA compensatory time, without first depleting their FLSA compensatory time balance. However, any member of the service who files for retirement, and utilizes their non-FLSA compensatory time without first depleting FLSA compensatory time, but then withdraws their retirement application (i.e. continues employment) will subsequently have their compensatory time banks adjusted as if the application for separation did not occur and FLSA time instead of non-FLSA time will be deducted for time used. If the reduction in FLSA time leads to a negative balance, other available banks must be used to offset the negative balance.*

*The above guidelines only apply to compensatory time, or time earned as a result of selecting overtime compensation in time. Accrued time such as vacation time or chart time may be used at any time, without regard to an employee's FLSA compensatory time balance."*

# ADMINISTRATIVE GUIDE

| Section: Leave, Payroll and Timekeeping | | Procedure No: 324-06 |
|---|---|---|
| **BEREAVEMENT LEAVE** | | |
| DATE EFFECTIVE: 12/14/22 | LAST REVISION: I.O. 121 | PAGE: 1 of 2 |

**PURPOSE** To grant a member of the service (uniformed or civilian) leave of absence with full pay upon death of:

a. An immediate family member, OR
b. Domestic partner, OR
c. Covered relative of a domestic partner, OR
d. Same-sex committed partner, OR
e. Covered relative of a same-sex partner.

**DEFINITIONS** IMMEDIATE FAMILY - Spouse, natural, foster or stepparent, child, brother or sister, father-in-law, mother-in-law, or any relative residing in the household.

***NOTE*** *Civilian members of the service covered under the citywide collective bargaining agreement are entitled to bereavement leave upon the death of a grandchild.*

DOMESTIC PARTNERS - Two persons, both of whom are eighteen years of age or older, neither of whom is married, or related by blood in a manner that would bar their marriage in New York State, who have a close and committed personal relationship, who live together and have been living together on a continuous basis, who have registered as domestic partners and have not terminated a domestic partnership within the last six months.

COVERED RELATIVE OF A DOMESTIC PARTNER - Parent or child of domestic partner, or a relative of a domestic partner who resides in the household.

SAME-SEX COMMITTED PARTNER - Those who are financially and emotionally interdependent in a manner commonly presumed of spouses.

**PROCEDURE** When a death occurs for which a member of the service (uniformed or civilian) is entitled to bereavement leave:

**MEMBER OF THE SERVICE**

1. Prepare **Digital Leave of Absence Request** using the Centralized Personnel Resource (CPR) System.
   a. Timekeeper will prepare **Digital Leave of Absence Request** if member unable to make personal application.
   b. Timekeeper will prepare **Digital Leave of Absence Request** if member unable to make personal application.
   c. Uniformed and civilian members must complete 'Location During Absence' section on **Digital Leave of Absence Request** including the country, with the city/town or province where the member will be staying, date(s) of departure and date of return when requesting leave.
   d. If remaining at residence, enter 'residence' and include appropriate location and dates.
2. Submit the **Digital Leave of Absence Request** and notify commanding officer for approval.

***NOTE*** *Civilian members of the service with the capability to enter leave of absence requests direct into CityTime, are also required to prepare a* ***Digital Leave of Absence Request****.*

**COMMANDING OFFICER**

3. Grant four consecutive tours of duty with full pay for bereavement leave.

***NOTE*** *If death occurs, for which bereavement leave is granted to a civilian member of the service, while the member is on vacation, the vacation is not extended by such leave.*

4. Verify death and relationship.
   a. Have member produce the official notice of death, if deceased is in military service of the United States.

**TIMEKEEPER**

5. Enter the country, with the city/town or province, date(s) of departure and date of return into Leave of Absence Report – Location During Absence database, if member is traveling to a foreign country.
6. Notify operations coordinator, if member is traveling to a foreign country.

***NOTE*** *Any information concerning an employee's entitlement to bereavement leave in relation to a Domestic Partnership must be kept confidential. Under no circumstances may such information be used for purposes other than entitlement to bereavement leave.*

***ADDITIONAL DATA*** *TERMINATION OF DOMESTIC PARTNERSHIP - A domestic partner may terminate a registered domestic partnership by filing a termination statement with the Office of the City Clerk. The person filing the termination statement shall declare that the domestic partnership is terminated and if the termination statement has not been signed by both domestic partners, that the other domestic partner has been notified of such termination by registered mail, return receipt requested. When domestic partners or a partner gets married the domestic partnership is terminated.*

*A new domestic partnership may be registered after six months has elapsed from the filing date of the termination statement.*

# ADMINISTRATIVE GUIDE

| Section: Leave, Payroll and Timekeeping | | Procedure No: 324-07 |
|---|---|---|
| **JURY DUTY LEAVE FOR UNIFORMED MEMBERS OF THE SERVICE** | | |
| DATE EFFECTIVE: 01/07/26 | LAST REVISION: R.O. 6 | PAGE: 1 of 2 |

**PURPOSE** To provide a set of guidelines to be followed by uniformed members of the service regarding jury duty in Federal, State, and City courts, as well as other municipal courts in the resident counties.

**PROCEDURE** When a uniformed member of the service is directed to appear for jury duty in court:

**UNIFORMED MEMBER OF THE SERVICE**

1. Notify roll call personnel and immediate supervisor upon receipt of a notice to appear for jury duty.
   a. Notify commanding officer and Appearance Control Unit when jury duty conflicts with other Department scheduled court appearances.
   b. Retain jury duty fee, if performing jury duty on regular day off.
2. Be guided by court instructions regarding carrying off-duty firearms during jury duty, as required.

***NOTE*** *Uniformed members of the service scheduled to work on a day in which they are also scheduled for jury duty will be excused from their regular tour of duty and will begin their tour at 0800 hours for payroll purposes (the length of the tour shall be consistent with the officer's normal chart). Uniformed members of the service shall be entitled to keep travel fees as provided by the courts.*

**COMMANDING OFFICER**

3. Prepare written request and forward, along with proof of member's unavailability, to appropriate County Commissioner of Jurors explaining uniformed member of the service's conflict and reason for excusal for jury duty, as necessary.
   a. Refer matter to District Attorney's office, if unable to resolve.

**UNIFORMED MEMBER OF THE SERVICE**

4. Opt to do one of the following when a jury duty appearance conflicts with a scheduled annual vacation and notify command:
   a. Attempt to postpone jury duty appearance,
   b. Cancel vacation pick or portion thereof, or
   c. Perform jury duty on vacation and retain jury duty fees for those days.
5. Provide official documentation of jury duty service, including dates and times of attendance in the form of a court issued Certificate of Service, to integrity control officer.
6. Comply with the directives of the court concerning next jury duty appearance when placed on ALERT.
   a. Notify command, if activated.
7. Notify command and/or Medical Division, if required, and the appropriate court, if reporting sick while on jury duty.
8. Notify command to request excusal for remainder of tour if jury duty appearance ends before end of scheduled tour.

**UNIFORMED MEMBER OF THE SERVICE (continued)**

a. Members of the service are not entitled to receive overtime compensation for jury duty service beyond the end of a scheduled tour.

9. Report for regularly scheduled tour, if on jury duty and court is closed (e.g., weekend, holiday, etc.)

***NOTE***

*Normal sick leave procedures shall apply regarding performance of police duty, however, members on sick leave who are directed to appear at jury duty will notify the Medical Division. The Medical Division will carry the member in the "Out of Residence Log," when such member is performing jury duty. Members are required to notify the Medical Division immediately upon returning to their residence from jury duty.*

**INTEGRITY CONTROL OFFICER**

10. Review all forms submitted and ensure compliance with jury duty provisions, as necessary.

***ADDITIONAL DATA***

*Uniformed member's regular work schedule as it pertains to days off shall not be adjusted to accommodate their jury duty appearance.*

*Any questions concerning the contents of this procedure should be referred to the Commanding Officer, Office of Labor Relations.*

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# ADMINISTRATIVE GUIDE

| Section: Leave, Payroll and Timekeeping | | Procedure No: 324-08 |
|---|---|---|
| **LEAVE OF ABSENCE WITHOUT PAY TWENTY-NINE (29) CALENDAR DAYS OR LESS** | | |
| DATE EFFECTIVE: 09/11/26 | LAST REVISION: R.O. 81 | PAGE: 1 of 3 |

**PURPOSE** To process requests for leaves of absence without pay for twenty-nine consecutive days or less for all members of the service (uniformed and civilian).

**SCOPE** Requests for leaves of absence without pay for twenty-nine consecutive days or less for all members of the service (uniformed and civilian) will be approved by the Bureau Head/Borough Counterpart for:

a. One through twenty-nine calendar days and the member is an entry-level probationary uniformed member of the service.
b. One through twenty-nine calendar days and the member is an entry level probationary civilian member or a non-permanent civilian member, i.e., provisional, temporary, etc., (except sick leaves without pay).
c. Two through twenty-nine calendar days for all other members of the service not listed above.

Requests for leaves of absence without pay for one day will be approved by the member's commanding officer.

**PROCEDURE** When a uniformed or civilian member of the service requires leave without pay for twenty-nine consecutive calendar days or less:

**MEMBER OF THE SERVICE**

1. Notify commanding officer/supervisory head of intent to request leave of absence without pay for twenty-nine consecutive calendar days or less.

**COMMANDING OFFICER**

2. Interview member concerned to determine necessity for leave.

**MEMBER OF THE SERVICE**

3. Submit **Digital Leave of Absence Request**.
   a. Complete "Location During Absence" section and include each country, with city/town or province where member will be staying, date(s) of departure and date of return
   b. Select "residence", if remaining at residence during absence.

**COMMANDING OFFICER**

4. Endorse member's **Digital Leave of Absence Request** by recommending approval/disapproval, as appropriate, and forward a PDF copy to the Bureau Head/Borough Counterpart with a **Typed Letterhead**, where applicable.

***NOTE*** *A leave of absence without pay will be granted ONLY after all other ACCRUED leave has been exhausted (except as indicated in A.G. 319-07, Civilian Member Reporting Sick," as relates to sick leave without pay for civilian members only).*

**BUREAU HEAD/ BOROUGH COUNTERPART**

5. Approve or disapprove the member's leave of absence request via **Typed Letterhead** or Endorsement and forward direct to the Member's Commanding Officer.

**COMMANDING OFFICER**

6. Ensure a copy of Bureau Head/Borough Counterpart approval/disapproval (i.e. Typed Letterhead/Endorsement), when applicable, is uploaded with the leave request.
   a. Forward a PDF copy of the leave request along with other required documents within the member's leave package direct to the Human Resources Division.
7. Notify approving officer **Digital Leave of Absence Request** for all other requests to approving officer <u>direct</u> after making recommendations.

**APPROVING MEMBER**

8. Examine request and recommendations of applicant's commanding officer.
9. Forward endorsed electronic copies of approved leave request <u>direct</u> to Human Resources Division.
10. Return all copies of **Digital Leave of Absence Request** if request is disapproved.

**COMMANDING OFFICER**

11. Notify member of approved/disapproved leave.

**C.O., HUMAN RESOURCES DIVISION**

12. Forward one copy of approved **Digital Leave of Absence Request** to Compensation Operations Unit.

**TIMEKEEPER**

13. Enter each country, with the city/town or province, date(s) of departure and date of return into Leave of Absence Report – Location During Absence database, if member is traveling to a foreign country.
14. Notify operations coordinator, if member is traveling to a foreign country.

***NOTE***

*An online user guide is available after logging onto the Leave of Absence management system.*
*Operations coordinators must ensure that all command timekeepers follow the instructions as directed in the guide to make entries in the Leave of Absence – Location During Absence database.*

***ADDITIONAL DATA***

*Whenever a <u>civilian</u> member is in a no pay status for a maximum of eight hours, ensure that the timekeeper enters the appropriate LWOP code on the **Electronic Timesheet**. If the member is in an LWOP status for a period greater than one day, timekeepers will:*

*a. Immediately notify Compensation Operations Unit*
*b. Select letters LWOP in the dropdown box menu for each day on the **Electronic Timesheet***
*c. Have entry made in the command's Telephone Record concerning the notification.*

***ADDITIONAL DATA (continued)*** *Whenever a uniformed member is in an LWOP status for any length of time, ensure that the timekeeper performs steps a, b, c above. DO NOT enter any time on the* ***Electronic Timesheet****.*

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# ADMINISTRATIVE GUIDE

| Section: Leave, Payroll and Timekeeping | | Procedure No: 324-09 |
|---|---|---|
| **LEAVE OF ABSENCE WITHOUT PAY THIRTY (30) CALENDAR DAYS OR MORE** | | |
| DATE EFFECTIVE: 09/11/26 | LAST REVISION: R.O. 81 | PAGE: 1 of 2 |

**PURPOSE** To process requests for leaves of absence without pay for thirty consecutive days or more (except child care, military and civilian sick leaves) for all members of the service (uniformed and civilian).

**SCOPE** As used in this procedure, the approving officer will be determined as follows:

a. Uniformed members - Police Commissioner (except as indicated in *A.G. 324-14, "Child Care Leave of Absence – Uniformed Member of the Service"*)

b. Civilian members - Chief of Personnel.

**PROCEDURE** When a uniformed or civilian member of the service requires leave without pay for thirty consecutive calendar days or more:

**MEMBER OF THE SERVICE**

1. Notify commanding officer/supervisory head of intent to request leave of absence without pay for thirty consecutive calendar days or more at least six weeks before anticipated date leave will commence.

**COMMANDING OFFICER**

2. Interview member concerned to determine necessity for leave.
3. Direct member concerned to contact Extended Leave Services immediately for instructions.

**MEMBER OF THE SERVICE**

4. Submit all forms to commanding officer/supervisory head as directed by Extended Leave Services.

**COMMANDING OFFICER**

5. Confer with borough commander, by telephone, outlining details of leave request.
6. Endorse member's **Digital Leave of Absence Request** recommending approval/disapproval, as appropriate, and forward a PDF copy along with other required documents with the member's leave package to the Commanding Officer, Human Resources Division (Attention: Extended Leave Services) based on conferral with the borough commander.
7. Forward informational copy of leave request to borough commander.

**C.O., HUMAN RESOURCES DIVISION**

8. Endorse request through channels to approving officer making recommendation based on individual circumstances, Department policy, and any other factors considered for such recommendation.

**COMMANDING OFFICER**

9. Notify member concerned when approval/disapproval of leave has been received.
10. Ensure that member's firearms and all Department property (except Department Manual) are surrendered and indicate such on **PROPERTY RECEIPT - DISCONTINUANCE OF SERVICE (PD520-013)** when a leave of absence of thirty days or more has been approved.

**COMMANDING OFFICER (continued)**

11. Distribute **PROPERTY RECEIPT - DISCONTINUANCE OF SERVICE**, as follows:
    a. Original - to Extended Leave Services
    b. First copy - to member requesting leave of absence
    c. Second copy - command file
    d. Remaining copies - filed in member's Personal Folder.

***NOTE*** *For civilian members, forward **IDENTIFICATION CARD (PD416-091)** to the Human Resources Division, by messenger, with a report on **Typed Letterhead**, indicating reason for surrender.*

**INTEGRITY CONTROL OFFICER**

12. Forward **NYPD Restricted Parking Permits (Misc. 23-N)** and **Headquarters Annex Parking Permits (Misc. 814HQ-Annex)**, by messenger, to the Chief of Department's Vehicle Identification Unit.
13. Forward shield, if applicable, and/or **IDENTIFICATION CARD (PD416-091)**, by messenger, to the Shield, ID, and Uniformed Services Group, and obtain receipt.
14. Ensure Department portable radio is delivered to Electronics Section.

**C.O., HUMAN RESOURCES DIVISION**

15. Direct transfer of member to Extended Leave Services after member's leave request has been approved.

***ADDITIONAL DATA***

*A leave of absence without pay will be granted ONLY after the member concerned has exhausted all ACCRUED leave (except for military leave and sick leave without pay for civilians as indicated in A.G. 319-07, "Civilian Member-Reporting Sick"). A uniformed member's vacation is granted January 1st for that year but is not to be considered accrued until the member is in a full pay status for the required number of days in a particular month.*

*Member's firearms and all Department property (except Department Manual) will be surrendered on member's last tour of duty prior to commencement of a leave of absence.*

*While on leave of absence, a member will be required to appear for any hearings or trials in which the member is the arresting officer, witness, or respondent and Extended Leave Services will be so notified of such appearance.*

*A leave of absence without pay may be terminated prior to its scheduled expiration date upon advance notification to Extended Leave Services.*

# ADMINISTRATIVE GUIDE

| Section: Leave, Payroll and Timekeeping | | Procedure No: 324-10 |
|---|---|---|
| **EXTENDED LEAVE OF ABSENCE - EDUCATIONAL FELLOWSHIP/ SCHOLARSHIP NOTIFICATION OF INTENT** | | |
| DATE EFFECTIVE: 11/18/21 | LAST REVISION: I.O. 110 | PAGE: 1 of 2 |

**PURPOSE** To ensure that the Department is notified in a timely manner when a member of the service (uniformed or civilian) intends to apply for a specified opportunity that will require an extended leave of absence.

**DEFINITION** ELIGIBILITY - A member of the service (uniformed or civilian) is not eligible to apply for any extended leave of absence with pay for thirty consecutive days or more for an educational fellowship/scholarship or similar opportunity after previously receiving such a leave during their career.

**PROCEDURE** When a member of the service (uniformed or civilian) intends to apply for a non-Department sponsored educational fellowship/scholarship (e.g., White House Fellowship, Fulbright Award, Kennedy School of Government Scholarship, etc.) or similar opportunity (e.g., United Nations Civilian Policing position [UNCIVPOL], etc.) that will result in a request for an extended leave of absence (paid or unpaid) for thirty consecutive days or more:

**MEMBER OF SERVICE**

1. Prepare a "Request to Attend/Participate," on **Typed Letterhead**, detailing the specific nature of the educational fellowship/scholarship (e.g., anticipated leave requirements, deadline for submission of application, etc.).
2. Forward the "Request to Attend/Participate" to the Chief of Personnel, through channels.

***NOTE*** *Final approval of the "Request to Attend/Participate" must be obtained prior to applying for the non-Department sponsored educational fellowship/scholarship. Failure to do so will result in being denied the leave of absence.*

**CHIEF OF PERSONNEL**

3. Forward an acknowledgement of receipt on **Typed Letterhead** to the requesting member of the service indicating that the "Request to Attend/Participate" has been received and is being processed.
4. Forward the "Request to Attend/Participate," with endorsements, to the Office of the Police Commissioner for final approval.
   a. Forward a copy of the "Request to Attend/Participate," with endorsements, to the Commanding Officer, Office of Management Analysis and Planning for informational purposes.

**OFFICE OF THE POLICE COMMISSIONER**

5. Forward, through channels, approval/disapproval "Request to Attend/Participate" to the member of service making the request.

***ADDITIONAL DATA***

*Members of the service are urged to submit the "Request to Attend/Participate" well in advance of any application deadline for a non-Department sponsored educational fellowship/scholarship in order to allow ample time for the approval process and the forwarding of any necessary documentation.*

*It is the policy of the Department to encourage its members to pursue educational opportunities in furtherance of their police careers.*

NYPD

# ADMINISTRATIVE GUIDE

| Section: Leave, Payroll and Timekeeping | | Procedure No: 324-11 |
|---|---|---|
| **DEFINITE MILITARY LEAVE** | | |
| DATE EFFECTIVE: 09/11/26 | LAST REVISION: R.O. 81 | PAGE: 1 of 7 |

**PURPOSE** To grant members of the service (uniformed and civilian) leaves of absence to perform military duty for a period or periods not exceeding a total of thirty military leave days (or its equivalent in hours for civilian members of the service), in any one calendar year or in any continuous period of absence.

**DEFINITIONS**

MILITARY LEAVE DAYS - The thirty days of paid leave per calendar year authorized by New York State Military Law to attend military drills or additional ordered military appearances.

MILITARY WORK DAY - Any day the member is required to obtain an approved military leave of absence from this Department to attend a military drill or additional ordered military appearances.

DRILL SCHEDULE - An advance schedule (i.e., quarterly, semi-annual or annual) from a member's military Reserve or National Guard unit indicating the dates the member will be performing military duty for the Federal fiscal year, which starts on October 1st and ends on September 30th.

UNSCHEDULED DRILL - An ordered military appearance/drill not in conformance with the drill schedule.

**PROCEDURE** When a member is ordered to report for a military drill as per the drill schedule or an additional ordered military appearance for thirty days or less:

**MEMBER OF THE SERVICE**

1. Provide respective timekeeper with a copy of Enlistment Contract/Oath of Office, current Drill Schedule, Official Military Orders, as well as member's current military unit, email address and telephone number of a contact person at the military unit.
2. Submit **Digital Leave of Absence Request** using the Central Personnel Resource (CPR) System to supervisor at least two weeks prior to commencement of military leave for a scheduled drill or additional ordered military appearance.
   a. When member of the service is unable to submit a **Digital Leave of Absence Request** within two weeks (e.g., Department work scheduling conflicts, short notice of ordered military service, etc.), the **Digital Leave of Absence Request** will be submitted at the first available opportunity.
   b. A **Digital Leave of Absence Request** for any scheduled drill and/or appearance as per the drill schedule does not require any additional documentation to be attached.
   c. Immediately notify a supervisor at respective command and submit a **Digital Leave of Absence Request** for any unscheduled drill, verbal order to report, or any additional military appearance not indicated on the drill schedule.

**MEMBER OF THE SERVICE (continued)**

(1) The **Digital Leave of Absence Request** to attend an unscheduled drill or additional military appearance should be submitted with an attached Official Military Order signed by the military unit commander or other supervisor with "By Direction" signature authority from unit commander, including rank/name of military or civilian contact person. The Official Military Orders should have the military unit name, address, telephone number, and dates/hours member is ordered to attend drill or additional military appearances.

(2) Upload an Official Military Order to respective as part of the **Digital Leave of Absence Request** submission or submit to timekeeper as soon as possible when a verbal military order to report to a military appearance has been received and written documentation is not immediately available.

d. Ensure military leave captions on **Digital Leave of Absence Request** are completed, listing actual hours of the military drill or additional military appearance (broad time frames such as 0001 to 2400 hours are not acceptable).

e. Ensure type of leave requested is entered in **Digital Leave of Absence Request**

(1) The member has the discretion to select a military leave day, vacation day, and/or other type of accrued time to request paid leave, or

(2) The member may choose to request an unpaid leave by entering 'Military Leave without pay' in the 'Reasons' caption of the **Digital Leave of Absence Request**.

f. Military leave days can only be used for military drills or additional military appearances. Military leave days are not authorized for any other purpose.

3. Notify roll call personnel and timekeeper <u>immediately</u> if drill is cancelled or the duration has changed.

a. If duration is extended, comply with directions from timekeeper.

b. If duration is shortened or cancelled, appear for duty as originally scheduled, as appropriate.

4. Submit a Certificate of Attendance to respective timekeeper within ten days after return from military duty when a military leave of absence is requested.

a. The Certificate of Attendance should be signed by the military unit commander or other supervisor with "By Direction" signature authority from the unit commander, including rank/name of military or civilian contact person. The official certificate should have the military unit name, address, telephone number, and dates/hours member attended drill or military duty.

**MEMBER OF THE SERVICE (continued)**

b. Absent exigent circumstances, failure to submit a Certificate of Attendance within ten days will result in the forfeiture of the ability to use a military leave day for that leave of absence.
   (1) Notify the timekeeper within ten days of an alternate type of leave to use, or a request for leave without pay, if not notified the timekeeper will deduct the time from other available leave balances.

**TIMEKEEPER**

5. Maintain a **MILITARY ABSENCE RECORD (PD433-147)** for each member of the command who is an active drilling Reservist or Guardsman.
6. Ensure that a copy of member's current military Enlistment Contract/ Oath of Office, current Drill Schedule, and Official Military Orders are attached to the inside cover of **MILITARY ABSENCE RECORD**.
   a. Notify integrity control officer when member fails to provide current Drill Schedule or Official Military Order.
7. Ensure that an additional copy of member's current military contract is on file at Extended Leave Services (ELS).
   a. Failure to have a member's current military contract on file will result in the member not accruing any military leave days for the calendar year.
8. Contact ELS for instructions if leave commences in the current calendar year and continues into the following year(s) (e.g., leave begins on December 20th and ends the following January 5th) and/or military leave exceeds thirty days (see *A.G. 324-12, "Indefinite Military Leave")*.
9. Indicate all military leave day usage on member's **ABSENCE AND TARDINESS RECORD (PD433-145)**.
10. Make appropriate entries in the City Time System.
    a. It is the member's discretion whether to use a military leave day, military leave without pay, vacation or any other accrued time.
    b. The type of leave requested should be documented on the member's **Digital Leave of Absence Request**.
    c. Notify integrity control officer when member fails to provide a Certificate of Attendance within ten days after return from military duty for any military appearance where a military leave of absence was requested.
    d. Adjust balances as directed by the integrity control officer.
11. File Official Military Order with Certificate of Attendance in member's **MILITARY ABSENCE RECORD**.
    a. Neither a **Digital Leave of Absence Request** nor a Certificate of Attendance are required if a member's military leave of absence falls solely on their regular days off (RDOs). However, timekeepers must be aware of the scheduled drill dates.
12. Make appropriate entries on **MILITARY ABSENCE RECORD**, as per instructions on form.
13. File completed **MILITARY ABSENCE RECORD** in member's personnel folder at the end of the calendar year.

**INTEGRITY CONTROL OFFICER**

14. Conduct investigation if member fails to provide:
    a. Current military Enlistment Contract or Oath of Office
    b. Current Drill Schedule
    c. Certificate of Attendance, as required, for a drill where a military leave of absence was requested.
        (1) If the completion of a military drill or additional military ordered appearance is in question, in addition to contacting the military unit to verify attendance, integrity control officers may request the member to produce their military Leave and Earnings Statement
        (2) Absent exigent circumstances, failure to submit a Certificate of Attendance within ten days will result in the forfeiture of the ability to utilize a military leave day for the leave of absence
        (3) If the member fails to provide documentation of attendance, an alternate type of leave to utilize, or a request for leave without pay, direct the timekeeper to deduct time from other available leave balances.
15. Determine if the member failed to attend military drill or an additional military appearance where a military leave of absence was requested, and report findings to the commanding officer.

**COMMANDING OFFICER**

16. Approve **Digital Leave of Absence Request** for military drill or other military appearance.
    a. A leave of absence for military drill or other military appearance MUST be approved.
17. Initiate Charges and Specifications upon notification from the integrity control officer that an investigation has been substantiated because the military member failed to attend military drill or additional military appearances, and fraudulently submitted, or fraudulently maintained, a military leave of absence request.
18. Designate a supervisor to perform steps "19" and "20" below.

**DESIGNATED SUPERVISOR**

19. Conduct quarterly self-inspection on military records of command using the "Leave Requests Report" in the City Time system to ensure compliance with procedure.
20. Notify the integrity control officer when member fails to provide:
    a. Current military Enlistment Contract or Oath of Office
    b. Current drill schedule
    c. Certificate of Attendance, as required, for drill where a military leave of absence was requested.

***ADDITIONAL DATA***

*OPERATIONAL CONSIDERATIONS*

*Members of the Reserves or National Guard are required to furnish their timekeeper with two copies of any current Enlistment Contract/Oath of Office, separation certificate, discharge, or transfer orders within thirty days of such change. One copy will be sent to Extended Leave Services and the other will be filed in the member's personnel folder. If a member fails to submit a current Enlistment Contract/Oath of Office, the integrity control officer will ascertain if such failure was due to their transfer to the inactive reserve or discharge from the Armed Forces. The integrity control officer will prepare and forward a narrative report DIRECT to the Commanding Officer, Human Resources Division (Attention: Extended Leave Services) and a copy to the commanding officer concerned, when the member does not provide a current Enlistment Contract/Oath of Office. Extended Leave Services will remove the member from the active reserve roster. In order for military members to be granted military leave days the member must be on the active reserve roster.*

*The member of the service may NOT be disciplined for failing to provide documentation regarding their military leave if said leave is for thirty days or less, or for failing to elect the type of leave to be used. However, if there is a legitimate question as to whether the member actually performed military service during the requested leave time, the Department may investigate and any substantiated allegation may subject the member to disciplinary action.*

*As per the Uniformed Services Employment and Reemployment Rights Act (USERRA) of 1994, a member leaving to perform military drill or other military appearance must be granted enough time after leaving employment with the Department to organize the member's personal affairs, safely travel to the location of where the service is to be performed, and arrive fit to perform the military service. In order for a member to use this rest period, the member may, with the commanding officer's permission, voluntarily change their tour, or choose to use a time balance other than a military leave day.*

*A member returning from military duty or other military appearance must be granted travel time from the location of the military service and have an eight hour rest period prior to being expected to return to duty with the Department. Military leave days may only be used for any and all periods of absence while engaged in the performance of ordered military duty, and while going to and returning from such duty. Where appropriate, travel time should be specified in the member's Official Military Order and notated on the Certificate of Attendance.*

*Official Military Orders and Certificates of Attendance received from a member's military Reserve or National Guard unit should be in the format illustrated in Appendices "A" and "B," or in a format that includes all of the information as listed on Appendices "A" and "B."*

*Any questions concerning military leave should be referred to the Personnel Bureau, Extended Leave Services.*

## APPENDIX "A"

***ILLUSTRATION OF OFFICIAL MILITARY ORDER***

DEPARTMENT OF THE ARMY
ALPHA COMPANY 104TH INFANTRY BATTALION
New York Army National Guard
123 New York Avenue
New York, N.Y. 10018

Date: _____

From: Commanding Officer
To: Whom it may concern

Subject: **ORDERED MILITARY DUTY**

1. This is to certify that:

_____
Name Service Rank DoD ID Number

is/was ordered to attend required military duty with this unit on the following dates and times:

From: Date _____ Hours _____

To: Date _____ Hours _____

Location of duty: _____

2. Point of contact for this matter is _____ and can be reached at telephone number (_____) _____ and /or email address: _____.

Name
Captain, IN, NYARNG
Title

******This may also be signed by another supervisor with "By Direction" signature authority from the unit commander (including civilians).******

**APPENDIX "B"**

***ILLUSTRATION OF CERTIFICATE OF ATTENDANCE LETTER***

DEPARTMENT OF THE ARMY
ALPHA COMPANY 104TH INFANTRY BATTALION
New York Army National Guard
123 New York Avenue
New York, N.Y. 10018

Date: _____

From: Commanding Officer
To: Whom it may concern

Subject: **CERTIFICATE OF ATTENDANCE**

1. This "Certificate of Attendance" has been forwarded to your command in order to comply with New York State Military Law Section 242(5) that requires the New York City Police Department to pay its members while on military leave, and to certify that:

_____
Name Service Rank DoD ID Number

was ordered to and did attend military duty on the following dates and times:

From: Date _____ Hours _____

To: Date _____ Hours _____

Location of duty: _____

2. Point of contact for this matter is _____ and can be reached at telephone number (_____) _____ and /or email address: _____.

Name
Captain, IN, NYARNG
Title

*****This may also be signed by another supervisor with "By Direction" signature authority from the unit commander (including civilians).******

# ADMINISTRATIVE GUIDE

| Section: Leave, Payroll and Timekeeping | | Procedure No: 324-12 |
|---|---|---|
| **INDEFINITE MILITARY LEAVE** | | |
| DATE EFFECTIVE: 09/11/26 | LAST REVISION: R.O. 81 | PAGE: 1 of 4 |

**PURPOSE** To process absence for military leave, exceeding thirty days or when the period of continuous active military duty commences in the current calendar year and continues into the following year(s).

**PROCEDURE** When a member of the service (uniformed or civilian) receives orders to report for military duty either for a period that will exceed thirty days, OR for any period, even if less than thirty days, in which continuous active duty will commence in one calendar year and continue into the following calendar year (e.g., leave begins on December 20th and ends the following January 5th), the Extended Leave Services (ELS) must be contacted.

**MEMBER OF THE SERVICE**

1. Notify commanding officer/supervisory head immediately upon receiving orders to report for military duty for a period exceeding thirty days or when the period of continuous active military duty commences in the current calendar year and continues into the following year(s).

**COMMANDING OFFICER**

2. Direct member concerned to contact ELS <u>immediately</u> for instructions.

**MEMBER OF THE SERVICE**

3. Access ELS website through the Department's Intranet in order to obtain military leave request forms (Military Leave Package).
4. Prepare and submit all forms for military leave notification to commanding officer/supervisory head as directed by ELS.
   a. Surrender all Department property (except Department Manual) and prepare **PROPERTY RECEIPT - DISCONTINUANCE OF SERVICE (PD520-013)**, for a military leave of absence of thirty days or more.
   b. Under caption "Member is Applying For:" indicate "Extended Leave Of Absence."
   c. Personally deliver shield, if applicable, and **IDENTIFICATION CARD (PD416-091)** to Shield, ID, and Uniformed Services Group, and obtain receipt. If member wishes to retain a Department issued **IDENTIFICATION CARD** with 'MILITARY LEAVE – NO NYPD FIREARMS' imprinted on it, report to ELS for authorization documented on **Typed Letterhead** to be delivered to the Shield, ID, and Uniformed Services Group.
   d. Personally deliver New York City Transit (NYCT) NYPD OMNY Police Pass, Long Island Rail Road/Metro North Police Pass, as applicable, to Shield, ID, and Uniformed Services Group.
   e. Prepare **PROPERTY CLERK INVOICE (PD521-141)** for firearms surrendered and include in "Remarks" section "PROPERTY OF MEMBER ON EXTENDED MILITARY LEAVE. NOT TO BE RETURNED WITHOUT APPROVAL OF THE COMMANDING OFFICER, EXTENDED LEAVE SERVICES."

**MEMBER OF THE SERVICE (continued)**

f. Personally deliver Department portable radio to Electronics Section.

***NOTE*** *All military work days must be exhausted prior to utilizing all other accrued leave or leave without pay. The member has the discretion to select additional leave days, vacation days, and/or other type of accrued time, prior to assignment to ELS. Military leave days may only be used for any and all periods of absence while engaged in the performance of ordered military duty, and while going to and returning from such duty. Where appropriate, travel time should be specified in the member's Official Military Order and notated on the Certificate of Attendance.*

**TIMEKEEPER**

5. Contact ELS for instructions if leave commences in the current calendar year and continues into the following year(s) (e.g., leave begins on December 20th and ends the following January 5th) and/or military leave exceeds thirty days.
6. Indicate all military leave day usage on member's **ABSENCE AND TARDINESS RECORD (PD433-145)**.
7. Make appropriate entries in the City Time System.
   a. All military work days ***must*** be exhausted prior to utilizing other accrued leave or leave without pay.
   b. The member has the discretion to select additional leave days, vacation days, and/or other type of accrued time, prior to assignment to ELS.
   c. The type of leave requested should be documented on the member's **Digital Leave of Absence Request.**
8. Retain copy of member's ELS Military Leave Package at the command.

**INTEGRITY CONTROL OFFICER**

9. Ensure that member's firearms and all Department property as outlined in step "4" (except Department Manual) are surrendered and indicate such on **PROPERTY RECEIPT - DISCONTINUANCE OF SERVICE**, for a military leave of absence of thirty days or more.
   a. Ensure shield, **IDENTIFICATION CARD**, NYCT NYPD OMNY Police Pass and/or LIRR/Metro North Police Pass, as applicable, are hand delivered to Shield, ID and Uniformed Services Group.
   b. If member wishes to retain a Department issued **IDENTIFICATION CARD** with "MILITARY LEAVE – NO NYPD FIREARMS" imprinted on it, direct member to report to ELS for authorization documented on **Typed Letterhead** to be delivered to the Shield, ID, and Uniformed Services Group.
   c. Review **PROPERTY CLERK INVOICE** that was prepared for firearms by the member and ensure the appropriate remarks are notated, "PROPERTY OF MEMBER ON EXTENDED MILITARY LEAVE. NOT TO BE RETURNED WITHOUT APPROVAL OF THE COMMANDING OFFICER, EXTENDED LEAVE SERVICES."

**INTEGRITY CONTROL OFFICER (continued)**

d. Forward **NYPD Restricted Parking Permit (Misc. 23-N)** and **Headquarters Annex Parking Permit (Misc. 814HQ-Annex)**, by messenger, to Chief of Department, Vehicle Identification Unit.

e. Review Timekeepers calculations of member's military days, vacation days, and/or any accrued time to provide the appropriate transfer date to ELS.

***NOTE*** *When a uniformed or civilian member of the service receives orders to report for military duty in which continuous active duty will commence in one calendar year and end in the following year for a period of less than thirty days, (e.g., December 26, 2016 to January 11, 2017), the member is not required to surrender firearms and Department property.*

**COMMANDING OFFICER**

10. Review complete ELS Military Leave Package, and ensure all Department property including firearms and **IDENTIFICATION CARD** are surrendered as appropriate.
11. Distribute form **PROPERTY RECEIPT - DISCONTINUANCE OF SERVICE** as follows:
    a. Original - attach to member's notification for indefinite military leave direct to Commanding Officer, Extended Leave Services, if notification has already been forwarded when member surrenders property
    b. First Copy - to member going on leave
    c. Second Copy - command file
    d. Remaining Copies - filed in member's personnel folder.
12. Ensure that member, if authorized, has utilized all thirty work days, as outlined in *A.G. 324-11, "Definite Military Leave."*
13. Ensure member's firearms are delivered to the Property Clerk Division, Manhattan Office, located at One Police Plaza, S level, NY, NY 10038 within thirty days.
14. After review of the request for a military extended leave, complete the First Endorsement and forward the entire Military Leave Package direct to the Human Resources Division (Attention: ELS) located at One Police Plaza.

**MEMBER OF THE SERVICE**

15. Report any revision, revocation, extension, or change in the purpose of the Military Orders, address or duty assignment immediately after change occurs.
16. Contact ELS for a return to duty appointment upon military discharge.

**EXTENDED LEAVE SERVICES**

17. Transfer member to ELS.
18. Publish transfer to ELS and leave of absence in Department's Personnel Orders.

***ADDITIONAL DATA*** *All Department property and firearms (except Department Manual and **IDENTIFICATION CARD** marked "MILITARY LEAVE – NO NYPD FIREARMS") must be surrendered on the member's last tour of duty prior to commencement of indefinite military leave of absence. Firearms may not be purchased and possessed by a military member on leave from the Department by utilizing their NYPD credentials.*

***ADDITIONAL DATA (continued)***

*Members of the service assigned to Extended Leave Services on a leave of absence must continue to abide by all Department rules and regulations.*

*Members of the service enlisting or accepting a commission in any federal military reserve or state militia organization must provide notice to the Department prior to enlistment. Members of the service must submit a report on* ***Typed Letterhead*** *regarding "Notification to Enlist in the Military/National Guard" to their commanding officer who will endorse the request and forward to the Commanding Officer, Extended Leave Services. The report on* ***Typed Letterhead*** *may be obtained by accessing the Extended Leave Services website, under Military Information and Forms.*

NYPD

# ADMINISTRATIVE GUIDE

| Section: Leave, Payroll and Timekeeping | | Procedure No: 324-13 |
|---|---|---|
| **SPECIAL LEAVE FOR FORMER MEMBERS OF THE ARMED FORCES** | | |
| DATE EFFECTIVE: 09/11/26 | LAST REVISION: R.O. 81 | PAGE: 1 of 2 |

**PURPOSE** To establish eligibility for Veterans Day, Memorial Day and/or Independence Day leave of absence.

**SCOPE**

ELIGIBILITY REQUIREMENTS:

Veterans Day and Memorial Day

a. Service on active duty in the armed forces of the United States and honorably discharged or separated under honorable conditions. (Members who served as reservists on extended ACTIVE DUTY FOR TRAINING ONLY, are not entitled to this excusal).

b. Service in the armed forces of a country allied with the United States in World War II, or during the Korean conflict between June 25, 1950 and January 31, 1955, or during the Vietnam conflict between January 1, 1963 and May 7, 1975.

Independence Day

a. Service in, and honorably discharged from, the Naval Militia, National Guard or Reserve forces of the Armed Forces at a time when the United States was not at war.

The date that will serve as the basis for special leave excusal will be the date on which this Department observes the holiday.

**PROCEDURE** When seeking to establish eligibility for Veterans Day, Memorial Day and/or Independence Day leave of absence:

**UNIFORMED MEMBER OF THE SERVICE**

1. Submit to commanding officer/supervisory head, a written request and original copy of:
   a. Honorable Discharge and/or Separation Certificate (DD 214) with any other document(s) which substantiates eligibility for Veterans Day and Memorial Day leave of absence.
   b. Honorable Discharge and/or Military Order indicating separation was under honorable conditions from National Guard, Naval Militia or Reserve forces of the United States, together with any other documentation indicating entitlement to Independence Day leave of absence.

**C.O. /SUPV. HEAD**

2. Forward Commanding Officer's endorsement recommending approval/disapproval and all copies of documentation submitted, to Commanding Officer, Human Resources Division (Attention: Extended Leave Services).

**EXTENDED LEAVE SERVICES**

3. Review all documentation submitted to determine if member is entitled to leave.
4. Prepare endorsement indicating leave to which member is entitled to and forward all submitted documents to commanding officer/supervisory head concerned.

**EXTENDED LEAVE SERVICES (continued)**

5. Have endorsement and supporting documentation placed in member's Personal Folder.

***ADDITIONAL DATA***

*Due to exigencies of the service, leave will be granted, as follows:*

- *Captains - according to the needs of the service.*
- *One lieutenant in a precinct.*
- *Three sergeants in a precinct where seven or more are performing duty.*
- *Two sergeants in a precinct where there are less than seven performing duty.*
- *Not more than 40% of the total number of police officers entitled to this leave in a precinct.*

*Commands other than precincts, 40% equitably apportioned among various ranks. Preference will be given to senior members in each rank. In order to be granted excusal under this procedure, the member must take the excusal for the holiday on the day the holiday is observed by this Department. However, if the uniformed member works the holiday (either as a scheduled workday or on an overtime basis), said member will be excused from one tour for such day upon request (exigencies of the service permitting). This excusal must be utilized within six months of the specific holiday.*

*Uniformed members of the service who are on vacation, sick report, absent with leave or excused from duty on any of these days, according to their regular duty chart are NOT eligible for this leave.*

*If a member had been previously turned down for entitlements under this procedure, and the uniformed member supplies new documents to substantiate entitlements, copies of all documents will be forwarded as outlined above.*

# ADMINISTRATIVE GUIDE

| Section: Leave, Payroll and Timekeeping | | Procedure No: 324-14 |
|---|---|---|
| **CHILD CARE LEAVE OF ABSENCE – UNIFORMED MEMBER OF THE SERVICE** | | |
| DATE EFFECTIVE: 09/11/26 | LAST REVISION: R.O. 81 | PAGE: 1 of 3 |

**PURPOSE** To process requests for child care leave of absence, without pay, made by uniformed members of the service.

**DEFINITION** CHILD CARE LEAVE OF ABSENCE – An unpaid leave of absence for a continuous period not to exceed three hundred and sixty-five days commencing no later than one year after the birth of the uniformed member's child, or one year from the date of placement of a non-birthed child. As used in this procedure, the approving officer will be the Chief of Personnel.

CHILD – A biological, adopted, foster child, legal ward, or stepchild of the employee (including the child of the employee's domestic partner) or a child who the uniformed member of the service stands in place of a parent (loco parentis). A child must either be under the age of eighteen or incapable of self care because of a mental or physical disability.

**PROCEDURE** When a uniformed member of the service requires child care leave of absence without pay:

**UNIFORMED MEMBER OF THE SERVICE**

1. Notify commanding officer/supervisory head of intention to request leave of absence a minimum of six weeks prior to anticipated birth date of child, or six weeks prior to date when uniformed member of the service wishes to commence leave of absence, as appropriate.

**COMMANDING OFFICER**

2. Direct uniformed member of the service to contact Extended Leave Services immediately for instructions.

**UNIFORMED MEMBER OF THE SERVICE**

3. Submit all forms to commanding officer/supervisory head as directed by the Extended Leave Services.

**COMMANDING OFFICER**

4. Ensure that member's firearms and all Department property (except Department Manual) are surrendered and indicate such on **PROPERTY RECEIPT - DISCONTINUANCE OF SERVICE (PD520-013)**.
   a. Under caption "Member is Applying For:" indicate "Extended Leave of Absence" and "Without Pay."
5. Distribute **PROPERTY RECEIPT - DISCONTINUANCE OF SERVICE** as follows:
   a. First Copy - Upload into member's Digital Leave of Absence Request
   b. Second Copy - To member requesting leave of absence
   c. Third Copy - Command file
   d. Original - Filed in member's Personal Folder.

**COMMANDING OFFICER (continued)**

6. Electronically endorse member's **Digital Leave of Absence Request**, recommending approval/disapproval, as appropriate, and forward a PDF copy along with other required documents within the member's leave package DIRECT to Commanding Officer, Human Resources Division (Attention: Extended Leave Services).
7. Direct that a telephone notification be made to the Compensation Operations Unit indicating the date member's leave will commence.

**INTEGRITY CONTROL OFFICER**

8. Forward **NYPD Restricted Parking Permits (Misc. 23-N)** and **Headquarters Annex Parking Permits (Misc. 814HQ-Annex)**, by messenger, to the Chief of Department's Vehicle Identification Unit.
9. Forward shield, if applicable, and **IDENTIFICATION CARD (PD416-091)**, by messenger, to the Shield, ID, and Uniformed Services Group, and obtain receipt.
10. Ensure Department portable radio is delivered to Electronics Section.

**EXTENDED LEAVE SERVICES**

11. Direct that an appropriate background check be conducted on requesting member.
12. Endorse member's request for leave as necessary and forward to Chief of Personnel for approval.

**C.O., HUMAN RESOURCES DIVISION**

13. Direct transfer of member requesting leave to Extended Leave Services after request has been APPROVED.

***ADDITIONAL DATA***

*A child care leave of absence without pay will be granted only after all accrued leave has been exhausted. A uniformed member's vacation is granted January 1, for that year, but is not to be considered accrued unless the member is in a "full pay" status for the required number of tours for that month.*

*A uniformed member of the service who requests a child care leave of absence without pay for less than thirty days will be guided by A.G. 324-08, "Leave of Absence Without Pay Twenty-Nine (29) Days or Less."*

*Member will receive no pay during the leave of absence. Member will be required to make up this time lost before member will be considered eligible for retirement. This time on leave will not be credited for pension purposes. Any time in excess of six months on leave - no pay status - will be considered a break in continuous service, and thereby preclude vested interest retirement for five years after return to duty.*

*All Department property, except the Department Manual, must be surrendered on the member's last tour of duty, prior to commencement of leave of absence.*

*Extensions of a child care leave of absence without pay will NOT be granted. A member may terminate such leave prior to the scheduled expiration date upon advance notification to Extended Leave Services.*

***ADDITIONAL DATA (continued)***

*While on a leave of absence, a uniformed member of the service will be required to appear for any hearings or trials in which the member is the arresting officer, witness, or respondent and will notify Extended Leave Services prior to such appearance.*

*Extended Leave Services will make salary payment computations upon documentation of mandatory appearance.*

*A member of the service will not be considered ineligible for promotion solely because of an approved leave of absence. If a member is scheduled for promotion during the leave, member will be notified by the Department to be present on the day of the promotion.*

*Any extended leave of absence without pay may effect health benefits. Members on leave of absence will, however, be able to purchase health insurance for a limited period of time at a group rate. Questions may be referred to the Health Insurance Group.*

NYPD

# ADMINISTRATIVE GUIDE

| Section: Leave, Payroll and Timekeeping | | Procedure No: 324-15 |
|---|---|---|
| **OVERTIME** | | |
| DATE EFFECTIVE: 05/23/22 | LAST REVISION: I.O. 55 | PAGE: 1 of 2 |

**PURPOSE** To compensate uniformed members of the service for work performed in excess of hours stipulated in the member's regular work schedule.

**DEFINITION** OVERTIME:

a. NON-ORDERED - Extension of scheduled tour of duty by 15 minutes or more to prevent interruption of services being performed, e.g., processing an arrest, aided case, court appearance, etc. Non-ordered overtime is not authorized for administrative duties at any level.

b. ORDERED - Extra duty required for on-going or future operational situations, demonstrations, parades, etc., or overtime of an administrative nature for extra duty required of an on-going or future operational situation. (May only be authorized by Police Commissioner, First Deputy Commissioner or Chief of Department).

c. EMERGENCY ORDERED - Extra duty performed in an emergency when work schedules are suspended by Department order, due to large-scale disorders or disasters. (May only be authorized by Police Commissioner, First Deputy Commissioner or Chief of Department).

**PROCEDURE** When a uniformed member of the service below the rank of captain performs overtime duty:

**UNIFORMED MEMBER OF THE SERVICE**

1. Submit **OVERTIME REPORT (PD138-064)** to desk officer when dismissed.
   a. If performing duty at other than regularly assigned command, submit to desk officer of that command.
   b. If performing duty at scene of parade, demonstration, etc., submit to immediate supervisor.

***NOTE*** *The Fair Labor Standards Act (F.L.S.A.) requires that overtime earned by members of the New York City Police Department be paid within a reasonable time after it is performed. Accordingly, completed **OVERTIME REPORTS** will normally be submitted to the permanent command of the member concerned at the end of their tour of duty. In those circumstances when the permanent command is closed, the requesting member will submit the **OVERTIME REPORT** on their next scheduled tour of duty. Members scheduled for authorized leave following a tour when overtime has been performed will submit their **OVERTIME REPORTS** on their next scheduled tour of duty.*

**DESK OFFICER/ SUPERVISOR CONCERNED**

2. Make Command Log or digital **Activity Log** entry at time of dismissal.
3. Certify time of dismissal on **OVERTIME REPORT**.
   a. Commanders of large details, e.g., parades, demonstrations, etc., will collect certified **OVERTIME REPORT** forms from subordinate supervisors and have reports forwarded to permanent commands of member concerned. **OVERTIME REPORTS** will not be returned to requesting member at scene.
4. Forward **OVERTIME REPORT** to commanding officer, member's permanent command.

***ADDITIONAL DATA***

*The maximum amount of compensatory time a uniformed member of the service may accumulate is five days. When the member concerned accrues compensatory time in excess of five days, the excess MUST be taken within thirty days, needs of the service permitting. In any event, compensatory time MUST be taken within one year of the date earned.*

*To enhance auditing procedures regarding court appearances with related overtime, uniformed members of the service will comply with the following when court attendance results in overtime:*

*a. Attach **OVERTIME REPORT** to related 'Court Appearance Information Report,' from the CPR System, and submit to desk officer/supervisor for approval.*

*b. Desk officer/supervisor will ensure that **OVERTIME REPORTS** and 'Court Appearance Information Reports' are properly prepared and attached as required.*

*c. **OVERTIME REPORTS** submitted for attendance at court without the required 'Court Appearance Information Report' attached, shall not be approved by desk officer/supervisor without an investigation being conducted.*

*d. After the desk officer/supervisor concludes the investigation, the overtime may be approved if appropriate.*

*Payroll clerks shall process **OVERTIME REPORTS** with 'Court Appearance Information Report' attached and file with related **PAYMENT REQUESTS (PD138-066)** as directed.*

*The procedure outlined above will apply whether cash or time compensation is selected for the overtime and regardless of the reason for the court appearance.*

*Any disciplinary action taken for failure to submit **OVERTIME REPORTS** in a timely manner should not impact upon the payment of the overtime to the member of the service who failed to submit the request promptly. Pursuant to the Fair Labor Standards Act, the member must be compensated for the time worked. The penalty for not complying with Department regulations must be a separate disciplinary matter.*

# ADMINISTRATIVE GUIDE

| Section: Leave, Payroll and Timekeeping | | Procedure No: 324-16 |
|---|---|---|
| **ORDERED OVERTIME** | | |
| DATE EFFECTIVE: 11/18/21 | LAST REVISION: I.O. 99 | PAGE: 1 of 1 |

**PURPOSE** To secure authorization for ordered overtime.

**DEFINITION** ORDERED OVERTIME - extra duty required for ongoing or future operational situations, demonstrations, parades, etc., or overtime of an administrative nature for extra duty required in connection with an ongoing or future operational situation (may only be authorized by Police Commissioner, First Deputy Commissioner or Chief of Department).

**PROCEDURE** When necessary to request ordered overtime:

**COMMANDING OFFICER/ DESIGNEE**

1. Obtain overtime authorization code number from Operations Unit.
2. Forward written request, through channels, to the Chief of Department, including:
   a. Overtime request authorization code number.
   b. Requesting command.
   c. Nature, location, date and time of event.
   d. Estimated number of uniformed members of the service by rank and hours involved.
   e. Certification that overtime is necessary and that alternate means do not exist or are not sufficient to accomplish task.
3. Telephone request, through channels, to Operations Unit, if overtime is of a spontaneous nature and/or time does not allow for a written request.
   a. Include required information, as necessary,
   b. Confirm all telephone requests in writing.

**OPERATIONS UNIT**

4. Obtain determination from the Chief of Department.
5. Notify requesting command.
6. Maintain control log of all overtime requests/notifications.
   a. Assign serial number beginning with number "1" at the start of each year to request notification.
   b. Include items a, b, c, and d of step 2 in the format.

**REQUESTING COMMANDING OFFICER**

7. Forward a written report through channels, IN ALL CASES, after the overtime has been performed to the Chief of Department under the headings indicated in step 2, EXCEPT:
   a. Item "d" will list the ACTUAL NUMBER of members by rank and hours involved.

***ADDITIONAL DATA***

*Commanding officers will ensure that ordered overtime is held to a minimum.*

*The Office of the Chief of Department will forward a monthly report of ordered overtime expenditures to Deputy Commissioner, Management and Budget.*

# ADMINISTRATIVE GUIDE

| Section: Leave, Payroll and Timekeeping | | Procedure No: 324-17 |
|---|---|---|
| **ABSENT WITHOUT LEAVE** | | |
| DATE EFFECTIVE: 11/16/22 | LAST REVISION: I.O. 112 | PAGE: 1 of 2 |

**PURPOSE** To investigate unauthorized absences of uniformed members of the service.

**PROCEDURE** When a uniformed member of the service is absent without leave for two hours at the beginning of a scheduled tour of duty:

**DESK OFFICER**

1. Make telephone inquiries, including but not limited to:
   a. Command roll call
   b. Sick Desk supervisor
   c. Court sign-in rooms
   d. Member's residence.
2. Check Department records maintained in the command, including but not limited to:
   a. Telephone Record
   b. Centralized Personnel Resource (CPR) Roll Call System.
3. Make inquiries of command personnel as deemed necessary.
4. Request that the desk officer in member's resident precinct have a supervisor respond to the member's residence.

***NOTE*** *If member resides outside of New York City, request the Inter-City Correspondence Unit, to make a notification to the local law enforcement authority concerned and request they respond to the member's residence.*

IF MEMBER NOT CONTACTED FOUR HOURS AFTER COMMENCEMENT OF TOUR:

**DESK OFFICER**

5. Notify:
   a. Commanding officer/duty captain
   b. Borough command/counterpart
   c. Operations Unit
      (1) Include actions taken to locate member
   d. Internal Affairs Bureau Command Center.
6. Make a Command Log entry including facts (inquiries, etc.) and notifications made.

**COMMANDING OFFICER/ DUTY CAPTAIN**

7. Conduct an immediate investigation.
8. Telephone results of investigation to the Operations Unit.
9. Enter results of investigation in Command Log.
10. Prepare two copies of a report on **Typed Letterhead** including:
    a. Full particulars of the investigation
    b. Results obtained
    c. Actions taken or contemplated.

***NOTE*** *If the member's commanding officer is NOT performing duty, the duty captain will prepare three copies of the report.*

**COMMANDING OFFICER/ DUTY CAPTAIN (continued)**

11. Forward ORIGINAL copy of report, without delay, to the Chief of Department, DIRECT, and DUPLICATE copy to the Chief of Department, through channels.

***NOTE*** *Duty captains will have the ORIGINAL copy of the report forwarded as indicated above and the two DUPLICATES forwarded to the commanding officer of the member concerned. The member's commanding officer will endorse and forward one copy of the report to the Chief of Department, through channels, and file the remaining copy.*

WHEN MEMBER IS LOCATED:

**COMMANDING OFFICER/ DUTY CAPTAIN**

12. Interview member concerned.
    a. Ascertain reason for, and location during, absence.

***NOTE*** *Members absent without leave for an entire tour will NOT be assigned to duty without the prior permission of the Chief of Department.*

13. Notify:
    a. Operations Unit
    b. Borough command/counterpart
    c. Sick Desk supervisor
    d. Internal Affairs Bureau Command Center.
14. Make a Command Log entry.
15. Prepare a supplementary report, on **Typed Letterhead**, to the Chief of Department including facts and any disciplinary action taken not previously reported.
16. Forward reports as indicated in step 11 or NOTE following step 11.

# ADMINISTRATIVE GUIDE

| Section: Leave, Payroll and Timekeeping | | Procedure No: 324-18 |
|---|---|---|
| **EQUALIZATION OF SUPERVISOR'S OVERTIME** | | |
| DATE EFFECTIVE: 11/18/21 | LAST REVISION: I.O. 110 | PAGE: 1 of 2 |

**PURPOSE** To equalize the distribution of cash overtime to supervisors in the rank of sergeant and lieutenant.

**PROCEDURE** To equally distribute cash overtime to sergeants and lieutenants:

**COMMANDING OFFICER**

1. Designate an overtime coordinator, preferably the operations coordinator or the executive officer.

**OVERTIME COORDINATOR**

2. Allocate cash overtime equitably.
3. Ensure that supervisors do NOT accrue cash overtime in excess of the following limits:
   a. Four overtime tours per quarter.
   b. Sixteen overtime tours per twelve month period.

***NOTE*** *The above limits include ALL CASH OVERTIME regardless of how it was earned. Overtime earned for periods less than a full tour will be consolidated, and an equivalent number of full tours will be counted towards the supervisor's limit.*

**OVERTIME COORDINATOR**

4. Allocate no more than four overtime tours per quarter, per supervisor.

***NOTE*** *If circumstances warrant, a commanding officer/unit head may allocate additional tours in excess of the four tour limit provided that it would not result in a supervisor exceeding the sixteen tour limit in a twelve month period. Supervisors will not be permitted to work overtime more than sixteen tours in a twelve month period without the permission of the Chief of Department or a bureau chief. The sixteen tour limit is not based on a calendar year, or a fiscal year. It is based on the overtime earned during the current month plus the preceding eleven months.*

**COMMANDING OFFICER**

5. Direct command timekeeper to review overtime records of all supervisors assigned to the command on the first of every month.

**TIMEKEEPER**

6. Prepare a report on the first of every month listing the names of those supervisors assigned to the command who have earned thirteen or more cash overtime tours during the preceding eleven months.
7. Forward report to commanding officer/unit head supervisor concerned.

**COMMANDING OFFICER**

8. Notify supervisors concerned, based on timekeeper's report that overtime for the current month will be restricted.
   a. Supervisors with sixteen or more tours will NOT be eligible.
   b. Supervisors with fifteen to thirteen tours will be limited to one to three tours respectively.

**MEMBER CONCERNED, OVERHEAD COMMAND**

9. Maintain a record of notifications.
10. Accept assignments for supervisory overtime from overtime coordinator or designee ONLY.

***ADDITIONAL DATA***

*When a commanding officer approves an increase in overtime for one quarter, it will result in an equal decrease in the limit for the next quarter, i.e., a sergeant is performing a 1600 to 2400 tour and due to an insufficient number of supervisors working the late tour, the commanding officer extends the tour four hours to cover patrol. This results in the sergeant exceeding the four tour limit by one-half tour. The sergeant's limit for the next quarter would be reduced to three and one-half tours. Overtime travel guarantee (Portal to Portal) will not be counted in the calculation towards the sixteen tour overtime cap.*

*When it is necessary to extend a supervisor's tour, efforts should be made to limit the extension. As a general rule, the extension should be limited to one-half tour, with one full tour being the maximum extension.*

NYPD

# ADMINISTRATIVE GUIDE

| Section: Leave, Payroll and Timekeeping | | Procedure No: 324-19 |
|---|---|---|
| **LOST TIME/OVERTIME PROCEDURES FOR UNIFORMED MEMBERS OF THE SERVICE-CAPTAIN TO DEPUTY CHIEF (INCLUSIVE)** | | |
| DATE EFFECTIVE: 09/11/26 | LAST REVISION: R.O. 81 | PAGE: 1 of 3 |

**PURPOSE** To process and monitor lost time/overtime requests submitted by uniformed members of the service in the ranks of captain to deputy chief (inclusive):

**DEFINITIONS** LOST TIME - any additional time, not performed at the member's option, i.e., conferences called by higher-ranking officers or community oriented meetings when alternate ranking officers are not available or cannot be utilized for these purposes. Lost time is accrued at the straight time rate in time only. Lost time is not authorized for routine administrative duties.

***NOTE*** *Members should not be routinely called to conferences or meetings or be required to prepare routine reports which result in lost time. Lost time should not be earned for attending fraternal, religious, and social functions sponsored by the Department.*

OPERATIONAL OVERTIME - extension of scheduled tour, not performed at the member's option, when exigent circumstances require the continued presence of the member past the normal expiration of the member's tour. Operational overtime is accrued on a time and one-half basis in time only.

***NOTE*** *Whenever practical, when performing operational overtime, relief will be requested when the operation can be completed efficiently by another member. The decision to relieve the member will be made by the borough commander/duty chief.*

ORDERED OVERTIME - extra duty required for demonstrations, parades, etc., which may only be authorized by the Police Commissioner, First Deputy Commissioner and the Chief of Department. Ordered overtime is accrued on a time and one-half basis in time only.

EMERGENCY ORDERED OVERTIME - extra duty performed in an emergency when work schedules are suspended by Department order, due to large scale disasters or disorders; may only be authorized by the Police Commissioner, First Deputy Commissioner or the Chief of Department. Emergency ordered overtime is accrued on a time and one-half basis in time only.

**PROCEDURE** Upon incurring lost time or operational overtime:

**RANKING OFFICER**

1. Record lost time/overtime incurred in Command Sign In/Out Record or Command Diary, as appropriate.
2. Prepare **OVERTIME REPORT (PD138-064)** and a report on **Typed Letterhead** indicating the time and specific reason for lost time/overtime and submit to commanding officer.

**COMMANDING OFFICER OF REQUESTING MEMBER**

3. Review request and determine if lost time/overtime was necessary and within guidelines.
4. Endorse **OVERTIME REPORT** and **Typed Letterhead** recommending approval/disapproval.
   a. Both sides of **OVERTIME REPORT** should be signed.
5. Have approved **OVERTIME REPORT** and **Typed Letterhead** forwarded to the patrol borough commander/counterpart.
6. Have disapproved **OVERTIME REPORT** and **Typed Letterhead** returned to the member concerned.
7. Have entries of approved lost time/overtime request recorded on member's **Electronic Timesheet.**
8. Have copies of **OVERTIME REPORT** and **Typed Letterhead** filed in member's **Time Record Folder (TRF)**, whether approved or disapproved.

**BOROUGH COMMANDER/ COUNTERPART**

9. Review request and determine if lost time/overtime was necessary and within guidelines.
10. Endorse request, indicating approval/disapproval and forward to member's commanding officer, through channels.

**COMMANDING OFFICER OF REQUESTING MEMBER**

11. Have **TRF** adjustments made on those requests that are returned from next higher command as disapproved.

**COMMANDING OFFICER, QUALITY ASSURANCE SECTION**

12. Prepare and distribute quarterly report, prior to the tenth day following each quarter, containing the following information for each member in the rank of captain through deputy chief:
    a. Member's rank, name, command
    b. Total number of hours of lost time/overtime recorded at beginning of quarter
    c. Total number of hours of lost time/overtime accrued during quarter
    d. Total number of hours of lost time/overtime recorded at end of quarter.

***NOTE*** *Time recorded on quarterly report should reflect the converted time (time and one-half), where applicable.*

***ADDITIONAL DATA*** *The Quality Assurance Section will periodically review the time records of all captains through deputy chiefs, and submit a report to the First Deputy Commissioner.*

*Captains in their first three years of service shall have the option of receiving cash overtime (paid at the straight time rate) for up to 180 hours per calendar year.*

*The eligibility for cash overtime in the first calendar year shall be from the date of promotion through December 31 of that year. The eligibility for cash overtime in the fourth calendar year shall be from January 1 of that year through the day before the anniversary of promotion. The number or overtime hours worked which can be compensated in cash are as follows:*

***ADDITIONAL DATA (continued)***

*1. Captains promoted on or before February 4, 2021:*

*a. The amount of overtime hours that can be compensated in cash in each calendar year, beginning with the year of promotion, shall be:*

*Calendar Year 1: 180 hours (from date of promotion to December 31)*
*Calendar Year 2: 180 hours*
*Calendar Year 3: 180 hours*
*Calendar Year 4: 180 hours (from January 1 to anniversary date of promotion)*

*2. Captains promoted after February 4, 2021:*

*a. For those captains promoted before July 1, the amount of overtime hours that can be compensated in cash in each calendar year, beginning with the year of promotion, shall be:*

*Calendar Year 1: 120 hours (from date of promotion to December 31)*
*Calendar Year 2: 180 hours*
*Calendar Year 3: 180 hours*
*Calendar Year 4: 100 hours (from January 1 to anniversary date of promotion)*

*b. For those captains promoted on or after July 1, the amount of overtime hours that can be compensated in cash in each calendar year, beginning with the year of promotion, shall be:*

*Calendar Year 1: 100 hours (from date of promotion to December 31)*
*Calendar Year 2: 180 hours*
*Calendar Year 3: 180 hours*
*Calendar Year 4: 120 hours (from January 1 to anniversary date of promotion)*

*Captains through deputy chief, with the exception of those in the rank of captain with less than three years in rank, shall have the option, each quarter in a calendar year, of exchanging 67.5 hours of compensatory time earned in that quarter for twenty-five hours of cash paid at the straight time rate. Compensatory time accrued at both the straight time rate, and time and one half rate are eligible to be exchanged.*

*The quarters in the calendar year are as follows:*
*(1) January 1 through March 31*
*(2) April 1 through June 30*
*(3) July 1 through September 30*
*(4) October 1 through December 31.*

*Uniformed members of the service who wish to make the exchange, must submit a Typed Letterhead to the Director, Compensation Operations Unit no later than thirty calendar days after the quarter has ended requesting the exchange. Uniformed members of the service who have not accrued compensatory time in the quarter are not eligible for the exchange, even if the member has other compensatory time in the member's leave balance. The Compensation Operations Unit will verify that the member has earned compensatory time in the quarter to participate in the exchange, and if appropriate, process the request. Once a request to make the exchange has been submitted by an eligible uniformed member of the service it is irrevocable.*

# ADMINISTRATIVE GUIDE

| Section: Leave, Payroll and Timekeeping | Procedure No: 324-20 | |
|---|---|---|
| **PAY PLAN AND BENEFITS FOR MANAGEMENT EMPLOYEES - UNIFORMED AND CIVILIAN** | | |
| DATE EFFECTIVE: 09/11/26 | LAST REVISION: R.O. 81 | PAGE: 1 of 3 |

**PURPOSE** To inform uniformed and civilian members of the service in managerial positions of time and leave regulations affecting their positions.

**SCOPE** All uniformed and civilian managers Level I – VIII, as specified in the Management Pay Plan.

**PROCEDURE** When performing duty as a uniformed or civilian manager:

**UNIFORMED/ CIVILIAN MANAGER**

1. Work whatever hours and days required to carry out duties and responsibilities consistent with the needs of the Department.

***ADDITIONAL DATA***

*Uniformed managers work at least forty hours and make at least five appearances per week. No credit is allowed for time worked in excess of forty hours except for adjustment as indicated below.*

*Civilian managers work at least thirty five hours and make at least five appearances per week. No credit is allowed for time worked in excess of thirty five hours except for adjustment as indicated below.*

*A manager may be eligible for flex time as a result of unusually long hours worked in excess of a forty or a thirty five hour work week. Flex time earned in one pay period must be used by the end of the following pay period. This time may not be used to take an entire day off and the manager must be present at work for at least one hour during the day flex time is used. Flex time is not to be combined with current/vested vacation time, current/vested sick time, or vested comp time.*

***MANAGERIAL WEEKLY TIME RECORD (PD433-1414)** is to be prepared by each manager for the hours actually worked during the previous week. All time (sick, vacation, vested, compensatory, managerial leave days, flex time, etc.) is recorded on these sheets and then signed and distributed as indicated at the bottom of the time record.*

*Managerial employees DO NOT accrue terminal leave or compensatory time. Any such credits earned while in a sub-managerial title are vested upon promotion to managerial title.*

*All leave regulations will be as authorized and effective under applicable uniformed service regulations unless specific exceptions are listed in these regulations.*

***ADDITIONAL DATA (continued)***

*TIME AND LEAVE REGULATIONS*

*Holidays*

*Uniformed managers and civilian managers are entitled to the following holiday excusals per year.*

*a. New Years Day*
*b. Martin Luther King (civilian only)*
*c. Lincoln's Birthday (floating holiday)*
*d. Washington's Birthday*
*e. Memorial Day*
*f. Juneteenth*
*g. Independence Day*
*h. Labor Day*
*i. Columbus Day*
*j. Election Day*
*k. Veteran's Day*
*l. Thanksgiving Day*
*m. Christmas Day"*

*Vacation*

*Annual leave allowances for uniformed managers earning twenty seven days per year will be credited at a rate of 18:00 hours per month.*

*Annual leave allowances for civilian managers shall be credited as follows:*
*20 days per year is accrued at 11:35 hours per month*
*25 days per year is accrued at 14:00 hours per month, 21:00 in December*
*27 days per year is accrued at 15:45 hours per month*

*Annual leave earned more than six years prior to the date of final separation shall be computed at the average weighted salary rate received during the year ending six years prior to date of final separation. Annual leave earned during the six year period immediately preceding the date of final separation shall be computed at a rate at which it was earned. In using annual leave, that which was earned last shall be used first.*

*All managers may carry up to two years accrual of non-vested annual leave. In addition, all managers requesting to carry over additional time, must submit a* ***REQUEST FOR CARRY OVER OF EXCESS ANNUAL LEAVE FOR MANAGERIAL EMPLOYEES (PD133-161)*** *to the Police Commissioner, through channels, by February 1, for the preceding year.*

*Lincoln's Birthday is designated as a floating holiday each calendar year. Uniformed managers who are initially promoted into the Managerial Pay Plan after February 12th will be paid for that day in the July holiday check of the same year. The following year the manager will be eligible to take this holiday as a floating day. If the day is not used by the end of the calendar year, or the manager retires prior to taking the day, the day is lost and no compensation is paid.*

*A manager may request up to four managerial leave days in a calendar year via a fillable form (Request for Authorized Managerial Leave Day) found on the Personnel Bureau portal under "Managerial Services" in the "documents" section. The form will be submitted through channels to the Chief of Personnel for final review by the Human Resources Division. The Managerial Time and Leave Group will prepare a certificate of Exemplary Managerial Performance. Any one of the following criteria must be met in order to apply for a managerial leave day:*

1. *Completion of a complex or difficult project*
2. *Achievement of a result or goal beneficial to the interests of the City*
3. *Unusually long hours worked*

***ADDITIONAL DATA (continued)***

*After the Assistant Commissioner, Human Resources Division, has approved and dated the certificate, it is distributed to the manager. The Managerial Time and Leave Group will enter the day in Citytime using code 4903 for 8 hours (uniformed) or 7 hours (civilian). The Authorized Managerial Leave Day must be taken within one year of the certificate approval date. These days must be used in full-day increments and cannot be consecutive to, or combined with, vested/current annual leave, vested/current sick or vested compensatory time balance. No more than one Authorized Managerial Leave Day may be used in a pay period. Uniformed managers must prepare a digital LEAVE OF ABSENCE REPORT and submit via the Centralized Personnel Resource System. Civilian managers are to submit their request to use an Authorized Managerial Leave Day via Citytime. Days not utilized within one year of the certificate approval date will be removed from the managers leave bank. Managers who separate from City service are not compensated for unused managerial leave days.*

*The accrual of terminal leave stops, and sub-managerial annual leave and compensatory time balances are vested as of the day prior to promotion to managerial position. Vested annual leave and compensatory time earned in a sub-managerial level can be utilized while in a managerial position. Vested annual leave can only be used after all current annual leave is utilized.*

*<u>Lump Sum Payment</u>*
*Upon retirement or death while an active member, the manager, or designated beneficiary, will be given a lump sum payment for unused accrued vested/current annual leave, vested/current sick leave (civilian only), vested compensatory time and terminal leave (uniformed only). This will be administered in accordance with Section 2 of Mayor's Personnel Order No. 88-6 for uniformed managers and Section 7 of Mayor's Personnel Order No. 88-5 for civilian managers.*

*Unused terminal leave (uniformed only), vested annual leave, vested compensatory time and half of vested sick (civilian only) will be computed at the current rate of pay for the sub-managerial title that the manager was vested in. Longevity differential is also included in uniformed managers' lump sum payment.*

*In the event a manager dies because of a line of duty injury, a payment of twenty-five thousand dollars ($25,000) will be made to the member's beneficiary. This benefit is in addition to any payments under the Uniformed or Civilian Managers Pension Plan.*

*Total lump sum payment shall not exceed the member's salary earned or earnable during the last twelve months of service.*

*For a further explanation of these guidelines, uniformed or civilian managerial employees should contact the Human Resources Division.*

# ADMINISTRATIVE GUIDE

| Section: General Information | Procedure No: 324-21 |
|---|---|

**DOCUMENTATION OF WEEKLY SCHEDULES PERFORMED BY EXECUTIVE UNIFORMED MEMBERS OF THE SERVICE**

| DATE EFFECTIVE: | LAST REVISION: | PAGE: |
|---|---|---|
| 11/18/21 | I.O. 110 | 1 of 1 |

**PURPOSE** To document the weekly schedules performed by executive uniformed members of the service in order to allow for better oversight.

**DEFINITION** EXECUTIVE UNIFORMED MEMBER OF THE SERVICE – For the purpose of this procedure, executive uniformed members of the service will include members in the ranks of captain, deputy inspector, inspector and deputy chief.

**PROCEDURE** When performing duty as an executive uniformed member of the service:

**EXECUTIVE UNIFORMED MEMBER OF THE SERVICE**

1. Work hours and days required to carry out duties and responsibilities consistent with the needs of the Department.
2. Complete **EXECUTIVE WEEKLY TIME RECORD (PD433-1418)** at the completion of the work week to account for all hours and days worked during the prior week.
   a. Make a photocopy of **EXECUTIVE WEEKLY TIME RECORD** for personal record.
3. Submit **EXECUTIVE WEEKLY TIME RECORD** to the overhead command, through command timekeeper, at the beginning of the new work week for the prior week.

**COMMAND TIMEKEEPER**

4. Make a photocopy of **EXECUTIVE WEEKLY TIME RECORD** and forward/file form as follows:
   a. Original - Forward to overhead command
   b. File copy in employee's command folder.

**OVERHEAD COMMAND**

5. Create a file and maintain **EXECUTIVE WEEKLY TIME RECORDS** submitted by all executive uniformed members of the service within command.
6. Designate a member of the service to periodically review records stored and comply with the Department retention schedules outlined in yearly Operations Order entitled, "Destruction of Records."

***ADDITIONAL DATA*** *The New York City Charter prohibits the destruction of records without prior approval from the New York City Department of Records and Information Services (DORIS) and the Corporation Counsel. The Commanding Officer, Office of Management Analysis and Planning serves as the liaison between the Police Department and these two agencies for this purpose.*

*Schedules for the destruction of records are published via a yearly Operations Order. This Order is not meant to cover every record in a command but rather to clear out the "bulk" records so that storage space is always available.*

# ADMINISTRATIVE GUIDE

| Section: Leave, Payroll and Timekeeping | | Procedure No: 324-22 |
|---|---|---|
| **EMPLOYEE'S WITHHOLDING ALLOWANCE CERTIFICATE** | | |
| DATE EFFECTIVE: 09/11/26 | LAST REVISION: R.O. 81 | PAGE: 1 of 1 |

**PURPOSE** To maintain current Employee's Withholding Allowance Certificate information.

**PROCEDURE** When a member of the service wants to change the number of exemptions claimed on their bi-weekly paycheck:

**MEMBER OF THE SERVICE**

1. Fill out a current tax year **W-4** (request to change member's Federal exemption) and/or **IT-2104** (request to change member's City & State exemptions) certificate(s).
   a. May claim a maximum of ten exemptions on **W-4**.
   b. May claim a maximum fourteen exemptions on **IT-2104**.

***NOTE*** *Member who would like to claim an excess number of exemptions should contact Compensation Operations Unit for instructions.*

2. Forward the original certificate(s), signed and dated, to the Compensation Operations Unit.
3. Forward copy of certificate(s), signed and dated, to command timekeeper.

**TIMEKEEPER**

4. File one copy of the certificate(s) in the member's personal folder.

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# ADMINISTRATIVE GUIDE

| Section: Leave, Payroll and Timekeeping | | Procedure No: 324-23 |
|---|---|---|
| **PAYROLL CHANGES AND DEDUCTIONS** | | |
| DATE EFFECTIVE: 09/11/26 | LAST REVISION: R.O. 81 | PAGE: 1 of 3 |

**PURPOSE** To make authorized payroll changes and/or deductions.

**PROCEDURE** When any of the following payroll changes and/or deductions are requested or necessary:

UNIFORMED WORKING CHART CHANGE

**COMMANDING OFFICER/ SUPERVISORY HEAD**

1. Request timekeeper to prepare a **WORKING CHART CHANGE (PD138-023)** for member(s) concerned when:
   a. Member's steady chart changes within the command
   b. Member is newly assigned to a steady chart
   c. Member is assigned from steady chart to a miscellaneous chart
   d. Member is returning from leave without pay or suspension
   e. Member is transferred into a new command (regardless of chart in previous command).
   f. Member is no longer entitled to chart compensation.

***NOTE*** *Commanding officer may give authorization to another member to sign for the **WORKING CHART CHANGE** form(s). In this instance, commanding officer must give authorization on a **Typed Letterhead** addressed to the Compensation Operations Unit, stating the name and rank of the designated member.*

*Commanding officer will ensure that all **WORKING CHART CHANGE** requests are submitted in a timely manner.*

*When a **WORKING CHART CHANGE** form is submitted more than one year past the date of occurrence, the commanding officer must attach a **Typed Letterhead** setting forth the reason(s) for the late submittal, and indication that the affected member has been made aware of the change and a possible overpayment may occur.*

**TIMEKEEPER**

2. Forward original **WORKING CHART CHANGE** to Compensation Operations Unit.
3. Verify, on duplicate copy, when change is processed.
   a. Timekeeper may do so by reviewing the **Payroll Register Report (PPCCP320)**.
4. Notify Compensation Operations Unit of any discrepancy.
5. File duplicate copy of **WORKING CHART CHANGE** in command file.

***NOTE*** *Compensation Operations Unit will automatically cease a member from receiving chart compensation upon promotion or transfer. Compensation Operations Unit will not give any information to uniformed members of the service regarding their chart. Members must consult with their command timekeeper, supervisor or commanding officer regarding their chart.*

NIGHT SHIFT DIFFERENTIAL

**COMMANDING OFFICER/ SUPERVISOR**

6. Assign schedule, tour, and assignment for each civilian member of the service in command and forward information to timekeeper

**TIMEKEEPER**

7. Enter assigned tour into CityTime Roster (Schedule Assignment) to generate nightshift compensation, as applicable.
8. Update roll call in CityTime system any variance from regularly scheduled tour (tour changes, flextime, training, etc.) to reflect correct nightshift compensation.
9. Review entries against **PMS Accepted Transaction Report (PRCAP649)**.
   a. Sign and date **PMS Accepted Transaction Report**.
   b. File copy of all reports in command file.

ASSIGNMENT DIFFERENTIAL

**MEMBER OF THE SERVICE**

10. Submit request to commanding officer/supervisor.

**COMMANDING OFFICER/ SUPERVISOR**

11. Send request on **Typed Letterhead** to the Compensation Operations Unit, indicating:
    a. Description of assignment
    b. Member's name, rank, title, reference number, and check digit
    c. Effective date of assignment.

OVERTIME – UNIFORMED & CIVILIAN

**MEMBER OF THE SERVICE**

12. Submit **OVERTIME REPORT (PD138-064)** whenever overtime is performed.
13. Forward to commanding officer/supervisor for verification and approval.

**DESK OFFICER**

14. Review, approve and sign **OVERTIME REPORT**.
15. Make Command Log entries including the following:
    a. Name, rank/title, and reference number
    b. Date overtime performed
    c. Amount of time received, taken in cash, or compensation time.
16. Forward to timekeeper for processing.

**TIMEKEEPER**

17. Make appropriate event code entries in **Time Record Folder (TRF)**.
18. Review **OVERTIME REPORT** for accuracy and completeness.
19. Enter overtime into member's **Electronic Timesheet**.
    a. Enter reason code and authorization code.
20. Review entries against **PMS Accepted Transaction Report**.

a. Sign and date **PMS Accepted Transaction Report**.
b. File in command folder.

**TIMEKEEPER (continued)**

21. File **OVERTIME REPORT** in member's **Time Record Folder (TRF)** folder.

ORGANIZATION DUES DEDUCTION
HEALTH INSURANCE DEDUCTION
PENSION LOAN DEDUCTION
DEFERRED COMPENSATION & 401K DEDUCTIONS
MCU SAVINGS/INSURANCE DEDUCTION

**MEMBER OF THE SERVICE**

22. Contact appropriate organization to obtain above listed authorization form.
23. Forward completed form directly to the organization concerned.

***NOTE*** *Any questions or problems should be addressed to the individual organization.*

UNITED SAVINGS BOND DEDUCTION (FISA PMSF-28)
NEW YORK GIVES DEDUCTION (see Booklet)

**MEMBER OF THE SERVICE**

24. Log on to Employee Self-Service (ESS) to enroll in specific program.
25. Log on to ESS when member wishes to make changes of:
    a. Deduction amount
    b. Cancellation
    c. Address
    d. Beneficiary
    e. Exemptions
    f. NYC Gives
    g. NYPD Fraternities.

COLLEGE SAVINGS DEDUCTION (FISA PMSF-NYC-SP-23)

**MEMBER OF THE SERVICE**

26. Contact Compensation Operations Unit for instructions

TRANSIT BENEFIT DEDUCTION (FISA PMSTC-001)

**CIVILIAN MEMBER OF THE SERVICE**

27. Fill out and sign authorization form to enroll in specific program.
    a. Upload authorization to WWW.NYC.GOV/PAYROLL.
28. Forward completed authorization form(s) to Compensation Operations Unit for processing.
29. Fill out and sign a new authorization form when member wishes to make changes of :
    a. Deduction amount
    b. Cancellation
    c. Address.

# ADMINISTRATIVE GUIDE

| Section: Leave, Payroll and Timekeeping | | Procedure No: 324-24 |
|---|---|---|
| **PAYROLL MANAGEMENT SYSTEM** | | |
| DATE EFFECTIVE: 09/11/26 | LAST REVISION: R.O. 81 | PAGE: 1 of 8 |

**PURPOSE** To enter each member's **Electronic Timesheet** data into CityTime so paychecks can be generated.

**PROCEDURE** To ensure members of the service are properly compensated in a timely manner.

**TIMEKEEPER**

1. Be responsible for command's timekeeping functions.
2. Ensure that each member of the service assigned to command is listed on applicable CityTime roster to generate **Electronic Timesheet**.
3. Follow established Police Department procedures governing the usage of leave (e.g., annual leave, chart day, sick time, etc.).
4. Enter payroll transactions including tour changes, leave, sick, civilian unpaid meals, overtime, and command disciplines into CityTime **Electronic Timesheet**.
5. Access the Medical Division Sick Reporting System to identify members of the service on Sick Leave.
   a. Record the type of Sick Leave (e.g., Line of Duty, Regular, etc.) into CityTime.
6. Confer with commanding officer before removing any expired time or deducting time under disciplinary actions (e.g., Command Discipline).
7. Enter adjustments as necessary into member's **Electronic Timesheet**.
8. Notify commanding officer/supervisor when member has carried into a new calendar year, in excess of the allotted vacation time permitted (see *A.G. 324-01, "Vacation Policy"*).
9. Enter Manual Leave Adjustment when directed by the commanding officer/integrity control officer to deduct time from a member as a result of disciplinary action.
   a. Use **Manual Leave Adjustment (FISA/PMS14P)** when deducting cash from school crossing guard or cadet only.
10. Sign all forms, as appropriate.
11. Review and sign the **PMS Accepted Transaction Report (PRCAP649)** and correct any errors noted.
12. File copy of all reports in command file.

***NOTE*** *Each member's weekly **Electronic Timesheet** must be finalized in CityTime in order to be transmitted to Compensation Operations Unit no later than 1700 hours every Tuesday, for processing.*

CIVILIAN NIGHT SHIFT DIFFERENTIAL

**COMMANDING OFFICER/ SUPERVISOR**

13. Assign schedule, tour, and assignment for each civilian member of the service in command and forward information to timekeeper.

**TIMEKEEPER**

14. Enter assigned tour into CityTime Roster (Schedule Assignment) to generate nightshift compensation, as applicable.
15. Update roll call in CityTime system any variance from regularly scheduled tour (i.e., tour changes, flextime, training, etc.) to reflect correct nightshift compensation.
16. Review entries against **PMS Accepted Transaction Report**.
    a. Sign and date **PMS Accepted Transaction Report**.
    b. File copy of all reports in command file.

UNIFORMED NIGHT SHIFT DIFFERENTIAL

**COMMANDING OFFICER/ SUPERVISOR**

17. Assign tour for each uniformed member of service to perform and forward information to timekeeper (duty chart or miscellaneous tour).

**TIMEKEEPER**

18. Determine if the member(s) can be assigned to a Night Shift Differential Chart for automatic bi-weekly payment.
19. Enter assigned tour into CityTime Roster (Schedule Assignment) to generate nightshift compensation.
20. Update Roll Call in CityTime system any variance from regularly scheduled tour (tour changes, training, etc.) to reflect correct nightshift compensation.
21. Review entries against **PMS Accepted Transaction Report**.
    a. File copy of all reports in command file.

OVERTIME REPORT

**DESK OFFICER/ SUPERVISOR**

22. Review and endorse **OVERTIME REPORT (PD138-064)**.
23. Make Command Log entries including the following:
    a. Name, rank/title, and reference number
    b. Date overtime performed
    c. Amount of time received, taken in cash or compensation time.
24. Forward to timekeeper for processing.

**TIMEKEEPER**

25. Review **OVERTIME REPORT** for accuracy and completeness.
26. Enter overtime into member's **Electronic Timesheet**.
    a. Enter reason code and authorization code.
27. Review entries against **PMS Accepted Transaction Report**.
    a. Sign and date **PMS Accepted Transaction Report**.
    b. File in command folder.
28. File **OVERTIME REPORT** in member's **Time Record Folder (TRF).**

**COMMANDING OFFICER**

29. Ensure accuracy and completeness of **OVERTIME REPORT**.

**NOTE** *Supervisors are reminded to comply with A.G. 324-23, "Payroll Changes and Deductions." If needed, supervisors can consult with the Commanding Officer, Office of Labor Relations for additional guidance.*

WHEN A MEMBER IS TRANSFERRED INTO A COMMAND

**COMMANDING OFFICER/ SUPERVISOR**

30. Assign member concerned a tour and forward information to timekeeper.

**TIMEKEEPER**

31. Accept new member's CityTime **Electronic Timesheet** via CityTime System Roster (Transition in Pending) and schedule an assignment.
32. Confer with previous command's timekeeper regarding time record information for the period since member's last CityTime **Electronic Timesheet** was submitted until the date of transfer.

WHEN A MEMBER IS TRANSFERRED OUT OF A COMMAND

**TIMEKEEPER, PREVIOUS COMMAND**

33. Transmit member's CityTime **Electronic Timesheet** via **Timekeeping Record Change (TRC)** in CityTime system to new command. (Published by FINEST Message or Personnel Order ONLY).
34. Forward member's Personnel Folder and **Time Record Folder (TRF)**, to Operations Coordinator marked "PERSONAL AND CONFIDENTIAL," to the new command in a timely manner.

TEMPORARY ASSIGNMENT (LESS THAN 30 DAYS)

**TIMEKEEPER, TEMPORARY COMMAND**

35. Forward all leave request, overtime report and related payroll documents to the member's permanent command via Department mail.
36. Make appropriate entries in Temporary Assignment Log.

**TIMEKEEPER, PERMANENT COMMAND**

37. Make necessary adjustments, to member's **Electronic Timesheet**.
38. Make appropriate entries in Temporary Assignment Log (see *A.G. 329-18, "Temporary Assignments"*).
39. File in members **TRF**.

***NOTE*** *The timekeeper at the command where member is temporarily assigned is responsible for notifying and forwarding any payroll transactions (**OVERTIME REPORTS**, **Digital Leave of Absence Requests**, etc. and other required PMS forms), to the member's permanent command's timekeeper, which is then entered into member's **Electronic Timesheet** and transmitted to Payroll Management System via CityTime in order to generate a paycheck.*

TEMPORARY ASSIGNMENT (30 DAYS OR MORE)

**TIMEKEEPER, PERMANENT COMMAND**

40. Transfer effected member's **Electronic Timesheet** via CityTime **Timekeeping Record Change (TRC)** to new command after verification. (Published FINEST Message or Personnel Orders only).
41. Prepare member's **TRF** and any payroll documents of the member concerned.
42. Prepare **PERSONNEL RECORDS TRANSMITTAL SHEET (PD449-151**).
42. Forward to commanding officer/supervisor for review and endorsement.

**COMMANDING OFFICER/ SUPERVISOR**

43. Review and endorse **PERSONNEL RECORDS TRANSMITTAL SHEET**, as applicable.
    a. Return to the timekeeper for distribution.

**TIMEKEEPER**

44. Seal and forward to the temporary command in a timely manner via Department mail.
45. Make appropriate entries in Temporary Assignment Log (see *A.G. 329-18, "Temporary Assignments"*).

WORKING CHART CHANGE

**TIMEKEEPER**

46. Prepare **WORKING CHART CHANGE (PD138-023)** for member concerned.

**COMMANDING OFFICER/ SUPERVISOR**

47. Review and endorse **WORKING CHART CHANGE**.
48. Return **WORKING CHART CHANGE** to timekeeper.

**TIMEKEEPER**

49. Forward (original) **WORKING CHART CHANGE** to Compensation Operations Unit, for processing.
50. Verify on duplicate copy when change is processed by reviewing the **Payroll Register Report (PPCCP320)**.
51. Notify Compensation Operations Unit of any discrepancy.
52. File duplicate in command folder.

**NOTE** *Supervisors are reminded to comply with A.G. 324-23, "Payroll Changes and Deductions." If needed, supervisors can consult with the Commanding Officer, Office of Labor Relations for additional guidance.*

TERMINAL LEAVE – UNIFORMED

**TIMEKEEPER**

53. Notify commanding officer of member's anticipated retirement date.
54. Follow directions from New York City Police Pension Fund regarding effective retirement date on the **Command Retirement Notification**.

**TIMEKEEPER (continued)**

55. If applicable, enter any leave accruals into the member's **Electronic Timesheet** up until the start date of terminal leave, or retirement date for those opting for a terminal leave lump sum.
56. Notify New York City Police Pension Fund if any discrepancies.
57. File copy of Pension Notice in member's **TRF**.

**NOTE** *When member starts terminal leave, Compensation Operations Unit will carry member until terminal leave is completed unless the lump-sum option is selected.*

RESIGNATION OR TERMINATION OF EMPLOYMENT

**TIMEKEEPER**

58. Immediately notify the Compensation Operations Unit, and follow instructions.
59. Inform member that final paycheck will not be issued until an audit of member's time is completed by the Leave Integrity Management Section.

***NOTE*** *Timekeepers are reminded to follow Department guidelines when notified of a member resigning or termination of employment (see A.G. 329-07, "Discontinuance of Police Service - Resignation" and A.G. 319-10, "Civilian Member - Resignation").*

CHART DAYS

**TIMEKEEPER**

60. Enter tour according to rank, assignment, and years in said title into CityTime roster (e.g., 8:23, 8:35, etc.) to generate total number of chart time member is entitled to yearly.

ALL TYPES OF LEAVE WITHOUT PAY (LWOP)

**TIMEKEEPER**

61. Select appropriate Leave Type (e.g., AWOL, unscheduled, or sick) and Reason in member's **Electronic Timesheet** which will deduct the time from the member's paycheck.
    a. If anticipated pay week (week before pay week), check option "YES" in CityTime. This will deduct the money from the upcoming pay period.
62. Notify member of the deduction made.
62. Review entries against CityTime **T10W10 Transaction Detail Report**.

**SUPERVISOR**

63. Ensure that all members of the service prepare a **Digital Leave of Absence Request**.

***NOTE*** *Civilian members of the service with the capability to enter leave of absence requests direct into CityTime, are also required to prepare a **Digital Leave of Absence Request**.*

*Civilian member's requesting Sick Leave – Without Pay, shall prepare a **CIVILIAN SICK LEAVE REPORT (PD429-123)**.*

*Supervisors are reminded to comply with A.G. 324-23, "Payroll Changes and Deductions." If needed, supervisors can consult with the Commanding Officer, Office of Labor Relations for additional guidance.*

PAYROLL REPORT

**TIMEKEEPER**

64. Review all payroll reports promptly for accuracy as follows:
    a. Overtime/Night Shift Differential Reports – every pay week
    b. Payroll Register Report – every pay week
    c. CityTime **T10W10 Transition Detail Report** – weekly.
65. Check all entries against CityTime reports for accuracy.
66. Make corrections as noted.
67. File in the command all payroll related reports and supporting documents.
68. Ensure all reports are signed and dated by the member reviewing the reports.

VACATION/ANNUAL LEAVE

**TIMEKEEPER**

69. Monitor each member's vacation usage and balance.
70. Use **VACATION MONITORING WORKSHEET (PD433-1415)** for uniformed members of the service.
71. Notify commanding officer/supervisor when a member has carried excess number of vacation days into the new calendar year.
72. Notify commanding officer/supervisor when a member has less than five vacation days remaining at the end of the calendar year.
73. Monitor and ensure the following related procedures are adhered to:
    a. *A.G. 319-04, "Annual Leave Balance (Sub-Managerial)"*
    b. *A.G. 324-01, "Vacation Policy"*
    c. *A.G. 324-05, "Authorized Leave."*

MILITARY LEAVE

**COMMANDING OFFICER/ SUPERVISOR**

74. Have member present current military Enlistment Contract or Oath of Office, and Drill Schedule.
    a. Notify integrity control officer when member fails to provide current Drill Schedule or Official Military Order.
75. Have member prepare **Digital Leave of Absence Request** at least two weeks prior to commencement of military leave for a scheduled drill, verbal order, or additional ordered military appearance of thirty days or less.
    a. When member of the service is unable to submit a **Digital Leave of Absence Request** within two weeks (e.g., Department work scheduling conflicts, short notice of ordered military service, etc.), the **Digital Leave of Absence Request** will be submitted at the first available opportunity.
    b. A **Digital Leave of Absence Request** for any scheduled drill and/or appearance as per the drill schedule will not require any additional documentation to be attached.

**COMMANDING**

    c. Have member submit a **Digital Leave of Absence Request** to

**OFFICER/ SUPERVISOR (continued)**

attend an unscheduled drill or additional military appearance with an Official Military Order signed by the military unit commander or other supervisor with "By Direction" signature authority from the unit commander, including the rank/name of military or civilian contact person. The official military orders should have the military unit name, address, telephone number, and dates/hours member is ordered to attend drill or additional military appearances.

(1) Have member submit an Official Military Order as soon as possible when a verbal military order to report to a military appearance has been received and written documentation is not immediately available.

76. Upon receipt of Certificate of Attendance from member.
    a. Ensure Certificate of Attendance is signed by the military unit commander or other supervisor with "By Direction" signature authority from the unit commander, including rank/name of military or civilian contact person. The official certificate should have the military unit name, address, telephone number, and dates/hours member did attend drill or military duty.
    b. Notify integrity control officer when member fails to provide Certificate of Attendance within ten days after return from military duty.
    c. Absent exigent circumstances, failure to submit a Certificate of Attendance within ten days will result in the forfeiture of the ability to use a military leave day for that leave of absence.
    d. Adjust time balances as directed by the integrity control officer.
77. Make appropriate entry for military leave, military leave without pay, or at member's discretion, any other accrued time, which should be noted on member's **Digital Leave of Absence Request**.
    a. Deduct time from other available leave balances within ten days of members return from military duty, if the member fails to select an alternate type of leave or fails to request leave without pay.

**TIMEKEEPER**

78. Monitor and ensure the following related procedures are adhered to:
    a. *A.G. 324-12 "Indefinite Military Leave."*
    b. *A.G. 324-11 "Definite Military Leave."*

DISCIPLINARY PROCEEDINGS

**COMMANDING OFFICER/ SUPERVISOR**

79. Supply timekeeper with a signed and dated copy of the **SUPERVISOR'S COMPLAINT REPORT/COMMAND DISCIPLINE ELECTION REPORT (PD468-123)**.

**TIMEKEEPER**

80. Enter **SUPERVISOR'S COMPLAINT REPORT/COMMAND DISCIPLINE ELECTION REPORT** via **Manual Leave Adjustment (MLA)** in CityTime system to deduct the amount of time imposed as penalty:
    a. Ensure time is deducted by running **MLA Requests Report** within the CityTime system and attach report and file all other supporting documents together.
    b. All deductions should be against employee time (e.g., vacation, compensatory, etc.)

***NOTE***

*A **Manual Leave Adjustment** requires overnight processing by CityTime. Therefore, you will not see an immediate deduction in the member's leave balance. Check the member's leave balance the next day to confirm that the penalty was deducted.*

*Cash penalties usually apply to cadets and school crossing guards.*

81. Prepare a report on **Typed Letterhead** to deduct cash penalties along with **MLA**.
    a. Submit notification through channels along with supporting documents, to the Director, Central Payroll for processing.
    b. Review entry against **PAYROLL REGISTER REPORT**.
    c. Sign and date the report.
    d. File all supporting documents.

NYPD

# ADMINISTRATIVE GUIDE

| Section: Leave, Payroll and Timekeeping | | Procedure No: 324-25 |
|---|---|---|
| **DISTRIBUTION OF PAYCHECKS** | | |
| DATE EFFECTIVE: 09/11/26 | LAST REVISION: R.O. 81 | PAGE: 1 of 2 |

**PURPOSE** To safeguard and distribute Department paychecks.

**PROCEDURE** When the payroll is delivered to a command or received by a command:

**COMMANDING OFFICER**

1. Designate a member to verify payroll upon receipt from the Compensation Operations Unit.
2. Designate member to distribute paychecks during each tour.
3. Ensure that checks are safeguarded at all times.

***NOTE*** *Checks are not to be distributed prior to 1500 hours on Thursday (one day prior to date on check).*

**DESIGNATED MEMBER VERIFYING CHECKS**

4. Verify accuracy of payroll by comparing the checks on hand with accompanying **Paycheck Distribution Control Report (PPCCP319)**.

***NOTE*** *If check is held by Compensation and Operations Unit, write on **Paycheck Distribution Control Report,** opposite employee's name, "Check held by Compensation Operations Unit" and attach slip onto the report.*

**DESIGNATED MEMBER VERIFYING CHECKS**

5. Report any inaccuracies immediately by telephone to Compensation Operations Unit and comply with Compensation Operations Unit instructions.
6. Make entries in Command log:
   a. Number of checks received.
   b. Check numbers withheld by Payroll.
   c. Name of member assigned to verify checks from Compensation Operations Unit.
7. Return any checks payable to members who are not entitled to compensation (ex: leave of absence without pay, suspension, termination, resignation or any other reason) to the Compensation Operations Unit (see *A.G. 324-28,* "*Returning Unissued Paychecks*").
8. Return all "Red Payroll Bags" along with labeled cards to Compensation and Operations Unit, the next business day, following the pay day. (Failure to return the bags in a timely manner severely impacts the preparation and timely distribution of the following payroll).

**DESIGNATED MEMBER VERIFYING CHECKS (continued)**

9. Make ledger on the reverse side of duplicate **Paycheck Distribution Control Report** as follows:

| DATE | TOUR | MOS ASSIGNED SIGNATURE | START OF TOUR # OF CHECKS | DISTRIBUTED # OF CHECKS | END OF TOUR # OF CHECKS | SUPERVISOR'S SIGNATURE |
|---|---|---|---|---|---|---|
| 4/8/04 | 0800-1600 | SIGNATURE | 275 | 175 | 100 | SIGNATURE |
| 4/8/04 | 1600-2400 | SIGNATURE | 100 | 55 | 45 | SIGNATURE |
| 4/9/04 | 0001-0800 | SIGNATURE | 45 | 25 | 20 | SIGNATURE |

10. Verify checks at beginning of each tour with **Paycheck Distribution Control Report**.
11. Enter results of verification on rear of duplicate **Paycheck Distribution Control Report.**
12. Sign and request supervisor's signature at end of each tour confirming final count of checks.
13. Draw a single line to separate entries for each tour and a double line to separate each individual day's entries.

***NOTE*** *Checks are to be released to the payee only. If another member or non-member of the Department is picking up a check for a payee A.G. 324-26, "Receiving Check for Another Member" will be followed. Ensure that only the payee's check is given to each payee.*

14. Ensure that person receiving check sign on the blank line opposite payee's name on **Payroll Distribution Control Report**.
15. Initial and date in the space before each employee's name, on **Payroll Distribution Control Report** when releasing a paycheck.
16. Retain **Paycheck Distribution Control Report** in command file.

***ADDITIONAL DATA*** *Retiring members wishing to have paychecks mailed to them while on terminal leave or vacation prior to terminal leave, shall submit a request on **Typed Letterhead**, to their Commanding Officer, setting forth the reason(s) why they will be unable to appear for their checks and provide a sufficient number of stamped, self-addressed envelopes to cover the period requested. The commanding officer will indicate APPROVAL by signing request and designate a member responsible for mailing the checks to the payee. The designated member must enter on the **Paycheck Distribution Control Report (PPCCP319)** on the blank line opposite to the employee's name, date mailed and signature.*

# ADMINISTRATIVE GUIDE

| Section: Leave, Payroll and Timekeeping | | Procedure No: 324-26 |
|---|---|---|
| **RECEIVING CHECK FOR ANOTHER MEMBER** | | |
| DATE EFFECTIVE: 11/18/21 | LAST REVISION: I.O. 99 | PAGE: 1 of 1 |

**PURPOSE** To disburse paychecks to an individual other than the payee.

**PROCEDURE** When a member wants their paycheck picked up by another member or non-member of the Department:

**MEMBER OF THE SERVICE**

1. Give written letter authorizing a designated member of the Department to pick up check.
2. Give notarized letter authorizing a non-member of the Department to pick up check.
3. Include in the authorization letter the following information:
   a. Name of the authorized individual picking up check.
   b. Payee's rank, name and social security number.
   c. Check date or type of compensation description to be picked up.

**MEMBER RECEIVING CHECK**

4. Deliver authorized letter to the member assigned to distribute the checks.
5. Present identification card.
6. Sign name and tax #, **Paycheck Distribution Control Report (PPCCP319)** on the blank line, opposite employee's name.

**NON-MEMBER RECEIVING CHECK**

7. Present a notarized letter and proper photo identification with signature.
8. Sign and date **Paycheck Distribution Control Report,** on the blank line, opposite employee's name.

**MEMBER ASSIGNED TO DISTRIBUTE CHECKS**

9. Verify all photo identification for authenticity.
10. Make copy of the photo identification card.
11. Attach the authorization letter and the copy of the identification card to the **Paycheck Distribution Control Report.**

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# ADMINISTRATIVE GUIDE

| Section: Leave, Payroll and Timekeeping | | Procedure No: 324-27 |
|---|---|---|
| **LOSS OF PAYCHECK** | | |
| DATE EFFECTIVE: 09/11/26 | LAST REVISION: R.O. 81 | PAGE: 1 of 1 |

**PURPOSE** To investigate the loss of a member's paycheck.

**PROCEDURE** When a paycheck is lost by a member of the service:

**MEMBER OF THE SERVICE**

1. Report the loss to the Desk Officer, precinct of occurrence.

**DESK OFFICER**

2. Prepare **COMPLAINT REPORT WORKSHEET (PD313-152A)**.

***NOTE*** *If the loss occurred outside of New York City, member will report to the local police authority and obtain a copy of police report.*

**MEMBER OF THE SERVICE**

3. Report in person to the Compensation Operations Unit.
   a. Bring a copy of **COMPLAINT REPORT (PD313-152)** or a copy of local police report, if outside of New York City.
4. Fill out **PMS Stop Payment Notice** at the Compensation Operations Unit

***NOTE*** *If the check is found after the notification to Compensation Operations Unit, forward the check along with a **Typed Letterhead** explaining the circumstances.*

**COMPENSATION OPERAIONS UNIT**

5. Forward completed **PMS Stop Payment Notice** with notarized signature to the Office of Payroll Administration (OPA) for processing.

***ADDITIONAL DATA*** *Member shall receive a replacement check from the Office of Payroll Administration (OPA) approximately 2 to 4 weeks after the reported loss, if the original check has not been cashed. Replacement check will be mailed to the member's home address as indicated on the **PMS Stop Payment Notice** form.*

*When a paycheck is lost prior to disbursement, the Commanding Officer/Integrity Control Officer will investigate the circumstances of the loss and report the results to the Director, Compensation Operations Unit on a **Typed Letterhead**. Commanding Officer/Integrity Control Officer will inform Internal Affairs Bureau and obtain a Log #. Commanding Officer/Integrity Control Officer will direct the member of the service to report to the Compensation and Operations Unit with the following documents: (a) **COMPLAINT REPORT** (b) **Typed Letterhead**, and (c) IAB Log number. Member shall receive a replacement check. Disciplinary charges will be prepared against member found negligent in safeguarding and distributing paychecks.*

# ADMINISTRATIVE GUIDE

| Section: Leave, Payroll and Timekeeping | | Procedure No: 324-28 |
|---|---|---|
| **RETURNING UNISSUED PAYCHECKS** | | |
| DATE EFFECTIVE: 09/11/26 | LAST REVISION: R.O. 81 | PAGE: 1 of 2 |

**PURPOSE** To return unissued paychecks to the Compensation Operations Unit.

**PROCEDURE** When, for any reason, paychecks remain undistributed in a command five days after pay date:

**COMMANDING OFFICER/ SUPERVISORY HEAD**

1. Prepare on **Typed Letterhead**, indicating the circumstances, include:
   a. Payees name.
   b. Check numbers and date.
   c. Reason for return.
   d. Indicate whether or not member is entitled to check.
2. Make entry on **Payroll Distribution Control Report (PPCCP319)**, next to member's name, indicating "Returned To" and date.
   a. Forward to Compensation Operations Unit.
3. Make entry in Property Receipt Book indicating undistributed paychecks returned.
4. Assign messenger to hand deliver undistributed paychecks, with **Typed Letterhead** to the Compensation Operations Unit.

**MESSENGER CONCERNED**

5. Sign Property Receipt Book, indicating unissued paychecks returned to Payroll and deliver to the Compensation Operations Unit.
   a. Member must wait for a receipt, prior to leaving.

**COMPENSATION OPERATIONS UNIT MEMBER**

6. Verify checks listed on **Typed Letterhead** with checks being returned to Compensation Operations Unit.
7. Prepare receipt for messenger, listing each check returned (indicate individual check numbers).
   a. Messenger receives original receipt.
8. Enter receipt number on top right corner of the **Typed Letterhead**.
9. File **Typed Letterhead** with corresponding pay date file.

**MESSENGER CONCERNED**

10. Obtain receipt for checks returned to the Compensation Operations Unit
11. Return original receipt to command for file.

**COMMANDING OFFICER/ SUPERVISORY HEAD**

12. Verify that check numbers listed on the receipt coincide with those listed on **Payroll Distribution Control Report** and Property Receipt Book.
13. Enter the receipt number on the blank line opposite to the payee's name, next to the words "returned to Compensation Operations Unit."
14. Initial each entry indicating that the entry was reviewed.
15. Attach the numbered receipt and a copy of the **Typed Letterhead** to the back of the **Payroll Distribution Control Report**.
16. Sign **Payroll Distribution Control Report** at the bottom where it states "I CERTIFY THAT…" indicating that the payroll was distributed and reconciled.

***ADDITIONAL DATA***

*Any discrepancy will be the subject of an IMMEDIATE telephone notification to the Director, Compensation Operations Unit.*

*Under no circumstances shall checks be returned via Department mail or U.S. mail. All checks and "red payroll bags" must be hand delivered by messenger to Compensation Operations Unit.*

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# ADMINISTRATIVE GUIDE

| Section: Leave, Payroll and Timekeeping | | Procedure No: 324-29 |
|---|---|---|
| **CIVILIAN LEAVE WITHOUT PAY - PAYROLL DEDUCTIONS** | | |
| DATE EFFECTIVE: 09/11/26 | LAST REVISION: R.O. 81 | PAGE: 1 of 1 |

**PURPOSE** To make necessary pay deductions from civilian member's paycheck for leave without pay.

**PROCEDURE** When a pay deduction must be made from a civilian member's current pay period due to Leave Without Pay (LWOP):

**CIVILIAN MEMBER OF THE SERVICE**

1. Prepare **Digital Leave of Absence Request**.
   a. Prepare **CIVILIAN SICK LEAVE REPORT (PD429-123)**, if member is requesting Sick-Leave-Without-Pay.

***NOTE*** *Civilian members of the service with the capability to enter leave of absence requests direct into CityTime, are also required to prepare a* ***Digital Leave of Absence Request****.*

**COMMANDING OFFICER/ SUPERVISORY HEAD**

2. Verify accuracy of work days and/or hours of LWOP entered on the **Digital Leave of Absence Request**.

**TIMEKEEPER**

3. Select appropriate leave type in member's **Electronic Timesheet** to deduct pay from member's paycheck.
   a. If anticipated week (week before payday) select "Yes."
4. Notify member of the deduction made.
5. Verify deductions against CityTime **T10W10 Transaction Detail Report**.
6. Make adjustments to leave balances, as necessary.

***NOTE*** *Entry of LWOP must be made on week of occurrence to avoid overpayment.*

*Before a member can be placed on LWOP, all other leave banks need to be exhausted.*

**COMPENSATION OPERATIONS UNIT**

7. Request Office of Payroll Administration to generate a supplemental check with the correct number of day(s) which a member is entitled to within the current pay period.

***NOTE*** *If there is a delay in entering LWOP, supplemental checks will be generated and made available for pick up at the Compensation Operations Unit on pay week, Thursday, after 1500 hours. Members are required to contact the Compensation Operations Unit prior to picking up checks, to verify supplemental check has been requested.*

***ADDITIONAL DATA*** *If member is requesting more than one day of LWOP, follow A.G. 324-08, "Leave of Absence Without Pay Twenty-Nine (29) Calendar Days or Less" or A.G. 324-09 "Leave of Absence Without Pay Thirty (30) Calendar Days Or More."*

# ADMINISTRATIVE GUIDE

| Section: Leave, Payroll and Timekeeping | | Procedure No: 324-30 |
|---|---|---|
| **UNIFORMED LEAVE WITHOUT PAY - PAYROLL DEDUCTIONS** | | |
| DATE EFFECTIVE: 09/11/26 | LAST REVISION: R.O. 81 | PAGE: 1 of 1 |

**PURPOSE** To make necessary pay deductions from uniformed member's paycheck for leave without pay.

**PROCEDURE** When a pay deduction must be made from a uniformed member's current pay period due to Leave Without Pay (LWOP):

**UNIFORMED MEMBER OF THE SERVICE**

1. Prepare **Digital Leave of Absence Request**.

**COMMANDING OFFICER/ SUPERVISORY HEAD**

2. Verify accuracy of work days and/or hours of LWOP entered on the **Digital Leave of Absence Request**.

**TIMEKEEPER**

3. Select appropriate leave type in member's **Electronic Timesheet** to deduct pay from member's paycheck.
   a. Make entry for eight hours for each day LWOP, excluding chart time.
4. Notify member of the deduction made.
5. Verify deductions against CityTime **T10W10 Transaction Detail Report**.
6. Make adjustments to leave balances, as necessary.

***NOTE*** *Entry of LWOP must be made on week of occurrence to avoid overpayment.*

*Before a member can be placed on LWOP, all other leave banks need to be exhausted.*

**COMPENSATION OPERATIONS UNIT**

7. Request Office of Payroll Administration to generate a supplemental check with the correct number of day(s) which a member is entitled to within the current pay period.

***NOTE*** *If there is a delay in entering LWOP, supplemental checks will be generated and made available for pick up at the Compensation Operations Unit on pay week, Thursday, after 1500 hours. Members are required to contact the Compensation Operations Unit prior to picking up checks to verify supplemental check has been requested.*

# ADMINISTRATIVE GUIDE

| Section: Community Outreach | Procedure No: 326-09 | |
|---|---|---|
| **PUBLIC RELEASE OF BODY-WORN CAMERA (BWC) FOOTAGE OF CRITICIAL INCIDENTS** | | |
| DATE EFFECTIVE: 03-17-26 | LAST REVISION: R.O. 24 | PAGE: 1 of 2 |

**PURPOSE** To establish guidelines for the public release of body-worn camera (BWC) footage of critical incidents.

1. For the purpose of this directive, a critical incident is any incident in which at least one of the following criteria is met:
   a. Use of force by one or more officers results in death or serious physical injury to another,
   b. An officer discharges a firearm and such discharge hits a member of the public, or,
   c. The Police Commissioner determines that the release of BWC footage in connection with an incident will help maintain public order or contribute to public safety.

2. In the event that a federal or state prosecuting authority opens an official investigation into a critical incident, the Department will share all relevant BWC footage with the prosecuting authority within 24 hours of the Department being notified of the investigation. In addition, the Department will publicly release BWC footage of a critical incident within 30 calendar days. The Department will release representative samples of the BWC footage depicting the critical incident, as well as any salient events leading up to the event. Extraneous or redundant material may be omitted. The footage will be redacted, as appropriate, (e.g., faces of involved individuals will be blurred), prior to being released to the public. Unedited footage of a critical incident will be maintained and will be released to an appropriate investigating authority upon request. Public release of BWC footage outside of the scope of this procedure is strictly prohibited.

3. Notifications to the following individuals are to be made by the Department, when possible, at least 24 hours prior to the public release of BWC footage of a critical incident:
   a. Civilian subject of police action, or next of kin, if subject is deceased, or parent or guardian, if subject is a juvenile,
   b. Counsel for civilian of police action,
   c. Uniformed members of the service readily identifiable,
   d. Applicable bureau/borough and unit commanders,
   e. Police unions, as appropriate, and
   f. Any law enforcement agencies involved in the investigation of the critical incident other than the prosecuting authority.

4. The Department will notify the prosecuting authority seven calendar days prior to releasing BWC footage of a critical incident to the public, except when the Police Commissioner determines that exigent circumstances require a shorter time period for such release. In such cases, notice will be provided to the prosecuting authority 24 hours prior to releasing BWC footage of a critical incident, if possible.

5. Publicly released BWC footage may be redacted in light of privacy interests. Such interest may result in the redaction of, among other things:
   a. The interior of residences and other places where there is a reasonable expectation of privacy,
   b. Intimate images,
   c. Images of an individual receiving medical attention,
   d. Images of a serious physical injury or a deceased individual, or
   e. The location of a domestic violence program.

6. Publicly released BWC footage may also be redacted, or release may be delayed, in order to:
   a. Protect confidential sources and witnesses,
   b. Protect the privacy, life or safety of any person, or
   c. Avoid undue trauma due to explicit or graphic content,
   d. Comply with a court order,
   e. Comply with federal, state, or local law,
   f. Accommodate a request from another law enforcement agency.

7. In order to avoid duplication of already released footage, the Department will not release BWC footage of a critical incident when footage has already been released by the New York State Attorney General's Office.

# ADMINISTRATIVE GUIDE

| Section: Career Development | | Procedure No: 329-01 |
|---|---|---|
| **PRESENTATION OF DEPARTMENTAL RECOGNITION AWARDS** | | |
| DATE EFFECTIVE: 11/18/21 | LAST REVISION: I.O. 110 | PAGE: 1 of 2 |

**PURPOSE** To add personal significance to departmental recognition and expedite the presentation of awards.

**PROCEDURE** When a request for departmental recognition is approved and the award is published in Personnel Orders:

**COMMANDING OFFICER**

1. Review Personnel Orders announcing departmental recognition awards.
2. Have clerical member prepare a report on **Typed Letterhead**, addressed to borough commander/counterpart, requesting breast bars for uniformed members of the service assigned to the command whose request for departmental recognition was approved and published. Report will include:
   a. Date and number of Personnel Order.
   b. Rank, name, shield number and tax registry number of members whose requests were approved.
   c. Type, including plain or numeral, and number of bars required.
3. Have report forwarded to borough office and file a copy.

**CLERK - BOROUGH OFFICE**

4. Consolidate requests for bars and numerals from subordinate commands.
5. Prepare report on **Typed Letterhead** addressed to Commanding Officer, Equipment Section listing type and total number of bars with/without numerals required.
6. Request borough commander/counterpart to sign report.
7. Forward report to Equipment Section and file a copy.

UPON RECEIPT OF BREAST BARS FROM EQUIPMENT SECTION

**CLERK - BOROUGH OFFICE**

8. Check breast bars received against file copy of original report.
9. Separate bars received according to requests received from subordinate commands.
10. Forward appropriate number of breast bars to commands concerned by messenger.

**COMMAND CLERK**

11. Ensure that the correct number of breast bars have been received by checking against file copy of report.
12. Deliver bars to commanding officer.

**COMMANDING OFFICER**

13. Plan award ceremony giving consideration to:
    a. Prior notice to recipient.
    b. Formality of presentation.
    c. Presence of family.
14. Present breast bars during muster at outgoing platoon.
    a. Allow sufficient time for brief recital of facts.

**COMMANDING OFFICER (continued)**

15. Attempt to have award made at command for retired member.
16. Have breast bar returned to borough commander with explanation, if unable to present award.

**COMMAND CLERK**

17. Maintain records of members receiving awards.

***NOTE*** *In other than patrol commands, the awards may be made at a time and date agreeable to the recipient and the commanding officer.*

**BOROUGH COMMANDER/ COUNTERPART**

18. Forward breast bars to member's new commanding officer if member transferred prior to issuance.
19. Have borough records forwarded, if uniformed member of the service transferred to another borough command.
20. Have breast bar returned to Equipment Section with explanation, on **Typed Letterhead**, if unable to make presentation to member and adjust borough records accordingly.

***ADDITIONAL DATA*** *Medals for higher awards, i.e., Department Medal of Honor, Police Combat Cross and Medal of Valor will be presented ONCE each year during Medal Day ceremonies at Police Headquarters (usually in the month of June).*

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# ADMINISTRATIVE GUIDE

| Section: Career Development | | Procedure No: 329-02 |
|---|---|---|
| **UNIT CITATIONS** | | |
| DATE EFFECTIVE: 11/18/21 | LAST REVISION: I.O. 110 | PAGE: 1 of 1 |

**PURPOSE** To recognize outstanding performance by an entire unit of the Department over a sustained period of time.

**DEFINITIONS** UNIT CITATION - A mounted certificate to be permanently and conspicuously displayed in the command with added provision that breast bars or lapel pins may be worn by designated members of the command.

PERSONAL LETTER OF CONGRATULATIONS - Awarded to units who do not otherwise qualify for a Unit Citation. This letter is to be displayed conspicuously in the command.

**PROCEDURE** When a unit performs in an outstanding manner over a period of time:

**UNIT COMMANDER**

1. Submit requests for Unit Citation on **Typed Letterhead**, through channels, to the Police Commissioner.
   a. Include information in details to substantiate award.
   b. List uniformed members of the service to be designated to wear breast bar.
   c. List civilian members of the service to be designated to wear lapel pin.
   d. List auxiliary members of the service to be designated to wear breast bar.

**COMMANDING OFFICER CONCERNED**

2. Review request and endorse.
3. Forward to next higher command.
   a. If request disapproved, return to originating command.

**HONOR BOARD**

4. Forward final recommendation to Police Commissioner.
   a. May recommend a Personal Letter of Congratulations if Unit Citation is not merited.

***NOTE*** *Commands awarded Unit Citations and members of the service designated to wear breast bar or lapel pin will be published in Personnel Orders.*

**UNIT COMMANDER**

5. Request required number of breast bars and lapel pins from Equipment Section.
   a. Indicate year citation was earned.

***ADDITIONAL DATA*** *Designated members of the service may wear Unit Citation decorations during their entire career. The Unit Citation breast bar will be left bare to indicate the receipt of a single Unit Citation. The receipt of additional Unit Citations will be indicated by the number "2," "3," etc. on the bar.*

*Any request for a Unit Citation which has been disapproved may be appealed to the Police Commissioner within ten days after notification of final determination.*

**PURPOSE** To process requests for Departmental recognition.

**PROCEDURE** Whenever a uniformed member of the service submits a request for Departmental recognition:

**IMMEDIATE SUPERVISOR**

1. Prepare **DEPARTMENTAL RECOGNITION REQUEST (PD439-162)**.
   a. Prepare separate **DEPARTMENTAL RECOGNITION REQUEST** for each member of the service involved.
   b. Be guided by direction of bureau chief/counterpart when submitting **REQUEST** and assigned to undercover or confidential operations.
2. Deliver completed forms to operations coordinator, precinct of occurrence or command counterpart.

**PRECINCT OPERATIONS COORDINATOR/ COUNTERPART**

3. Assign precinct/command serial number to all **REQUESTS**.
   a. If more than one member of the service is involved in the same incident, the same precinct/command serial number will be used.
4. Assign **REQUEST** to ranking officer for investigation.

**RANKING OFFICER**

5. Conduct investigation including:
   a. Checking Department records
   b. Interviewing members involved, including patrol supervisor or other supervisory personnel, when appropriate
   c. Interviewing witnesses (in person or by telephone)
   d. Obtaining signed statements from witnesses, when possible
   e. Converting oral statements to signed written statements, when applicable
   f. Attaching statements to **REQUEST**
   g. Attaching all Department forms/records prepared in connection with the incident to **REQUEST**.
6. Deliver completed forms to Precinct/Command Recognition Committee.

**PRECINCT/ COMMAND RECOGNITION COMMITTEE**

7. Conduct a review of the investigation and make initial recommendation to commanding officer.
   a. Precinct/Command Recognition Committee may refer **REQUEST**, through commanding officer, to a Bureau Recognition Committee, if **REQUEST** involves aspects which require particular expertise in evaluating the merits of **REQUEST**.
8. Forward endorsed **REQUEST** to commanding officer, precinct of occurrence or command counterpart.

**COMMANDING OFFICER/ COUNTERPART**

9. Review all **REQUESTS**.
   a. Approve/disapprove and forward, as appropriate.

**COMMANDING OFFICER/ COUNTERPART (continued)**

b. Forward original **REQUEST** to Human Resources Division Departmental Recognition Unit, if request is for Excellent Police Duty or Meritorious Police Duty.

IF RECOMMENDATION IS FOR ANY COMMENDATION, EXCEPTIONAL MERIT, MERITORIOUS POLICE DUTY - INTEGRITY OR HONORABLE MENTION

**BOROUGH RECOGNITION COMMITTEE/ COUNTERPART COMMITTEE**

10. Conduct review of **REQUEST**.
    a. Highest-ranking member present will act as Chairperson of the Borough Recognition Committee/counterpart committee.
    b. Approve/disapprove and forward to next highest command, as appropriate.

**BOROUGH COMMANDER/ COUNTERPART**

11. Make determination on **REQUEST**.
    a. Forward original **REQUEST** and a report on **Typed Letterhead** to Human Resources Division Departmental Recognition Unit.
    b. Forward endorsed **REQUEST** for Meritorious Police Duty – Integrity to Integrity Review Board.

IF MEMBER WISHES TO APPEAL

**REQUESTING MEMBER**

12. Prepare two copies of appeal on **Typed Letterhead**, addressed to Borough/Bureau/Counterpart Recognition Committee for Excellent Police Duty/Meritorious Police Duty or to Police Commissioner for Meritorious Police Duty - Integrity, Commendation, Exceptional Merit or Honorable Mention, within ten days of publication of award including:
    a. Facts of request
    b. Reasons for appeal
    c. Personnel Order number and date (if applicable).

***ADDITIONAL DATA***

*PROCESSING DEPARTMENTAL RECOGNITION REQUEST*

*a. All requests for Departmental recognition, with the exception of those requests involving members assigned to the Housing Bureau, Detective Bureau (not including precinct detective squads), Transit Bureau, Community Affairs Bureau, Chief of Transportation and Chief of Special Operations, will be processed through patrol precincts.*

*b. Commands which report to the Housing Bureau, Detective Bureau (not including precinct detective squads), Transit Bureau, Community Affairs Bureau, Chief of Transportation and Chief of Special Operations, will process all requests for Departmental recognition involving assigned members in a similar manner as requests processed through patrol precincts (see "ADDITIONAL DATA" statement regarding the chain of command to be utilized by bureaus/divisions exempt from processing requests through patrol precincts).*

*c. Requests involving members assigned to precinct detective squads will be processed through patrol precincts.*

*d. If two or more precincts within the same borough are involved in the same incident, the patrol borough commander will designate which Precinct Recognition Committee will*

***ADDITIONAL DATA (continued)***

*conduct the investigation and prepare the appropriate documentation. If two or more precincts are involved, and the precincts are in different boroughs, the Honor Committee will make the designation, except for cases involving integrity. In those instances, the Integrity Review Board will make the designation.*

*e. Acts worthy of Departmental recognition which involve members from multiple bureau/division commands will be processed through patrol precincts.*

*f. Assistance in the preparation of the **DEPARTMENTAL RECOGNITION REQUEST** form may be obtained by contacting the Human Resources Division Departmental Recognition Unit.*

*LEGAL CONSIDERATIONS*

*All information entered on the **DEPARTMENTAL RECOGNITION REQUEST** is considered "Rosario" material and should be a factual statement of the member of service's role in a particular matter. There should be no descriptive embellishment of the facts. In addition, all written statements taken from witnesses should be considered "Rosario" material. Since the defense attorney in a criminal case has the right to examine a witness's prior statement, if a witness testifies, the appropriate District Attorney's office must be advised of the existence of requests for Departmental recognition as well as other witness statements in a pending case. Due to "Rosario" material potential, every request must include the legal name of each member of the service; any initials, nicknames, etc. of a member of the service are not permitted on the **DEPARTMENTAL RECOGNITION REQUEST**.*

*DEPARTMENT POLICY*

*Request for Departmental recognition should be limited to those members who are directly involved with the arrest/incident (i.e., arresting officer and partner). If the incident involved personal risk, danger or unusual accomplishment, each member requesting recognition must explain their direct involvement in the incident. Furthermore, supervisors of units must explain how their actions exceeded normal supervisory or administrative duties in order to be considered for recognition.*

*Departmental Recognition Committees are composed of five uniformed members of the service: two ranking officers (one of whom will be designated chairperson) and three non-supervisory officers (which may include a member of the precinct detective squad), will be established by each precinct and patrol borough command. Similarly, commands which report to the Housing Bureau, Detective Bureau (not including precinct detective squads), Transit Bureau, Deputy Commissioner, Community Affairs Bureau, Chief of Transportation, and Chief of Special Operations, will also establish Departmental Recognition Committees utilizing the same group composition. Bureau Recognition Committees will be established in each bureau command for these more complex or unusual cases.*

*Precinct/Command Recognition Committee members will be clearly identified and convene each quarter. Commanding officers will not be present when Precinct/Command Recognition Committee convenes.*

*The highest ranking officer who is responsible for indicating approval/disapproval of **REQUEST** MUST be in a rank of at least one level higher than any of the recipients of the medal and MUST NOT be one of the recipients of the requesting medal. Each additional endorsement (when applicable) MUST be approved/disapproved by the next higher rank based on the previous endorsement.*

***ADDITIONAL DATA (continued)***

*When a **REQUEST** is forwarded to a bureau chief/counterpart for evaluation based on expertise, the bureau chief/counterpart will make the final determination on Excellent Police Duty, Meritorious Police Duty and Commendations, except in cases where integrity forms the basis of the **REQUEST**.*

*Precinct commanding officers/command counterparts may recommend either a Meritorious Police Duty or a Commendation for acts of integrity. Regardless of the level of award recommended.*

*All approved **DEPARTMENTAL RECOGNITION REQUESTS** being forwarded to the Honor Committee or Integrity Review Board will be accompanied by a **Typed Letterhead**.*

*If a discharge of a firearm by the member of the service is the basis for the **REQUEST**, the Borough/Bureau/Counterpart Recognition Committee will ensure that all appropriate forms including the **THREAT, RESISTANCE OR INJURY (T.R.I.) INCIDENT REPORT**, **UNUSUAL OCCURRENCE REPORTS (PD370-152)** (including the preliminary **UNUSUAL OCCURRENCE REPORT** endorsed from the designated Borough Chief to the Chief of Department, and the **UNUSUAL OCCURRENCE REPORT** on the FINDINGS AND RECOMMENDATIONS by the designated Borough), Crime Scene Unit sketches, etc., and the final determination of the Firearms Discharge Review Board by the Chief of Department or the Use of Force Review Board by the First Deputy Commissioner, as applicable, are attached to the **REQUEST** and forwarded to the Honor Committee for consideration.*

*An appeal MAY NOT be lodged until AFTER notice of the award is published in Personnel Orders. Decisions of the Police Commissioner concerning appeals of awards reduced or disapproved are final.*

*When practical, final determination of an award will be made within sixty days of submission of a **DEPARTMENTAL RECOGNITION REQUEST**.*

# ADMINISTRATIVE GUIDE

| Section: Career Development | | Procedure No: 329-04 |
|---|---|---|
| **DEPARTMENT MEDALS - UNIFORMED MEMBERS OF THE SERVICE** | | |
| DATE EFFECTIVE: 03/21/24 | LAST REVISION: R.O. 13 | PAGE: 1 of 3 |

**PURPOSE** To provide an informative list of Department medals that an individual uniformed member of the service and/or Department unit may be awarded through the Department's Departmental Recognition procedure:

**DEFINITIONS**

DEPARTMENT MEDAL OF HONOR
Awarded to a uniformed member who intelligently and in line of police duty distinguished themselves by the performance of an act of gallantry and valor at imminent personal hazard to life with knowledge of the risk, above and beyond the call of duty.

DISTINGUISHED SERVICE MEDAL
Awarded to next of kin of a uniformed member of the service, in recognition of the dedicated performance of duty under unusual hazards and demands where the uniformed member of the service has suffered death.

POLICE COMBAT CROSS MEDAL
Awarded for the successful performance of an act of extraordinary heroism while engaged in personal combat with an armed adversary at imminent personal hazard to life in the intelligent performance of duty.

MEDAL FOR VALOR
Awarded for an act of outstanding personal bravery intelligently performed in line of duty at imminent personal hazard to life under circumstances evincing a disregard of personal consequences.

PURPLE SHIELD MEDAL
Awarded to uniformed members of the service, or their next of kin in the event of a line of duty death, who have suffered extremely serious physical injury or death, permanent disfigurement, protracted or permanent impairment of health, or of any bodily function while performing an official act either while on or off-duty.

HONORABLE MENTION
Awarded for an act of extraordinary bravery intelligently performed in the line of duty at imminent and personal danger to life.
The Honor Committee will review all Honorable Mention awards granted during the previous year and may select uniformed members of the service as recipients of the aforementioned medals.

EXCEPTIONAL MERIT
Awarded for an act of bravery intelligently performed involving personal risk to life.

**DEFINITIONS (continued)**

COMMENDATION

Awarded for an act involving:

a. Grave personal danger in the intelligent performance of duty, OR
b. A highly creditable unusual police accomplishment.

COMMENDATION - INTEGRITY

Awarded for an act which demonstrates an extraordinary commitment to integrity.

COMMENDATION - COMMUNITY SERVICE

Awarded to uniformed members of the service for:

a. Initiative contributing to the substantial improvement in Community Policing/Community Quality of Life, OR
b. Performance which substantially improves the quality of life in neighborhoods or communities through creative problem-solving ideas, techniques or skills, OR
c. Performance and consistent progress in implementing meaningful, significant improvements in rendering or securing community service or fostering police-community relations through Community Policing/Problem Solving Programs.

MERITORIOUS POLICE DUTY

Awarded for:

a. An act of intelligent and valuable police service demonstrating special faithfulness or perseverance, OR
b. Highly creditable acts of police service over a period of time, OR
c. A highly intelligent act in which a member utilized de-escalation skills and avoided available and justified uses of force/physical force ensuring preservation of human life and an overall better outcome.

MERITORIOUS POLICE DUTY - INTEGRITY

Awarded for an act which demonstrates highly creditable integrity.

EXCELLENT POLICE DUTY

Awarded for:

a. An intelligent act materially contributing to a valuable accomplishment, OR
b. Submission of a device or method adopted to increase efficiency in an administrative or tactical procedure, OR
c. Enforcement activity over a period of time that represents organization and skill applied to the reduction of crime or a positive impact on a condition. The awarding of an Excellent Police Duty award is not automatic or based on a set number of arrests or other activity in a given span of time. Commanding officers are required to ensure that each Excellent Police Duty award is based on circumstances beyond the expected performance of duty by a member of the service. When reviewing submitted requests,

**DEFINITIONS (continued)**

commanding officers will consider the personal initiative, observations and actions of the recommended member that materially contributed to the action taken, OR

d. An intelligent act in which a member utilized de-escalation skills and avoided all available and justified uses of force/physical force ensuring prevention of injury and an overall better outcome.

Additionally, the successful resuscitation of an aided using an Automated External Defibrillator (AED) will be considered for Departmental recognition when the aided is hospitalized with a reasonable chance of survival. Commanding officers/counterparts reviewing applications for Departmental recognition for successful use of Automated External Defibrillators will, in all circumstances, submit such request to the Supervising Chief Surgeon or the Deputy Chief Surgeon for endorsement and recommendation of appropriate Departmental recognition, prior to final approval.

The following awards are issued to Department units:

UNIT CITATION
Unit Citations recognize outstanding performance by an entire unit in developing and implementing goals and objectives or other highly creditable accomplishments over a substantial period of time (calendar year).

POLICE COMMISSIONER'S PERSONAL LETTER OF CONGRATULATIONS
Awarded to units that do not otherwise qualify for a Unit Citation.

***ADDITIONAL DATA***

*DEPARTMENT POLICY*

*DISPLAY OF MEDALS*

*A uniformed member of the service must wear the prescribed breast bar at all times while in uniform. However, breast bars or other authorized ribbons are not to be worn when wearing corresponding medals. A member who has been awarded the Department Medal of Honor, Police Combat Cross or Medal for Valor is required to wear the breast bar denoting the particular award in lieu of the Honorable Mention breast bar previously awarded for the same act.*

# ADMINISTRATIVE GUIDE

| Section: Career Development | | Procedure No: 329-05 |
|---|---|---|
| **INTEGRITY REVIEW BOARD RECOMMENDATION PROCEDURE** | | |
| DATE EFFECTIVE: 11/18/21 | LAST REVISION: I.O. 110 | PAGE: 1 of 3 |

**PURPOSE** To set forth the guidelines to be followed when a uniformed member of the service is recommended for recognition, by the member's commanding officer, for effecting an arrest for a bribery-related offense or an action which demonstrated the uniformed member's commitment to the Department's integrity policy.

**DEFINITION** CONTROLLED PAD - For the purpose of this procedure is a purported payment to uniformed members of the service to protect existing or contemplated illegal activities which will constitute more than one time bribery payments.

**PROCEDURE** Whenever a uniformed member of the service is recommended for recognition, by the member's commanding officer, to the Integrity Review Board:

**COMMANDING OFFICER, MEMBER CONCERNED**

1. Ensure that copy of report in bribery arrests, as required by *P.G 208-34*, *"Bribery Arrest by Uniformed Member of the Service"* is forwarded to Office of the Chief of Department.
2. Comply with "ADDITIONAL DATA" statement, page 3, regarding submission of report for an act reflecting high integrity.

UPON NOTIFICATION FROM OFFICE OF THE CHIEF OF DEPARTMENT:

3. Have uniformed member concerned notified to report to Office of the Chief of Department for a personal interview during the uniformed member's normal tour of duty.

**UNIFORMED MEMBER OF THE SERVICE**

4. Report to Office of the Chief of Department, as follows:
   a. In uniform of the day, if assigned to patrol duties
   b. In proper business attire, if assigned to non-patrol duties.
5. Bring copies of the following documents concerning the arrest and/or incident of high integrity, if prepared:
   a. **ON LINE BOOKING SYSTEM ARREST WORKSHEET (PD244-159)**
   b. Last two **PERFORMANCE EVALUATIONS** (as appropriate to rank)
   c. **ARREST INVESTIGATION REPORT (PD244-1511)**
   d. **Criminal Court Affidavit**
   e. **UNUSUAL OCCURRENCE REPORT (PD 370-152)**
   f. **PROPERTY CLERK INVOICE (PD 521-141)**
   g. **ARREST REPORT SUPPLEMENT (PD244-157)**, if applicable
   h. Newspaper articles concerning incident
   i. Any other Department forms/reports relating to the incident.

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***NOTE*** *During this interview process, the aspirations of the uniformed member concerned will be discussed in detail and the uniformed member will be advised of the options available, depending upon the current needs of the Department and the uniformed member's suitability/aptitude for such assignment.*

**OFFICE OF THE CHIEF OF DEPARTMENT**

6. Convene the Integrity Review Board, upon completion of administrative documentation for the presentation of a cadre of cases.

***NOTE*** *The Integrity Review Board meets regularly, usually on a quarterly basis, to review and evaluate cases involving incidents of bribery arrests/acts of high integrity.*

**INTEGRITY REVIEW BOARD**

7. Review cases submitted by Office of the Chief of Department.
8. Forward recommendations to Police Commissioner for final determination.

**OFFICE OF THE CHIEF OF DEPARTMENT**

9. Notify member concerned of the type of recognition received.

***ADDITIONAL DATA*** *To receive recognition from the Integrity Review Board for involvement in bribery related offense, the uniformed member concerned must be the individual who was offered/accepted the bribe and either effected the arrest for the crime of bribery or charged the defendant with the additional crime of bribery. In situations when the arresting officer is not the uniformed member offered the bribe, an* ***ARREST REPORT SUPPLEMENT*** *must be prepared delineating the circumstances surrounding the additional charge of bribery.*

*All uniformed members of the service directly involved in a "controlled pad" incident, (i.e., receives payoffs, acts as an intermediary, etc.,) are eligible to receive recognition from the Integrity Review Board*

*The types of recognition uniformed members of the service are eligible to receive are as follows:*

*a. Police Commissioner's letter of commendation,*
*b. Waiver of all or part of the Career Path requirements for consideration for assignment to a specific command/bureau,*
*c. Patrol precinct to patrol precinct, transit district to transit district or police service area to police service area transfers,*
*d. Interviews for preferential assignments, (e.g., Highway Districts, Emergency Service Unit, etc.) and/or*
*e. Interviews for investigative assignments, (e.g., Detective Bureau, etc).*

*The Integrity Review Board may recommend that uniformed members of the service be granted interviews for a potential assignment to one of the Department's investigative track units for having effected arrests for bribery or other acts of high integrity. The actual impact or perceived impact of the "Eighteen Month Detective Designation Law" should not affect the decision to grant an interview to a well deserving uniformed member. The integrity of the Department is of the utmost concern and efforts to properly reward uniformed members for their exemplary conduct should NOT be diminished.*

***ADDITIONAL DATA (continued)***

*f. Award of additional investigative time towards eligibility for promotion to detective designation.*

*g. Preferential consideration for assignment to a unit within the member's current bureau of assignment.*

*h. Any other type of award deemed appropriate by the Integrity Review Board.*

*The type of recognition granted by the Integrity Review Board varies depending upon the uniformed member's career aspirations, qualifications, overall performance level, and character. Uniformed members will <u>not</u> usually be considered for:*

*a. A patrol precinct to patrol precinct transfer with less than two years of service, or*

*b. An interview for an investigative assignment with less than three years of service.*

*Scheduling of preferential interviews for possible assignments to specific commands/bureaus will be the responsibility of the Personnel Officers concerned.*

*Arresting/assisting officers in arrests for bribery related offenses, or for other acts of high integrity, may apply for Department recognition, in the grade of Meritorious Police Duty, as outlined in A.G. 329-03, "Departmental Recognition – Uniformed Members of the Service."*

*A supervisor performing normal supervisory duties regarding bribery/attempted bribery incidents is <u>not</u> eligible for recognition by the Integrity Review Board.*

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# ADMINISTRATIVE GUIDE

| Section: Career Development | | Procedure No: 329-06 |
|---|---|---|
| **DISCONTINUANCE OF POLICE SERVICE RETIREMENT OR VESTED INTEREST** | | |
| DATE EFFECTIVE: 09/11/26 | LAST REVISION: R.O. 81 | PAGE: 1 of 6 |

**PURPOSE** To apply for discontinuance of police service (retirement or vested interest).

**DEFINITIONS** TERMINAL LEAVE- Leave, with pay, computed at the Police Pension Fund (PPF) and granted to retiring uniformed members of the service upon request. One calendar month (28, 30 or 31 days depending on month the terminal leave commences), of leave is granted for each ten years of service. Beyond 20 years of service, three days are granted for each completed year of service, and one day is granted for each completed four months of service. Terminal leave will not be granted for the following:

a. If Lump Sum payment option is selected,
b. If discontinuing police service with vested interest,
c. If disciplinary charges are pending, or
d. For time spent on extended leave without pay, unless mandated by law.

LAW ENFORCEMENT OFFICERS SAFETY ACT (LEOSA) CERTIFICATION CARD - A wallet-sized certification card issued by the Department containing the retired uniformed member of the service's rank, name, tax number, date of retirement and date of expiration, which exempts retired law enforcement officers from local and state prohibitions on the carrying of concealed firearms. The card also contains the Operation Unit's telephone number for verification purposes. To be valid, a LEOSA Certification Card must be accompanied by a valid **IDENTIFICATION CARD (PD416-091)** marked "Retired."

**PROCEDURE** When a uniformed member of the service wishes to apply for retirement or discontinue police service with vested interest:

PRIOR TO REPORTING TO THE POLICE PENSION FUND:

**UNIFORMED MEMBER OF THE SERVICE**

1. Notify operations coordinator.
2. Send email to PPF at [redacted] requesting paperwork and instructions to schedule appointment.
3. Prepare **PROPERTY RECEIPT - DISCONTINUANCE OF SERVICE (PD520-013)** and forward to commanding officer or designee.
4. Prepare digital **Leave of Absence Request(s)** to use accrued pre-separation leave time up to commencement of terminal leave, or retirement date, as appropriate.
   a. Confer with timekeeper to determine current leave balances.

***NOTE*** *Uniformed members of the service continue to accrue chart time while exhausting leave balances, except while on terminal leave.*

***NOTE (continued)*** *No leaves of any kind may be granted after commencement of terminal leave, nor may the uniformed member of the service be placed on sick report, unless such sick report results from an action taken in the line of duty while on terminal leave.*

*Uniformed members of the service (with the exception of Tier 3 uniformed members of the service) wishing to terminate police duties immediately, who have used all accrued time, vacation and/or terminal leave, must, after emailing the PPF for appointment, complete and transmit a digital* ***Leave of Absence Request*** *requesting "other" leave type, and note leave without pay for up to thirty days in "reason" caption using the Centralized Personnel Resource (CPR) System. Notify direct supervisor of completed digital* ***Leave of Absence Request****, and then forward copy of approved report to the PPF. This leave may be granted to a member applying for discontinuance of police service. Upon approval of request by unit commander, member concerned will inform next higher command that digital* ***Leave of Absence Request*** *has been forwarded to their command for approval. Upon approval, member will forward copies to the PPF for processing.*

*Uniformed members of the service wishing to retain a service firearm (issued by the Department on or after January 15, 2013), must obtain a National Instant Criminal Background Check System (NICS) check through a Federal Firearms Licensee (FFL) with NICS access no more than 30 days prior to separation from the Department. Once a NICS check is obtained, a completed A****CQUISITION OR DISPOSITION OF FIREARMS BY POLICE OFFICERS - REPORT TO N.Y. STATE POLICE (PD424-150)*** *must be delivered to the Firearms and Tactics Section prior to separation.*

**COMMANDING OFFICER/ DESIGNEE**

5. Sign **PROPERTY RECEIPT - DISCONTINUANCE OF SERVICE** in appropriate space and return form to retiring uniformed member of the service.

**UNIFORMED MEMBER OF THE SERVICE**

6. Request administrative day (i.e., assignment to second platoon to file for retirement), if necessary.
7. Deliver property and obtain receipt on **PROPERTY RECEIPT - DISCONTINUANCE OF SERVICE**, as follows:
   a. To desk officer, who will ensure hand delivery of items to Shield, ID and Uniformed Services Group:
      (1) New York City Transit Police Pass, and
      (2) Long Island Rail Road and Metro-North Police Passes.
   b. To integrity control officer/counterpart, who will ensure items are forwarded:
      (1) **NYPD Restricted Parking Permit (Misc. 23-N)**,**Headquarters Annex Parking Permit (Misc. 814HQ-Annex)** or any other Department issued vehicle parking permit, if applicable, and/or
      (2) **NYPD Vehicle Identification Plate (Misc. 740)**, if applicable to Chief of Department's Vehicle Identification Unit.
      (3) Ballistic Tactical Helmet and Tactical Retreat Hood, if applicable, to Quartermaster Section, CBRN Unit.

**UNIFORMED MEMBER OF THE SERVICE (continued)**

(4) Body-Worn Camera, if applicable, to Information Technology Bureau (ITB) Telecommunications Unit

c. To ITB Telecommunications Unit:
   (1) Personal laptop computer and/or tablet with all accessories,
   (2) Cellular telephone with all accessories, and
   (3) MIFI device and/or VPN token, if applicable.

d. To Shield, ID, and Uniform Services Group after conferral with PPF personnel:
   (1) Shield and **IDENTIFICATION CARD**.

e. To Manhattan Property Clerk if not LEOSA qualified and not applying for a handgun license:
   (1) Authorized on duty and off duty firearm(s), if not previously invoiced.

f. To Firearms and Tactics Section, Police Headquarters Range:
   (1) Helmet and Oleoresin Capsicum (O.C.) pepper spray, with holster.

g. To Police Academy, Ballistic Vest Unit:
   (1) Department issued bullet resistant vest, if applicable.

h. To Electronics Section:
   (1) Department portable radio.

***NOTE*** *A retiring uniformed member of the service has the option of retaining their Department issued bullet resistant vest or returning it to Police Academy, Ballistic Vest Unit for proper disposal.*

*A uniformed member of the service who is authorized for Paid Detail employment during pre-separation leave (e.g., terminal leave, etc.) will retain their Department issued equipment (e.g., OC spray, BWC, etc.) for the duration of their Paid Detail authorization. When such authorization is no longer in effect as per A.G. 332-22, "Uniformed Member - Paid Detail Employment," the member must return their equipment as per A.G. 329-06, "Discontinuance of Police Service Retirement or Vested Interest."*

**DESK OFFICER**

8. Notify Police Academy, Ballistic Vest Unit if uniformed member of the service chooses to retain their Department issued bullet resistant vest.
   a. Forward copy of **PROPERTY RECEIPT - DISCONTINUANCE OF SERVICE** via email and Department mail to Police Academy, Ballistic Vest Unit.

<u>WHEN REPORTING TO THE POLICE PENSION FUND (PPF):</u>

**UNIFORMED MEMBER OF THE SERVICE**

9. Report in civilian clothes for discontinuance of service.
   a. Tier 2 members must report at least thirty calendar days in advance of discontinuance of service.
   b. Tier 3 members may report without notice at time of discontinuance of service.

**UNIFORMED MEMBER OF THE SERVICE (continued)**

c. All members applying for terminal leave are requested, but not required, to report to the PPF 10 days prior to commencement of such leave to allow for clerical processing.

10. Bring completed **PROPERTY RECEIPT - DISCONTINUANCE OF SERVICE**.
    a. Report with **PROPERTY RECEIPT - DISCONTINUANCE OF SERVICE** form only, if additional tours of duty are to be performed subsequent to appearance at the PPF.
    b. Report to the PPF on date specified by PPF personnel, or after last tour of duty.
11. Deliver to Executive Director, Police Pension Fund or designee:
    a. Five copies of **PROPERTY RECEIPT - DISCONTINUANCE OF SERVICE** indicating disposition of property, and
    b. Copy of **PROPERTY CLERK INVOICE**, if applicable.
12. Prepare and submit **PENSION APPLICATION (PD440-045)**, which grants terminal leave, if applicable.
13. Retain copy of:
    a. **PROPERTY RECEIPT - DISCONTINUANCE OF SERVICE**,
    b. **PROPERTY CLERK INVOICE**, if prepared, and
    c. **PENSION APPLICATION**.
14. Bring typed and notarized **HANDGUN LICENSE APPLICATION (PD643-041)**, if residing within New York City and applying for a handgun license.
    a. Make application for handgun license to licensing officer of resident municipality, if residing outside of New York City.

**DESK OFFICER**

15. Make Command Log entry from the endorsement made by Executive Director, Police Pension Fund or designee on **PROPERTY RECEIPT - DISCONTINUANCE OF SERVICE**.
    a. File copy of receipted form in Property Receipt Book.
16. Notify commanding officer and next higher command.
17. Notify roll call clerk.

**FIREARMS AND TACTICS SECTION SUPERVISOR**

18. Enter retiring uniformed members of the services' last firearms qualification date into Firearms Tracking System (FTS) database.

<u>WHEN A UNIFORMED MEMBER OF THE SERVICE RETIRES WITH AT LEAST 20 YEARS OF SERVICE OR DUE TO LINE OF DUTY INJURY AND WISHES TO RECEIVE LEOSA CERTIFICATION CARD:</u>

**UNIFORMED MEMBER OF THE SERVICE**

19. Report to Shield, ID and Uniformed Services Group with last range re-qualification slip.

**OPERATIONS UNIT**

20. Utilize FTS database to verify the issuance and expiration date of Department-issued LEOSA Certification Card when fielding calls from law enforcement agencies and other government entities.

***ADDITIONAL DATA***

*LEOSA CONSIDERATIONS*

*A uniformed member of the service discontinuing police service is not authorized to obtain a LEOSA Certification Card from the Department unless such member has qualified during a regular Department range cycle within the past 12 months. The LEOSA Certification Card will expire twelve months from the date of their last range re-qualification.*

*Regardless of residency, uniformed members of the service with at least 20 years of service and those retiring due to line of duty injuries, when separating in "good standing," may obtain a LEOSA Certification Card from the Department at the time they are given their retired Department* ***IDENTIFICATION CARD****.*

*Tier 3 members will not be issued a retired Department* ***IDENTIFICATION CARD*** *or LEOSA Certification Card until thirty days after discontinuance of service and it has been determined that the member is separating in "good standing." If, however, the member opts to report to the PPF at least thirty days prior to discontinuance of service, the member may be issued a retired Department* ***IDENTIFICATION CARD*** *and LEOSA Certification Card at the time of discontinuance.*

*TERMINAL LEAVE/OTHER TYPES OF LEAVE CONSIDERATIONS*

*The PPF notifies Tier 2 uniformed members of the service in advance of their 63rd birthdate that such members are required, by law, to retire no later than midnight of the eve of their 63rd birthdate. The member concerned must apply for and take all leave, including vacation and terminal leave, prior to that date. Any leave not taken prior to the member's 63rd birthdate will be forfeited; the member will receive no compensation whatsoever for time so forfeited. Tier 3 members will be notified in advance of their 62nd birthdate and must retire no later than midnight of the eve of their 62nd birthdate.*

*A uniformed member of the service who discontinues terminal leave prior to the effective retirement date may not be granted vacation for at least 30 days after discontinuance of such leave. A member may, however, apply for a 30 day leave of absence without pay, or return to full duty.*

*Prior to approval of a request for leave without pay of a member discontinuing terminal leave, the approving officer (see A.G. 324-09, "Leave of Absence Without Pay Thirty (30) Calendar Days or More") must communicate with, and obtain the approval of the Chief of Personnel.*

*A uniformed member of the service with sufficient reason may request their operations coordinator to mail their paycheck while they are on leave prior to retirement. The request shall be prepared on* ***Typed Letterhead*** *and submitted with a sufficient number of self-addressed, stamped envelopes.*

***ADDITIONAL DATA (continued)***

*Uniformed members of the service who have received a retirement date from the PPF must be accommodated with time off to exhaust any accrued time balance and terminal leave time requested. Members on terminal leave, or using accrued time attached to terminal leave, are excluded from the excusal limitations set by the command. These members are only available for duty during emergency situations (e.g., natural disaster, etc.), or where a must appear notification has been received from a court or other government entity. Members ordered to work while on terminal leave or while using the balance of their vacation or other accrued time attached to terminal leave will be compensated with cash overtime only for time actually worked. Under no circumstances should commanding officers approve requests from such members to perform programmatic overtime, fill details, or perform other non-emergency duties, except with the approval of the bureau chief or deputy commissioner of the member concerned.*

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# ADMINISTRATIVE GUIDE

| Section: Career Development | | Procedure No: 329-07 |
|---|---|---|
| **DISCONTINUANCE OF POLICE SERVICE - RESIGNATION** | | |
| DATE EFFECTIVE: 09/11/26 | LAST REVISION: R.O. 81 | PAGE: 1 of 5 |

**PURPOSE** To facilitate the resignation of a uniformed member of the service.

**DEFINITION** RESIGNATION - Voluntary separation from the Department other than retirement/vested interest.

**PROCEDURE** When a uniformed member of the service decides to resign from the Department:

**MEMBER CONCERNED**

1. Report to permanent command and notify commanding officer.
   a. If commanding officer is NOT present, inform desk officer.

**COMMANDING OFFICER**

2. Instruct member that resignation bars reinstatement EXCEPT if approved by the Police Commissioner within one year of date of resignation.
3. Request member concerned to complete, in ink, and sign appropriate section of **RESIGNATION AND EXIT INTERVIEW (PD452-151)**.
4. Interview member and record responses under appropriate captions of **RESIGNATION AND EXIT INTERVIEW**.
5. Sign **RESIGNATION AND EXIT INTERVIEW** and distribute as indicated on bottom of form within five business days.
6. Have command clerk prepare set of **PROPERTY RECEIPT - DISCONTINUANCE OF SERVICE (PD520-013)**.
7. Sign **PROPERTY RECEIPT - DISCONTINUANCE OF SERVICE**.

**DESK OFFICER**

8. Make Command Log entry of resignation.
9. Obtain New York City Transit (NYCT) NYPD OMNY Police Pass, Long Island Rail Road and/or Metro-North Rail Road Police Passes from resigning member, if appropriate, and have hand delivered to Shield, ID and Uniformed Services Group.
10. Notify Operations Unit that uniformed member is resigning.
11. Give member on duty at Operations Unit the following information concerning resigning member:
    a. Rank,
    b. Last name, first name, middle initial,
    c. Shield number,
    d. Tax registry number,
    e. Social Security number,
    f. Command,
    g. Date of appointment, and
    h. Hour and date of resignation.

***NOTE*** *Operations Unit personnel will notify Communications Section (for transmittal of FINEST Message), Internal Affairs Bureau, Compensation Operations Unit, Police Pension Fund and Human Resources Division.*

**DESK OFFICER (continued)**

12. Notify the Occupational Safety and Health Section, if resigning member indicated they do not feel safe in their work environment.
13. Assign member concerned to second platoon on last working day.
    a. If last working day of resigning member is on Saturday or Sunday, member will report to Police Pension Fund for processing on Friday and perform clerical duty in command on Saturday and Sunday.

**RESIGNING MEMBER**

14. Prepare **PROPERTY CLERK INVOICE (PD521-141)** listing firearms to be safeguarded.
15. Prepare separate **ACQUISITION OR DISPOSITION OF FIREARMS BY POLICE OFFICERS - REPORT TO N.Y. STATE POLICE (PD424-150)** for each firearm safeguarded.
16. Deliver firearms with **PROPERTY CLERK INVOICE** and **ACQUISITION OR DISPOSITION OF FIREARMS BY POLICE OFFICERS - REPORT TO N.Y. STATE POLICE** to borough Property Clerk's Office, ONLY.
17. Report to Police Pension Fund on last working day in civilian clothes with **PROPERTY RECEIPT – DISCONTINUANCE OF SERVICE**, ALL property and two copies of **PROPERTY CLERK INVOICE**.
    a. Resigning uniformed member of the service will retain 'Prisoner/Finder/Owner' copy of **PROPERTY CLERK INVOICE** as receipt for firearms.

***NOTE*** *If uniformed member of the service refuses to report to Police Pension Fund for processing, commanding officer will accept property and have it delivered to appropriate commands.*

18. Deliver Department property to commands indicated below and obtain receipt on **PROPERTY RECEIPT - DISCONTINUANCE OF SERVICE**, as follows:
    a. **IDENTIFICATION CARD (PD416-091)** and shield, to Shield, ID and Uniformed Services Group,
    b. Helmet and Oleoresin Capsicum (O.C.) pepper spray, with holster, to officer-in-charge, Firearms and Tactics Section, Police Headquarters range,
    c. **NYPD Restricted Parking Permit (Misc. 23-N)**, **Headquarters Annex Parking Permit (Misc. 814HQ-Annex)**, or any other Department issued vehicle parking permit, if applicable, to issuing command's integrity control officer/counterpart, to ensure that return is recorded in Department record book,
    d. **NYPD Vehicle Identification Plate (Misc. 740)**, if applicable, to command's integrity control officer/counterpart, who will ensure that the plate is forwarded by messenger to the Chief of Department's Vehicle Identification Unit at 300 Gold Street, Room 312, Brooklyn,
    e. Department issued bullet resistant vest, to Police Academy, Ballistic Vest Unit,

**RESIGNING MEMBER (continued)**

f. Permanently assigned portable radio with all accessories, if applicable, to Electronics Section,
g. Personal laptop computer and/or tablet with all accessories, if applicable, to ITB Telecommunications Unit,
h. Cellular telephone with all accessories, if applicable, to ITB Telecommunications Unit,
i. MIFI device and/or VPN token, if applicable, to ITB Telecommunications Unit,
j. Tactical Retreat Hood (TRH), if applicable, to command's integrity control officer/counterpart, who will ensure that the TRH is returned to the Quartermaster Section, CBRN Unit,
k. Ballistic Tactical Helmet, if applicable, to command's integrity control officer/counterpart, who will ensure that the Ballistic Tactical Helmet is returned to the Quartermaster Section, CBRN Unit, and/or
l. Body-Worn Camera, if applicable, to command's integrity control officer/counterpart, who will ensure that the Body-Worn Camera is returned to ITB Telecommunications Unit.

**POLICE PENSION FUND REPRESENT-ATIVE**

19. Examine **PROPERTY RECEIPT - DISCONTINUANCE OF SERVICE** to ensure that ALL property is returned or accounted for.
20. Prepare necessary resignation papers and give resigning member appropriate instructions.
21. Forward to desk officer/counterpart following forms in Department mail:
    a. **PROPERTY RECEIPT - DISCONTINUANCE OF SERVICE**, and
    b. **PROPERTY CLERK INVOICE**.

**DESK OFFICER**

22. File copy of **PROPERTY RECEIPT - DISCONTINUANCE OF SERVICE** in Property Receipt Book.
23. Notify commanding officer, roll call clerk and next higher command of resignation.

<u>IF MEMBER IS RESIGNING IN PERSON, NOT AT PERMANENT COMMAND, AND WILL NOT REPORT TO POLICE PENSION FUND FOR PROCESSING</u>:

**DESK OFFICER, COMMAND OF RESIGNATION**

24. Prepare **RESIGNATION AND EXIT INTERVIEW**.
25. Request member to sign form.
    a. If member refuses, so indicate.
26. Sign and distribute form as indicated in step "5" above.
27. Notify Operations Unit of member's resignation.
    a. Operations Unit personnel will make required notifications.
28. Notify member's permanent command of resignation.
29. Notify the Occupational Safety and Health Section, if resigning member indicated he/she does not feel safe in their work environment.
30. Make Command Log entry of member's resignation including names of persons notified.

**DESK OFFICER, COMMAND OF RESIGNATION (continued)**

31. Question resigning member concerning location of property.
32. Instruct member concerned that benefits, pension contributions, etc., will NOT be returned until ALL property is accounted for and that the Police Commissioner will decide if resignation is without permission.
33. Assign uniformed member to deliver property of resigning member to permanent command.
34. Instruct resigning member to contact Police Pension Fund for instructions concerning benefits.

**DESK OFFICER, PERMANENT COMMAND**

35. Have following forms prepared:
    a. **PROPERTY RECEIPT - DISCONTINUANCE OF SERVICE**,
    b. **PROPERTY CLERK INVOICE**, and
    c. **ACQUISITION OR DISPOSITION OF FIREARMS BY POLICE OFFICERS - REPORT TO N.Y. STATE POLICE**.
36. Inspect member's **FORCE RECORD (PD406-143)** to determine Department property and firearms possessed by member.
37. Have uniformed supervisor and clerical member of the service open member's locker and obtain property.
38. Have uniformed member of the service deliver resigning member's firearms with related forms to borough Property Clerk's Office.
39. Assign member to deliver **PROPERTY RECEIPT – DISCONTINUANCE OF SERVICE** (five copies), two copies of **PROPERTY CLERK INVOICE** and ALL Department property to Police Pension Fund.

**POLICE PENSION FUND REPRESENT-ATIVE**

40. Process papers of resigning member and check **PROPERTY RECEIPT - DISCONTINUANCE OF SERVICE** to ensure ALL Department property and firearms are returned.
41. Forward to member's permanent command a copy of:
    a. **PROPERTY RECEIPT - DISCONTINUANCE OF SERVICE**, and
    b. **PROPERTY CLERK INVOICE**.

**DESK OFFICER, PERMANENT COMMAND**

42. Check **PROPERTY RECEIPT - DISCONTINUANCE OF SERVICE** to ensure that ALL Department property and firearms of resigning member are accounted for, and/or safeguarded.

IF MEMBER RESIGNS OTHER THAN IN PERSON:

**C.O./ SUPERVISING OFFICER, RECEIVING RESIGNATION**

43. Notify Operations Unit of member's resignation.
    a. Operations Unit personnel will make required notifications.
44. Notify resigning member's permanent command, if necessary.

| | | |
|---|---|---|
| **C.O., HUMAN RESOURCES DIVISION** | 45. | Mail certified letter to member concerned acknowledging receipt and acceptance of resignation.<br>a. Advise member that Police Commissioner will decide if resignation is without permission. |
| **MEMBER'S C.O./ SUPERVISORY HEAD** | 46. | Attempt to personally communicate with member to determine location of Department property and member's firearms. |
| | 47. | Instruct member concerned that pension contributions, etc., will NOT be returned until ALL property and firearms are returned and/or accounted for. |
| | 48. | Have desk officer inspect **FORCE RECORD** of member to determine what Department property and firearms are possessed by member. |
| **DESK OFFICER, MEMBER'S COMMAND** | 49. | Assign sergeant and clerical member of the service to open member's locker and obtain Department property. |
| | 50. | Make Command Log entry of all facts. |
| | 51. | Request desk officer of designated precinct to assign a supervisor to a specified location to obtain member's property.<br>a. Precinct designated will be determined by location of property. |
| **SUPERVISOR, DESIGNATED PRECINCT** | 52. | Visit location(s) and obtain property. |
| | 53. | Deliver property to desk officer of member's permanent command. |
| **DESK OFFICER** | 54. | Comply with steps "14" to "18" above, insofar as possible, regarding preparation of forms and delivery of property to appropriate commands. |

***ADDITIONAL DATA***

*In an effort to facilitate vacation selections, uniformed members of the service in the rank of police officer through deputy chief receive their entire vacation allotment on January 1st of any given year. However, vacation time is only considered accrued while members are in full pay status. Members who resign, are terminated, take child care leave without pay, or any other leave without pay, including suspension, are not considered to be in full pay status. Their vacation accruals are prorated based on accrual rates. Current accrual rates are detailed in the "Annual Vacation Selection for Uniformed Members of the Service," Operations Order.*

*A uniformed member of the service who uses vacation in excess of the accrual rates PRIOR to resigning will be required to forfeit pay and/or reimburse the Department for the paid vacation days used in excess of the accrual.*

*Uniformed members of the service who resign from the Department in good standing after one year of service will be compensated for any remaining accrued time.*

# ADMINISTRATIVE GUIDE

| Section: Career Development | | Procedure No: 329-08 |
|---|---|---|
| **PISTOL LICENSE FOR RETIRING MEMBER OF THE SERVICE** | | |
| DATE EFFECTIVE: 01/23/23 | LAST REVISION: R.O. 3 | PAGE: 1 of 2 |

**PURPOSE** To expedite the issuance of a pistol license to a uniformed member of the service retiring.

**PROCEDURE** A uniformed member of the service who desires to obtain a pistol license will, prior to last tour of duty:

**RETIRING MEMBER OF THE SERVICE**

1. Obtain pistol license from local police authority if a non- resident of City.
2. Prepare **PISTOL LICENSE APPLICATION (PD643-041)** complying with directions on form.
   a. Two copies if resident of New York City
   b. Three copies if non-resident of New York City.
3. Request commanding officer to endorse reverse side of application under caption, "Investigating Officer's Recommendation."

**CLERICAL MEMBER**

4. Fingerprint retiring member using:
   a. **NON-CRIMINAL FINGERPRINT RECORD (PD423-144)**
   b. New York State Non-Criminal Fingerprint Card (O13 OOIN)
   c. F.B.I. Applicant Form (FD258)

**RETIRING MEMBER OF THE SERVICE**

5. Obtain three head type photographs, 1 ½ inch square
   a. If non-resident of New York City, four photographs are required.

***NOTE*** *Photographs must have been taken within thirty days of application.*

6. Report to Identification Unit, Police Headquarters with fingerprints for processing.
7. Report to Payroll/Pension Section to obtain Certificate of Service with medical endorsement.
   a. If non-resident, an additional copy of Certificate of Service is required for local police authority.
8. Prepare a U.S. Postal Money Order as follows:
   a. Seventy-four dollars payable to New York State Division of Criminal Justice Services.
9. Report to Pistol License Section, Police Headquarters with the following documents:
   a. **PISTOL LICENSE APPLICATIONS** and photographs
   b. Fingerprint forms
   c. Certificate of Service
   d. Money Order
   e. Copy of **PROPERTY CLERK INVOICE (PD521-141)** if firearms are in custody of Property Clerk.

***ADDITIONAL DATA***

*A retiring uniformed member of the service who resides outside New York City must obtain a New York State Pistol License from their local police authority prior to making application to the Pistol License Section for a New York City License. Because the retiring member cannot receive a Certificate of Service until their last working day, they may be unable to receive their New York State License prior to their retirement date. Therefore, the retiring member will deposit their firearms in the Manhattan Property Clerk's Office and upon receipt of their State license, comply with the above procedure.*

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# ADMINISTRATIVE GUIDE

| Section: Career Development | | Procedure No: 329-09 |
|---|---|---|
| **REQUEST FOR PERSONNEL TRANSFERS OR BACKGROUND CHECKS** | | |
| DATE EFFECTIVE: 09/11/26 | LAST REVISION: R.O. 81 | PAGE: 1 of 2 |

**PURPOSE** To request the transfer of personnel (both uniformed and civilian) for assignment to specialized units and other commands, and to make background information readily available to commanding officers.

**PROCEDURE** When requesting the assignment of a particular member of the service:

**COMMANDING OFFICER**

1. Prepare **CENTRAL PERSONNEL INDEX BACKGROUND REQUEST (PD449-160)** and distribute as indicated on form.

WHEN RESULTS OF CENTRAL PERSONNEL INDEX BACKGROUND REQUEST ARE RECEIVED

**COMMANDING OFFICER**

2. Prepare form **REQUEST FOR PERSONNEL (PD406-040)**.
   a. For police officers - enter one of the statements listed below under caption "Results of Conferral" with Human Resource Division:
      (1) The Human Resources Division was contacted on (date) and (name) advised the officer met the criteria.
      (2) The Human Resources Division was contacted on (date) and (name) advised no Transfer Requests were on file for that position/unit.
      (3) The Human Resources Division was contacted and (number) requests from members of the service were submitted, (number) members were interviewed, and none were found to meet the requirements of this position/unit.
      (4) Request for exception to unit/position criteria, and state reason(s) for exception.
3. Obtain copy of member's last performance evaluation and attach to form.
4. Forward **COMMANDING OFFICER'S RECOMMENDATION (PD406-180)** form, prepared by concerned member's current commanding officer, along with form **REQUEST FOR PERSONNEL** to Chief of Personnel (through channels).
   a. Buff copy of **REQUEST FOR PERSONNEL** will be filed in the command.

***ADDITIONAL DATA*** *Commanding officer of the member's current command must complete **COMMANDING OFFICER'S RECOMMENDATION** within seven days of receipt. Additionally, commanding officers must check "Highly Recommend," "Recommend," or "Do Not Recommend." If "Do Not Recommend" is checked, state specific reasons why (e.g., not enough experience, newly transferred to command, etc.).*

*Central Personnel Index results should NOT be forwarded with **REQUEST FOR PERSONNEL**.*

***ADDITIONAL DATA (continued)***

*This procedure does not apply to transfers governed by "Transfer and Assignment of Uniformed Members of the Service" (A.G. 329-10).*

*When recommending personnel for advancement, assignment to specialized unit or position of special trust the commanding officer/unit head will forward* ***CENTRAL PERSONNEL INDEX BACKGROUND REQUEST*** *as indicated on form. Include in request, the full name of individual, tax registry number and reason for request. Indicate results of records check when submitting recommendation.*

*Information contained in the Central Personnel Index is highly personal and confidential. Therefore, there are restrictions on persons who will be granted this information. Information will be disseminated on a need to know basis and authorized personnel will not utilize the Index for mass checks. In no cases will any information be divulged relative to a current investigation.*

NYPD

# ADMINISTRATIVE GUIDE

| Section: Career Development | | Procedure No: 329-10 |
|---|---|---|
| **TRANSFER AND ASSIGNMENT OF UNIFORMED MEMBERS OF THE SERVICE** | | |
| DATE EFFECTIVE: 05/13/24 | LAST REVISION: R.O. 30 | PAGE: 1 of 2 |

**PURPOSE** To permit deputy commissioners, bureau chiefs and borough commanders, or their equivalent, to make personnel decisions concerning uniformed members of the service (below the rank of captain) assigned within their commands.

**SCOPE** For the purpose of this procedure the following guidelines will apply:

a. Transfer requests within the same patrol borough will be approved by the respective borough commander

b. Transfer requests within the same bureau will be approved by the respective bureau chief/deputy commissioner (e.g., transfer from one patrol borough to another will be approved by the Chief of Patrol, transfer from one detective borough to another will be approved by the Chief of Detectives, etc.)

c. Transfer requests from one bureau to another bureau will be approved by the Chief of Department, if both commands are subordinate to the Chief of Department

d. Transfer requests from one bureau to another bureau will be approved by the First Deputy Commissioner, if both commands are subordinate to the First Deputy Commissioner

e. Transfers not within the purview of the above guidelines (e.g., transfer from a command subordinate to the First Deputy Commissioner to a command subordinate to the Chief of Department, etc.) are to be forwarded to the First Deputy Commissioner or Chief of Department for review prior to being forwarded to the Chief of Personnel for processing. The final determination will be made by the Police Commissioner.

**PROCEDURE** When requesting transfers or assignments of uniformed members of the service (below the rank of captain):

**DEPUTY COMMISSIONER/ BUREAU CHIEF/ BOROUGH COMMANDER AND ABOVE**

1. Review employment history when considering the transfer/assignment of a uniformed member of the service to another command within the same borough/bureau command, or its equivalent.
2. Prepare report on **Typed Letterhead** documenting the reason for and purpose of transfer. The "Hard Deck/Hard Ceiling" of both supplying command and receiving command must be adhered to.
   a. Provide explanation of any personnel history which may be considered a reason to preclude transfer.
3. Forward report to Chief of Personnel, through channels.

**CHIEF OF PERSONNEL**

4. Review request to ensure it is consistent with Department policies as they relate to staffing levels, career paths, administrative procedures, contractual agreements, court decisions and settlements.

***NOTE*** *The Personnel Bureau will notify requesting bureau chief/deputy commissioner on all disapprovals via e-mail.*

**CHIEF OF PERSONNEL (continued)**

5. Transmit transfer via FINEST Message to commands concerned, and/or publish in Personnel Order.
   a. Transfers will only become effective upon publication of a FINEST Message or Personnel Order by the Chief of Personnel.

***ADDITIONAL DATA***

*Under no circumstances will transfers via telephone message be authorized.*

*When a uniformed member is transferred, the member will be excused from duty during the eight hours immediately preceding the effective time of the transfer.*

*No uniformed member of the service is to be assigned to their resident precinct.*

*No uniformed member of the Housing Bureau is to be assigned to a Police Service Area (PSA) that patrols Public Housing Developments within a precinct in which the officer resides.*

*Transfer of uniformed members of the service who are in a Level II or III Monitoring Program requires conferral with the Commanding Officer, Performance Analysis Unit.*

*Uniformed members of the service on probation are not to be transferred without the approval of the First Deputy Commissioner.*

*Uniformed members who have been transferred within the past 12 months are not to be transferred without conferral with the Chief of Personnel.*

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# ADMINISTRATIVE GUIDE

| Section: Career Development | | Procedure No: 329-11 |
|---|---|---|
| **ADMINISTRATIVE TRANSFERS** | | |
| DATE EFFECTIVE: 05/03/24 | LAST REVISION: R.O. 24 | PAGE: 1 of 1 |

**PURPOSE** To permit commanding officers to transfer members who are not suited for or are unable to perform at satisfactory levels of efficiency in present assignment.

**PROCEDURE** When necessary to transfer a member for sub-standard performance:

**COMMANDING OFFICER**

1. Prepare detailed report indicating:
   a. Background information relative to poor performance
   b. Efforts made to improve performance
   c. Formal disciplinary action taken
   d. Remedial action necessary to improve performance
2. Forward report, with copy of member's last performance evaluation attached, to Chief of Personnel through channels.

**CHIEF OF PERSONNEL**

3. Accept recommendation for transfer when individual has not improved performance in present assignment.
4. Determine new assignment and direct transfer if appropriate.
5. Refer case to Commanding Officer, Performance Analysis Unit for evaluation and determination if placement into monitoring is an appropriate course of action.

**NEW COMMANDING OFFICER/ PERSONNEL OFFICER**

6. Monitor member's performance closely using quarterly performance evaluations, if member was transferred.
7. Supervise member by observation and personal interviews.

***ADDITIONAL DATA*** *Removal hearing procedures will correspond, insofar as possible, with procedures prescribed for conducting disciplinary trials*.

*A member of the service (uniformed or civilian), eligible for retirement, who is the subject of a removal hearing, will not be precluded from filing an application for retirement.*

*In appropriate cases, the borough commander may utilize the borough personnel review board to determine whether transfer will be beneficial to the Department.*

# ADMINISTRATIVE GUIDE

| Section: Career Development | | Procedure No: 329-12 |
|---|---|---|
| **UNIFORMED MEMBERS OF THE SERVICE - TRANSFER PROCEDURE** | | |
| DATE EFFECTIVE: 09/11/26 | LAST REVISION: R.O. 81 | PAGE: 1 of 3 |

**PURPOSE** To enable a uniformed member of the service to request a transfer from an operational command (i.e., precinct [PCT], transit district [TD], police service area [PSA]) to another operational command, or a Career Path transfer to a specialized unit or non-operational command (e.g., Chief of Special Operations, Highway District, Technical Assistance and Response Unit [TARU], administrative and support units, etc.).

**PROCEDURE** When a uniformed member of the service requests a transfer from an operational command (i.e., precinct, transit district, police service area) to another operational command, or a Career Path transfer to a specialized unit, or non-operational command:

TRANSFER FROM AN OPERATIONAL COMMAND TO ANOTHER OPERATIONAL COMMAND:

**UNIFORMED MEMBER OF THE SERVICE**

1. Prepare **Application for Transfer** via P.O.S.T.
   a. Select up to three choices of patrol services, housing or transit bureau commands.
   b. Select "Mutual Transfer," if applicable, and complete related captions.
   c. Only one **Application for Transfer** can be submitted in a 12 month period.
2. Ensure application is fully and accurately completed as per instructions on form.
   a. Applicant will receive a message verifying that the application was successfully submitted.
   b. Once application has been submitted, member may only change their choice of transfer commands by submitting a request on **Typed Letterhead** to the Commanding Officer, Human Resources Division.
3. Inform commanding officer of the submitted **Application for Transfer** and request a **COMMANDING OFFICER'S RECOMMENDATION (PD406-180)** be prepared electronically via P.O.S.T.

**HUMAN RESOURCES DIVISON**

4. Acknowledge **Application for Transfer** was received by contacting uniformed member of the service via Department email.
5. Provide the applicant's commanding officer with the **Application for Transfer** and request an electronic **COMMANDING OFFICER'S RECOMMENDATION** be completed via P.O.S.T. within seven days.

**COMMANDING OFFICER**

6. Prepare electronic **COMMANDING OFFICER'S RECOMMENDATION**.
   a. Check "Highly Recommend," "Recommend," or "Do Not Recommend."
      (1) If "Do Not Recommend" is checked, state specific reasons why (e.g., member lacks experience, does not meet above criteria, disciplinary matters, poor performance, etc.).

**COMMANDING OFFICER (continued)**

(2) Staffing levels cannot be used to justify a "Do Not Recommend" and will result in the **COMMANDING OFFICER'S RECOMMENDATION** being returned.

7. Submit **COMMANDING OFFICER'S RECOMMENDATION** electronically via P.O.S.T. within seven days of request.
   a. In the event P.O.S.T. is inoperable, contact the Human Resources Division and be guided by their instructions.
   b. In all cases provide a copy of **COMMANDING OFFICER'S RECOMMENDATION** to member concerned within seven days.

**HUMAN RESOURCES DIVISION**

8. Retain copy of **Application for Transfer** for one year, unless withdrawn by member concerned."

TRANSFER REQUEST TO A SPECIALIZED UNIT OR NON-OPERATIONAL COMMAND:

**UNIFORMED MEMBER OF THE SERVICE**

9. Prepare **Application for Transfer** via P.O.S.T. in response to Position Vacancy.
   a. Up to three **Application for Transfers** to non-operational commands may be submitted in a 12 month period.
10. Ensure application is fully and accurately completed as per instructions on form.
   a. Applicant will receive a message verifying that the application was successfully submitted.
   b. Once application has been submitted it cannot be changed.
   c. Application submitted in error (e.g., wrong unit, etc.) must be voided and a new application submitted.
   d. To void application once it has been submitted:
      (1) Prepare report on **Typed Letterhead** requesting the **Application for Transfer** be voided and forward the report to the Commanding Officer, Human Resources Division.
      (2) Prepare a new **Application for Transfer** via P.O.S.T.

**HUMAN RESOURCES DIVISION**

11. Acknowledge **Application for Transfer** was received by contacting uniformed member of the service via Department email.
12. Forward **Application for Transfer** to specialized unit or non-operational command.

**UNIFORMED MEMBER OF THE SERVICE**

13. Request **COMMANDING OFFICER'S RECOMMENDATION** upon notification of selection for interview.

**COMMANDING OFFICER**

14. Prepare **COMMANDING OFFICER'S RECOMMENDATION**.
   a. Check "Highly Recommend," "Recommend," or "Do Not Recommend."

**COMMANDING OFFICER (continued)**

(1) If "Do Not Recommend" is checked, state specific reasons why (e.g., member lacks experience, does not meet above criteria, disciplinary matters, poor performance, etc.). If the only reason is based on staffing levels, the **COMMANDING OFFICER'S RECOMMENDATION** will not be accepted.

b. Provide copy of **COMMANDING OFFICER'S RECOMMENDATION** within seven days to member concerned upon notification of interview.

**UNIFORMED MEMBER OF THE SERVICE**

15. Bring copy of **COMMANDING OFFICER'S RECOMMENDATION** when notified for unit interview.

TO WITHDRAW TRANSFER APPLICATION:

**UNIFORMED MEMBER OF THE SERVICE**

16. Prepare a report on **Typed Letterhead**, requesting that **Application for Transfer** be withdrawn, to Commanding Officer, Human Resources Division. .
17. Inform commanding officer, current command that **Application for Transfer** is being withdrawn.

**HUMAN RESOUCES DIVISION**

18. Review and update **Application for Transfer** status in P.O.S.T.
19. Forward a copy of report on **Typed Letterhead** to commanding officer, member concerned and Commanding Officer, Human Resources Division.
    a. File original report on **Typed Letterhead** at command.

***ADDITIONAL DATA***

*Uniformed members of the service who are in the Level II or Level III Monitoring Program or on dismissal or extended probation will not be transferred without conferral of the Commanding Officer, Performance Analysis Unit.*

*Immediately upon the transfer of a member of the service in a monitoring program, the member's new commanding officer must confer with the Commanding Officer, Performance Analysis Unit.*

*Police officers must have a minimum of four years of service in the rank of police officer prior to entering the detective investigative track. Exceptions may be made based on the needs of the Department and with the approval of the Police Commissioner.*

*The Career Path does not limit or change the Department's right or managerial prerogative to assign personnel. All members should be aware that completing an **Application for Transfer** does not guarantee transfer or assignment.*

*Any questions regarding P.O.S.T. may be directed to the Human Resources Division.*

# ADMINISTRATIVE GUIDE

| Section: Career Development | | Procedure No: 329-13 |
|---|---|---|
| **PROMOTION TO THIRD GRADE DETECTIVE (INVESTIGATOR)** | | |
| DATE EFFECTIVE: 09/11/26 | LAST REVISION: R.O. 81 | PAGE: 1 of 4 |

**PURPOSE** To facilitate promotion of police officers to third grade detective investigator upon their successful accrual of eighteen months full duty time in a detective position within one of the identified detective track commands.

**DEFINITIONS** DETECTIVE TRACK COMMANDS: The following represent the Department's detective track commands:

1. Certain specific Squads/Units/Teams within the Detective Bureau,
2. Collision Investigations Squad,
3. Technical Assistance Response Unit
4. Internal Affairs Bureau
5. Bureau/patrol borough investigations units
6. Intelligence Division
7. Intelligence and Counterterrorism Bureau, Joint Terrorist Task Force.

DETECTIVE POSITIONS: Those core positions within the detective track commands that require the police officer who desires promotion to detective investigator, or the tenured detective, to conduct the significant aspects of criminal investigations reflective of the mission of the particular detective track commands. Involvement in these criminal investigations is virtually daily and forms the basis of the individual's work and functions in the particular detective track commands. Performance evaluations are conducted on **PERFORMANCE EVALUATION - DETECTIVES AND POLICE OFFICERS ASSIGNED TO DETECTIVE TRACK COMMANDS (Online Evaluation System)** (with corresponding guidebook).

NON-DETECTIVE POSITIONS: Those ancillary positions within the detective track commands, which provide support to the cadre of detective positions within the particular detective track command. Individuals in these non-detective positions cannot be unilaterally assigned to perform the significant aspects of the criminal investigations that reflect the mission of the particular detective track command. Police officers concerned who perform in any non-detective position within any of the detective track commands cannot accrue detective track time.
Examples of non-detective positions include, but are not limited to, administrative, analyst, clerical positions, physical plant security assignments, courier/messenger positions, etc. Performance evaluations are conducted on **PERFORMANCE EVALUATION - POLICE OFFICER - DETECTIVE SPECIALIST (Online Evaluation System)** (with corresponding guidebook).

**PROCEDURE** To process for promotion a police officer in a detective position in any one of the designated detective track commands.

**HUMAN RESOURCES DIVISION**

1. Monitor the amount of detective position time accrued by police officers assigned to detective track commands.
2. Maintain a list of police officers who have at least fourteen months of investigative credit.
3. Review and compute any deductions of accrued investigative credit of police officers assigned to detective track commands.
4. Provide bureau chief of detective track command concerned with a list of those police officers who have met the experience criteria as outlined in the definitions no later than three months prior to qualification date.

**BUREAU CHIEF DETECTIVE TRACK COMMAND**

5. Submit a separate report on **Typed Letterhead** to Human Resources Division for each member eligible for promotion within ten business days of receiving the list and include:
   a. Reasons for recommending promotion and results of eighth and fifteen month evaluations. Evaluation must be conducted using **PERFORMANCE EVALUATION - DETECTIVES AND POLICE OFFICERS ASSIGNED TO DETECTIVE TRACK COMMANDS**, and there must be confirmation that the individual was performing in a criminal investigative (i.e. detective) role. If the officer has already "banked" detective track time, then all prior detective track evaluations ONLY must be reviewed by the officer's present commanding officer for acceptable performance. A notation that this review has been conducted must appear on the present evaluation.
   b. Reason for not recommending an eligible officer, e.g. performance, sick record, etc.
   c. In cases where there are substantial reasons to believe that the strict application of the "Guidelines for Accrual of Detective Track Time" would be unfair, give a detailed account of those reasons together with a concise statement of the deducted time period being appealed.

***NOTE*** *The performance of police officers in detective track commands must be accurately recorded on the eighth and fifteenth month evaluations. Supervisors are mandated to forward these evaluations in a timely manner. It is critical that police officers in detective track commands who do not merit promotion to detective be identified by the eighth month evaluation. In these cases, ample narrative on the eight month evaluation must explain the performance deficiency of the officer and the action to be taken (e.g. transfer out of the detective track command). If a transfer is not the recommended action, because the supervisor states that the performance deficiency can be addressed and corrected while the officer remains in the detective track command, thus enabling the officer to continue accrual of detective track time towards promotion, then a more focused performance review must take place between the eighth and fifteenth month evaluation. At the midpoint within this period (i.e. approximately the twelfth month), an interim evaluation may be forwarded if it is determined within this time frame that the individual's performance deficiency cannot be corrected, therefore necessitating a transfer out of the detective track*

***NOTE (continued)*** *entirely. However, to effect a timely transfer before the accrual of eighteen months detective track time, it is imperative that any transfer decision be communicated at the earliest possible time.*

**HUMAN RESOURCES DIVISION**

6. Conduct background check on candidates.
7. Prepare promotion recommendations to Chief of Personnel.

**CHIEF OF PERSONNEL**

8. Review package and convene the Career Advancement Review Board to review:
   a. Candidates not recommended for promotion.
   b. Appeals relating to detective track time accrual guidelines.

**CAREER ADVANCEMENT REVIEW BOARD**

9. Review all documentation.
10. Interview candidates, if necessary.
11. Make recommendations to the Chief of Personnel.

***NOTE*** *Those candidates not recommended for promotion will be transferred to a non-detective track command.*

**CHIEF OF PERSONNEL**

12. Forward final list of candidates considered for promotion to the Promotion Advisory Board.

**PROMOTION ADVISORY BOARD**

13. Review final list of candidates received from Personnel Bureau and forward to the Police Commissioner.

***ADDITIONAL DATA*** *Whenever a detective track command submits a **REQUEST FOR PERSONNEL (PD406-040)**, it must be clearly stated under "Reason for Transfer", what functions, whether detective or non-detective, will be performed by the officer. Commanding officers of all detective track commands must maintain a defined list of detective and non-detective positions within their commands. Officers assigned to non-detective positions, albeit within a detective command, will NOT gain detective track time towards promotion to Detective Investigator. Commanding officers of detective track commands are responsible for ensuring that any police officers that are in identified, non-detective, positions are formally notified in writing of their exclusion from detective track time accrual. This notification must be expressly stated to the officer and a copy of the notification placed in the officer's personal folder. In a further delineation between detective and non-detective positions within any of the above detective track commands, commanding officers are responsible for ensuring that detectives are NOT serving in any of the non-detective positions identified within their command. Likewise, commanding officers must ensure that non-detective track personnel DO NOT perform the significant aspects of criminal investigations that are associated with the detective positions within their detective track command.*

*GUIDELINES FOR ACCRUAL OF DETECTIVE TRACK TIME*

*Police officers may only enter one of the detective track commands to accrue detective track time after first qualifying with the Department's Career Program. However, this does not limit or change the Department's right or managerial prerogatives to assign personnel. Once approved and transferred into a detective track command, an officer's accrual of detective track time towards promotion to detective investigator does not have to be*

***ADDITIONAL DATA (continued)***

*consecutive. For example, a transfer for only a six month interval would be banked and could, in the future, be used in combination with other detective track command time towards promotion to detective investigator. A* ***PERFORMANCE EVALUATION*** *must be completed for any officer who, at the conclusion of the six month interval, is transferred out of the detective track command. The original* ***PERFORMANCE EVALUATION*** *must be forwarded to the Performance Analysis Unit. A copy of the* ***PERFORMANCE EVALUATION*** *must also be placed in the uniformed member's command Personal Folder.*

*A police officer must accrue eighteen months full duty time in an identified detective position within one of the detective track commands, or within a combination of the detective track commands, in order to be promoted to detective investigator.*

*The following guidelines will be used for computing the required 18 months of investigative time a police officer has been assigned to a detective position within one of the detective track commands:*

*a. All time (i.e., each calendar day) spent on leave of absence (as authorized by Extended Leave Services, with or without pay), except military leave, will be deducted.*

*b. Once assigned to an investigative position, all time on approved military leave will be credited as investigative time upon promotion.*

*c. All time spent on suspension (i.e., each calendar day) will be deducted.*

*d. All time spent on modified assignment will be deducted. If the officer continues to perform investigative duties while on modified assignment, the officer may appeal the deductions of this time through the grievance procedure after the member is promoted to detective.*

*e. Time in excess of 30 calendar days on sick leave will be deducted. Time on sick leave as a result of new line of duty injury will not be deducted.*

*f. Time in excess of 30 calendar days in restricted duty/limited capacity (e.g., pregnancy, injury, etc), except as a result of a new line of duty injury, will be deducted. At the time of the duty status change, if the officer continues to perform investigative duties while in a restricted duty/limited capacity, the Bureau Chief, Detective Track Command may submit a report on Typed Letterhead to Human Resources Division requested that this time is not deducted.*

*g. Time in restricted duty/limited capacity as a result of a line of duty injury will not be deducted."*

*No new detective track commands may be established without the permission of the Police Commissioner. In extenuating circumstances, application of the above guidelines is subject to appeal.*

# ADMINISTRATIVE GUIDE

| Section: Career Development | Procedure No: 329-14 |
|---|---|

**CAREER PATH FOR SERGEANTS AND LIEUTENANTS SEEKING ASSIGNMENT TO THE INTERNAL AFFAIRS BUREAU, DETECTIVE BUREAU, COUNTERTERRORISM DIVISION, OR INTELLIGENCE DIVISION**

| DATE EFFECTIVE: | LAST REVISION: | PAGE: |
|---|---|---|
| 09/11/26 | R.O. 81 | 1 of 3 |

**PURPOSE** To afford qualified supervisors the means to request transfer to the Internal Affairs Bureau and provide a career path for sergeants and lieutenants seeking assignment to the Detective Bureau, Counterterrorism Division, or Intelligence Division.

**DEFINITION** SUPERVISORY ASSIGNMENT BOARD – A board consisting of the Chief of Personnel (Chairperson), Chief of Internal Affairs, Chief of Detectives, Chief of Counterterrorism, Chief of Intelligence and the Chief of Patrol or their representatives. The Supervisory Assignment Board screens and selects only highly motivated supervisors possessing the necessary skills and potential to be successful in the Internal Affairs Bureau, Detective Bureau, Counterterrorism Division, or Intelligence Division. The Supervisory Assignment Board evaluates sergeants and lieutenants who have been deemed worthy of consideration based on their past records (commanding officer's recommendation, central personnel index, etc.). Under this career path, the Internal Affairs Bureau, Detective Bureau, Counterterrorism Division, and Intelligence Division will be permitted to select new supervisors only from among those approved by the Supervisory Assignment Board.

**SERGEANT/ LIEUTENANT CONCERNED**

1. Prepare **CAREER PROGRAM APPLICATION FOR TRANSFER OF SERGEANT/LIEUTENANT (PD406-1416)**.
   a. Sign application in the presence of a supervisor who serves as a witness to the member's signature.
   b. Submit **CAREER PROGRAM APPLICATION FOR TRANSFER OF SERGEANT/LIEUTENANT** to commanding officer.
   c. Prepare an electronic application for transfer via Personal Online System for Transfers (P.O.S.T.).

***NOTE*** *All sergeants and lieutenants seeking assignment to the Internal Affairs Bureau, Detective Bureau, Counterterrorism Division, or the Intelligence Division must complete at least one year in rank in a patrol assignment before being transferred. Uniformed members of the service may apply for such an assignment after six months in a patrol assignment, but they will not be eligible for transfer until the required year on patrol has been completed. All candidates must meet this one year obligation, except in unusual circumstances approved by the Police Commissioner, such as when the candidate possesses a special skill or expertise that is urgently needed by another bureau.*

**COMMANDING OFFICER**

2. Review **CAREER PROGRAM APPLICATION FOR TRANSFER OF SERGEANT/LIEUTENANT** and complete "Commanding Officer's Recommendation" section.

**COMMANDING OFFICER (continued)**

3. Forward original to: Human Resources Division, One Police Plaza, Room 1010C, Attention: Supervisory Assignment Board, within seven days of receipt from member concerned.

**HUMAN RESOURCES DIVSION**

4. Acknowledge **CAREER PROGRAM APPLICATION FOR TRANSFER OF SERGEANT/LIEUTENANT** was received by contacting uniformed member of the service via Department email or phone.
5. Schedule candidates to appear before the Supervisory Assignment Board.
6. Maintain pool of available candidates and make it available to bureau chief concerned.
   a. Contact Commanding Officer of member concerned, if recommendation is not received within ten days.

**SUPERVISORY ASSIGNMENT BOARD**

7. Interview each candidate.
8. Determine eligibility of candidate for assignment.

***ADDITIONAL DATA***

*After being approved by the Supervisory Assignment Board, a successful candidate may also be interviewed by an executive assigned to the Internal Affairs Bureau, Detective Bureau, Counterterrorism Division, or Intelligence Division. Each bureau may conduct its own screening process to determine a candidate's suitability for assignment to that particular bureau.*

*However, the Internal Affairs Bureau will have the first selection to fill its vacancies from among all supervisors approved by the Supervisory Assignment Board. A candidate must accept assignment to the Internal Affairs Bureau if selected.*

*Those individuals who are selected by the Internal Affairs Bureau will be expected to complete a minimum of two years with the Internal Affairs Bureau. After completion of two years, a supervisor who wishes to transfer to the Detective Bureau, or other specialized assignment (e.g., Intelligence Division, specialized patrol unit, etc.) may request transfer to the assignment of preference. This request will be made to the Chief of Personnel. All sergeants and lieutenants who have fulfilled their two year obligation in the Internal Affairs Bureau and who have requested reassignment will be given priority consideration for such an assignment.*

*If the Internal Affairs Bureau is unable to fill supervisory vacancies from the available pool of candidates, they may request volunteers from the Detective Bureau, Counterterrorism Division, or the Intelligence Division.*

*The Detective Bureau, Counterterrorism Division, and Intelligence Division will select new sergeants and lieutenants from:*

1. *Those who have completed their two year commitment to the Internal Affairs Bureau and have requested an assignment to the Detective Bureau, Counterterrorism Division, or Intelligence Division.*
2. *Those who been approved by the Supervisory Assignment Board and have not been selected for assignment to the Internal Affairs Bureau.*

***ADDITIONAL DATA (continued)***

*The career path for sergeants and lieutenants will not prevent supervisors from requesting a transfer for other reasons utilizing the current transfer process (see A.G. 329-12, "Uniformed Members of the Service - Transfer Procedure"). All such requests will be considered on their individual merits, and on the needs of the Department. In addition, this program will not prevent this Department from making transfers to fill special needs or utilizing special talents of individual supervisors for specific assignments. The Department absolutely retains its managerial prerogatives. The Career Path does not limit or change this Department's right or managerial prerogatives to assign and promote police personnel.*

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# ADMINISTRATIVE GUIDE

| Section: Career Development | | Procedure No: 329-15 |
|---|---|---|
| **CAREER ADVANCEMENT REVIEW BOARD** | | |
| DATE EFFECTIVE: 09/11/26 | LAST REVISION: R.O. 81 | PAGE: 1 of 2 |

**PURPOSE** To interview uniformed members of the service eligible for civil service promotion whose performance and record require further review.

**DEFINITIONS** The Career Advancement Review Board (CARB) - A three-member review committee consisting of two permanent members, the Chief of Personnel (Chairperson) and the Commanding Officer, Professional Standards, and a rotating Bureau Chief, other than the Chief of Internal Affairs.

**PROCEDURE** When a uniformed member of the service becomes eligible for civil service promotion:

**PERFORMANCE ANALYSIS UNIT**

1. Coordinate with the Uniform Advancement Group in conducting requisite Department performance and record checks on all uniformed members of the service eligible for civil service promotion.
2. Evaluate records for indicators and determine if results necessitate appearance before the CARB.
   a. Member must be on full-duty or in position limitation status in order to appear before the CARB.
   b. Members with pending Charges and Specifications, or on Dismissal Probation, should not appear before the CARB, except in extenuating circumstances as determined by the Commanding Officer, Professional Standards, including but not limited to:
      (1) Members likely to satisfactorily complete the period of Dismissal Probation prior to the anticipated promotion date,
      (2) Charges and Specifications likely to by adjudicated prior to the anticipated promotion date and/or likely penalty will not ordinarily trigger the CARB interview.
3. Coordinate the CARB interview.
4. Inform the member that recording the interview is not allowed.

**CAREER ADVANCEMENT REVIEW BOARD**

5. Conduct interview with candidate.
6. Forward recommendation to the Performance Analysis Unit.

**PERFORMANCE ANALYSIS UNIT**

7. Prepare written report on **Typed Letterhead** including recommendation from CARB, and forward to the Police Commissioner, through channels.
8. Notify the Uniform Advancement Group of the Police Commissioner's decision regarding a candidate's eligibility for promotion.
9. Notify candidate of the Police Commissioner's decision.

***ADDITIONAL DATA***

*A uniformed member of the service who meets the following criteria **MUST** appear before the CARB:*

*a. Guilty of Charges and Specifications and received a penalty that included Dismissal Probation within the last seven years (calculated from the date the penalty was approved by the Police Commissioner),*

*b. Guilty of Charges and Specifications and received a penalty that included a forfeiture of more than twenty penalty days within the last five years (calculated from the date the penalty was approved by the Police Commissioner),*

*c. Guilty of Charges and Specifications or issued a Schedule "B" or "C" Command Discipline for failure to supervise or insubordination within the last three years (calculated from the date the penalty was approved by the Police Commissioner or adjudicated respectively),*

*d. Guilty of two or more sets of Charges and Specifications within the last five years (calculated from the date the penalty for the most recent Charges and Specifications was approved by the Police Commissioner), regardless of penalty imposed,*

*e. Received an overall rating of "Below Competent," "Needs Improvement" or "unsatisfactory," depending upon the rating instrument used, on an annual or interim Performance Evaluation within the last three calendar years,*

*f. Subject in a firearm discharge incident and the investigation concluded that the member violated Department guidelines related to the handling and/or discharge of the firearm, regardless of penalty imposed,*

*g. Any other circumstance, at the discretion of the Commanding Officer, Professional Standards, that warrants a uniformed member of the service to appear before the CARB.*

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# ADMINISTRATIVE GUIDE

| Section: Career Development | | Procedure No: 329-16 |
|---|---|---|
| **DISCRETIONARY PROMOTION PROCESS FOR DESIGNATED INVESTIGATIVE PERSONNEL** | | |
| DATE EFFECTIVE: 11/18/21 | LAST REVISION: I.O. 110 | PAGE: 1 of 2 |

**PURPOSE** To establish a formal system for reviewing qualifications and recommending discretionary promotions to detective first grade, detective second grade, sergeant (supervisor detective squad), and lieutenant (commander detective squad).

**SCOPE** Candidates for the above designations will be evaluated based upon the following criteria: nature of assignment, types of cases investigated, arrest activity, clearance rate, past performance evaluations, disciplinary record, professional appearance, sick record, overall experience, educational achievement, supervisory ability (if appropriate), and any other criteria deemed appropriate by the bureau chief. Nothing in this procedure is intended to limit the inherent authority of the Police Commissioner to make such discretionary promotions as deemed appropriate.

**PROCEDURE** Upon notification to recommend qualified uniformed members of the service for promotion to the above designations:

**COMMANDING OFFICER**

1. Submit request for <u>each</u> candidate recommended for promotion on **Typed Letterhead** (through channels) addressed to bureau chief concerned.
   a. **Typed Letterhead** will include reasons recommending promotion and result of last three evaluations.

***NOTE*** *Each recommendation for promotion <u>must</u> address and assess the specific criteria listed in the "SCOPE" statement above, and provide specific points of reference which demonstrate the merits of the recommendation.*

2. Forward recommendations prepared in step 1, above, with a covering **Typed Letterhead** listing candidates in prioritized order to intermediate level commanders.
   a. Intermediate level commanders may consult with candidate's commanding officers prior to forwarding consolidated list in prioritized order by endorsement, to borough commander/counterpart.

**BOROUGH COMMANDER/ COUNTERPART**

3. Review documentation on candidates, and consult with intermediate level commanders, as necessary.

***NOTE*** *If borough commander/counterpart concludes that a candidate should be removed from consideration or added for consideration, indicate such in writing, setting forth the basis for any such recommendation, to the bureau chief concerned and the candidate's commanding officer.*

4. Forward list of candidates and all supporting documentation by endorsement, to bureau chief/counterpart concerned.

**BUREAU CHIEF/ COUNTERPART (continued)**

5. Review recommendations and documentation and consult with intermediate level commanders, as necessary.
6. Forward list of candidates and all supporting documentation by endorsement to First Deputy Commissioner, through channels.

**FIRST DEPUTY COMMISSIONER**

7. Review list of candidates recommended. Forward appropriate candidates' names by endorsement to Chief of Personnel.

**CHIEF OF PERSONNEL**

8. Verify duty status and conduct background checks of candidates.
9. Forward list of candidates, by endorsement to the First Deputy Commissioner.

**FIRST DEPUTY COMMISSIONER**

10. Review list of candidates and results of background checks, and convene Promotion Advisory Board.
    a. The Board will consider such recommendations and supporting documentation, as the First Deputy Commissioner deems appropriate.
11. Forward final list of candidates to the Police Commissioner.

***NOTE*** *The First Deputy Commissioner will consult with appropriate units, such as the Office of Equity and Inclusion and the Internal Affairs Bureau, as necessary, before forwarding the list to the Police Commissioner.*

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# ADMINISTRATIVE GUIDE

| Section: Career Development | | Procedure No: 329-17 |
|---|---|---|
| **SPECIAL ASSIGNMENT RECOMMENDATION** | | |
| DATE EFFECTIVE: 11/18/21 | LAST REVISION: I.O. 99 | PAGE: 1 of 1 |

**PURPOSE** To recommend uniformed members of the service for special assignment designation.

**PROCEDURE** When recommending a member for special assignment designation:

**COMMANDING OFFICER**

1. Prepare a report on **Typed Letterhead**, including:
   a. Character and fitness for position
   b. Length of time supervisor has known member and in what capacity
   c. Degree of knowledge supervisor has pertaining to member recommended
   d. Results of Department records check
2. Forward report, through channels to the First Deputy Commissioner.

***NOTE*** *Commanding officers and supervisors making recommendations shall be held accountable for the appropriateness and soundness of their judgments.*

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# ADMINISTRATIVE GUIDE

| Section: Career Development | | Procedure No: 329-18 |
|---|---|---|
| **TEMPORARY ASSIGNMENTS** | | |
| DATE EFFECTIVE: 11/18/21 | LAST REVISION: I.O. 110 | PAGE: 1 of 1 |

**PURPOSE** To assign a member of the service on a temporary basis to another command.

**PROCEDURE** When necessary to request the temporary assignment of a member of the service:

**REQUESTING COMMANDING OFFICER**

1. Forward **REQUEST FOR PERSONNEL (PD406-040)** to the First Deputy Commissioner.
   a. Include reason for assignment, and number of days member is requested.
2. Return temporarily assigned member to permanent command on designated completion date.
   a. Notify commanding officer of permanent command.

**COMMANDING OFFICER OF TEMPORARY COMMAND**

3. Forward new **REQUEST FOR PERSONNEL** to the First Deputy Commissioner ten days prior to expiration of temporary assignment, if renewal is necessary.
   a. Include in request for renewal:
      (1) Date of original assignment
      (2) Personnel Order number
      (3) Necessity for extension of assignment

**COMMANDING OFFICER OF PERMANENT COMMAND**

4. Enter details of temporary assignment on member's **FORCE RECORD (PD406-143)**.
5. Be responsible for member's return upon expiration of temporary assignment.

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# ADMINISTRATIVE GUIDE

| Section: Career Development | | Procedure No: 329-19 |
|---|---|---|
| **FINEST IDEAS PROGRAM** | | |
| DATE EFFECTIVE: 11/18/21 | LAST REVISION: I.O.110 | PAGE: 1 of 1 |

**PURPOSE** To improve police operations, public service, community relations, working conditions, and/or safety.

**DEFINITION** FINEST IDEAS – An employee suggestion program within the Police Department, wherein members of the service can electronically submit any proposal that improves some aspect of police operations, public service, community relations, working conditions, and/or safety. A proposal, if adopted, could result in substantial savings in time, money, manpower, equipment and/or the elimination of waste.

**PROCEDURE** When submitting an idea:

**MEMBER OF THE SERVICE**

1. Prepare suggestion and submit electronically.
   a. The Finest Ideas Program is found in the Department Forms section of the Department intranet.

***ADDITIONAL DATA***

*The Project Management Office will acknowledge receipt of the idea to the submitting member of the service, along with an additional communication indicating approval, disapproval, or whether the idea was forwarded to the appropriate unit or outside agency for further review and evaluation, as applicable.*

*Any idea related to the following matters is not acceptable: salary schedules, job classifications, taxes for revenue purposes, time and leave regulations, acquisition of property for public purposes, routine maintenance requests, and allegations of corruption or official misconduct.*

*Members of the service who hold positions within the Finest Ideas Program, or where their regular duties include responsibility for suggesting changes and improvements, are limited in their participation in the Program. Finest Ideas by members of the service in the aforementioned categories may be made and accepted, as long as the idea is related to other than their own immediate responsibilities.*

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# ADMINISTRATIVE GUIDE

| Section: Career Development | | Procedure No: 329-20 |
|---|---|---|
| **SEPARATION FROM SERVICE - PERSONNEL RECORDS** | | |
| DATE EFFECTIVE: 09/11/26 | LAST REVISION: R.O. 81 | PAGE: 1 of 1 |

**PURPOSE** To maintain personnel records of members separated from Department.

**PROCEDURE** When a member of the service retires, resigns, dies, is dismissed or terminated:

**CLERICAL MEMBER**

1. Complete caption "Separation From Department" on **FORCE RECORD (PD406-143)**.
2. Prepare **PERSONNEL RECORDS TRANSMITTAL (PD449-151)** and forward records listed (except Arrest Report Folder) to Human Resources Division.

**HUMAN RESOURCES DIVISION**

3. File in Personal Folder.

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# ADMINISTRATIVE GUIDE

| Section: Career Development | | Procedure No: 329-21 |
|---|---|---|
| **POLICE COMMISSIONER'S EXEMPLARY PERFORMANCE AWARD** | | |
| DATE EFFECTIVE: 11/18/21 | LAST REVISION: I.O. 110 | PAGE: 1 of 1 |

**PURPOSE** To provide the Police Commissioner the opportunity to grant a member of the service a Police Commissioner's Exemplary Performance Award that equates to one full tour excusal, based upon outstanding performance.

**PROCEDURE** When the Police Commissioner determines that a member of the service has performed exemplary duty:

**DESIGNATED MEMBER OF THE POLICE COMMISSIONER'S OFFICE**

1. Obtain the following information of member of the service concerned:
   a. Name
   b. Rank
   c. Shield Number
   d. Tax Registry Number
   e. Reference Number
   f. Command.
2. Prepare a report to the member's commanding officer authorizing the granting of a Police Commissioner's Exemplary Performance Award.

**COMMANDING OFFICER CONCERNED**

3. Personally apprise the member regarding the contents of the communication.
4. Provide copies of the report as follows:
   a. Original copy to be placed into the member's personnel file
   b. One copy to the member
   c. One copy to the command Time Records Personnel.

**TIME RECORDS PERSONNEL**

5. Enter into CityTime system, using event code (4434) (ACCRUAL OF POLICE COMMISSIONER'S EXEMPLARY PERFORMANCE AWARD DAY) to accrue the day, as the Police Commissioner's Exemplary Performance Award is granted.
6. Select "Leave Type" "Other", to deduct the day, in CityTime system, reason "POLICE COMMISSIONER'S EXEMPLARY PERFORMANCE AWARD DAY" as the Police Commissioner's Exemplary Performance Award is used.

***ADDITIONAL DATA*** *All awards MUST be utilized as a full day excusal. There is no limit to the number of days a member may be awarded and accrue. However, the member MUST utilize the awarded time within one year after it has been entered into the members* ***Time Record Folder (TRF)****.*

# ADMINISTRATIVE GUIDE

| Section: Career Development | | Procedure No: 329-22 |
|---|---|---|
| **EDUCATIONAL ACHIEVEMENT CITATION** | | |
| DATE EFFECTIVE: 11/18/21 | LAST REVISION: I.O. 110 | PAGE: 1 of 1 |

**PURPOSE** To award Department recognition to members of the service who continue their education beyond high school.

**DEFINITION** EDUCATION ACHIEVEMENT CITATION - Awarded to members who have completed 64 credits towards a Baccalaureate Degree, or who have been awarded an Associate Degree.

BACCALAUREATE EDUCATIONAL ACHIEVEMENT CITATION - Awarded to members who have earned a Baccalaureate Degree.

MASTERS EDUCATIONAL ACHIEVEMENT CITATION - Awarded to members who have earned a Master's Degree.

***NOTE*** *Credits and degrees must be granted by an institution accredited by a regional accrediting association or registered as a degree granting institution by the New York State Department of Education.*

**PROCEDURE** When a member of the service is qualified to receive an Educational Achievement Citation:

**MEMBER OF THE SERVICE**

1. Prepare request on two copies of **Typed Letterhead**, stating:
   a. Citation requested
   b. School granting credits or degree
   c. Year degree awarded
2. Forward request to Candidate Assessment Division's Education, Training, Opportunities and Tracking, with an official transcript.

# ADMINISTRATIVE GUIDE

| Section: Career Development | | Procedure No: 329-23 |
|---|---|---|
| **CIVILIAN RECOGNITION REPORT** | | |
| DATE EFFECTIVE: 11/18/21 | LAST REVISION: I.O. 99 | PAGE: 1 of 2 |

**PURPOSE** To recognize a member of the service (uniformed or civilian) when praised by a civilian for performance of duty worthy of recognition.

**PROCEDURE** When a civilian is present at a Department facility or a letter or telephone call is received from a civilian recognizing a member of the service for performance of duty worthy of recognition.

IF CIVILIAN APPEARS AT DEPARTMENT FACILITY TO PRAISE MEMBER OF THE SERVICE:

**MEMBER OF THE SERVICE RECEIVING**

1. Request person prepare original copy of form **CIVILIAN RECOGNITION REPORT (PD439-1516)** in own handwriting.
   a. Assist person with preparing form, if necessary.

**CLERICAL MEMBER**

2. Type remaining copies of **REPORT**.

**COMMANDING OFFICER/ SUPERVISORY HEAD**

3. Review **REPORT** and sign.
4. Have **REPORT** distributed as per instructions.

IF RECEIVED BY MAIL:

**MEMBER OF THE SERVICE RECEIVING**

5. Type **CIVILIAN RECOGNITION REPORT** (except "DETAILS" section).
   a. Attach letter received to original copy of **REPORT.**
   b. Attach photocopy of letter to each remaining copy of **REPORT**.

**COMMANDING OFFICER / SUPERVISORY HEAD**

6. Review **REPORT** and sign.
7. Have **REPORT** distributed as per instructions.

IF RECEIVED BY TELEPHONE:

**MEMBER OF THE SERVICE RECEIVING**

8. Prepare original copy of **CIVILIAN RECOGNITION REPORT**, in own handwriting.

***NOTE*** *Transfer call to desk officer or designee if call received at telephone switchboard.*

**CLERICAL MEMBER**

9. Type remaining copies of **REPORT.**

**COMMANDING OFFICER/ SUPERVISORY HEAD**

10. Review **REPORT** and sign.
11. Have **REPORT** distributed as per instructions.

***ADDITIONAL DATA***

*In all instances, the commanding officer/supervisory head will ensure that the member of the service concerned is made aware of the recognition. Announcement should be made at outgoing roll call, if possible.*

*If the person is present at a Department facility, other than where the member of the service is assigned or if reported by telephone, the **CIVILIAN RECOGNITION REPORT** will be prepared as if the member was assigned to that command. All copies, except blue copy, will be forwarded to member's parent command. If recognition is received in writing, the letter will be forwarded to member's command for further processing.*

*A member of the service, (uniformed or civilian) may submit a **CIVILIAN RECOGNITION REPORT** regarding another member of the service and it will be processed in the same manner as if submitted by a civilian.*

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# ADMINISTRATIVE GUIDE

| Section: Career Development | | Procedure No: 329-24 |
|---|---|---|
| **POLICE OFFICER/CIVILIAN MEMBER OF THE SERVICE AWARD PROGRAM** | | |
| DATE EFFECTIVE: 11/18/21 | LAST REVISION: I.O. 110 | PAGE: 1 of 2 |

**PURPOSE** To recognize outstanding service and excellent performance of duty by police officers and civilian members of the service.

**SCOPE** A police officer/civilian award program will be maintained in all Patrol Services Bureau, Housing Bureau and Transportation Bureau commands.

**PROCEDURE** When a police officer is recommended for "Police Officer of the Month" and a civilian member for "Civilian Member of the Service Award".

**COMMANDING OFFICER**

1. Select a police officer each month based on nominations submitted by the command's patrol supervisors.
   a. Selected police officer should have demonstrated one or more of the following qualities:
      (1) Performed an act of exceptional bravery
      (2) Created a substantial improvement to the quality of life in the community
      (3) Contributed a substantial improvement to the command
      (4) Performed an act that contributed to, or actually saved a life or contributed to a lifesaving act
      (5) Overcame a personal hardship to serve as a model to the command/community
      (6) Consistently performs duties in a professional manner, and has been a positive role model for peers.

***NOTE*** *A **CIVILIAN RECOGNITION REPORT (PD439-1516)** which is prepared to document praiseworthy service performed by a member of the service may also be used as a basis for selection of the "Police Officer of the Month" (see A.G. 329-23, Civilian Recognition Report).*

**COMMANDING OFFICER/ OPERATIONS COORDINATOR/ PRINCIPAL ADMINISTRATIVE ASSOCIATE OR DESIGNEE**

2. Meet quarterly to select a civilian member who will be the recipient of the "Civilian Member of the Service Award."
   a. Selected civilian member should have demonstrated one or more of the following qualities:
      (1) Conspicuous excellence in service to the community
      (2) Contributed a substantial improvement to the command
      (3) Motivated others towards excellence, by example
      (4) Overcame a personal hardship to serve as a model to the command/community
      (5) Maintained a professional appearance and demeanor
      (6) Consistently performs duties in a professional manner and has been a role model for peers.

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**COMMANDING OFFICER**

3. Have award certificates obtained through each borough command and present to each recipient.
4. Arrange to have the recipient's photo taken at the Photographic Unit, 1 Police Plaza.
   a. Have photos prominently displayed at the command.

***ADDITIONAL DATA***

*Commanding officers in units that have fewer personnel than a typical precinct, police service area or transit district (i.e., Aviation Unit, Mounted Unit, Highway District, etc.) will use discretion in recognizing their personnel. However, a police officer will be chosen not less than every quarter and a civilian member of the service not less than twice a year.*

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# ADMINISTRATIVE GUIDE

| Section: Career Development | | Procedure No: 329-25 |
|---|---|---|
| **RISK ASSESSMENT INFORMATION LIABILITY SYSTEM (RAILS)** | | |
| DATE EFFECTIVE: 05/03/24 | LAST REVISION: R.O. 24 | PAGE: 1 of 2 |

**PURPOSE** To provide commanding officers with an effective means to track the behavior and assess the performance of uniformed and civilian members of the service.

**PROCEDURE** When a commanding officer uses the Risk Assessment Information Liability System (RAILS) to track and assess the performance of a uniformed or civilian member of the service:

**COMMANDING OFFICER**

1. Log into RAILS application on a regular basis.
2. Once signed into RAILS, acknowledge, all unacknowledged alerts.
   a. Review the member of the service's profile report.
   b. Verify the accuracy of the information regarding the member of the service, including their assignment.
   c. Select the appropriate type of acknowledgment.
   d. Enter details of the acknowledgment in the "Notes" section, if applicable.
3. Complete plan of action within 30 days of acknowledgment for the member of the service, if appropriate.
   a. Describe all relevant actions taken, and planned, regarding member of the service.
   b. Provide further details, where appropriate (e.g., training referred for member of the service to attend, etc.).
   c. Recommend, whether or not the member of the service should be reassigned.
   d. Recommend, whether or not the member of the service should be placed on performance monitoring.
4. Forward plan of action to the Commanding Officer, Performance Analysis Unit.
5. Confer with the Performance Analysis Unit for the following alerts:
   a. Uniformed member of the service is placed on modified assignment
   b. Finalized administrative transfer
   c. Performance Evaluation with overall rating of 2.5 or below
   d. Guilty charges and specifications for unnecessary use of force
   e. Substantiated allegation of bias-based policing
   f. Dismissal probation.

**COMMANDING OFFICER, PERFORMANCE ANALYSIS UNIT**

6. Approve submitted plans of action or reply with revised plan within 10 business days of submission.

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***ADDITIONAL DATA*** *Commanding officers with questions regarding the submission of a plan of action should contact the Performance Analysis Unit at [redacted]. Commanding officers with questions regarding performance monitoring should refer to the Supervisor Monitoring and Assistance Programs Guide available via the Department Intranet.*

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# ADMINISTRATIVE GUIDE

| Section: Career Development | | Procedure No: 329-26 |
|---|---|---|
| **REFERENCE LETTER** | | |
| DATE EFFECTIVE: 09/11/26 | LAST REVISION: R.O. 81 | PAGE: 1 of 1 |

**PURPOSE** To provide guidance to supervisory members of the service who are requested to provide a reference letter regarding a subordinate member of the service or intern.

**PROCEDURE** When a supervisor is requested to provide a letter of reference:

**SUPERVISOR**

1. Refer matter to commanding officer.

**COMMANDING OFFICER**

2. Prepare or designate a supervisor to prepare for your signature, a reference letter on **OFFICIAL LETTERHEAD (PD158-151)**, or authorize the supervisor to respond to the request.

**COMMANDING OFFICER/ DESIGNATED SUPERVISOR**

3. Address reference letter to an individual or entity (i.e., blanket letters or letters addressed to "To Whom it May Concern" are not authorized).
4. Reference the member's or intern's functions and duties, and how that individual performed those duties.
   a. Offering opinions about an individual's character are prohibited.
5. File a copy of the reference letter in the member's/intern's personnel folder.
   a. File a copy of reference letter in commanding officer's/supervisor's personnel folder.

***ADDITIONAL DATA***

*The New York City Conflicts of Interest Law prohibits City employees from using **OFFICIAL LETTERHEAD** for any personal purpose. A City employee may only write a reference letter on **OFFICIAL LETTERHEAD** for a fellow City employee or intern where the letter writer is the supervisor of that City employee or is otherwise authorized by that City agency's leadership to write the reference letter.*

*This procedure does not apply when a member of the service intends to testify or make a statement before a governmental or private agency in an official capacity or provide character, opinion or expert testimony. Under those circumstances, P.G. 211-09, "Appearances by Members of the Service Before Governmental Agencies or Private Organizations" must be adhered to.*

*Requests for verification of employment, salary, status, etc., and responses to "information subpoenas" should still be forwarded to the Off Duty Employment and Verification Group (Human Resources Division) for response.*

*Any questions concerning reference letters can be directed to the Department's Board of Ethics, by contacting the Legal Bureau.*

# ADMINISTRATIVE GUIDE

| Section: Career Development | | Procedure No: 329-27 |
|---|---|---|
| **DISCRETIONARY PROMOTION PROCESS FOR UNIFORMED EXECUTIVES** | | |
| DATE EFFECTIVE: 03/17/25 | LAST REVISION: R.O.12 | PAGE: 1 of 4 |

**PURPOSE** To provide transparency and support for the professional development of uniformed executive members of the service, and to fill vacancies for any uniformed senior position in accordance with Mayoral Executive Order 67 and New York City Council Resolution No. 1584-2021.

**DEFINITIONS** UNIFORMED SENIOR POSITION - Any designation above the rank of captain.

EXECUTIVE ORDER 67 - An Order issued by the Mayor of New York City on March 31, 2021, that mandates that the Department, before making any discretionary designations to fill any senior position, must conduct a meaningful interview of at least one qualified applicant for each open position who is of a race that is underrepresented in senior positions at the NYPD.

NEW YORK CITY COUNCIL RESOLUTION NO. 1584-2021 - Legislation that adopted and codified the New York City Police Reform and Reinvention Collaborative Plan, prepared by the City in compliance with New York State Executive Order 203 entitled, "Police Reform and Reinvention Collaborative."

EXECUTIVE DISCRETIONARY PROMOTION REVIEW COMMITTEE - A panel convened by the Police Commissioner when considering candidates for discretionary promotion. The panel shall consist of representatives of the following: Police Commissioner, First Deputy Commissioner, and Chief of Department.

EXECUTIVE ORDER 67 COMPLIANCE COMMITTEE - A panel of executive members that will periodically review Department promotions to uniformed senior positions to ensure compliance with Executive Order 67 and make recommendations regarding promotion policy/practice, as needed. The panel shall consist of representatives of the following: Commanding Officer, Office of Equal Employment Opportunity, Chief of Personnel, and Deputy Commissioner, Legal Matters.

QUALIFIED CANDIDATE - All uniformed executive members of the service in the rank of captain and above seeking to be considered for promotion, who have sufficient time in rank and who are recommended for promotion by the candidate's Deputy Commissioner or Bureau Chief. All qualified candidates in the rank of captain and above will be interviewed by the Executive Discretionary Promotion Review Committee.

**PROCEDURE** To identify qualified candidates to fill vacancies in a uniformed senior position:

**FIRST DEPUTY COMMISSIONER**

1. Transmit an Administrative Bulletin annually to all uniformed executives, informing them that the application period for discretionary promotion will begin on a specified date, at least two weeks prior to the opening of the application period.
   a. Application period will remain open for at least 28 calendar days.
2. Conduct analysis of historical attrition to estimate anticipated number of vacancies in each rank for the upcoming year.
   a. Determine anticipated number of vacancies across bureaus as necessary.

**ELIGIBLE UNIFORMED MEMBER OF THE SERVICE**

3. Submit a resume and cover letter during application period via the Executive Advancement Portal, which is located on the Department Intranet.

***NOTE*** *Uniformed members of the service in the rank of captain, deputy inspector, and inspector are required to submit their application via the Executive Advancement Portal found on the Department Intranet. Uniformed members of the service in the rank of deputy chief are not required to submit an application, but will be interviewed by the Executive Discretionary Promotion Review Committee when being considered for promotion.*

**FIRST DEPUTY COMMISSIONER**

4. Collect submitted applications from Executive Advancement Portal.
5. Submit report on **Typed Letterhead** to each bureau, indicating the number of executives that bureau may recommend for promotion in each rank, a list of executives that applied and meet eligibility requirements, and a copy of each application (consisting of member's resume and cover letter).

**DEPUTY COMMISSIONER /BUREAU CHIEF CONCERNED**

6. Review submitted applications, considering:
   a. Current assignment,
   b. Appointment Date,
   c. Time in rank,
   d. Performance Evaluations,
   e. Assignment history,
   f. Education,
   g. Sick record,
   h. Department recognitions,
   i. Training history,
   j. Demonstrated commitment to the mission and values of the Department,
   k. Evidence of ethical and responsible leadership qualities,
   l. Disciplinary history,
   m. Substantiated complaints and civil judgments against subordinates during relevant period of supervision, as appropriate, and/or
   n. Other criteria as indicated by the Deputy Commissioner or Bureau Chief.

**DEPUTY COMMISSIONER /BUREAU CHIEF CONCERNED (continued)**

7. Submit report on **Typed Letterhead** containing a list of uniformed members recommended for promotion for overhead Bureau approval (if applicable) and then to the First Deputy Commissioner, through channels.
   a. If requested, submit a report on **Typed Letterhead** containing names of alternate members for consideration for promotion, when necessary.
8. Inform all qualified candidates of positive or negative recommendations for promotion in person and provide constructive feedback if member of the service was not recommended.
   a. Submit a report on **Typed Letterhead** to the First Deputy Commissioner indicating when member of the service was conferred with.

**FIRST DEPUTY COMMISSIONER**

9. Submit a consolidated report on **Typed Letterhead** containing a list of qualified candidates approved for promotion to the Police Commissioner, through channels.

**COMMANDING OFFICER, POLICE COMMISSIONER'S OFFICE**

10. Submit approved recommendations of qualified candidates for review of their performance and disciplinary history on **Typed Letterhead** to the following:
    a. Deputy Commissioner, Legal Matters,
    b. Chief of Internal Affairs,
    c. Commanding Officer, Office of Equal Employment Opportunity, and
    d. Chief of Risk Management.

**DEPUTY COMMISSIONER, LEGAL MATTERS/ CHIEF OF INTERNAL AFFAIRS/ COMMANDING OFFICER, OFFICE OF EQUAL EMPLOYMENT OPPORTUNITY/ CHIEF OF RISK MANAGEMENT**

11. Direct each candidate's performance and disciplinary history to be reviewed, including:
    a. Civilian Complaint Review Board allegations and dispositions,
    b. Equal Employment Opportunity allegations and dispositions,
    c. Charges and specification and dispositions (IAB),
    d. Career Advancement Review Board history,
    e. Early intervention,
    f. Performance monitoring,
    g. Civil litigation history,
    h. Adverse credibility determinations, and
    i. Firearms discharges.
12. Submit findings of review to Police Commissioner.

**POLICE COMMISSIONER**

13. Review and finalize list of candidates and convene Executive Discretionary Promotion Review Committee.

**EXECUTIVE DISCRETIONARY PROMOTION REVIEW COMMITTEE**

14. Review finalized list of applicants containing information submitted by the Deputy Commissioner, Legal Matters, Commanding Officer, Office of Equal Employment Opportunity, Chief of Internal Affairs, and Chief of Risk Management.
15. Conduct interviews of qualified candidates each year in accordance with Mayoral Executive Order 67.
16. Select candidates to recommend for promotion and submit selection to Police Commissioner with all relevant information.
17. Notify candidates of recommendation via report on **Typed Letterhead**.
18. Submit information about interviews conducted and candidates selected to Commanding Officer, Office of Equal Employment Opportunity

**EXECUTIVE ORDER 67 COMPLIANCE COMMITTEE**

19. Meet periodically to review demographics of recent promotions and qualified candidates interviewed for promotion.
20. Ensure interviews were conducted in accordance with Mayoral Executive Order 67 and provide a demographics report, including recommendations, on **Typed Letterhead** to the Police Commissioner.

***ADDITIONAL DATA***

*Absent exigent circumstances, the Executive Discretionary Promotion Review Committee will convene as necessary, but at least once a year, to interview candidates recommended by Deputy Commissioners and Bureau Chiefs. The Police Commissioner retains the authority to promote any member of the service at any time based on the needs of the Department.*

*Assistant Chiefs and above will be assigned at the discretion of the Police Commissioner.*

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# ADMINISTRATIVE GUIDE

| Section: Career Development | | Procedure No: 329-28 |
|---|---|---|
| **EARLY INTERVENTION PROGRAM** | | |
| DATE EFFECTIVE: 03/24/25 | LAST REVISION: R.O. 14 | PAGE: 1 of 3 |

**PURPOSE** To utilize risk management strategies to intervene at the earliest possible opportunity in order to support employee wellness and professional development by attempting to identify and mitigate factors that lead to negative performance issues, employee discipline, or negative interactions with the public. The Early Intervention Program is a non-disciplinary program and is not punitive in nature.

**PROCEDURE** When the Professional Standards Division has determined a member of the service has crossed a designated threshold or is otherwise referred for review for potential intervention:

**MEMBER OF THE SERVICE, PROFESSIONAL STANDARDS DIVISION**

1. Prepare a report on **Typed Letterhead** for member of the service, including information regarding their tenure, past and current assignments, history of CCRB or IAB investigations, history of arrests made, and whether they have previously been evaluated for potential early intervention.
2. Forward **Typed Letterhead** to member of the service's commanding officer.

**COMMANDING OFFICER, MEMBER CONCERNED**

3. Review **Typed Letterhead** and all relevant paperwork, including available body-worn camera (BWC) videos, regarding thresholds member of the service crossed.
4. Review 10 recent BWC videos recorded by member of the service that are unrelated to thresholds crossed and complete **PROFESSIONAL STANDARDS DIVISION EARLY INTERVENTION COMMANDING OFFICER RECOMMENDATION (PD439-180)**.
5. Indicate what interventions, if any, are appropriate on **PROFESSIONAL STANDARDS DIVISION EARLY INTERVENTION COMMANDING OFFICER RECOMMENDATION** based upon:
   a. The totality of your experience with, and knowledge of, member of the service,
   b. The member of the service's Performance Evaluations and training record,
   c. The member of the service's Central Personnel Index (CPI) and any history of monitoring or discipline,
   d. Any medals, awards, Department recognition or commendation letters received by member of the service, and
   e. An overview of what interventions, if any, were previously imposed at the command level for member of the service.
6. Forward **PROFESSIONAL STANDARDS DIVISION EARLY INTERVENTION COMMANDING OFFICER RECOMMENDATION** to Professional Standards Division within five business days of receiving **Typed Letterhead**.

**MEMBER OF THE SERVICE, PROFESSIONAL STANDARDS DIVISION**

7. Prepare recommendation detailing what interventions, if any, are appropriate based on information on **Typed Letterhead** and commanding officer's recommendation.
8. Forward updated **Typed Letterhead**, including the commanding officer's recommendation, and Professional Standards Division's recommendation to Early Intervention Committee.

**EARLY INTERVENTION COMMITTEE**

9. Determine what interventions, if any, are appropriate for member of the service during committee meeting. Interventions may include, but are not limited to, the following:
   a. Training,
   b. Mentoring,
   c. Enhanced supervision,
   d. Further review of member of the service's BWC footage,
   e. Conferral with command or bureau leadership, and/or
   f. Change in assignment.
10. Notify the following when it is determined that referral is appropriate:
    a. Performance Analysis Unit, for assessment for monitoring,
    b. Medical Division's Behavioral Care and Support Section and Counseling Services Unit, for assessment and determination for fitness for duty,
    c. Health and Wellness Section, for assessment,
    d. Internal Affairs Bureau, for investigation of potential misconduct, and/or
    e. Any other internal unit or external agency deemed appropriate by the Committee.
11. Forward final Committee decision to Professional Standards Division.

**MEMBER OF THE SERVICE, PROFESSIONAL STANDARDS DIVISION**

12. Prepare **PROFESSIONAL STANDARDS DIVISION EARLY INTERVENTION COMMITTEE DECISION (PD439-121)** and include Early Intervention Committee's final decision.
13. Forward **PROFESSIONAL STANDARDS DIVISION EARLY INTERVENTION COMMITTEE DECISION** to member of the service's commanding officer within seven business days of the Early Intervention Committee's decision.

**COMMANDING OFFICER, MEMBER CONCERNED**

14. Complete appropriate section(s) of **PROFESSIONAL STANDARDS DIVISION EARLY INTERVENTION COMMITTEE DECISION** and detail implementation of Early Intervention Committee's decision.
15. Forward **PROFESSIONAL STANDARDS DIVISION EARLY INTERVENTION COMMITTEE DECISION** to Professional Standards Division within 30 days following its receipt.
16. Ensure information gathered and reviewed regarding member of the service is taken into account in their next performance evaluation, or if, and when, the member is being considered for a transfer or discretionary promotion.

**MEMBER OF THE SERVICE, PROFESSIONAL STANDARDS DIVISION**

17. Maintain record of recommendations and interventions.

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# ADMINISTRATIVE GUIDE

| Section: Medical, Health and Wellness | | Procedure No: 330-01 |
|---|---|---|
| **REGULAR SICK** | | |
| DATE EFFECTIVE: 11/16/22 | LAST REVISION: I.O. 112 | PAGE: 1 of 3 |

**PURPOSE** To notify the Department when a uniformed member of the service is unable to perform duty due to illness/injury, or ineligibility for administrative sick return.

**DEFINITIONS** REGULAR SICK – A sick excusal for a uniformed member of the service who is not eligible for, or declines administrative sick, which requires a visit to the Department surgeon. The uniformed member of the service is to report to assigned district surgeon at next regular office hours, EXCEPT when:

a. Member designated Chronic Absent – Category B, will report to the Medical Division, Special Medical District/Confidential Medical District at next regular office hours,
b. Member reporting sick on Friday or Saturday will report to Medical Division, Weekend Surgeon, at 1000 hours the following day,
c. Member unable to travel will remain at place of confinement and notify the sick desk supervisor.
d. Member with dental problems will be guided by the Sick Desk supervisor/member regarding reporting requirements, or
e. When directed otherwise by the Medical Division supervisor.

**PROCEDURE** When a uniformed member of the service is unable to perform duty due to illness, injury, or any other physical/psychological condition:

**UNIFORMED MEMBER OF THE SERVICE**

1. Notify Medical Division Sick Desk, direct to obtain sick serial number.
   a. Inform Medical Division Sick Desk of any change of address/location or telephone number, and
   b. Obtain name of Sick Desk member and record time notified.
2. Provide sick serial number to desk officer/supervisor at assigned command.
3. Remain at residence or authorized location, unless:
   a. Permission to leave is granted by Department surgeon or Sick Desk supervisor,
   b. Uniformed member is outside assigned tour of duty, or
   c. Uniformed member is on regular day off (RDO).
4. Do not leave residence or authorized location for entire sick occurrence without permission of Department surgeon or Sick Desk supervisor IF:
   a. Designated Chronic Absent Category A or B,
   b. On modified assignment,
   c. On dismissal probation,
   d. On suspension, and/or
   e. Department surgeon deems home confinement necessary.
5. Do not leave City or residence counties without approval of the Chief of Personnel.
   a. Make request through district surgeon, if necessary.

**UNIFORMED MEMBER OF THE SERVICE (continued)**

6. Report to Department surgeon at next office hours, as directed by Medical Division.
7. Comply with lawful order/instruction of supervisor, regardless of rank, dispatched by competent authority to visit member of the service on sick report.
8. Return to duty as directed by Department surgeon.

***NOTE*** *Uniformed members whose tours vary on a day-to-day basis will be confined to their residence, or authorized location, during the tour of duty they were scheduled to perform on the day that they reported sick. This tour of duty will become the uniformed member's tour for the duration of the sick occurrence.*

**DESK OFFICER/ SUPERVISOR**

9. Record pertinent information in **SICK LOG (PD429-143**) and Telephone Record.
10. Comply with *A.G. 330-04, "Notifying Court, Trial Room or Other Agencies When Member of the Service Reports Sick,"* if appropriate.
11. Make entry in Centralized Personnel Resource (CPR) System.
    a. Notify relieving desk officer/supervisor, if member is scheduled to perform duty with either of the next two platoons.
12. Notify Sick Desk supervisor, if special or unusual circumstances exist regarding uniformed member reporting sick (e.g., uniformed member reporting sick from out of state or out of country, etc.).
13. Notify Medical Division's Absence Control and Investigations Unit, if uniformed member is suspected of malingering.
14. Query Medical Division Sick Reporting System to ensure uniformed member who reported sick, is listed as being sick on sick report

**OPERATIONS COORDINATOR**

15. Access Medical Division Sick Reporting System, periodically, throughout tour, and ensure Department records are updated, as necessary

<u>UNIFORMED MEMBER OF THE SERVICE UNABLE TO VISIT DEPARTMENT SURGEON:</u>

**UNIFORMED MEMBER OF THE SERVICE**

16. Notify Sick Desk supervisor of inability to visit Department surgeon and be guided by instructions received.

***ADDITIONAL DATA*** *Although it is not necessary to report sick to request a limited capacity assignment from a Department surgeon, all uniformed members of the service, with the exception of those requesting pregnancy related position limitation status, must visit the Department surgeon prior to requesting such assignment.*

*Uniformed members of the service, who have not been classified as chronic absent, or who have not been referred for supervision, and who have any of the following medical conditions, as per the Department surgeon's diagnosis, will NOT be the subject of routine supervisory visits or telephone calls:*

***ADDITIONAL DATA (continued)***

*a. Heart condition*
*b. Broken limbs*
*c. Post surgical convalescence*
*d. Illnesses diagnosed by Department surgeon as likely to be of a duration in excess of six months, after conferral with the Supervising Chief Surgeon*
*e. Pregnancy.*

*The permission granted may be revoked at any time by the Commanding officer, Medical Division, or designee, upon appropriate notice to the member and the district surgeon concerned.*

*Uniformed members of the service on sick report from outside of the residence counties will be contacted on a weekly basis by their district surgeon.*

*Uniformed members of the service are not permitted to perform Paid Detail assignments while out on Regular Sick report. This includes when a uniformed member is outside their assigned tour of duty or on regular day off (RDO). Furthermore, uniformed members must notify the Paid Detail Unit as soon as it becomes apparent that they will not be able to appear at a scheduled assignment.*

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# ADMINISTRATIVE GUIDE

| Section: Medical, Health and Wellness | | Procedure No: 330-02 |
|---|---|---|
| **ADMINISTRATIVE SICK** | | |
| DATE EFFECTIVE: 04/26/23 | LAST REVISION: R.O. 17 | PAGE: 1 of 2 |

**PURPOSE** To notify the Department when a uniformed member of the service requests Administrative Sick excusal from duty.

**DEFINITIONS** ADMINISTRATIVE SICK - A sick excusal for one tour of duty, which does not require a visit to the Department surgeon. A request for Administrative Sick must be made at least two hours prior to the start of the tour for which the leave will be granted. A uniformed member of the service must report for duty on the next scheduled tour following the administrative excusal. However, if the sickness continues into the next day, the uniformed member of the service may request a second Administrative Sick day, at least two hours prior to the start of the next scheduled tour. The first and second Administrative Sick days will count as one sick occurrence. Administrative Sick is NOT authorized for:

a. Injuries,
b. Line of Duty injuries or illness,
c. Uniformed members of the service performing a voluntary exchange of tour (otherwise known as a "mutual"),
d. Uniformed members of the service designated Chronic Absent - Category B,
e. Dental problems,
f. Stress-related or other psychological conditions, or
g. Major illness, and/or,
h. When, in the judgment of the supervisor, it is inappropriate.

**UNIFORMED MEMBER OF THE SERVICE**

1. Notify desk officer/supervisor at assigned command by telephone, or in person, at least two hours before start of scheduled tour, and request Administrative Sick.
   a. Inform desk officer/supervisor of any pending arraignment, or scheduled appearance in court, Trial Room or any other governmental agency.

***NOTE*** *If command has no available supervisor or is otherwise closed at the time of requesting Administrative Sick, the member of the service will call the Medical Division Sick Desk supervisor to request Administrative Sick, and will notify their command when it reopens.*

**DESK OFFICER/ SUPERVISOR SICK DESK SUPERVISOR**

2. Conduct query of Medical Division Sick Reporting System and determine if member is eligible for Administrative Sick.
   a. Place uniformed member on Administrative Sick via Medical Division Sick Reporting System and provide sick serial number if member is eligible.
   b. Direct uniformed member to report regular sick, if determined to be ineligible for Administrative Sick.
3. Comply with *A.G. 330-04, "Notifying Court, Trial Room or Other Agencies When Member of the Service Reports Sick,"* if appropriate.

**UNIFORMED MEMBER OF THE SERVICE**

4. Remain at residence or other authorized location, unless:
   a. Permission to leave is granted by Department surgeon or Sick Desk supervisor,
   b. Outside assigned tour of duty,
   c. On regular day off (RDO).
5. Notify desk officer/supervisor at assigned command, (or Sick Desk supervisor if command is closed) at least two hours before next scheduled tour, if unable to report for duty due to continuation of illness.
   a. If it is necessary for the uniformed member to continue beyond the second Administrative Sick day, member will report regular sick and be guided by the Sick Desk.
      (1) Upon consolidation by Medical Division, this will count as one sick incident.
6. Do not leave City or residence counties without approval of the Chief of Personnel.
   a. Make request through district surgeon, if necessary.

***NOTE*** *Uniformed members whose tours vary on a day-to-day basis will be confined to their residence, or authorized location, during the tour of duty they were scheduled to perform on the day that they reported sick. This tour of duty will become the uniformed member's tour for the duration of the sick occurrence.*

**DESK OFFICER/ SUPERVISOR**

7. Record pertinent information in **SICK LOG (PD429-143**) and Telephone Record.
8. Make entry in Centralized Personnel Resource (CPR) System.
   a. Notify relieving desk officer/supervisor, if member is scheduled to perform duty with either of the next two platoons.
9. Notify Sick Desk supervisor, if special or unusual circumstances exist regarding uniformed member reporting sick (e.g., uniformed member reporting sick from out of state or out of country, etc.).
10. Notify Medical Division's Absence Control and Investigations Unit, if uniformed member is suspected of malingering.
11. Query Medical Division Sick Reporting System to ensure uniformed member who reported sick, is listed as being sick on sick report.

**OPERATIONS COORDINATOR**

12. Access Medical Division Sick Reporting System periodically, and ensure Department records are updated, as necessary.

# ADMINISTRATIVE GUIDE

| Section: Medical, Health and Wellness | | Procedure No: 330-03 |
|---|---|---|
| **LINE OF DUTY INJURY OR DEATH** | | |
| DATE EFFECTIVE: 05/05/26 | LAST REVISION: R.O. 33 | PAGE: 1 of 5 |

**PURPOSE** To report and record line of duty injuries and deaths occurring within the City or outside of the City.

**DEFINITION** INVESTIGATING SUPERVISOR - A supervisory uniformed member of the service in the rank of sergeant or above (e.g., patrol supervisor, platoon commander, duty captain, etc.), that is assigned to the injured uniformed member of the service's command. If unavailable, a supervisory uniformed member of the service within the precinct of occurrence will perform the tasks of the investigating supervisor.

**PROCEDURE** Upon receiving an injury in the performance of police duty, whether on or off duty, or arriving at a location where a uniformed member of the service is injured:

**UNIFORMED MEMBER OF THE SERVICE**

1. Request supervisor to respond.
2. Notify desk officer of:
   a. Circumstances of injury
   b. Names and addresses of witnesses.
3. Request witnesses to await arrival of supervisor.
4. Remain at scene unless:
   a. Hospitalization or medical attention is required
   b. Further police action is necessary.
5. Notify local police authorities and Operations Unit immediately, if reporting line of duty injury from outside of City.

**INVESTIGATING SUPERVISOR**

6. Respond to scene and request medical attention, if necessary.
7. Interview injured member and investigate circumstances.
8. Interview witnesses and ensure preparation of:
   a. **WITNESS STATEMENT - INJURY TO MEMBER OF THE DEPARTMENT (PD429-065)**, if non-Department witness, or
   b. Line of Duty Injury Reporting System witness statement, if witness is member of the service.
9. Prepare **Police Crash Report (MV-104P)**, if vehicle collision involved.
10. Direct injured member, or if they are incapacitated assign a member, to prepare an **AIDED REPORT (PD304-152)** if a vehicle is not involved.
11. Comply with *P.G. 221-06, "Member of the Service Subjected to Force While Performing Lawful Duty"* to determine investigating supervisor, if any force is used by a uniformed member of the service or civilian and a uniformed member of the service sustains an injury.
12. Prepare **Line of Duty Injury Report**, if injured member of the service is incapacitated.

***NOTE*** *The investigating supervisor for out of City line of duty injuries must be in the rank of captain or above.*

**UNIFORMED MEMBER OF THE SERVICE**

13. Prepare **Line of Duty Injury Report** using Line of Duty Injury Reporting System on Department intranet or smartphone, and include:
    a. Witness information,
    b. Documents related to injury (e.g., photographs, hospital discharge paperwork, etc.), as appropriate.
14. Submit, electronically, **Line of Duty Injury Report** to investigating supervisor.

**INVESTIGATING SUPERVISOR**

15. Review **Line of Duty Injury Report** for completeness and accuracy, and sign-off, electronically, prior to completion of tour, absent exceptional circumstances.
    a. Indicate recommendation for approval/disapproval of line of duty designation.
    b. Include findings of review of any available Body-Worn Camera or other video surveillance of incident.

***NOTE*** *The **Line of Duty Injury Report** will transfer to the Medical Division sick desk supervisor's online queue after electronic sign-off by investigating supervisor.*

**DESK OFFICER**

16. Notify:
    a. Injured member's command if member is not assigned to precinct of occurrence,
    b. Borough commander, precinct commanding officer/executive officer/duty captain, Operations Unit, and Medical Examiner or assistant Medical Examiner, if member dies or is likely to die,
    c. Operations Unit, if member requires hospital treatment,
    d. Sick Desk supervisor or Sick Desk when any following conditions relating to a line of duty injury exist:
        (1) Incident causing the injury was NOT specifically witnessed, and
        (2) Injury occurred within any police facility (building, office, etc.), or
        (3) Injury occurred in the immediate vicinity of any police facility (parking lot, perimeter sidewalk, etc.), or
        (4) Injury occurred during the first two hours of a tour, or
        (5) Any request for line of duty injury designation by an off-duty uniformed member of the service.

***NOTE*** *If member dies, responding members are reminded to follow Patrol Guide 216-04 "Dead Human Body General Procedure."*

**COMMANDING OFFICER**

17. Review all **Line of Duty Injury Reports** completed by members of command via Line of Duty Injury Reporting System application.
18. Prepare a report on **Typed Letterhead** addressed to Commanding Officer, Medical Division detailing circumstances of injury when:

**COMMANDING OFFICER (continued)**

a. Injured member of the service is a Probationary Police Officer,
b. Injury occurred while member of the service was off-duty, or
c. Injury is reported after end of injured member of the service's tour.

19. Prepare a report on **Typed Letterhead** for line of duty death or serious injury and likely to die and forward as per *P.G. 212-09, "Unusual Occurrence Reports."*
20. Comply with pertinent provisions of *A.G. 330-07, "Trauma Counseling Program.*"
21. Ensure copies of appropriate reports are forwarded to Police Pension Fund if line of duty death or serious injury and likely to die.

**UNIFORMED MEMBER OF THE SERVICE**

22. Consult Medical Division's webpage on Department Intranet regarding line of duty prescription program coverage eligibility.

***ADDITIONAL DATA***

*When a member of the service is treated at a hospital for a line of duty injury, the following information, ONLY, is to be entered in hospital records pertaining to address and telephone number of injured member:*

" [redacted].

*Member's command, home address and telephone number will not be disclosed to hospital authorities or anyone else unless authorized supervisory officer determines requesting person is entitled to the information.*

*When a uniformed member of the service is struck by a bullet on a protective vest and is apparently uninjured, the member must be examined by a doctor to ascertain if a blunt body trauma or internal injury has occurred. When an injured member is hospitalized or dies, the patrol supervisor will ensure that firearms, Department property (shield, identification card, nameplate, etc.), and personal effects of member are removed and safeguarded.*

*HOSPITAL GUIDELINES REGARDING UNIFORMED MEMBERS OF THE SERVICE SERIOUSLY INJURED OR KILLED IN THE LINE OF DUTY:*

*When a uniformed member of the service is seriously injured or killed in the line of duty, the Operations Unit will notify the following members of the service to respond to the hospital:*

*a. Police Commissioner*
*b. First Deputy Commissioner (if Police Commissioner is not available)*
*c. Chief of Department*
*d. Chief of Detectives (to supervise investigation)*
*e. Bureau chief of the injured or deceased member*
*f. Deputy Commissioner-Public Information*
*g. Supervising Chief Surgeon*
*h. Department Chaplain*
*i. Commanding Officer, Family Assistance Section*
*j. Lieutenant-Family Assistance Section, borough concerned*
*k. Patrol borough commanding officer*
*l. Patrol borough executive officer (if borough commanding officer is not available)*
*m. Duty inspector (to supervise and control access to emergency room and adjacent areas by responding members of the service)*
*n. Patrol borough operations commander (if duty inspector not available)*
*o. Commanding officer/duty captain (will prepare the Unusual Occurrence Report)*
*p. Detective borough commander*
*q. Detective assigned to investigate the case*
*r. Crime Scene Unit detective or technician*
*s. Policewomen's Endowment Association representative if a police officer who identifies as a female is the victim*
*t. Line organization representative*
*u. Employee Assistance Unit representative (EAU)*
*v. Police Organization Providing Peer Assistance (POPPA) representative*

*The following members of the service will be permitted to speak to the injured member or view the body of the deceased member:*

*a. Police Commissioner*
*b. First Deputy Commissioner*
*c. Chief of Department*
*d. Bureau chief concerned*
*e. Patrol borough commanding officer (or representative)*
*f. Detective assigned to the case*
*g. Crime Scene Unit detective or technician*
*h. Union representative*
*i. Policewomen's Endowment Association representative if a police officer who identifies as a female is the victim*
*j. Department Chaplain*
*k. Emergency Service Unit member, if transported by a Department ambulance*

*The hospital guidelines also apply to uniformed member of the service seriously injured or killed in the line of duty within residence counties.*

*Uniformed members of the service and/or their families may be entitled to both medical and financial benefits under the Federal Employees Compensation Act (F.E.C.A.), if a Federal Statute was violated and the injury occurred while apprehending or attempting to apprehend an individual who violated such statute. Therefore, the investigating supervisor will make an entry on the* ***Line of Duty Injury Report*** *indicating whether the injury comes under F.E.C.A. or whether F.E.C.A. does not apply in this case. If the injury comes under F.E.C.A., the member's commanding officer will forward the following items to Medical Division, (attn. Federal Compensation Liaison Officer), 1 Lefrak City Plaza, within ninety days of occurrence:*

***ADDITIONAL DATA (continued)***

*a. Copy of **Line of Duty Injury Report** and **WITNESS STATEMENT - INJURY TO MEMBER OF THE DEPARTMENT**, if prepared.*

*b. Copy of **Unusual Occurrence Report**, if prepared.*

*c. Copy of perpetrator's arrest history, if an arrest is effected.*

*d. Copy of criminal court complaint, if arrest is effected.*

*e. Copy of firearms trace, if weapon involved.*

*f. Copy of a fully completed United States Department of Labor form BEC-721a entitled, "Notice of Law Enforcement Officer's Injury or Occupational Disease." (Form may be obtained from Federal Compensation Liaison Office).*

*In unusual circumstances, when a line of duty designation cannot be made expeditiously pending the results of an investigation or other circumstances, the ranking officer responsible for forwarding the **Line of Duty Injury Report** to the Medical Division will have report prepared on **Typed Letterhead**, clearly indicating the reasons for the delay and the approximate time period required to complete the investigation. The **Typed Letterhead** will be forwarded to the Medical Division within sixty days from the date that the initial request for line of duty designation was made. Subsequent reports will be forwarded for each additional sixty day period, if necessary.*

*To provide the Federal Bureau of Investigation (F.B.I.) statistical and descriptive information for use in law enforcement training, the Commanding Officer, Medical Division will provide the Chief of Department Investigation Review Section with copies of **Line of Duty Injury Reports** for shot or stabbed officers.*

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# ADMINISTRATIVE GUIDE

| Section: Medical, Health and Wellness | Procedure No: 330-04 | |
|---|---|---|
| **NOTIFYING COURT, TRIAL ROOM OR OTHER AGENCIES WHEN MEMBER OF THE SERVICE REPORTS SICK** | | |
| DATE EFFECTIVE: 11/18/21 | LAST REVISION: I.O. 110 | PAGE: 1 of 2 |

**PURPOSE** To notify court, Trial Room or other government agency when a member of the service reports sick and is unable to attend a pending arraignment or scheduled appearance.

**PROCEDURE** When illness, injury or any other physical/psychological condition prevents the performance of duty and the member of the service has a pending arraignment, or scheduled appearance in court, the Trial Room, or any other governmental agency:

**UNIFORMED MEMBER OF THE SERVICE**

1. Comply with *A.G. 330-01, "Regular Sick,"* or *A.G. 330-02, "Administrative Sick,"* as appropriate.
2. Inform desk officer/supervisor at assigned command of any pending arraignment, or scheduled appearance in court, the Trial Room, or any other government agency when reporting sick.

**DESK OFFICER/ SUPERVISOR**

3. Make entry in Command Diary of any scheduled court appearance or other agency appearance, under date of scheduled appearance AND under date two days prior to appearance date (exclusive of Saturday, Sunday or holidays).
4. Notify borough court section concerned if sick member is unable to appear for pending arraignment.

**ROLL CALL CLERK**

5. Notify the court or other agency concerned immediately of the member of the service's inability to attend due to being on sick report.

WHEN MEMBER OF THE SERVICE IS ON SICK REPORT

**OPERATIONS COORDINATOR/ PRINCIPAL ADMINISTRATIVE ASSOCIATE**

6. Telephone district surgeon to determine if member is capable of appearing at scheduled court appearance when member remains on sick report two days prior to such scheduled appearance.
7. Notify member to appear if district surgeon approves and telephone Sick Desk of surgeon's determination.

**ROLL CALL CLERK**

8. Notify Criminal Court, Trial Room or other government agency and request adjournment two days before appearance date, if member is unable to appear.

***NOTE*** *If member reports sick on a scheduled appearance date, make immediate notification to court or other agency concerned.*

9. Notify the court, if other than Criminal Court, on the morning of the appearance date if the member is unable to appear.
10. Enter notifications to district surgeons, courts, etc., regarding scheduled appearances of members on sick leave in Telephone Record.

***NOTE*** *A uniformed member on sick report whose condition changes after being directed to appear in court or before another agency, thereby preventing a scheduled appearance, will notify the roll call clerk or desk officer/supervisor, as appropriate. The roll call clerk/desk officer/supervisor will make required notifications.*

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# ADMINISTRATIVE GUIDE

| Section: Medical, Health and Wellness | | Procedure No: 330-05 |
|---|---|---|
| **CHRONIC ABSENCE CONTROL PROGRAM** | | |
| DATE EFFECTIVE: 09/16/22 | LAST REVISION: I.O. 96 | PAGE: 1 of 3 |

**PURPOSE** To curtail abuse of sick leave privileges.

**DEFINITIONS** CHRONIC SICK - CATEGORY "A" - A uniformed member of the service who reports sick for any reason, EXCEPT an initial line of duty absence OR for hospitalization at any time, four or more times within a twelve month period.

CHRONIC SICK - CATEGORY "B" - A uniformed member of the service who reports sick for any reason, EXCEPT initial line of duty OR for hospitalization at any time, six or more times within a twelve month period; OR
For any reason EXCEPT an initial line of duty absence or for hospitalization at any time, four or more times within a twelve month period and loses forty or more workdays (not calendar days).

**SCOPE** Outpatient service such as ambulatory surgery is not considered hospitalization for the purpose of this procedure.

**PROCEDURE** When a uniformed member of the service is initially designated "CHRONIC ABSENT":

**INTEGRITY CONTROL OFFICER**

1. Query Medical Division Sick Reporting System to determine if uniformed member of the service assigned to the command have been designated Chronic Sick Category "A" or Chronic Sick Category "B."
   a. Notify commanding officer of all members that are designated Chronic Sick Category "A" or Chronic Sick Category "B."

**COMMANDING OFFICER**

2. Notify member of their chronic sick designation, and verify that they have received email notification from the Medical Division Sick Reporting System.
3. Advise member that such designation will remain in effect according to the following classification:
   a. CATEGORY "A" - for six months from date of return to duty following last absence.
   b. CATEGORY "B" - for nine months from date of return to duty following last absence.

***NOTE*** *Subsequent sick reports, EXCLUDING initial line of duty or hospitalization, during the six or nine month period will extend the designation period accordingly UNLESS such designation is revoked on appeal.*

WHEN A MEMBER WISHES TO APPEAL A CHRONIC SICK DESIGNATION

**MEMBER CONCERNED**

4. Prepare report, in DUPLICATE, on **Typed Letterhead**, addressed to the Commanding Officer, Medical Division, within thirty days of chronic absent designation, indicating the reason(s) for objection to designation.
5. Present report to commanding officer for review and recommendation.

**COMMANDING OFFICER**

6. Review report and forward, with endorsement, to Commanding Officer, Medical Division.
   a. Include recommendation and reason(s) in support or denial of appeal.

**COMMANDING OFFICER, MEDICAL DIVISION**

7. Confer with Chief Surgeon and district surgeon concerned.
8. APPROVE/DISAPPROVE appeal.
9. Forward DISAPPROVED appeal to Chief of Personnel for final determination.
10. Notify commanding officer of member concerned of results of appeal.

**COMMANDING OFFICER**

11. Inform member concerned of final determination.

***ADDITIONAL DATA***

*The following restrictions shall apply to members designated Category "B":*

*a. Not eligible for Administrative Sick*

*b. Assignment to Special Medical District/Confidential Medical District regardless of residence and existing medical district*

*c. Not permitted to leave residence, or other authorized location, for their entire sick occurrence, without the express permission of the Special Medical District/Confidential Medical District Surgeon. Members violating this procedure will be subject to Charges and Specifications, not Command Discipline.*

*Category "B" members who report sick and indicate an inability to travel, or who fail to report to the Special Medical District/Confidential Medical District when scheduled, will be visited by a supervising officer of the Medical Division. Member will then be transported to the Special Medical District/Confidential Medical District (if able to travel).* ***CHARGES AND SPECIFICATIONS (PD468-121)*** *will be prepared by a ranking officer from the Medical Division if Special Medical District/Confidential Medical District Surgeon determines that:*

*a. the sick member was able to travel to the Special Medical District/Confidential Medical District, OR*

*b. the member displays no objective evidence of illness or injury claimed.*

*Category "B" members found fit for duty after examination by the Special Medical District/Confidential Medical District Surgeon and who report sick again for the SAME reason prior to their next scheduled tour of duty, may be suspended from duty without pay if upon subsequent examination by a surgeon, no objective findings of such illness or injury are found.* ***CHARGES AND SPECIFICATIONS*** *will be prepared by the Commanding Officer, Medical Division.*

***ADDITIONAL DATA (continued)***

*A FINEST message will be transmitted daily listing those members reporting sick within the previous twenty-four hours and specifically identifying those who will report to the Special Medical District/Confidential Medical District instead of their own district surgeon. Members concerned will be notified by their commanding officer.*

*Granting of applications or recommendations for discretionary benefits, including promotion, extra compensation, designation, heightened assignments, off-duty employment and scholarships will be discretionary while a member is Chronic Absent, Category "A" or "B". No discretionary benefits and privileges will be denied solely because a member is Chronic Absent, Categories "A" or "B".*

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# ADMINISTRATIVE GUIDE

| Section: Medical, Health and Wellness | | Procedure No: 330-06 |
|---|---|---|
| **DEATH OF MEMBER OF THE SERVICE** | | |
| DATE EFFECTIVE: 11/18/21 | LAST REVISION: I.O. 99 | PAGE: 1 of 1 |

**PURPOSE** To record the death of a member of the service, uniformed and civilian.

**PROCEDURE** Upon learning of the death of an active member of the command or a retired member of the service, uniformed or civilian residing within the command:

**DESK OFFICER**

1. Cause the following information to be obtained.
   a. Rank, full name, shield number, command
   b. Time and date of death
   c. Place of death (residence, hospital, elsewhere)
   d. Residence address
   e. Funeral (time, date, location)
   f. Time, date and location of service
   g. Cemetery (name and location)
   h. Whether deceased was a member of a religious, fraternal or patriotic organization of this Department
   i. Whether chaplain is desired (state denomination)
   j. If uniformed member of the service, whether pallbearers or escort is desired
   k. Next of kin (full name, address, telephone number and relationship)
   l. Funeral director (name, address and telephone number)
   m. Whether deceased was a medal recipient (Honorable Mention and medal)
   n. If an active member - was death caused as result of performing police duty, or otherwise
   o. If a retired member - date of retirement.
2. Telephone information to Communications Section.
   a. If an active member of the service, uniformed or civilian, immediately notify the Internal Affairs Bureau, Command Center at [redacted].
3. Notify unit commander.
4. Post information on bulletin board for benefit of members of command if active member.

**COMMANDING OFFICER CONCERNED**

5. Cause member's weapons and Department property to be obtained if active member.
6. Deliver non-department property from member's locker to authorized recipient where applicable.

# ADMINISTRATIVE GUIDE

| Section: Medical, Health and Wellness | | Procedure No: 330-07 |
|---|---|---|
| **TRAUMA COUNSELING PROGRAM** | | |
| DATE EFFECTIVE: 03/24/25 | LAST REVISION: R.O. 14 | PAGE: 1 of 3 |

**PURPOSE** To provide Trauma Counseling Services for members of the service (uniformed and civilian) involved in shooting incidents, disasters, or other violent occurrences resulting in death or injury.

**SCOPE** A member of the service (uniformed or civilian) will be referred to the Trauma Counseling Program when involved in a shooting incident, disaster, or other violent occurrences resulting in death or injury. These include, but are not limited to, the following:

a. Member is shot or otherwise seriously injured.
b. Member discharges a weapon causing injury or death to another.
c. Member causes, accidentally or otherwise, serious physical injury or death to another.
d. Member is directly involved in an incident where their partner was killed or seriously injured, etc.
e. Member is directly involved in incidents or serious disasters where multiple serious injuries and deaths have occurred.

The Trauma Counseling Team will respond to all incidents involving:

a. Member of the service is shot, killed, or seriously injured in the performance of duty.
b. Any incident pursuant to a request from a captain or above.

**PROCEDURE** When a member of the service (uniformed or civilian) is involved in a shooting incident, disaster or other violent occurrence resulting in death or injury:

**DESK OFFICER**

1. Notify Operations Unit and provide details of incident.

**OPERATIONS UNIT SUPERVISOR**

2. Notify Sick Desk supervisor, provide detailed information and request response of Trauma Counseling Team.

**SICK DESK SUPERVISOR**

3. Ascertain from Operations Unit and/or the ranking supervisor at the scene:
   a. Location the Trauma Team should respond to
   b. Name of supervisor who will be contact person at the scene.
4. Arrange for transportation of Trauma Team.

**RANKING SUPERVISOR AT SCENE**

5. Ensure members in need of trauma counseling are available for interview, where possible, by responding Trauma Team upon their arrival.
6. Provide a suitable place for the trauma interview, where possible.

**SUPERVISOR TRAUMA COUNSELING TEAM**

7. Respond to location and report to designated contact person at the scene.

***NOTE*** *Trauma Team members will wear authorized nylon windbreaker jackets with the NYPD logo on the front and the words "N.Y.C. POLICE" printed on the back.*

**TRAUMA COUNSELING TEAM**

8. Respond, if required, to stationhouse of precinct of occurrence or other location, to make contact and converse with member(s) of the service involved in the incident.
9. Visit the place of occurrence, if necessary.
10. Notify the member concerned that he/she will be contacted for a follow-up meeting forty-eight hours after the event or initial contact, as appropriate.
    a. Any additional counseling/interview sessions after the forty-eight hour meeting will be scheduled within one to six weeks after the incident.

***NOTE*** *ALL CONVERSATION WITH THE TRAUMA COUNSELING TEAM BY MEMBERS OF THE SERVICE (UNIFORMED AND CIVILIAN) WILL BE STRICTLY CONFIDENTIAL.*

**MEMBER OF THE SERVICE**

11. Cooperate with members of the Trauma Counseling Team and keep appointments for follow-up meetings as scheduled.
12. Report to Behavioral Care and Support Section or other location as required, forty-eight hours after the incident, or initial contact with Trauma Counseling Team.
    a. Report for additional follow-up counseling/interview meetings scheduled with the Trauma Counseling Team.

**COMMANDING OFFICER/ DUTY CAPTAIN**

13. Cooperate with members of the Trauma Counseling Team and permit them access to the individual member(s) of the service involved in the shooting, disaster or other violent event.
14. Verify that a member(s) of the service involved in the shooting, disaster or violent incident has been referred and contacted in person by a member of the Trauma Counseling Team.
15. Have **UNUSUAL OCCURRENCE REPORT (PD370-152)** prepared and list members of the service involved in the incident who were contacted by the Trauma Counseling Team.
16. Forward copies of the report, **THREAT, RESISTANCE OR INJURY (T.R.I.) INCIDENT REPORT**, if prepared, and other reports prepared to the Commanding Officer, Medical Division, 59-17 Junction Boulevard, 16th Floor, Corona, New York 11368.

***ADDITIONAL DATA***

*The Trauma Counseling Team is staffed by the Chief Surgeon, Director, Behavioral Care and Support Section and licensed certified professionals of the Medical Division. Trauma Team members will not interfere with on-going investigations. In addition, team members will not be assigned any duties outside their functions as Trauma Counselors when responding to the occurrence site.*

*This procedure does not prevent in any way the voluntary use of or referral to any of the Employee Assistance Programs or units in the Department for any reason at any time. The services of the Trauma Counseling Team are also available to members who are involved in personal or family tragedies, e.g., violent criminal incidents involving themselves or their families, death in family, etc.*

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# ADMINISTRATIVE GUIDE

| Section: Medical, Health and Wellness | | Procedure No: 330-08 |
|---|---|---|
| **REPORTING WORK-RELATED FATALITIES, HOSPITALIZATION, INJURIES AND ILLNESSES** | | |
| DATE EFFECTIVE: 05/26/26 | LAST REVISION: R.O. 42 | PAGE: 1 of 4 |

**PURPOSE** To ensure the accuracy and proper reporting under local, state and federal regulations of data concerning work-related fatalities, injuries and illnesses recorded by different commands.

**PROCEDURE** When a work related fatality, injury or illness occurs:

**MEMBER OF THE SERVICE**

1. Notify supervisor promptly.
2. Report fatality, injury or illness as outlined in appropriate Patrol Guide or Administrative Guide procedures etc.
3. Forward information concerning the work-related fatality, injury, or illness to command safety officer.

**SUPERVISOR**

4. Notify Medical Division Sick Desk immediately by phone and email at sickdesk@nypd.org when the following occurs:
   a. Death of one or more members of the service and/or
   b. In-patient hospitalization of two or more members of the service, resulting from the same incident, and/or
   c. In-patient hospitalization of one or more members of the service, a member's amputation, or loss of a member's eye.

**MEDICAL DIVISION SICK DESK**

5. Notify New York State Department of Labor within eight hours by phone and email when the following occurs:
   a. Death of one or more members of the service and/or
   b. In-patient hospitalization of two or more members of the service, resulting from the same incident.
6. Notify New York State Department of Labor within 24 hours by phone and email when the following occurs:
   a. In-patient hospitalization of one or more members of the service, a member's amputation, or loss of a member's eye.

**COMMAND SAFETY OFFICER**

7. Ensure that **SH 900 Work-Related Injuries and Illnesses Log and Injury and Illness Incident Report (SH 900-2)** are prepared within seven calendar days of notification of a work-related fatality, injury, or illness.
8. Enter the phrase "privacy case" instead of the employee's name in column "B" of the **SH 900** when member involved in the work-related injury/illness:
   a. Requests that their name not be entered in the **SH 900.**
   b. Is involved in an incident stemming from a sexual assault.
   c. Sustains an injury to an intimate body part.
   d. Is mentally ill.
   e. Sustains an injury from a sharp object that may be contaminated with potentially infectious material.
   f. Has been exposed to or acquired an HIV infection, hepatitis or tuberculosis.

***NOTE*** *A confidential list of case numbers and member names for the command's privacy concern cases should be kept so that information can be provided to appropriate entities.*

**COMMAND SAFETY OFFICER**

9. Have **SH 900** serial number, beginning with number one for the first work-related injury or illness of each calendar year, entered in column "A" on **SH 900**.
10. Complete the **SH 900-2**.
11. Prepare the **Summary of Work Related Injuries and Illnesses (SH900-1)**.
12. Ensure that the **SH900-1** is posted by February 1 following the year covered by the form at a conspicuous location in the command and keep it posted for three months until April 30.
13. Forward a copy of the **SH 900-1** to bureau/borough/division Safety Coordinator.
14. File **SH 900, SH 900-1,** and **SH 900-2** in numerical order for each calendar year in a folder labeled "Public Employee Safety and Health (PESH) Act."
15. Retain the records in the command for five calendar years following the end of the year to which they relate.

***NOTE*** *If there is a change in the extent or outcome of a case entered in the **SH 900**, the entry should be lined out and a corrected entry made.*

***ADDITIONAL DATA*** *Commands must ensure that members are aware that they have to promptly report a work-related fatality, injury, or illness. No member who reports a work-related fatality, injury, or illness shall be discriminated or retaliated against.*

*Commands with sub-units MUST prepare a separate **SH900** and **SH900-1** for each physical location that is expected to be in operation for one year or longer.*

*If at the end of the year, a member is still out on sick leave, an estimation of the number of additional days the member will be out sick will be made and used to calculate the member's total days lost for that year. When the member returns to work, correct the entry made as necessary. When counting the number of days away from work and/or job transfer or restriction, count the number of calendar days. Do not count the day on which the injury or illness occurred. Begin counting days from the day after the incident. When a physician or other licensed health care professional recommends that the member stay at home but they come to work anyway, the command must enter the number of calendar days away as recommended by the physician or other licensed health care professional. If a single injury/illness involved both days away and days of restricted work, enter the total number of days for each. "Cap" the total days away at 180 calendar days. It is not required to continue tracking the number of calendar days away from work if the injury or illness resulted in more than 180 calendar days away from work and/or days of job transfer or restriction.*

*The **SH 900** includes employee information. The option of entering or not entering their name on **SH 900**, describes how the incident occurred, lists the objects or substances involved, and indicates the nature of the injury or illness and the part(s) of the body affected. Completed records must be present in the command within seven calendar days after the command has received information that an injury or illness has occurred. In addition, the name, title and contact number for the person who completed the **SH900** is entered.*

***ADDITIONAL DATA (continued)***

*Even though there were no recordable cases during the previous year, the **SH 900-1** must be completed and posted. If there was no work-related injury/illness, the section on Establishment Information should be filled out and zeros should be entered in all categories on the "totals" line.*

*All commands except Traffic Enforcement District should enter 922120 as their North American Industrial Classification System. Traffic Enforcement District and its sub-units should enter 926120 as their North American Industrial Classification System. The **SH900-1** must be certified by the highest ranking officer/supervisor of the command.*

*When a member of the service with an active entry on the **SH 900** data is transferred, the entry will remain open and the transfer date recorded. The command safety officer of the original command will be responsible for contacting the member's new command at the end of the calendar year to obtain the number of additional days taken by the member for the same injury or illness.*

*The member's new command will record the transfer date and the additional days taken by the member, and at the end of the year, will supply the previous command with the information regarding the number of days lost.*

*If a fatality, injury or illness is sustained while a member of the service is temporarily assigned, it will be recorded at the member's temporary command.*

*For members whose payroll or personnel records are maintained at a fixed location, but they do not work at a single location, the **SH 900** should be maintained at the location from which they are paid.*

*More detailed information on report of work-related fatalities, injuries and illnesses is available in the "Recording and Reporting Public Employees' Work-Related Injuries and Illnesses" training manual prepared by the Occupational Safety and Health Section.*

*PESH folders are to be available for inspection by representatives from the New York State Department of Labor, representatives of the Secretary of Labor, Secretary of Health and Human Services or NIOSH. When these authorized government representatives ask for the **SH 900**, the **SH 900-1**, or the **SH 900-2** while conducting an investigation or inspection, the command must provide copies of the records within four business hours.*

*Our members, former members, authorized collective bargaining representatives, and their personal representatives (any person designated in writing, or a legal representative), have the right to access injury and illness records. When a member, former member, authorized representative, or personal representative asks for copies of the current or filed **SH 900** where the member has worked, they must be given a copy of the **SH900**(s) by the end of the next business day. When a member or personal representative asks for a copy of the **SH 900-2** describing an injury or illness to that member, they must be given a copy of the **SH 900-2** containing that information by the end of the next business day. When an authorized representative asks for copies of the **SH 900-2** for a command where the agent represents members under a collective bargaining agreement, they must be given copies of all forms within seven calendar days. Commands are required to give only the information from the **SH 900-2** section titled "Information about the case." All other information must be removed from the copy of the **SH 900-2** that are given to the authorized employee representative.*

***ADDITIONAL DATA (continued)***

*As to any disclosure other than that specified above, since this information would likely be considered medical records under the Americans with Disabilities Act, it must be handled and maintained in a confidential manner.*

*Special days of the year are randomly sampled by Bureau of Labor Statistics annually for further statistical analysis. If any work-related injuries and illnesses with days away from work occurred on the selected days, a* ***Case With Days Away From Work (DOSH)*** *form has to be filled out for each of the sampled cases and forwarded to the Occupational Safety and Health Section together with a copy of the* ***SH 900-1****. Such sampling and reports required will be the subject of an Operations Order each year.*

*The record keeping forms may be ordered directly from the Quartermaster Section by the following index numbers:*

| *FORM* | *INDEX NUMBER* |
|---|---|
| ***SH 900:Work Related Injuries and Illnesses Log*** | ***2535*** |
| ***SH 900.1: Summary of Work-Related Injuries and Illnesses*** | ***2536*** |
| ***SH 900.2: Injury and Illness Incident Report*** | ***2537*** |

# ADMINISTRATIVE GUIDE

| Section: Medical, Health and Wellness | Procedure No: 330-09 | |
|---|---|---|
| **EXPOSURE OF MEMBERS OF THE SERVICE TO INFECTIOUS DISEASES OR HAZARDOUS MATERIALS** | | |
| DATE EFFECTIVE: 11/18/21 | LAST REVISION: I.O. 99 | PAGE: 1 of 4 |

**PURPOSE** To provide instructions and minimize risk to members of the service (uniformed and civilian) who have contact with, or handle, an animal or person who may have an infectious disease, or who have contact with or handle hazardous materials.

**DEFINITIONS** INFECTIOUS DISEASE - as used in this procedure, includes diseases capable of being transmitted by contact with an infected animal's saliva or central nervous system tissue, or with an infected individual's blood or body fluids.

HAZARDOUS MATERIAL - as used in this procedure, includes any chemical, biological, or radiological substance which is a health hazard. Chemical health hazards include carcinogens, toxic agents, irritants, corrosives, or agents which damage the lungs, skin, eyes, or mucous membranes, etc. Chemical physical hazards include flammable or combustible liquids, compressed gas, or explosive or reactive substances, etc.

EXPOSURE TO AN INFECTIOUS DISEASE - as used in this procedure, includes those situations where a member of the service is exposed by airborne transmission or direct contact to an individual suspected of having a disease, or where a member comes in contact with the blood or body fluids of an individual suspected of having an infectious disease, or, where a member of the service is injured as the result of a human or animal bite, or hypodermic needle puncture, or other contaminated sharp instrument, or where a member of the service is exposed to an animal suspected of having an infectious disease, or where a member comes in contact with the saliva or central nervous system tissue of an animal suspected of having an infectious disease.

EXPOSURE TO A HAZARDOUS MATERIAL - as used in this procedure, includes those situations where a member of the service is exposed to a hazardous material whether through inhalation, ingestion, skin contact, or parenteral contact.

UNIVERSAL PRECAUTIONS - as used in this procedure, is an approach to infection control. According to this approach, all human blood and certain body fluids are to be treated as if they are known to be infectious for human immunodeficiency virus (HIV), hepatitis B virus (HBV), or other bloodborne pathogens; and in addition, all animal saliva and central nervous system tissue are to be treated as if they are known to be infectious for rabies. All efforts to avoid contact with these potentially infectious materials should be taken as well as utilizing whatever protective equipment is available.

**DEFINITIONS (continued)**

DESIGNATED OFFICER - an individual designated under 42 U.S.C. 300ff-86 by the Public Health Officer of the State involved (42 U.S.C. 300ff-76) to execute provisions of Section 411 of the Ryan White Comprehensive AIDS Resources Emergency Act regarding emergency response employees who request a determination whether they were exposed to an infectious disease.

***NOTE***

*To avoid unnecessary exposure, control of the aided/collision victim, or prisoner will be assigned to an officer at the scene who has already had contact with a person suspected of having an infectious disease. The assigned officer will be responsible for completing the processing of the individual. If there are numerous individuals involved, the patrol supervisor at the scene will be responsible for the coordination of information and documenting the name, etc., of the members of the service involved.*

**PROCEDURE**

Upon being exposed to an infectious disease, hazardous material, or suffering a human or animal bite, or hypodermic needle puncture wound:

**MEMBER OF THE SERVICE**

1. Comply with guidelines listed in "ADDITIONAL DATA" statement of this procedure, when possible.
2. Notify desk officer, precinct of occurrence.

***NOTE***

*When exposure involves an actual injury, the member of the service concerned will be transported to the hospital for treatment and A.G. 330-03, "Line Of Duty Injury Or Death" will be complied with, as appropriate. When exposure does not involve an actual injury and the exposure is related to tuberculosis, the member of the service concerned should consider this Department's offer of Mantoux (PPD) skin testing which is free of charge. When tested and the results are positive, notify Unit Safety Officer to initiate entry on State of New York - Department of Labor Log and Summary of Occupational Injuries and Illnesses (DOSH 900). Tuberculosis infection and tuberculosis disease are both recordable on DOSH 900 logs. A code (e.g., maiden name pseudonym) may be used to substitute for the description of injury or illness (column [F]).*

**DESK OFFICER**

3. Obtain exposure report number via Line of Duty Injury Reporting System.
4. Make Command Log entry of information
   a. Include Exposure Report number in Log entry.
5. Notify designated Department surgeon of the facts involved.

**DEPARTMENT SURGEON**

6. Contact member of the service involved and advise of necessary treatment.

**MEMBER OF THE SERVICE**

7. Comply with directions of Department surgeon.

***NOTE***

*By telephoning this Department's designated officer at the Medical Division, Hazmat Unit, emergency response employees, such as a law enforcement officer or auxiliary police officer, may submit a request for a determination whether they were exposed to a*

***NOTE (continued)*** *specific infectious disease when a victim of an emergency who was aided by the emergency response employee was transported to a medical facility. If it is determined that the emergency response employee may have been exposed to an infectious disease, a signed written request, along with the facts collected, must be sent by the designated officer to the medical facility to which the victim (or patient), i.e., aided or prisoner, was transported. After receiving a notification from the medical facility, to the extent practicable, the designated officer must immediately notify the member or members concerned. Whenever the designated officer discloses information related to Human Immunodeficiency Virus (HIV) to an emergency response employee, redisclosure by the emergency response employee is prohibited when not in conformance with state law.*

8. Make digital **Activity Log** entry of facts involved.
   a. Include Exposure Report number.

*<u>EXPOSURE TO INFECTIOUS DISEASES GUIDELINES</u>*

***ADDITIONAL DATA***

*a. Confer with Emergency Medical Service personnel, the individual's family, friends, neighbors, doctor, or appropriate agency as to the source individual's medical conditions, when circumstances permit.*

*b. Wear disposable gloves if contact with individual's blood or body fluids is a possibility; and if a member who is routinely engaged in the capture or seizure of suspected rabid animals, wear heavy duty disposable rubber gloves if contact with animal's saliva or central nervous system tissue is a possibility.*

*c. Wash hands with soap and water (disinfectant soap, if possible), after removing disposable gloves. Glove kits containing antiseptic wipes, gloves, and disposable bag should be used when hand-washing facilities are not available.*

*d. Immediately and thoroughly wash hands or other unprotected body parts if they come in contact with individual's blood or body fluids, or if bitten, scratched, abraded, by an animal, or if there is contact between the member and the animal's saliva or nervous system tissue. Use disinfectant soap, if possible.*

*e. Remove and machine wash (hot cycle), or have dry cleaned, as soon as possible, any part of uniform/civilian clothes that come in contact with an individual's blood or body fluids and promptly clean any equipment other than that made of fabric.*

*f. Use extraordinary care to avoid accidental puncture wounds from needles which may be contaminated with potentially infectious material.*

*g. Affix Biohazard Label to any property, evidence, or waste which may be contaminated.*

*<u>ACCIDENTAL SPILLS OF BLOOD OR BODY FLUIDS</u>.*

*A supply of household bleach will be maintained at all precinct/PSA/transit district commands, emergency service units, borough court section facilities, and other appropriate sites. Accidental spills of blood or body fluids on floors, cells, RMP's or on other surfaces, other than clothing, or fabric may be cleaned by applying a FRESHLY MIXED solution of one part household bleach with ten parts water. It is imperative that the preceding mixture be carefully followed. Household bleach is <u>not</u> to be mixed with any solution other than water and it <u>must</u> be freshly mixed for each use.*

***ADDITIONAL DATA (continued)***

*Members of the service (uniformed and civilian) are reminded that this mixture of bleach and water will cause damage if used to clean uniforms. Uniform items soiled with blood or body fluids can be effectively cleaned by routine laundering or dry cleaning procedures. Bleach should <u>not</u> be used to cleanse hands. In addition, bleach mixed with any substance other than water may cause a toxic gas. Therefore, disposal of bleach or bleach dilutions should be performed <u>only</u> in a sink (not a urinal or toilet since they sometimes contain chemical deodorizers). When preparing a bleach dilution, the container used for the diluted solution <u>must</u> be cleaned with water and free of any other solution.*

*To prevent injury/infection when handling or forwarding hypodermic needles/syringes to the Property Clerk, members of the service will place such items in a hypodermic needle/syringe container by utilizing a one-handed "scoop" technique which uses the needle itself to pick up the hypodermic needle/syringe container. By using one hand to hold the hypodermic syringe while moving the hypodermic needle toward the hypodermic needle/syringe container, the member of the service is moving the needle away from themselves. Members should not hold the container and move their hand toward the needle. The container will be capped, if possible. However, if the syringe extends beyond the container, it will be secured with tape. Under no circumstances should a member of the service attempt to remove, dislodge, or bend a needle from a hypodermic syringe.*

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# ADMINISTRATIVE GUIDE

| Section: Medical, Health and Wellness | Procedure No: 330-10 | |
|---|---|---|
| **PREGNANCY RELATED GUIDELINES FOR UNIFORMED MEMBERS OF THE SERVICE** | | |
| DATE EFFECTIVE: 03/17/25 | LAST REVISION: R.O. 12 | PAGE: 1 of 3 |

**PURPOSE** To provide guidelines to a uniformed member of the service when notifying the Department of pregnancy.

**DEFINITION** POSITION LIMITATION STATUS – A uniformed member of the service who is placed on non-enforcement duties by the Pregnancy Medical District Surgeon due to the uniformed member of the service's pregnancy. This status is similar to restricted duty.

***NOTE*** *The uniformed member of the service will remain on full duty status until such time that the uniformed member of the service elects to request position limitation status from their district surgeon, or the uniformed member of the service's high-risk status necessitates position limitation status.*

*It is recommended that the pregnant uniformed member of the service register at the Pregnancy Medical District as early as possible.*

**PROCEDURE** When a uniformed member of the service informs the Department they are pregnant:

***NOTE*** *All communications regarding pregnancy and position limitation status are to be kept confidential and only between the uniformed member of the service and district surgeon.*

**UNIFORMED MEMBER OF THE SERVICE**

1. Notify district surgeon by telephone of pregnancy.
2. Make follow-up notification to district surgeon indicating pregnancy due date via:
   a. Department email, AND,
   b. Department mail (send original documentation from private physician).

***NOTE*** *Pregnant uniformed members of the service will not have to personally visit their district surgeon to report their positive pregnancy condition.*

**DISTRICT SURGEON CONCERNED**

3. Advise the member of immediate availability of position limitation status.

**UNIFORMED MEMBER OF THE SERVICE**

4. Request position limitation status, if desired.

**DISTRICT SURGEON CONCERNED**

5. Place uniformed member of the service on position limitation status, if desired after receiving confirmation of request for position limitation status.
6. Send uniformed member of the service's medical records to the Pregnancy Medical District.

**UNIFORMED MEMBER OF THE SERVICE**

7. Comply with *A.G. 330-01, "Regular Sick,"* or *A.G. 330-02, "Administrative Sick,"* when unable to perform duty due to illness or other physical condition.
   a. Report to Pregnancy Medical District any time it is necessary to see a Department surgeon.
8. Comply with *A.G. 305-03, "Uniforms,"* as it relates to the wearing of the uniform.

**PREGNANCY MEDICAL DISTRICT SURGEON**

9. Monitor duty status of uniformed member of the service who notifies the district surgeon concerned of pregnancy, and elects to remain full duty.
10. Commence sick leave for pregnant uniformed member of the service approximately zero to four weeks before the expected date of delivery.
11. Terminate sick leave approximately twelve to sixteen weeks following delivery.

***NOTE*** *Pregnant uniformed members of the service may specifically request to commence sick leave earlier than, or later than, the fourth week before their expected date of delivery. These requests will be evaluated on a case-by-case basis by the Pregnancy Medical District Surgeon. In instances where a request to commence sick leave later than the fourth week before the expected delivery date is granted, prior sick leave may be credited to the end of the pregnancy leave. Total sick leave should not exceed sixteen weeks, absent exigent circumstances.*

**UNIFORMED MEMBER OF THE SERVICE**

12. Telephone the Pregnancy Medical District Surgeon on the following two occasions:
    a. To confirm actual delivery date - this should be done within ten days of said date, and
    b. During the eighth post-delivery week to allow the Pregnancy Medical District Surgeon to determine return to duty date
       (1) Provide the Pregnancy Medical District Surgeon with documentation, if additional sick time is required.

***NOTE*** *The early termination or continuance of sick leave will be made on a case by case basis by the Pregnancy Medical District Surgeon.*

**PREGNANCY MEDICAL DISTRICT SURGEON**

13. Reassign medical records of uniformed member of the service back to their original medical district after return to full duty status.

**UNIFORMED MEMBER OF THE SERVICE**

14. Comply with *A.G. 332-21, "Reasonable Accommodations for Employees and Applicants"* regarding requests for reasonable accommodations, including for leave to express breast milk, upon return from sick leave.

***ADDITIONAL DATA***

*The Pregnancy Medical District located at 1 Lefrak City Plaza, 59-17 Junction Boulevard, Corona, New York, will include a specifically designated surgeon and a nurse exclusively assigned. Additionally, when required to see the Pregnancy Medical District Surgeon, pregnant uniformed member of the service will be seen in a separate area or at a separate time to avoid possible exposure to illness.*

*Once electing position limitation status, the uniformed member of the service may be reassigned to another command that performs non-enforcement duties (e.g., the Medical Division, etc.), or they may remain within their permanent command depending upon the needs of the Department. Pregnant uniformed members of the service who require additional pregnancy-related accommodations should contact the Pregnancy Medical District Surgeon or the Office of Equal Employment Opportunity.*

*Recurring pregnancy related illness will be counted as one sick report, if the member provides proper documentation from their private physician and with the approval of the Pregnancy Medical District Surgeon. Repeated "undocumented" and "unapproved" sick leaves can lead to a "chronic sick" designation. The following conditions, if minor, will not automatically be valid reasons for pregnancy related absence:*

*a. Nausea (morning sickness)*
*b. Lower back pain*
*c. Mild leg swelling*
*d. Fatigue*
*e. Other conditions limited to a few days duration.*

*The above listed conditions are considered by the medical profession to be a normal part of pregnancy. If a member of the service reports sick for these minor conditions, the sick report will not be valid for consolidation as an absence related to pregnancy illness.*

*A pass may be granted, if the Pregnancy Medical District Surgeon determines that the issuance of such a pass would not adversely affect the member's health. The pre-delivery pass becomes void after hospitalization.*

*Pregnancy alone does not preclude a uniformed member of the service from being promoted. Pregnant uniformed members of the service, as well as members on restricted duty/limited capacity who are assigned to "Investigative Track Units," may appeal any deductions of investigative time earned while on position limitation status, if they were performing normal investigative duties during that time period* (*see A.G. 329-12, "Promotion to Third Grade Detective [Investigator])."*

*Pregnant uniformed members of the service, when appropriate, may wear business attire and display their* ***IDENTIFICATION CARD (PD416-091)*** *on their outermost garment. Proper business attire will conform with that worn to other official appearances, such as post-arraignment court appearances, professional career interview, etc.*

*When a pregnant uniformed member of the service is required to appear in court, before a Grand Jury or other government agency, business attire or uniform may be worn.*

*Pregnant uniformed members of the service are <u>not</u> required to attend the Firearms and Tactics qualification cycles.*

# ADMINISTRATIVE GUIDE

| Section: Medical, Health and Wellness | | Procedure No: 330-11 |
|---|---|---|
| **TEMPORARY REMOVAL OF FIREARMS IN NON-DISCIPLINARY CASES** | | |
| DATE EFFECTIVE: 09/11/26 | LAST REVISION: R.O. 81 | PAGE: 1 of 4 |

**PURPOSE** To temporarily remove a uniformed member of the service's firearms and evaluate that member's fitness to perform duty in non-disciplinary cases.

**DEFINITION** RANKING OFFICER - For the purposes of this procedure only, a Department surgeon, uniformed member of the service in the rank of captain or above, or other competent authority.

**PROCEDURE** Whenever a ranking officer determines that a member's firearms should be temporarily removed for non-disciplinary reasons (e.g., stress as a result of family or other situations, suicidal tendencies, etc.) the following will be complied with:

**RANKING OFFICER**

1. Request response of Department psychologist, if warranted, through the Sick Desk Supervisor.
2. Direct that the member's pistols, revolvers and **IDENTIFICATION CARD (PD416-091)** be removed.
3. Deliver surrendered property to command where the order to surrender was given.
4. Ascertain if member possesses additional firearms, i.e. pistols, revolvers, rifles or shotguns:
   a. Question member directly
   b. Direct desk officer, command of surrender, to check member's **FORCE RECORD (PD406-143)**.

**DESK OFFICER, COMMAND OF SURRENDER**

5. Notify member's permanent command and request a check of member's **FORCE RECORD (PD406-143)** to determine if all weapons listed have been surrendered.
6. Arrange to obtain other additional firearms if necessary.

***NOTE*** *The command where any of the member's pistols or revolvers are located may be directed to retrieve the weapons and deliver them to either the member's command or to the command in which the investigation is being conducted, if appropriate.*

7. Have **PROPERTY CLERK INVOICE (PD521-141)** prepared for firearms obtained. Include on **INVOICE** notation "Property of uniformed member of the service - Not to be returned without approval of Commanding Officer, Medical Division."
   a. Place **IDENTIFICATION CARD** into a Plastic Security Envelope and seal (do not prepare **PROPERTY CLERK INVOICE**).
   b. Secure firearms and **IDENTIFICATION CARD** in the command's property locker.
   c. Make appropriate entries in Command Log.

***NOTE*** *Do not prepare* ***REMOVAL/RESTORATION OF FIREARMS REPORT (PD524-152)****.*

**RANKING OFFICER**

8. Notify Employee Assistance Unit (24 hours/7 days a week).
9. Prepare detailed confidential report addressed to Commanding Officer, Medical Division, and forward direct.
10. Forward copies of the report to:
    a. C.O., Health and Wellness Section (Attention: Employee Assistance Unit) in all cases.
    b. The member's commanding officer in all cases.
    c. Chief of Internal Affairs (IAB) only if the incident generates an IAB log number. (Notify IAB Command Center of results of investigation).
    d. Internal Affairs Bureau Investigations Unit concerned, only if further investigation of the incident is necessary.

***NOTE*** *If the incident involves corruption/serious misconduct, comply with A.G. 318-06, "Suspension From Duty-Uniformed Member of the Service," or A.G. 318-13, "Removal and Restoration of Firearms" and P.G. 207-21, "Allegations of Corruption and Serious Misconduct Against Members of the Service."*

11. Direct member concerned to:
    a. Report to their permanent command at 0900 hours for each tour of duty that falls on a business day.
    b. Work normally assigned tour hours whenever tour of duty falls on a weekend or holiday.

**COMMANDING OFFICER, MEDICAL DIVISION**

12. Review confidential report prepared by ranking officer.
13. Determine with supervisory psychologist if member concerned should be evaluated by the Behavioral Care and Support Section.
14. Notify member concerned to appear at Behavioral Care and Support Section if determination is made that member requires evaluation.

WHEN IT IS DETERMINED THAT THERE IS A MEDICAL OR PSYCHOLOGICAL REASON FOR THE MEMBER'S FIREARMS TO BE OFFICIALLY REMOVED

**COMMANDING OFFICER, MEDICAL DIVISION**

15. Have member's firearms officially removed when deemed necessary.

***NOTE*** *Medical Division will be responsible for:*

*a. Placing member on restricted duty.*
*b. Issuing a Firearms Removal serial number.*
*c. Preparing* ***REMOVAL/RESTORATION OF FIREARMS REPORT*** *and forwarding it to desk officer, command of surrender.*
*d. Notify commands concerned regarding member's status and the official removal of firearms.*

***NOTE (continued)***

*e. Directing member to report to Shield, ID and Uniformed Services Group for a restricted duty **IDENTIFICATION CARD**.*

**DESK OFFICER, COMMAND OF SURRENDER**

16. Comply with *A.G. 318-13, "Removal and Restoration of Firearms,"* upon receipt of **REMOVAL/RESTORATION OF FIREARMS REPORT** from Medical Division, as necessary.

WHEN DETERMINATION IS MADE THAT MEMBER DOES NOT REQUIRE A PSYCHOLOGICAL EVALUATION OR A PSYCHOLOGICAL EVALUATION FINDS NO BASIS TO OFFICIALLY REMOVE THE MEMBER'S FIREARMS

**COMMANDING OFFICER, MEDICAL DIVISION**

17. Notify desk officer, command of surrender and also member's permanent command, if different that:
    a. There is no medical/psychological objection to returning the member's firearms and **IDENTIFICATION CARD**.
    b. Member may choose to report to the Employee Assistance Unit on the next business day.

**DESK OFFICER, COMMAND OF SURRENDER/ MEMBER'S PERMANENT COMMAND**

18. Make:
    a Return call to Medical Division to verify authenticity of the notification
    b. Entry in Telephone Record.
19. Notify commanding officer and roll call personnel.
20. Return firearms and **IDENTIFICATION CARD** to member.
21. Ensure that member is aware that they may report to the Employee Assistance Unit on the next business day.
22. Make Command Log entry.

**EMPLOYEE ASSISTANCE UNIT**

23. Conduct Career Guidance Interview with the member upon arrival at the Employee Assistance Unit.

***ADDITIONAL DATA***

*Member concerned will remain in possession of their shield when temporary removal is for non-disciplinary reasons.*

*The interview with the Employee Assistance Unit may take place after the member's firearms have been returned provided the interview takes place on the next business day.*

*AUTHORIZATION TO SAFEGUARD FIREARMS AT MEMBER'S COMMAND DUE TO A CURRENT PERSONAL PROBLEM*

*When a member believes that possession of firearms, during off-duty hours, could further aggravate a current personal problem, (e.g. potential domestic violence accusations), the member concerned may request that their firearms be safeguarded at the command. The desk officer must make a Command Log entry each tour the member*

***ADDITIONAL DATA (continued)***

*elects to safeguard their firearms. The entry will indicate the date, time, rank, name and tax registry number of the member making the request, and the serial numbers of all firearms being safeguarded. An entry concerning the justification for this type of request is not required. A notification in the margin of the original entry will also be made indicating the date and time the firearms were returned to the member. The member will continue to perform full duty according to the normal duty chart or work schedule. At the conclusion of each tour the member may deliver their firearms to the desk officer until the personal problem is rectified.*

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# ADMINISTRATIVE GUIDE

| Section: Medical, Health and Wellness | | Procedure No: 330-12 |
|---|---|---|
| **DEPARTMENT AMBULANCE SERVICE** | | |
| DATE EFFECTIVE: 11/18/21 | LAST REVISION: I.O. 110 | PAGE: 1 of 1 |

**PURPOSE** To provide ambulance service, oxygen therapy and/or medical appliances under certain circumstances.

**ELIGIBILITY** Uniformed members of the service, active and retired, and members of their immediate families.

**PROCEDURE** When Department ambulance service, oxygen therapy and/or medical appliances are required.

**UNIFORMED MEMBER OF THE SERVICE**

1. Telephone Emergency Medical Squad, Emergency Service Unit.
2. Advise dispatcher of service required.

***NOTE*** *Emotionally disturbed persons or cases in which an airborne contagious disease is diagnosed or suspected are not to be transported in Department Ambulance.*

**EMERGENCY MEDICAL SQUAD DISPATCHER**

3. Notify Office of the Chief of Special Operations if vehicle is to respond to location outside New York City.
4. Make required Log entries.

***ADDITIONAL DATA*** *Ambulance service, oxygen therapy and/or medical appliances, including hospital beds, wheelchairs, walkerettes, etc., are available Monday through Friday, from 0630 to 2300 hours. Ambulance service is available at other times, if sufficient notice is given.*

*In emergency cases where oxygen therapy is already in place, Emergency Service Units can provide oxygen bottles until such time as the Emergency Medical Squad can provide a replacement.*

*Emergency Medical Squad vehicles will respond to locations within New York City or a 250 mile radius, without prior approval, providing that one point of trip is within the confines of New York City.*

*a. Any variations of the above must be approved by the Commanding Officer, Emergency Medical Squad or the Director of the Police Relief Fund.*

# ADMINISTRATIVE GUIDE

| Section: Medical, Health and Wellness | | Procedure No: 330-13 |
|---|---|---|
| **REQUEST FOR PRE-EXPOSURE VACCINATION AGAINST HEPATITIS B** | | |
| DATE EFFECTIVE: 12/31/24 | LAST REVISION: R.O. 78 | PAGE: 1 of 3 |

**PURPOSE** To provide members of the service (uniformed and civilian) who risk a potential significant exposure to Hepatitis B virus during the performance of duty with the opportunity to participate in this Department's Hepatitis B Pre-Exposure Vaccination Safety Program.

**DEFINITION** OCCUPATIONAL EXPOSURE is considered to be reasonably anticipated contact with a vulnerable point of entry of the member of the service, such as:

a. Eyes
b. Mouth
c. Other mucous membranes
d. Broken skin

AND a potentially infectious substance, such as:

(a) Blood
(b) Body fluids/secretions (i.e., semen, vaginal secretions, amniotic fluid, human tissue or organs).

**PROCEDURE** To obtain the series of three inoculations of the vaccine against Hepatitis B:

**COMMANDING OFFICER, POLICE ACADEMY**

1. Provide training sergeants from patrol and non-patrol commands with appropriate instructions, instructor guides and materials, prior to the command level training cycle or its equivalent.

**COMMANDING OFFICER CONCERNED**

2. Ensure that every member receives blood borne disease "Right-to-Know" training and that members in the designated titles listed below be offered the opportunity to receive free of charge, a series of three inoculations of the vaccine against Hepatitis B. Have members of the service in designated titles, who have not already done so, prepare and return the **HEPATITIS B VACCINATION ACCEPTANCE/ DECLINATION (PD429-147)**:

a. Uniformed members of the service
b. Assistant Stock Handlers and related titles or assignments within the Property Clerk Division who may handle vouchered items such as blood contaminated evidence
c. Associate Traffic Enforcement Agent
d. Auto Mechanic Diesel
e. Auto Mechanics and related titles
f. Auxiliary Police Officers
g. Cadets and related titles
h. Chemist and Criminalists
i. City Research Scientists
j. Custodians and related titles
k. Electrician and related titles

**COMMANDING OFFICER CONCERNED (continued)**

l. Evidence and Property Control Specialists
m. Fingerprint technicians and related titles
n. Industrial Hygienists
o. Maintenance Worker
p. Motor Vehicle Operators
q. Nurses
r. Photographers and Senior Photographers
s. Plumbers and related titles
t. Police Attendants
u. School Crossing Guards
v. School Safety Agents Level 1-3
w. Surgeons and Dentists
x. Traffic Enforcement Agents

***NOTE*** *Other titles/assignments not listed will be considered on a case by case basis by the Occupational Safety and Health Section.*

**TRAINING SERGEANT**

3. Report, as directed, to the Police Academy for instruction and materials.

***NOTE*** *Commanding officers of units that do not receive command level training are responsible for ensuring that an appropriate member of the command is designated training sergeant, as per A.G. 328-02, "Selection of Command Training Sergeant," and attends pre-cycle instruction. Contact the Advanced Training Unit within the Specialized Training Section for additional information.*

4. Prepare and deliver mandated training to all members assigned to the command.
5. Distribute **HEPATITIS B VACCINATION ACCEPTANCE/ DECLINATION** form to all members in designated titles, if not already distributed.

**MEMBER OF THE SERVICE**

6. Prepare **HEPATITIS B VACCINATION ACCEPTANCE/DECLINATION** form indicating intention to accept or decline vaccination by signing the appropriate section after receiving "Right-to-Know" training in blood borne diseases.

***NOTE*** *If a member has received Hepatitis B inoculations within the past seven years, they must so indicate on the bottom of the form.*

**TRAINING SERGEANT**

7. Collect **HEPATITIS B VACCINATION ACCEPTANCE/DECLINATION** forms from each member of the service in designated titles.
8. Place a photocopy of each **HEPATITIS B VACCINATION ACCEPTANCE/DECLINATION** form in the command's Occupational Safety and Health Administration (OSHA) file.

**TRAINING SERGEANT (continued)**

9. Forward summary, upon completion of training cycle, indicating number of members of the command, by title, who accept or decline vaccinations, to the borough safety officer or overhead command counterpart.
10. Forward completed original **HEPATITIS B VACCINATION ACCEPTANCE/DECLINATION** forms to Commanding Officer, Medical Division, Attention: Hepatitis B Pre-Exposure Vaccination Safety Program, via Department mail.

**COMMANDING OFFICER**

11. Prepare and forward a report to the Chief of Personnel (through channels), upon the completion of each relevant training cycle, verifying that every member of the command, in the designated titles, who have not already done so, has signed a **HEPATITIS B VACCINATION ACCEPTANCE/DECLINATION** form.

**BOROUGH SAFETY OFFICER/ BUREAU EQUIVALENT**

12. Prepare a consolidated summary for the borough/bureau on the 10th of each month, until all training on Hepatitis B within the borough/bureau is completed, indicating the number of members who have been trained and have accepted or declined vaccinations.
13. Forward report of consolidated summary to the Commanding Officer, Medical Division.

**SUPERVISING CHIEF SURGEON**

14. Establish and maintain inoculation protocol.

**COMMANDING OFFICER, MEDICAL DIVISION**

15. Administer inoculation program under the direction of the Supervising Chief Surgeon.

***ADDITIONAL DATA***

*Members of the service should note that participation in the inoculation program is entirely voluntary and will be free of charge to participants. It should also be noted that members must receive the entire three-inoculation series in order to ensure effective protection against Hepatitis B.*

*Vaccination will be provided to members of the service at no charge, and during regularly scheduled tours of duty. Under no circumstances will overtime be granted to facilitate vaccination.*

# ADMINISTRATIVE GUIDE

| Section: Medical, Health and Wellness | | Procedure No: 330-14 |
|---|---|---|
| **DONATING OR REQUESTING BLOOD FROM THE DEPARTMENT'S BLOOD PROGRAM** | | |
| DATE EFFECTIVE: 11/18/21 | LAST REVISION: I.O. 110 | PAGE: 1 of 1 |

**PURPOSE** To donate blood to the Department's blood program or to supply blood to members of the service (uniformed or civilian) active or retired and their families from the Department's blood program.

**PROCEDURE** When a member of the service (uniformed or civilian) wishes to donate blood to the Department's blood program or when there is a need for blood:

**MEMBER OF THE SERVICE**

1. Telephone donation center and identify self as an active or retired member of the service.
   a. Provide Department identification number - [redacted]
2. Make appointment to donate blood as follows:
   a. Uniformed members of the service - during off-duty time
   b. Civilian members - during scheduled working hours.
3. Observe the following precaution prior to giving blood:
   a. Eating is encouraged, but avoid fatty foods such as butter, cream, oils, etc.

**COMMANDING OFFICER**

4. Excuse civilian members for up to three hours of scheduled tour. (Compensatory time is NOT granted for donations made during non-working hours).

**CIVILIAN MEMBER OF THE SERVICE**

5. Deliver receipt from donation center to desk officer or counterpart on return to duty.

***NOTE*** *A member of the service (uniformed or civilian) will <u>not</u> volunteer to donate blood when any of the following conditions exist:*

*a. Prior donation within eight weeks*
*b. Donated five pints within previous year*
*c. Under seventeen or over seventy-five years of age*
*d. Had malaria, jaundice or tuberculosis within the prior two years*
*e. Had hepatitis*
*f. Had tooth extraction within the prior three days*
*g. Body weight is less than one hundred and ten pounds*
*h. Other disqualifying medical condition.*

# ADMINISTRATIVE GUIDE

| Section: Medical, Health and Wellness | | Procedure No: 330-15 |
|---|---|---|
| **REQUESTING BLOOD WHEN OUTSIDE NEW YORK STATE** | | |
| DATE EFFECTIVE: 11/18/21 | LAST REVISION: I.O. 110 | PAGE: 1 of 1 |

**PURPOSE** To assist members of the service (active or retired) and their families when there is a problem obtaining blood outside of New York State.

**PROCEDURE** To request blood or assistance:

**MEMBER OF THE SERVICE**

1. Telephone the Medical Division during business hours and Sick Desk supervisor during non-business hours.
2. Provide the following information:
   a. Patient's name
   b. Identification number (social security, blue cross, etc.)
   c. Residence
   d. Name and address of hospital
   e. Date of admission
   f. Amount requested (pints)
   g. Patient's relationship to member of the service
   h. If patient is Medicare eligible or not.

**MEMBER CONCERNED, MEDICAL DIVISION**

3. Verify member's eligibility and notify Greater New York Blood Center.

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# ADMINISTRATIVE GUIDE

| Section: Medical, Health and Wellness | | Procedure No: 330-16 |
|---|---|---|
| **COUNSELING SERVICES UNIT** | | |
| DATE EFFECTIVE: 11/18/21 | LAST REVISION: I.O. 110 | PAGE: 1 of 2 |

**PURPOSE** To ensure that all members of the service are informed about the Counseling Services Unit.

DEPARTMENT COUNSELING GUIDELINES

**SCOPE** The primary function of the Counseling Services Unit is to assist in the recovery and return to full and productive service those members of the service who are experiencing difficulties with alcohol, prescription medication, gambling or finances. The Department's objective, at all levels, is the early detection and referral of its personnel for evaluation and treatment, either as a self-referral or through a direct supervisory referral. The Counseling Services Unit is not a disciplinary unit, nor a sanctuary for misconduct. To afford confidentiality to members of the service who utilize this program, the Counseling Services Unit is located in a non-Department facility with business hours Monday through Friday, between 0700-1800 hours. During non-business hours the Counseling Services Unit may be contacted through the Sick Desk Supervisor.

Alcoholism is a primary, chronic disease with genetic, psychosocial and environmental factors influencing its development and manifestations. Untreated, the disease is often progressive and fatal. It is characterized by continuous or periodic impaired control over drinking, preoccupation with the drug alcohol, use of alcohol despite adverse consequences, and distortions in thinking, most notably denial. Alcoholism is a fully treatable disease, especially when intervention occurs in the early stages. Self-referral, before the condition results in personal tragedy or misconduct, is ideal. However, it must be emphasized that denial and cover-up are inherent components of this disease. Therefore, supervisors are a vital link to the process of early detection, referral, treatment and recovery. A supervisor may contact the Counseling Services Unit and request that a member be evaluated.

Federal law and regulations governing confidentiality prohibit disclosure of any information or record pertaining to substance abuse treatment. The Counseling Services Unit may not disclose any information that identifies a member as a participant except under the following circumstances:

a. Written consent from the member concerned
b. Valid subpoena and U.S. District Court Order
c. Suspected child abuse
d. Danger to self or another

**SCOPE (continued)**

Records maintained by the Counseling Services Unit are absolutely confidential and not duplicated or forwarded anywhere within the Department. In non-disciplinary cases, when a supervisor officially refers a member, no report will be prepared and no record of the referral will be noted in the member's personnel folder. Supervisors making referrals will only be advised as to the level of cooperation and only on a need to know basis.

Members participating in this program will not jeopardize their promotional opportunities. In addition, their current assignments will not ordinarily be changed because of their participation in this program unless, due to the nature of the assignment, a change is deemed to be in the best interests of all parties concerned. However, participation in this program will not exempt a member of the service from disciplinary action for specific acts of misconduct and the consequences of such disciplinary action.

The services of the Counseling Services Unit are NOT available to members of the service for illegal drug use. All members of the service are mandated by provisions of "Drug Screening Tests for Cause for Uniformed and Civilian Members of the Service," (A.G. 332-06) to immediately notify the Internal Affairs Bureau Command Center when illegal drug/controlled substance usage is suspected.

Prior to final adjudication of a disciplinary matter, in all misconduct cases in which the use of alcohol and/or domestic violence is indicated, a conferral with the Employee Assistance Unit must be made, and an assessment and/or referral by the Counseling Services Unit must be conducted. The Department Advocate's Office will ensure that these steps are taken.

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# ADMINISTRATIVE GUIDE

| Section: Medical, Health and Wellness | Procedure No: 330-17 | |
|---|---|---|
| **OCCUPATIONAL HEALTH AND SAFETY** | | |
| DATE EFFECTIVE: 06/07/22 | LAST REVISION: I.O. 71 | PAGE: 1 of 3 |

**PURPOSE** To promote employee health and safety awareness through implementation of Department occupational safety and health programs.

**DEFINITIONS** OCCUPATIONAL SAFETY AND HEALTH SECTION - The Section is responsible for coordinating the Department's occupational safety and health programs and initiatives; ensuring compliance with all federal, state, and city occupational safety and health regulations; and recognizing, evaluating, and controlling workplace hazards through field inspections, interviews, job analysis, and research.

SAFETY COORDINATOR - Acts as liaison between the Occupational Safety and Health Section and command safety officers in all instances in which safety and health are a consideration. Processes and evaluates all requests for information and/or surveys in regards to safety and health issues received from command safety officers for submission to Occupational Safety and Health Section.

The following commands will designate a bureau/borough/division safety coordinator who will report directly to the commander concerned:

1. Office of the Police Commissioner
2. Office of each deputy commissioner
   a. A safety coordinator for the Communications Division will also be designated.
3. Office of Chief of Department
4. Each bureau
   a. A safety coordinator for each patrol borough, Office of the Chief of Special Operations, School Safety Division and Chief of Transportation will also be designated.

***NOTE*** *Duties of the bureau/borough/division safety coordinator may be assigned to the training or personnel officer or other appropriate uniformed or civilian member of the service. Whenever a new safety coordinator or command safety officer is designated, the Occupational Safety and Health Section must be notified in writing.*

COMMAND SAFETY OFFICER - This function is to be performed by the training sergeant or a designated member of the service, who will:

a. Act as liaison for command on safety and health issues.
b. Process and evaluate all requests for information and/or surveys in regard to safety and health issues received from members of the command.
c. Maintain command safety records.
d. Conduct command safety training.

**PROCEDURE** To comply with city, state, and federal occupational safety and health regulations and provide employees with a safe working environment, the following procedure is established:

**CHIEF OF PERSONNEL**

1. Maintain an Occupational Safety and Health Section.

**DIRECTOR, OCCUPATIONAL SAFETY AND HEALTH SECTION**

2. Oversee and coordinate the Department's occupational safety and health-related initiatives and programs.
3. Act as the Agency Safety Coordinator in accordance with pertinent mayoral directives.
4. Oversee and coordinate all operations of the Occupational Safety and Health Section.
5. Monitor and ensure compliance with the provisions of all federal, state, and local occupational safety and health-related laws, acts, regulations, and guidelines.
6. Maintain liaison with the Citywide Office of Occupational Safety and Health, and other agencies as appropriate.
7. Review all occupational safety and health related training materials used by the Department.
8. Conduct safety meetings as needed.
9. Maintain liaison with bureau/command safety coordinators and with command safety officers as appropriate.
10. Keep bureau/command safety coordinators informed of all Department occupational safety and health programs and of any changes to such programs.
11. Assist bureau/command safety coordinators with the maintenance of bureau/command safety programs and inform them of any safety-related developments and findings affecting their commands.
12. Review safety reports forwarded by other commands.
13. Develop and distribute safety posters, bulletins, and information to bureau/command safety coordinators.
14. Provide new information concerning occupational safety and health for inclusion in Police Academy training and Department directives.

**SUPERVISOR, PERSONNEL SAFETY DESK**

15. Inform the Occupational Safety and Health Section of all personnel safety trends, including Department vehicle collisions.
16. Maintain a chronological file of all reported vehicle pursuits.
17. Maintain collision-related forms and reports.
18. Analyze collision data and generate statistical reports for commands and for Department-wide dissemination.

***NOTE*** *Commands may request command specific data on Department vehicle collisions data from the Personnel Safety Desk.*

**BUREAU/ BOROUGH DIVISION SAFETY COORDINATOR**

19. Act as liaison between the Occupational Safety and Health Section and command safety officers in subordinate commands.
20. Maintain current listing of all command safety officers in all subordinate commands.
21. Distribute safety-related posters, training materials, bulletins, forms and other safety and health related information to command safety officers.
22. Ensure commands maintain ***Case With Days Away From Work (DOSH 900)*** as outlined in *A.G. 330-08, "Reporting Work-Related Fatalities, Hospitalization, Injuries and Illnesses."*

**COMMANDING OFFICER/UNIT SUPERVISOR**

23. Appoint training sergeant as command safety officer.
    a. Designate a member of the command as command safety officer in commands without a training sergeant.
24. Implement safety programs to improve work environment for subordinate personnel.

**COMMAND SAFETY OFFICER**

25. Conduct periodic safety inspections.
26. Identify hazardous work conditions.
27. Make safety recommendations to commanding officer.
    a. Assist commanding officer in coordinating action to abate **Notices of Violation (PESH)**.
28. Post safety information and posters on bulletin boards.
29. Maintain liaison with bureau/borough/division safety coordinator.
30. Conduct all required safety training and maintain records of such.
    a. Maintain copies of current lesson plans of all required occupational safety and health training.
    b. Maintain records of training conducted indicating employee's name, tax registry numbers, dates and topics of training on **TRAINING TRACKING FORM (PD408-142)**.
31. Maintain records of all job related injuries and illnesses as required by *A.G. 330-08, "Reporting Work-Related Fatalities, Hospitalization, Injuries and Illnesses."*
    a. Maintain "Public Employees Safety and Health Act Folder."
32. Ensure command complies with the Department's Hazard Communication Program.
    a. Comply with *A.G. 313-05, "Material Safety Data Sheets for Potentially Hazardous Substances."*

# ADMINISTRATIVE GUIDE

| Section: Medical, Health and Wellness | | Procedure No: 330-19 |
|---|---|---|
| **POLICE ESCORT COMPANY** | | |
| DATE EFFECTIVE: 11/18/21 | LAST REVISION: I.O. 99 | PAGE: 1 of 3 |

**PURPOSE** To provide uniformed police officers to act as pall bearers at funerals of active and retired members of the service and escorts at other police functions.

**DEFINITION** POLICE ESCORT COMPANY - Comprised of Precinct/Transit District/PSA police officers assigned to the 1st, 2nd and 3rd squads of the Platoon Duty Schedule.

**PROCEDURE** Upon assignment of a police officer to the Police Escort Company:

**COMMANDING OFFICER, CEREMONIAL UNIT**

1. Select officer for assignment to escort company and notify Precinct/Transit District/PSA commanding officer concerned.

***NOTE*** *In those instances that Commanding Officer, Ceremonial Unit does not assign a specific police officer, the commanding officer concerned will make the selection, subject to the approval of the Commanding Officer, Ceremonial Unit. When the assignment of a police officer to the Escort Company is terminated for any reason, a notification to the commanding officer concerned will be made by the Commanding Officer, Ceremonial Unit.*

**COMMANDING OFFICER, MEMBER CONCERNED**

2. Direct that the following entries be made on member's **FORCE RECORD (PD406-143)**:
   a. Police Escort Company designation
   b. Date of assignment

***NOTE*** *When a member's assignment to the Escort Company is terminated, an entry will be made on the **FORCE RECORD** indicating date of termination.*

3. Ensure that police officers assigned to the Escort Company maintain a good appearance.
   a. Inspect member's uniforms to insure suitability.
4. Have member assigned to proper duty schedule and squad, as follows:
   a. Members assigned to the 2nd squad of the escort company will be assigned to the 2nd squad of the Platoon Duty Schedule.
   b. Members assigned to the 3rd squad of the escort company will be assigned to the 3rd squad of the Platoon Duty Schedule.
   c. Member assigned to the 1st squad of escort commands will be assigned to 1st squad of the platoon duty schedule

**DESK OFFICER**

5. Direct member of the service monitoring FINEST messages to give special attention to message involving Escort Company and immediately notify roll call personnel when such a message is received.

***NOTE*** *If roll call is closed, member concerned will notify desk officer, who will make appropriate notifications.*

**COMMANDING OFFICER, MEMBER CONCERNED**

6. Have member's name and telephone number kept at desk for notification when roll call or clerical personnel are not on duty.
7. Notify Commanding Officer, Ceremonial Unit when member assigned to the Escort Company is the subject of disciplinary proceedings, other than command discipline.
8. Designate another officer of good appearance to substitute for an assigned officer who cannot appear due to court appearance, vacation, sick report, etc.
   a. Forward report indicating reason for assigned member's absence to Commanding Officer, Ceremonial Unit.
9. Ensure that officer responds to assignments as directed by Commanding Officer, Ceremonial Unit.

**COMMANDING OFFICER, CEREMONIAL UNIT**

10. Notify patrol borough commander concerned when an insufficient number of officers are available for a funeral within patrol borough.

**PATROL BOROUGH COMMANDER**

11. Assign required number of officers to Police Escort Company from within patrol borough, exigencies of the service permitting.

**OPERATIONS UNIT**

12. Notify Commanding Officer, Deputy Commissioner, Employee Relations of reported deaths of uniformed members of the service.

***NOTE*** *In the event of a direct request, the Commanding Officer, Deputy Commissioner, Employee Relations will notify the Operations Unit for proper routing and authenticating.*

**COMMANDING OFFICER, DEPUTY COMMISSIONER, EMPLOYEE RELATIONS**

13. Determine unit(s) and squad(s) of Police Escort Company to be assigned upon receipt of notification.
14. Ascertain that proper FINEST message is transmitted by Operations Unit.
15. Forward report of noncompliance to member's commanding officer, if assigned member does not respond.

**COMMANDING OFFICER, MEMBER CONCERNED**

16. Investigate member's absence and forward report of results to Commanding Officer, Ceremonial Unit, within five days.
    a. Take appropriate disciplinary action, if necessary.

***ADDITIONAL DATA*** *No more than two officers from any one command may be assigned to the Police Escort Company. The Police Commissioner's Office may also assign the Police Escort Company to other appropriate functions.*

***ADDITIONAL DATA (continued)***

*When an active uniformed member of the service dies, the Operations Unit will contact the Commanding Officer, Deputy Commissioner, Employee Relations immediately, so that necessary notifications and arrangements can be made.*

*Pallbearer Units and Escort Units are furnished according to the following schedule:*

| *RANK* | *ACTIVE MEMBER LINE OF DUTY DEATH* | | *ACTIVE MEMBER NON-LINE OF DUTY DEATH* | | *RETIRED MEMBER* | |
|---|---|---|---|---|---|---|
| | *PALLBEARER* | *ESCORT* | *PALLBEARER* | *ESCORT* | *PALLBEARER* | *ESCORT* |
| *PO/DET.* | *1* | *3* | *1* | *0* | *1* | *0* |
| *SGT.* | *1* | *3* | *1* | *0* | *1* | *0* |
| *LT.* | *1* | *3* | *1* | *0* | *1* | *0* |
| *CAPT.* | *1* | *3* | *1* | *0* | *1* | *0* |
| *DI/ABOVE* | *1* | *3* | *1* | *0* | *1* | *0* |

*In addition, a ten member Color Guard Unit will be assigned to funerals of all active uniformed members of the service. The Color Guard will be assigned to funerals of all retired uniformed members of the service in the rank of deputy inspector and above. The Color Guard may also be assigned to other appropriate Department functions.*

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# ADMINISTRATIVE GUIDE

| Section: Medical, Health and Wellness | Procedure No: 330-20 | |
|---|---|---|
| **SUPERVISION OF MEMBERS OF THE SERVICE RECEIVING PHYSICAL THERAPY FOR LINE OF DUTY INJURIES** | | |
| DATE EFFECTIVE: 11/18/21 | LAST REVISION: I.O. 99 | PAGE: 1 of 2 |

**PURPOSE** To provide physical therapy treatments for members of the service injured in the line of duty.

**PROCEDURE** When a district surgeon determines that a member of the service injured in the line of duty requires physical therapy:

**DISTRICT SURGEON**

1. Prepare **REQUEST FOR MEDICAL SERVICE AUTHORIZATION (PD429-164)**.
2. Direct member concerned to report to the clinic supervisor to obtain forms necessary to obtain treatment.

**CLINIC SUPERVISOR**

3. Provide the member with the following forms:
   a. **CERTIFICATION OF LINE OF DUTY INJURY /AUTHORIZATION FOR TREATMENT (PD429-052)** with attached **Authorization for Release of Health Information Pursuant to HIPAA (OCA Official Form No. 960)**.
   b. **THERAPY VERIFICATION (PD429-067)**.
   c. **NOTIFICATION OF LINE OF DUTY THERAPY AUTHORIZATION (PD429-053)**.

**MEMBER CONCERNED**

4. Initial item 9b of **Authorization for Release of Health Information Pursuant to HIPAA** and sign form.
5. Present photocopies of **CERTIFICATION OF LINE OF DUTY INJURY/AUTHORIZATION FOR TREATMENT** and **Authorization for Release of Health Information Pursuant to HIPAA** to the integrity control officer along with **THERAPY VERIFICATION** and **NOTIFICATION OF LINE OF DUTY THERAPY AUTHORIZATION**.

**INTEGRITY CONTROL OFFICER**

6. Review forms and return **THERAPY VERIFICATION** to member.
7. Retain **NOTIFICATION OF LINE OF DUTY THERAPY AUTHORIZATION** and the photocopies of **CERTIFICATION OF LINE OF DUTY INJURY/AUTHORIZATION FOR TREATMENT** and **Authorization for Release of Health Information Pursuant to HIPAA** for the duration of the member's physical therapy treatment.

**MEMBER CONCERNED**

8. Present to therapist, prior to treatment, the **CERTIFICATION OF LINE OF DUTY INJURY/AUTHORIZATION FOR TREATMENT** with attached **Authorization for Release of Health Information Pursuant to HIPAA.**
9. Obtain schedule of treatments from therapy provider and forward to roll call personnel.

***NOTE*** *Report any changes of therapy schedule to roll call personnel.*

10. Update **THERAPY VERIFICATION** form after each physical therapy session.

**INTEGRITY CONTROL OFFICER**

11. Make periodic inquiries to the therapy provider during the course of treatments to ensure member is properly attending therapy.

***NOTE***

*Physical therapy authorized by a district surgeon is never granted for a non line of duty injury. The fact that a member is on restricted duty does not entitle the member to attend physical therapy on duty.*

**MEMBER CONCERNED**

12. Return completed **THERAPY VERIFICATION** form to integrity control officer upon completion of final physical therapy treatment.

**INTEGRITY CONTROL OFFICER**

13. Verify member's attendance for treatment at time and date specified on completed **THERAPY VERIFICATION** form.
14. Return copy of completed **THERAPY VERIFICATION** form to the Medical Bills Department of the Medical Division.

***ADDITIONAL DATA***

*When members attend physical therapy at the beginning of a tour, the member will report on duty upon arrival at therapy location and be given a reasonable amount of time to travel back to command upon completion.*

*When members attend therapy in the middle of a tour of duty, the member will be given a reasonable amount of time to travel to the therapy location, complete the therapy, and be given a reasonable amount of time to travel back to command.*

*When members attend therapy near the end of a tour of duty, the member will be given a reasonable amount of time to travel to the therapy location. Upon completion, the member will end the tour at the therapy location and will not be granted time to travel to their residence. If the therapy is completed prior to the scheduled end of tour, the member must request lost time by calling the command.*

*A member must submit a request for lost time if therapy commences after the start of tour and the member elects to travel from their residence to the therapy location direct. Alternatively, a member may request a tour adjustment and begin the tour upon arriving at therapy location, needs of the service permitting.*

*A change of tour should not be granted for the sole purpose of ensuring therapy occurs during department time, (i.e. an officer assigned to a midnight tour should not be granted a tour change to a day tour to attend an afternoon therapy session.)*

*District surgeons may authorize twelve physical therapy sessions to a member of the service, and may repeat the authorization two additional times for a total of thirty six sessions. A member who requires additional therapy beyond thirty six sessions must obtain authorization from a Department Orthopedist*.

# ADMINISTRATIVE GUIDE

| Section: Medical, Health and Wellness | | Procedure No: 330-21 |
|---|---|---|
| **COMMAND LEVEL PEER SUPPORT** | | |
| DATE EFFECTIVE: 07/01/24 | LAST REVISION: R.O. 43 | PAGE: 1 of 2 |

1. Command level peer support ensures that trained peers (i.e., uniformed members of the service of any rank and civilian members of the service of any title), in commands are available to assist and proactively check in with fellow members of the service experiencing stressful or difficult moments in their professional or personal lives. Command level peers serve as liaisons to the Health and Wellness Section support services. The peer support program serves as an additional resource for members of the service, and in not intended to replace any of the existing support services (e.g., employee Assistance Unit m[EAU], Chaplain's Unit, etc.).

2. Peer support members help connect those in need with both internal and external mental health resources. Peer support members are readily available at a command level, and are able to offer a co-worker confidential, informal support and guidance. All peer support members participate in basic mental health and resource focused training facilitated by the Peer Support Coordinator, Health and Wellness clinicians, and EAU peer counselors.

3. Peer support members must work collectively with command training staff to ensure there is clear and consistent messaging regarding member health and wellness. If a peer support member is unavailable, the person/unit requesting may contact EAU, 24 hours a day, seven days a week, for assistance. Clinical oversight is provided by the Health and Wellness Section clinical team. Consultation with the clinical team outside of business hours, Monday through Friday 0830 to 1630 hours, should be directed to EAU. Communications between peer support member and a member of the service must be treated as confidential, except for the following matters that involve:

   a. Threats of harm to self or others,
   b. Abuse or neglect of a child or vulnerable adult, or
   c. Serious misconduct or crimes.

4. Any member of the service in good standing may apply to become a peer support member and will undergo a selection process. Peer support members serve voluntarily while maintaining their current assignment and are expected to have an interest in supporting others, as well as attend annual training and periodic refresher training from the Department while on duty. Peer support members continually share information on mental and physical health, mental illness, suicide prevention, mental health stigma reduction, and related resources. A member of the service may choose to end their participation as a peer support member at any time, with or without prior notice, by notifying the Commanding Officer, health and Wellness Section. In addition, a peer support member may be removed from their designation as a member of the program for instances including but not limited to, breach of confidentiality, consistent failure to attend training, etc.

5. Commanding officers are responsible for ensuring that peer support members are provided with adequate resources to appropriately disseminate information pertinent to member health and well-being. In addition, commanding officers and supervisors may not make adverse personnel decisions against a peer support member (e.g., tour changes, denial of transfer, etc.) based solely on their participation as a peer support member.

6. The Health and Wellness Section provides administrative support and questions should be directed to the Health and Wellness Section via email at [redacted] or via telephone at [redacted] or [redacted] or to EAU at [redacted].

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# ADMINISTRATIVE GUIDE

| Section: Medical, Health and Wellness | | Procedure No: 330-22 |
|---|---|---|
| **CRITICAL INCIDENT STRESS MANAGEMENT** | | |
| DATE EFFECTIVE: 02/15/24 | LAST REVISION: R.O. 6 | PAGE: 1 of 4 |

**PURPOSE** To ensure members of the service who are involved in critical, traumatic, or high stress incidents receive proper stress management support, mental health education, and guidance.

**SCOPE** Members of the service who can benefit from prevention and early intervention following a critical and/or traumatic incident are encouraged to use all of the Department's available resources. The Department has implemented a critical incident stress management program that is administered by the Health and Wellness Section. In addition, ongoing support will be provided in a confidential environment by a Health and Wellness Section qualified mental health professional (QMHP), including peer support counselors from the Employee Assistance Unit (EAU). The program is supplemental to, and not intended to replace, the psychological services the Department currently provides under the auspices of the Medical Division.

**DEFINITIONS**

Critical Incident: For the purpose of this procedure, is an unusually challenging event that has the potential to create significant human distress and interfere with one's normal coping mechanisms.

Traumatic Incident: A mentally and emotionally distressing event that has the potential to overwhelm an individual's normal stress-coping mechanisms. A traumatic incident is defined by an individual's unique reaction to that event, not necessarily by the external magnitude of the event. This event may or may not be life-threatening.

Involved Member of the Service: Any individual that was directly or indirectly involved in the critical incident. This definition was expanded in an effort to recognize the prevalence of vicarious trauma in law enforcement work and provide involved members of the service with proper stress management support, mental health education, and guidance.

Qualified Mental Health Professional (QMHP): A licensed psychologist, licensed social worker, or licensed mental health counselor.

Critical Incident Stress Management (CISM): A formal, comprehensive, integrated, systematic, crisis intervention approach to manage critical incident stress after critical and/or traumatic incidents to promote healthy functioning and recovery. This approach involves coordinated supportive tactics that provide individual and group support, stress education, and coping strategies.

**DEFINITIONS (continued)**

Critical Incident Stress Management Debriefing: A mandatory confidential group discussion conducted by a QMHP and an EAU peer counselor that is designed to help members of the service achieve healthy recovery and functioning after involvement in a critical and/or traumatic incident. It aims at reduction of stress and to promote group cohesion. This process does not constitute any form of psychotherapy and it should never be utilized as a substitute for psychotherapy. This is not a stand-alone process. It will be provided along with crisis support services that may include pre-incident education, crisis management briefing, defusing, individual crisis intervention/wellness check-in, referrals for ongoing professional care, if indicated, and post incident support and psychoeducation.

Individual Critical Incident Stress Management Wellness Check: An individual appointment with a QMHP that is offered to all members of the service approximately one month after the critical incident stress management group debriefing. This voluntary follow up is part of the critical incident stress management continuum to provide additional crisis intervention support, referral assistance, and further psychoeducation or other resources as needed.

Crisis Management Briefing (CMB): A structured group meeting designed to provide information about the event, identify leadership support, educate about typical stress reactions, offer information regarding basic stress management, coping strategies and resources. This process typically starts with an introduction conducted by command leadership, fact phase, reaction phase, and teaching. This meeting may involve participation by command leadership, a QMHP, EAU peer counselor, and, if available, a member of the Chaplains Unit.

Critical Incident Stress Management Defusing: A confidential meeting to review the critical incident, and an overview of self-care strategies to enhance the healing process, promote resiliency and wellness. A defusing may be conducted by a QMHP and/or EAU peer counselor, and/or members of the Chaplains Unit. A defusing is typically conducted at the involved command immediately following a critical event.

**PROCEDURE**

When a critical incident has been identified by the health and wellness critical incident coordinator, director, or other member of the service:

**HEALTH AND WELLNESS CRITICAL INCIDENT COORDINATOR OR DESIGNEE**

1. Review incident details, identify involved member of the service, and notify the operations coordinator at member's command to schedule debriefing.

**OPERATIONS COORDINATOR**

2. Ensure critical incident stress management support is offered to member of the service involved, as close to the event as possible.
   a. Facilitate availability of involved member of the service for participation in the group debriefing.

***NOTE*** *EAU peer counselors may have already visited the command to provide crisis management briefing, defusing, or other stress management support prior to debriefing in certain situations.*

**MEMBER OF THE SERVICE INVOLVED**

3. Report to Health and Wellness Section at 137 Centre Street, 2nd Floor, New York, NY 10013 for group stress management debriefing at assigned meeting time.

***NOTE*** *Attendance at the mandatory preliminary critical incident stress management debriefing or any individual support is confidential. No information related to the debriefing, or other service, shall be conveyed to other members of the service, including members of the service assigned to disciplinary and/or investigative units, other than attendance records. Participation will in no way jeopardize the member of the service's job security, promotional opportunities, and/or career potential. The debriefing process is not a critique of any actions taken by the member of the service, but rather, it is an attempt to alleviate elevated levels of anxiety and/or emotional distress that a member of the service may be experiencing in response to a critical and/or a traumatic incident.*

**HEALTH AND WELLNESS TEAM**

4. Provide outreach to member of the service, approximately one month from the date of the group debriefing, to offer additional support and resources.
   a. Offer EAU supportive follow up, an individual critical incident stress management wellness check-in with QMHP, or resources, as requested.

***ADDITIONAL DATA*** *Common incidents that pose an increased potential for trauma include, but are not limited to:*

*a. An actual or perceived threat to one's life or of serious physical harm,*
*b. Suicide or suicide attempt,*
*c. Serious injury inflicted on, or death of a member of the service,*
*d. Serious injury or death of a non-member of the service, especially a child, under particularly tragic circumstances,*
*e. Cruelty/abuse to a child,*
*f. Line of duty contact with friend/relative during a tragic/traumatic event,*
*g. Death or injury of a person resulting from police action,*
*h. Large scale or prolonged disaster resulting in multiple serious injuries or mass casualties,*
*i. Perceived "failure" during a traumatic event,*
*j. Events with high media exposure,*
*k. Volatile interactions with the community, including riots, and/or*
*l. Any tragic event that may have private/personal emotional significance to a member of the service, particularly an event associated with intense negative emotion or perceived helplessness.*

***ADDITIONAL DATA (continued)***

*The services provided by the Health and Wellness Section are designed to be preventative in nature. The Health and Wellness Section proactively seeks to identify members of the service who are involved in critical and/or traumatic incidents. However, individual reactions to adverse incidents are often best assessed by command level personnel who have intimate, firsthand knowledge of the specific details of the incident and the members of the service involved. Therefore, any supervisor may refer a member of the service who they believe has been exposed to a critical and/or traumatic incident to the Health and Wellness Section by calling [redacted]. In addition, if a member of the service feels they may benefit from critical incident stress management, the member may call the Health and Wellness Section for further support and/or follow up.*

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1. The Employee Assistance Unit (EAU) is the Department's primary resource for peer support. EAU is comprised of uniformed and civilian members of the service in various ranks and titles who have undergone specialized training/education in peer support, suicide prevention and education, and critical incident response. EAU assists members of the service with problems that may be causing concern, either at work or within their personal lives, and are available 24 hours a day, seven days a week, via telephone or in person. EAU peer counselors are not mental health practitioners and they are not intended to replace professional mental health counseling.

2. EAU serves to support members of the service who may be directly involved in an on or off duty critical incident. For the purpose of this procedure, a "Critical Incident" is defined as an unusually challenging event that has the potential to create significant human distress and interfere with one's normal coping mechanisms. In the event of a critical incident, any supervisory member of the service may request the immediate response of EAU to provide peer support and post-critical incident stress management. When an immediate response by EAU is necessary, EAU can be reached directly via phone at [redacted]. A critical incident may include, but is not limited to, the following events:

   a. Suicide or line of duty death of a member of the service,
   b. Serious line of duty injury to a member of the service,
   c. Officer involved shooting (including an accidental discharge that results in an injury),
   d. Significant event involving children,
   e. Any mass casualty incident or natural disaster, and/or
   f. Any incident in which the circumstances are unusual or distressing, and that witnessing or participating in the event is likely to produce a significant emotional reaction.

3. EAU accepts referrals made by supervisors, coworkers, friends and family members. A supervisory referral to EAU does not relieve supervisory members of the service of their obligations, which are outlined elsewhere in the Department Manual. In addition, members of the service may seek peer assistance for themselves or someone else, and they may remain anonymous. Referrals should be made as a preemptive measure when a member of the service is experiencing stress and/or may benefit from peer assistance or appropriate professional referrals. EAU is not part of the disciplinary process or any investigative unit within the Department, and referrals will not be accepted for the purpose of disciplinary action.

4. Members of the service should be aware of behavioral indicators that suggest personal stress. Those who observe behavioral indicators may consult with EAU, or they may remain anonymous and refer a member of the service to EAU. Such indicators include, but are not limited to:

a) Excessive civilian complaints, particularly regarding use of force,
b) Excessive lateness or absenteeism,
c) Abnormal impatience, irritability, aggressiveness, or overreaction,
d) Irrational or bizarre thoughts/actions,
e) Changes in work habits,
f) Erratic mood swings,
g) Significant changes in hygiene, and/or
h) Indications of alcohol or drug use.

5. EAU does not maintain any records detailing information shared during peer support interactions, and will not disclose the content of conversations or interactions with peer counselors to the member of the service's command, supervisor, or other Department units/personnel. Exceptions to confidentiality include:

a. A member of the service who is a danger to themselves or others,
b. Suspected or actual child, elder or domestic abuse,
c. In other cases, where law or Department policy requires disclosure (e.g., criminal activity, employment discrimination, etc.), and/or
d. Where disclosure is requested by the member of the service seeking peer assistance.

6. Promotional and assignment opportunities will not be jeopardized by participation in or utilization of EAU peer counseling services or provided external resources.

**PURPOSE** To ensure that each uniformed and civilian member of the service is evaluated at least once each year.

**SCOPE** All uniformed and civilian members of the service, regardless of rank or assignment, will be evaluated in accordance with this procedure and the chart provided in Appendix "A."

**PROCEDURE** To provide guidance to processing the evaluation of uniformed and civilian members of the service:

**COMMANDING OFFICER CONCERNED**

1. Utilize the "Evaluations Due" computer application in the NYPD Intranet and examine command roster to determine which members of the command may require a **PERFORMANCE EVALUATION**.
2. Assign supervisor(s) to evaluate performance of subordinates.
   a. Designate an appropriate supervisor to prepare **PERFORMANCE EVALUATIONS** of members assigned to the VIPER units, if applicable.

**RATER**

3. Prepare appropriate **PERFORMANCE EVALUATION** form according to directions contained on the form and in the Performance Evaluation Guide.
4. Examine ratee's CPI record, Department recognition, sick record, commendation letters, CCRB record, for entries pertaining to the rating period, as well as any other record of performance documentation (e.g., Command Discipline Log, **SUPERVISOR FEEDBACK FORM**, etc.).
5. Comment on all Performance Areas/Behavioral Dimensions rated below competent (i.e., rated either 2 or 1).
6. Discuss the Department's equal employment opportunity (EEO) policy with ratee.
   a. Make all evaluation decisions in accordance with the Department's EEO policy to ensure compliance
   b. Record any disciplinary action received by a member of the service that was a result of an EEO related issue (see *"ADDITIONAL DATA"*)
   c. Record comments in the section devoted to the "Overall Rater's Comments", indicating that the employee's rights and responsibility regarding EEO issues were discussed
   d. Record comments in the sections devoted to the "Overall Rater's Comments" indicating how well a supervisor has demonstrated their compliance with the Department's EEO policy.
7. Review ratee's **FORCE RECORD (PD406-143)** with member to ensure emergency notification and personal information is up to date.
   a. Update ratee's **FORCE RECORD** as required.
8. Report efforts made to improve attendance of members who are classified "Chronic Absent - Category A" or "Chronic Absent - Category B."
   a. Include a statement concerning efforts made to improve attendance.

**RATER (continued)**

9. Confer with ratee's former supervisor and consult transfer **PERFORMANCE EVALUATION** if observation of ratee is of a limited duration, when appropriate.
   a. Include identity of supervisor conferred with in Overall Rater's Comments.
10. Forward completed **PERFORMANCE EVALUATION** to appropriate reviewer by entering the reviewer's tax registry number.

**REVIEWER**

11. Review all **PERFORMANCE EVALUATIONS** of subordinate personnel.
12. Ensure the ratings of members designated "Chronic Absent" are accurate and objectively reflect the ratee's performance and the impact of absenteeism on such performance.
    a. Give consideration to attendance record of ratee who is classified "Chronic Absent - Category A" in determining appropriate overall rating.
    b. Consider evaluating ratee "Very Low" if member is or has been classified as "Chronic Absent - Category B" during the rating period.
13. Provide additional comments regarding the ratee's performance and submit **PERFORMANCE EVALUATION** to rater.

WHEN REVIEWER IS IN DISAGREEMENT WITH RATER'S EVALUATION

**REVIEWER**

14. Prepare additional **PERFORMANCE EVALUATION** if in disagreement with any portion of the rater's evaluation of ratee.
    a. Forward the additional **PERFORMANCE EVALUATION** to immediate supervisor for review by entering the immediate supervisor's tax registry number.

**EXECUTIVE OFFICER/ COMMANDING OFFICER**

15. Review the additional **PERFORMANCE EVALUATION** prepared by initial reviewer and add comments as the new reviewer.
    a. Submit the additional **PERFORMANCE EVALUATION** to initial reviewer.

**INITIAL REVIEWER**

16. Discuss the additional **PERFORMANCE EVALUATION** with ratee after comments have been made by executive officer/commanding officer.

IN ALL CASES WHEN A PERFORMANCE EVALUATION IS PREPARED

**INITIAL REVIEWER/ RATER**

17. Discuss **PERFORMANCE EVALUATION** with ratee after the rater and the reviewer have made comments.
18. Comply with *P.G. 333-10, "Appeal of Evaluation - Uniformed Members of the Service"* or *P.G. 333-11, "Appeal of Evaluation - Civilian Member of the Service,"* when member of the service appeals their **PERFORMANCE EVALUATION**.
    a. Notify commanding officer of ratee's decision to appeal.
19. Print **PERFORMANCE EVALUATION** for signature of ratee, rater, and reviewer.

**INITIAL REVIEWER/ RATER (continued)**

20. Schedule and conduct interview with ratee.
    a. Be cognizant of any scheduled vacations or absences that may cause a delay in conducting the interview and "finalizing" of **PERFORMANCE EVALUATION**.
21. Provide a copy of **PERFORMANCE EVALUATION** to ratee at interview.
22. Ensure that a completed and signed **PERFORMANCE EVALUATION** is filed in the member's command folder.
23. Certify evaluation process as complete by "finalizing" **PERFORMANCE EVALUATION**.
    a. Submit **PERFORMANCE EVALUATIONS** prior to leaving for vacation or other leave, if such absence would cause a delay in preparation and/or submission of the **PERFORMANCE EVALUATION**.

**COMMANDING OFFICER/ REVIEWER**

24. Prepare interim **PERFORMANCE EVALUATION** if significant change occurs in ratee's performance or as otherwise directed.
    a. If a ratee receives an overall evaluation of below competent (2.5 or lower) or is rated extremely competent (5.0), the reviewer must be in the rank of captain or above, or selected civilian managerial titles.
    b. If ratee is in any Performance Monitoring Program, the reviewer must be the commanding officer. The commanding officer will consult with all appropriate supervisors prior to making any comments.
25. Review delinquent **PERFORMANCE EVALUATIONS** recapitulation on the NYPD Intranet Home Page (Evaluations Due) frequently to determine status of overdue **PERFORMANCE EVALUATIONS** (see "*ADDITIONAL DATA*").
26. Ensure all **PERFORMANCE EVALUATIONS** are forwarded electronically after completion by utilizing the "Print Command Evaluations" feature on the main menu.
    a. This feature provides a supervisor in the rank of lieutenant or above to view all finalized **PERFORMANCE EVALUATIONS** in the command.
27. Ensure a signed copy of the original **PERFORMANCE EVALUATION** prepared for a probationary police officer, probationary sergeant, probationary lieutenant and probationary captain is forwarded to the Probationary Monitoring Unit.
28. Direct rater being transferred or retiring to prepare **PERFORMANCE EVALUATION** for each member the rater is regularly required to evaluate, prior to transfer/retirement.
29. Direct that a transfer **PERFORMANCE EVALUATION** be prepared for members transferred.
    a. Forward **PERFORMANCE EVALUATION** to member's new command.
30. Ensure that members are rated in the command to which assigned or temporarily assigned on the last day of the rating period (conferrals may be made if required).
    a. If a member of the service is not observed during the rating period, (i.e., sick report, leave, retired or resigned, etc.), an explanation, including dates, must be entered on **PERFORMANCE EVALUATION**.

***ADDITIONAL DATA***

*A uniformed or civilian member of the service who is absent for either the majority or the entirety of a rating period due to military service is still entitled to receive a* ***PERFORMANCE EVALUATION****. Pursuant to New York State Military Law, to compute the rating for such a member, raters are to take the average of the three* ***PERFORMANCE EVALUATIONS*** *that the member received prior to their absence for military duty. However, the credited rating must not be less than satisfactory (3.0) or less than the rating that the member received for the period immediately prior to their absence for military service. In the "Overall Rater's Comments:" caption the rater will note the length of time the member was on military duty during the evaluation period and that the evaluation is being prepared pursuant to New York State Military Law. Additional questions concerning evaluations of members of the service absent from their positions due to military service may be directed to either the Performance Analysis Unit or the Legal Bureau.*

*Probationary members of the service do not receive annual* ***PERFORMANCE EVALUATIONS****. An annual* ***PERFORMANCE EVALUATION*** *will be prepared during the next rating period after a member attains permanent rank.*

*Uniformed members of the service who are in rank on probation (e.g., entry-level probationary police officers, probationary sergeants, etc.) and civilian members of the service who have not completed their probationary period or have served less than two years in a provisional status are not permitted to appeal their* ***PERFORMANCE EVALUATION****.*

*All newly promoted sergeants, lieutenants and captains are on probation in rank for a period of twelve months unless cause exists to extend such period for an additional six months. Extension of probation beyond twelve months may be authorized on a case-by-case basis.*

*An extension of probation for newly promoted sergeants, lieutenants, and captains may be requested after six months. This request must be made by the probationary member's commanding officer and accompanied by the fourth month* ***PERFORMANCE EVALUATION****. All requests are to be forwarded through channels to the Professional Standards Division.*

*Members of the service are reminded that appraisal of subordinates' performance is a continuous process. The use of an annual evaluation system DOES NOT relieve supervisors of their responsibility to monitor and document subordinates' performance throughout the rating period. The "Evaluations Due" web page provides a roster of annual and probationary* ***PERFORMANCE EVALUATIONS*** *that are due for specific personnel. Certain commands are required to provide additional* ***PERFORMANCE EVALUATIONS*** *(i.e., investigative track commands and requests due to monitoring). The Online Evaluation System does not preclude commands from providing additional* ***PERFORMANCE EVALUATIONS*** *when necessary.*

*When preparing a* ***PERFORMANCE EVALUATION****, the rater will take into account the ratee's performance concerning equal employment opportunity (EEO) issues. EEO factors having a bearing on the rating in that category will include, but not be limited to, whether the member has engaged in conduct that violates provisions of the Department Manual, Title VII, other applicable equal employment opportunity laws, or the Department's equal employment opportunity policy.*

***ADDITIONAL DATA (continued)***

*In addition, raters will ensure that recognition is given to members who utilize their language proficiency for translation and interpretation in the performance of their regular duties, or as part of the volunteer language initiative. The use of this skill shall be afforded the same recognition as any other special skill needed by the Department. Any experience gained while serving as a translator/interpreter in criminal investigations will be included in the Overall Rater's Comments of the* ***PERFORMANCE EVALUATION****. Commanding officers will ensure that evaluations of volunteer members are not negatively affected by their assignment to translation/interpretation duties. These tasks shall be evaluated as a proportionate part of their assigned duties.*

*A uniformed or civilian member of the service who is absent for either the majority or the entirety of a rating period due to military service is still entitled to receive a* ***PERFORMANCE EVALUATION****. Pursuant to New York State Military Law, to compute the rating for such a member, raters are to take the average of the three* ***PERFORMANCE EVALUATIONS*** *that the member received prior to his/her absence for military duty. However, the credited rating must not be less than satisfactory (3.0) or less than the rating that the member received for the period immediately prior to his/her absence for military service. In the "Overall Rater's Comments:" caption the rater will note the length of time the member was on military duty during the evaluation period and that the evaluation is being prepared pursuant to New York State Military Law. Additional questions concerning evaluations of members of the service absent from their positions due to military service may be directed to either the Performance Analysis Unit or the Legal Bureau.*

*When a sub-managerial civilian member is transferred, the commanding officer/supervisory head will direct that the* ***PERFORMANCE EVALUATION*** *is completed online and the form is forwarded to the Human Resources Division and to the new command. The ratee will be given a copy of the form. The immediate supervisor in the new command will prepare a new Task and Standards of the ratee's new assignment via the Online Evaluation System.*

*If excessive absence, tardiness or poor performance is cited as a reason(s) for a BELOW STANDARDS or WELL BELOW STANDARDS rating, include a copy of the appropriate form including:* ***ABSENCE AND TARDINESS RECORD (PD433-145)****,* ***CIVILIAN RECORD OF SUPERVISORY CONFERENCES (SUB-MANAGERIAL) (PD433-1411)****,* ***CIVILIAN LATENESS/WARNING NOTIFICATION (PD449-122)****, or* ***CIVILIAN UNSATISFACTORY PERFORMANCE WARNING (PD439-012)****, when appropriate.*

## Appendix "A"

## PERFORMANCE EVALUATION SCHEDULE

| RANK/TITLE | DEPARTMENT FORM | RATING PERIOD | DUE AT PERFORMANCE EVALUATION SUPPORT UNIT |
|---|---|---|---|
| Probationary Police Officer | Online Evaluation System | End of 10th, 16th, & 22nd month of probationary period | Immediately after the end of the 10th, 16th, & 22nd month of probationary period |
| Police Officer/Detective specialist *(non-investigatory command)* | Performance Evaluation System (PERF) | January 1st - December 31st | Due January 31st |
| Police Officer assigned to investigative track commands | Online Evaluation System | End of the 8th and 15th month, based on the date assigned to investigative track | Immediately after the end of the 8th and 15th month rating period |
| Detective assigned to investigative track commands | Online Evaluation System | May16th - May 15th | June 15th |
| Probationary Sergeant | Online Evaluation System | End of the 4th and 10th month of probationary period | Immediately after the end of the 4th and 10th month of probationary period |
| Sergeant | Online Evaluation System | January 16th - January 15th | February 15th |
| Probationary Lieutenant | Online Evaluation System | End of the 4th and 10th month of probationary period | Immediately after the end of the 4th and 10th month of probationary period |
| Lieutenant | Online Evaluation System | January 16th - January 15th | February 15th |
| Probationary Captain | Online Evaluation System | End of the 4th and 10th month of probationary period | Immediately after the end of the 4th and 10th month of probationary period |
| Captain through Deputy Chief | Online Evaluation System | June 30th - July 1st | August 1st |
| Assistant Chief and above/Civilian Managers | Managerial Performance Evaluation Form | January 1st - December 31st | January 31st |
| Probationary Civilian Sub-managerial (e.g., SCG, PCT, TEA, PAA, etc.) | Online Evaluation System | End of the 4th and 10th month of probationary period | Immediately after the end of the 4th and 10th month of probationary period |
| Civilian Sub-managerial (e.g., SCG, PCT, TEA, PAA, etc.) | Online Evaluation System | September 16th - September 15th | October 15th |
| Probationary School Safety Agents | Online Evaluation System | End of the 6th and 10th month of probationary period | Immediately after the 6th and 10th month of probationary period |
| School Safety Agents | Online Evaluation System | July 1st - June 30th | July 30th |
| Provisional | Online Evaluation System | End of the 12th and 21st month of provisional status | Immediately after the end of the 12th and 21st month of provisional status |

# ADMINISTRATIVE GUIDE

| Section: Evaluations | | Procedure No: 331-02 |
|---|---|---|
| **EVALUATION OF PROBATIONARY OFFICERS** | | |
| DATE EFFECTIVE: 09/11/26 | LAST REVISION: R.O. 81 | PAGE: 1 of 2 |

**PURPOSE** To ensure proper evaluation of probationary police officers.

**PROCEDURE** Before a probationary police officer is permanently assigned to a command:

**COMMANDING OFFICER, POLICE ACADEMY**

1. Ensure preparation of two copies of **RECRUIT EVALUATION (PD439-1412)**, prior to permanent assignment.
2. Forward original to permanent command.
3. Forward duplicate to Human Resources Division upon assignment to permanent command.

**COMMANDING OFFICER/ SUPERVISOR CONCERNED (PERMANENT COMMAND)**

4. Evaluate continuously, the conduct and performance of probationary police officers.
5. Evaluate probationary police officers via the Online Evaluation System available on the Department's Intranet, three times during their probationary period: the tenth, sixteenth and twenty-second month.

***NOTE*** *The first sixteen months of a probationary police officer's field assignment is a critical phase in the training and maturation of a new police officer. Supervisors must conscientiously evaluate probationary police officers to ensure that members who are unable to satisfactorily perform their duties are identified.*
*In addition to evaluation reports, commanding officers will submit the following reports during the probationary period as they occur, on* ***Typed Letterhead****.*

*a. Request for Charges and Specifications to First Deputy Commissioner.*
*b. Report of any matter that may bear upon the fitness of probationer to Chief of Personnel in a sealed envelope.*

**COMMANDING OFFICER (PERMANENT COMMAND)**

6. Ensure that twenty-second month evaluation specifically recommends "Permanent Appointment," "Extension of Probation" or "Termination of Services," in reviewer's comments area.
   a. Notify the Performance Analysis Unit whenever a probationary police officer receives an overall evaluation less than 3.0.
7. Forward completed **PERFORMANCE EVALUATIONS** via Department Intranet by finalizing the **PERFORMANCE EVALUATION** online.
   a. Ensure a signed copy of the **PERFORMANCE EVALUATION** is printed out and forwarded to Personnel Records Group.

***NOTE*** *When recommending "Termination of Services" or "Extension of Probation" a detailed report to Commanding Officer, Performance Analysis Unit, including all pertinent facts related to the probationary police officer's performance, will be forwarded with a copy of the* ***PERFORMANCE EVALUATION****. If warranted, these recommendations may also be forwarded at any time during the probationary period, prior to the twenty-second month anniversary.*

***ADDITIONAL DATA***

*The probationary period should be utilized to closely scrutinize the member's performance to assess their abilities as a police officer. The entry level probationary period may be extended an additional six months, if necessary, to allow the Department more time to further review and evaluate a probationer's suitability to remain a police officer. When a probationary officer is transferred to a command, their performance from the previous command must be reviewed. Interim evaluations should be prepared when it is apparent there is a problem with an officer's performance. The rater will discuss the probationary evaluation with the ratee. This will make the probationary officer aware of their performance and also place those probationary officers with a 'below standards' evaluation on notice that their performance must show an improvement. When a commanding officer becomes aware that a probationary officer's performance may be below standards, supervisors should be instructed to carefully document the member's performance by utilizing the SUPERVISOR FEEDBACK FORM, command discipline, and when appropriate, charges and specifications. The probationer will be notified of the observed performance deficiencies and instructed on proper Department procedure. Written documentation that the probationer was instructed and counseled will be maintained in the officer's personnel folder.*

NYPD

# ADMINISTRATIVE GUIDE

| Section: Evaluations | | Procedure No: 331-03 |
|---|---|---|
| **EVALUATION OF POLICE OFFICERS AND DETECTIVES ASSIGNED TO INVESTIGATIVE DUTIES** | | |
| DATE EFFECTIVE: 11/18/21 | LAST REVISION: I.O. 110 | PAGE: 1 of 1 |

**PURPOSE** To ensure that each uniformed member is evaluated each year while assigned to investigative duties.

**PROCEDURE** Prior to the scheduled evaluation of uniformed members of the service:

**RATER**

1. Evaluate police officers assigned to investigative (Detective Track) duties two times during their initial fifteen months in such assignment, (eighth, and fifteenth month), using form **PERFORMANCE EVALUATION -DETECTIVES AND POLICE OFFICERS ASSIGNED TO DETECTIVE TRACK COMMANDS (Online Evaluation System)**.

***NOTE*** *The first fifteen months of an investigative assignment is a critical phase in the training and development of a new investigator. Supervisors must conscientiously evaluate police officers/investigators to ensure that members who are not suited for investigative work are not retained in such assignments. If there is a change in performance after the fifteenth month, the member's supervisor MUST immediately submit an interim evaluation.*

2. Evaluate police officers/investigators annually after the initial fifteen months.
3. Evaluate detectives/investigators annually, using form **PERFORMANCE EVALUATION - DETECTIVES AND POLICE OFFICERS ASSIGNED TO DETECTIVE TRACK COMMANDS (Online Evaluation System)**.

**REVIEWER**

4. Comment on the ratee's performance and potential for continuation in an investigative assignment and eventual promotion to detective for all police officers/investigators.
5. Review and sign **EVALUATION** form.

***NOTE*** *When an investigator is designated "Chronic Absent - Category B," it is presumed that the investigator is performing in a substandard manner. If the performance of the "Category B" investigator is rated higher than "Low", the rater must demonstrate how the performance was achieved in spite of the absence record of the investigator. In all cases, the rater must state if the ratee should remain in the investigative assignment. If ratee is a detective, determine if ratee should retain such designation or have such designation revoked and be reassigned.*

**RATER**

6. Audit the investigative time accrued by members assigned to command.
7. Ensure that eighth and fifteenth month evaluations are prepared and promptly forwarded for police officers/investigators assigned to the command.
8. Ensure the **PERFORMANCE EVALUATION** has been finalized.

**PURPOSE** To ensure that police officers and detective specialists assigned to non-investigative Bureaus are evaluated annually utilizing the Performance Evaluation (PERF) System.

**PROCEDURE** When preparing annual evaluations of police officers and detective specialists assigned to non-investigative Bureaus:

**COMMANDING OFFICER CONCERNED**

1. Utilize the PERF System listed under "Applications" on the Department Intranet and examine command roster to determine which members of the command require a **PERFORMANCE EVALUATION**.
   a. Ensure **SUPERVISOR'S QUARTERLY EVALUATIONS** have been completed.
2. Assign supervisor(s) to evaluate performance of subordinates.
   a. Designate an appropriate supervisor to prepare **PERFORMANCE EVALUATIONS** of members assigned to the VIPER units, if applicable.

**RATER**

3. Access the PERF System and select "Start Annual Evaluation" to prepare annual **PERFORMANCE EVALUATION**, after completing the **SUPERVISOR'S QUARTERLY EVALUATION** for the fourth quarter rating period.
   a. Ensure all applicable **SUPERVISOR'S QUARTERLY EVALUATIONS** are prepared for the member concerned.
4. Examine **OFFICER PROFILE REPORTS**, **SUPERVISOR FEEDBACK FORMS**, **OFFICER SELF-REPORT FORMS**, **SUPERVISOR'S QUARTERLY EVALUATIONS**, Command Discipline Log, CPI record, Department recognition, sick record, commendation letters, and CCRB records prepared during the year for each assigned police officer and detective specialist.
5. Provide comments indicating the overall performance of the member of the service.
6. Discuss the Department's equal employment opportunity (EEO) policy with ratee.
   a. Record any disciplinary action received by a member of the service that was a result of an EEO related issue (see *"ADDITIONAL DATA"*).
   b. Record comments indicating that the employee's rights and responsibilities with regard to EEO issues were discussed.
7. Review ratee's **FORCE RECORD (PD406-143)** with member to ensure emergency notification and personal information is up to date.
   a. Update ratee's **FORCE RECORD** as required.
8. Report efforts made to improve attendance of members who are classified "Chronic Absent - Category A" or "Chronic Absent - Category B."
   a. Include a statement concerning efforts made to improve attendance.
9. Confer with ratee's former supervisor if observation of ratee is of a limited duration, when appropriate.
   a. Include identity of supervisor conferred with in comments section.

**RATER (continued)**

10. Ensure the total annual score the member earned as per the Police Officer/Detective Specialist Monthly/Quarterly Performance Review and Rating System corresponds with the assignment of the Overall Evaluation rating as listed in the chart below.

| TOTAL ANNUAL SCORE | OVERALL EVALUATION |
|---|---|
| 90-100 | Exceptional |
| 77-89 | Exceeds Expectations |
| 68-76 | Meets Standards |
| 60-67 | Needs Improvement |
| 59 or BELOW | Unsatisfactory |

**REVIEWER**

11. Review **PERFORMANCE EVALUATION** and ensure Overall Evaluation rating as indicated reflects actual performance as measured by the Police Officer/Detective Specialist Monthly/Quarterly Performance Review and Rating System.
12. Ensure the ratings of members designated "Chronic Absent" are accurate and objectively reflect the ratee's performance and the impact of absenteeism on such performance.
    a. Give consideration to attendance record of ratee who is classified "Chronic Absent - Category A" in determining appropriate overall rating.
    b. Consider evaluating ratee unsatisfactory, if member is or has been classified as "Chronic Absent - Category B" during the rating period.

**RATER**

13. Sign off on **PERFORMANCE EVALUATION**.
14. Interview ratee in a private setting and discuss overall performance.
    a. Review **PERFORMANCE EVALUATION** with ratee and direct ratee to accept or appeal on **PERFORMANCE EVALUATION**.

**RATEE**

15. Review **PERFORMANCE EVALUATION**.
16. Provide comments.
17. Accept or appeal **PERFORMANCE EVALUATION**.

**RATER**

18. Comply with *A.G. 333-10, 'Appeal of Evaluation – Uniformed Members of the Service,'* when member of the service appeals their PERFORMANCE EVALUATION.
    a. Notify commanding officer of ratee's decision to appeal.

**REVIEWER**

19. Review **PERFORMANCE EVALUATION** and provide comments.
20. Finalize **PERFORMANCE EVALUATION**.
21. Provide a copy of **PERFORMANCE EVALUATION** to ratee.
22. Ensure that a completed **PERFORMANCE EVALUATION** is filed in the member's command folder.

**COMMANDING OFFICER/ REVIEWER**

23. Prepare interim **PERFORMANCE EVALUATION** if significant change occurs in ratee's performance or as otherwise directed.
    a. If a ratee receives an overall evaluation of needs improvement or unsatisfactory (67 or lower) or is rated exceptional (90 or higher), the reviewer must be in the rank of captain or above, or selected civilian managerial titles.
    b. If ratee is in any Performance Monitoring Program, the reviewer must be the commanding officer. The commanding officer will consult with all appropriate supervisors prior to making any comments.
24. Review delinquent **PERFORMANCE EVALUATIONS** recapitulation in the PERF System under "PERF Report," frequently, to determine status of overdue **PERFORMANCE EVALUATIONS**.
25. Direct rater being transferred or retiring to prepare **PERFORMANCE EVALUATION** for each member the rater is regularly required to evaluate, prior to transfer/retirement.
26. Direct that a transfer **PERFORMANCE EVALUATION** be prepared for members transferred.
    a. Forward **PERFORMANCE EVALUATION** to member's new command.
27. Ensure that members are rated by the command to which assigned or temporarily assigned on the last day of the rating period (conferrals may be made if required).
    a. If a member of the service is not observed during the rating period, (i.e., sick report, leave, retired or resigned, etc.), an explanation, including dates, must be entered on **PERFORMANCE EVALUATION**.

**COMMANDING OFFICER**

28. Ensure annual **PERFORMANCE EVALUATIONS** are completed and finalized by January 31st of each year.

WHEN REVIEWER IS IN DISAGREEMENT WITH RATER'S EVALUATION

**REVIEWER**

29. Prepare additional **PERFORMANCE EVALUATION** if in disagreement with any portion of the rater's evaluation of ratee.
    a. Forward the additional **PERFORMANCE EVALUATION** to immediate supervisor for review by entering the immediate supervisor's tax registry number.

**COMMANDING OFFICER/ EXECUTIVE OFFICER**

30. Review the additional **PERFORMANCE EVALUATION** prepared by initial reviewer and add comments as the new reviewer.
    a. Submit the additional **PERFORMANCE EVALUATION** to initial reviewer.

**INITIAL REVIEWER**

31. Discuss the additional **PERFORMANCE EVALUATION** with ratee after comments have been made by executive officer/commanding officer.

***ADDITIONAL DATA***

*Members of the service are reminded that appraisal of subordinates' performance is a continuous process. The use of the Performance Evaluation System DOES NOT relieve supervisors of their responsibility to monitor and document subordinates' performance throughout the rating period.*

*When preparing a **PERFORMANCE EVALUATION**, the rater will take into account the ratee's performance concerning substantiated equal employment opportunity (EEO) violations. EEO factors having a bearing on the rating in that category will include, but not be limited to, whether the member has engaged in conduct that violates provisions of the Department Manual, Title VII, other applicable equal employment opportunity laws, or the Department's equal employment opportunity policy.*

*In addition, raters will ensure that recognition is given to members who utilize their language proficiency for translation and interpretation in the performance of their regular duties, or as part of the Language Initiative Program. The use of this skill shall be afforded the same recognition as any other special skill needed by the Department. Any experience gained while serving as a translator/interpreter in criminal investigations will be included in the comments section of the **PERFORMANCE EVALUATION**.*

*Commanding officers will ensure that evaluations of volunteer members are not negatively affected by their assignment to translation/interpretation duties. These tasks shall be evaluated as a proportionate part of their assigned duties.*

*A uniformed member of the service who is absent for either the majority or the entirety of a rating period due to military service is still entitled to receive a **PERFORMANCE EVALUATION**. Pursuant to New York State Military Law, to compute the rating for such a member, raters are to take the average of the three **PERFORMANCE EVALUATIONS** that the member received prior to their absence for military duty. However, the credited rating must not be less than meets standards (68-76) or less than the rating that the member received for the period immediately prior to their absence for military service. In the comments section the rater will note the length of time the member was on military duty during the evaluation period and that the evaluation is being prepared pursuant to New York State Military Law. Additional questions concerning evaluations of members of the service absent from their positions due to military service may be directed to either the Performance Analysis Unit or the Legal Bureau.*

*When a **PERFORMANCE EVALUATION** has been prepared in error, a report on **Typed Letterhead** will be submitted to the Performance Analysis Unit requesting that the **PERFORMANCE EVALUATION** be voided/deleted from the system.*

# ADMINISTRATIVE GUIDE

| Section: Evaluations | | Procedure No: 331-05 |
|---|---|---|
| **EVALUATIONS OF SERGEANTS/LIEUTENANTS** | | |
| DATE EFFECTIVE: 05/03/24 | LAST REVISION: R.O. 24 | PAGE: 1 of 2 |

**PURPOSE** To ensure that each uniformed member of the service in the rank of sergeant and lieutenant is evaluated at least once each year.

**PROCEDURE** Prior to the scheduled evaluation of uniformed members of the service:

**RATER**

1. Evaluate probationary sergeants on form **PERFORMANCE EVALUATION SERGEANT (Online Evaluation System)** and probationary lieutenants on form **PERFORMANCE EVALUATION LIEUTENANT (Online Evaluation System)**, two times during their probationary period, at the fourth and tenth month. The sixteenth month evaluation is only required for sergeants and lieutenants whose probation has been extended.

***NOTE*** *Raters must conscientiously evaluate probationary sergeants and lieutenants to ensure that members who are unable to satisfactorily perform their duties are identified. Interim evaluations are to be submitted when necessary, (e.g., change in the ratee's performance, etc.).*

**RATER**

2. Evaluate sergeants and lieutenants annually upon completion of their probationary period on appropriate **PERFORMANCE EVALUATION REPORTS**.
3. Confer with commanding officer, when evaluating sergeants or lieutenants assigned as precinct detective squad supervisors/commanders. Record this conferral in the "Overall Rater's Comments" section, noting the precinct commander's overall evaluation of the ratee.

**REVIEWER**

4. Review and sign **EVALUATION**.

**RATER**

5. Forward completed **PERFORMANCE EVALUATIONS** via Department Intranet by finalizing the **PERFORMANCE EVALUATION** online.
   a. Ensure a signed copy of the **PERFORMANCE EVALUATION** is printed out for probationary sergeants and probationary lieutenants and forwarded to Probationary Monitoring Unit, One Police Plaza, Room 1000.

***ADDITIONAL DATA*** *Rater performing evaluation of a precinct detective squad supervisor or commander will confer with the precinct commanding officer to ascertain the commanding officer's overall evaluation of the precinct detective squad supervisor/commander's performance. Conferral with the precinct commanding officer and the precinct commanding officer's overall evaluation will be noted in the RATER COMMENTS section of the precinct detective squad supervisor/commander's annual performance evaluation.*

***ADDITIONAL DATA (continued)***

*A uniformed or civilian member of the service who is absent for either the majority or the entirety of a rating period due to military service is still entitled to receive a **PERFORMANCE EVALUATION**. Pursuant to New York State Military Law, to compute the rating for such a member, raters are to take the average of the three **PERFORMANCE EVALUATIONS** that the member received prior to their absence for military duty. However, the credited rating must not be less than satisfactory (3.0) or less than the rating that the member received for the period immediately prior to their absence for military service. In the 'Overall Rater's Comments' caption the rater will note the length of time the member was on military duty during the evaluation period and that the evaluation is being prepared pursuant to New York State Military Law. Additional questions concerning evaluations of members of the service absent from their positions due to military service may be directed to either the Performance Analysis Unit or the Legal Bureau.*

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# ADMINISTRATIVE GUIDE

| Section: Evaluations | | Procedure No: 331-06 |
|---|---|---|
| **EVALUATION OF CAPTAIN THROUGH DEPUTY CHIEF** | | |
| DATE EFFECTIVE: 08/20/25 | LAST REVISION: R.O. 75 | PAGE: 1 of 2 |

**PURPOSE** To ensure that each uniformed member of the service in the rank of captain through deputy chief, as well as police surgeons and deputy chief surgeon is evaluated at least once each year.

**PROCEDURE** During the evaluation period:

**RATER**

1. Evaluate probationary captains three times during probationary period, on the 4th, 10th, and 16th month, if necessary, using the Online Evaluation System on the Department Intranet.

***NOTE*** *All newly promoted captains are on probation for a period of twelve months unless cause exists to extend such period for an additional six months. Extension of probation beyond twelve months may be authorized on a case-by-case basis. Interim performance evaluations are to be submitted when necessary (e.g., change in the ratee's performance, etc). Raters must conscientiously evaluate probationary captains to ensure that members who are unable to satisfactorily perform their duties are identified. Those members in the rank of captain who are on probation, yet are serving in the capacity of commanding officer, may be rated using the Online Evaluation System on the Department Intranet. The bureau chief concerned will make the determination of which evaluation instrument is best suited to the ratee.*

**RATER**

2. Evaluate permanent captains through deputy chiefs, as well as police surgeons and deputy chief surgeons using the Online Evaluation System on the Department Intranet.

***NOTE*** *This evaluation instrument is based on a Management By Objectives (MBO) system. This system is flexible, allowing changes to be made to each Key Result Area as circumstances dictate. This allows raters and ratees to better address actual problems and priorities as they arise.*

3. Discuss and define five Key Result Areas (KRAs) with the ratee at the beginning of the rating period.
4. Discuss and define the "Performance Expectations" for each KRA and the "Action Plans" by which to attain results.
5. Record the KRAs and "Performance Expectations" in the evaluation.
6. Record the actual "Performance Achievements" in the evaluation at the end of the rating period.
7. Discuss and measure the individual's performance during the post-appraisal interview, using the predetermined criteria.

**REVIEWER**

8. Review and sign evaluation.

**RATER**

9. Forward a copy of the evaluation to the Human Resources Division at beginning of rating period (July 1st.).

***ADDITIONAL DATA***

*Captains assigned as precinct commanders will be rated by patrol borough operations commander and the patrol borough commander will serve as the reviewing officer. Deputy Inspectors and above assigned as precinct commanders will be rated by the patrol borough adjutant and the patrol borough commanding officer will serve as the reviewing officer. Rater will use the Online Evaluation System for all captain evaluations.*

*A uniformed or civilian member of the service who is absent for either the majority or the entirety of a rating period due to military service is still entitled to receive a performance evaluation. Pursuant to New York State Military Law, to compute the rating for such a member, raters are to take the average of the three performance evaluations that the member received prior to their absence for military duty. However, the credited rating must not be less than satisfactory (3.0) or less than the rating that the member received for the period immediately prior to their absence for military service. In the "Overall Rater's Comments" caption the rater will note the length of time the member was on military duty during the evaluation period and that the evaluation is being prepared pursuant to New York State Military Law. Additional questions concerning evaluations of members of the service absent from their positions due to military service may be directed to either the Performance Analysis Unit or the Legal Bureau.*

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# ADMINISTRATIVE GUIDE

| Section: Evaluations | | Procedure No: 331-07 |
|---|---|---|
| **EVALUATION OF ASSISTANT CHIEFS AND ABOVE/CIVILIAN MANAGERS** | | |
| DATE EFFECTIVE: 11/18/21 | LAST REVISION: I.O. 110 | PAGE: 1 of 1 |

**PURPOSE** To ensure that each uniformed member of the service in the rank of assistant chief and above as well as civilian employees in the management pay plan, is evaluated at least once each year.

**PROCEDURE** During the evaluation period:

**RATER**

1. Discuss key responsibilities and performance expectations with ratee at the beginning of the evaluation period.
   a. If ratee's immediate supervisor is transferred during the rating period, the newly assigned rater will discuss the previously determined responsibilities and expectations and determine if revisions are required.
2. Record the key responsibilities and performance expectations in section "A" of **MANAGERIAL PERFORMANCE EVALUATION (PD439-1521)**. Assign an importance level to each responsibility.
3. Record in section "B" the relative importance of each of the pre-identified Citywide responsibilities and performance expectations to the ratee's specific position.
4. Forward a copy of **MANAGERIAL PERFORMANCE EVALUATION** to the Human Resources Division at the beginning of the rating period (January 1st).

***NOTE*** *A revision in performance expectations or key responsibilities may be made at any time during the evaluation period. When a revision is made, the ratee must be notified and a new **MANAGERIAL PERFORMANCE EVALUATION** must be prepared, including a notation identifying the change, signed by both the rater and ratee.*

5. Assign ratings to key responsibilities and discuss with ratee at end of rating period.
6. Forward completed **MANAGERIAL PERFORMANCE EVALUATION** to reviewer.

**REVIEWER**

7. Review, sign and forward completed **MANAGERIAL PERFORMANCE EVALUATION** to the Human Resources Division.

**COMMANDING OFFICER/ SUPERVISORY HEAD**

8. Ensure that an evaluation is prepared and forwarded to the Human Resources Division if ratee is transferred during rating period.

**NEW COMMANDING OFFICER/ SUPERVISORY HEAD**

9. Discuss key responsibilities and performance expectations with ratee and enter on new **MANAGERIAL PERFORMANCE EVALUATION.**

# ADMINISTRATIVE GUIDE

| Section: Evaluations | | Procedure No: 331-08 |
|---|---|---|
| **EVALUATION OF SUB-MANAGERIAL CIVILIAN PERSONNEL** | | |
| DATE EFFECTIVE: 08/20/25 | LAST REVISION: R.O. 75 | PAGE: 1 of 2 |

**PURPOSE** To ensure that sub-managerial civilian members of the service are evaluated at least once each year.

**PROCEDURE** During the evaluation period:

**RATER**

1. Inform ratee at beginning of evaluation period of principal tasks and standards upon which ratings will be based.

***NOTE*** *A list of tasks and standards specific to each civilian title may be obtained from the Human Resources Division.*

2. Record tasks and standards using the Online Evaluation System on the Department Intranet.
3. Discuss tasks and standards entered on form with ratee.
   a. Enter date and sign form.
   b. Give form to ratee for signature.
4. Submit form to reviewer for examination and signature.

**COMMANDING OFFICER**

5. Prepare and forward **Typed Letterhead** to the Human Resources Division, indicating that all sub-managerial civilian personnel have been interviewed concerning tasks and expected standards of performance.

**RATER**

6. Complete "Actual Performance Section" of the evaluation at the conclusion of rating period.
   a. Complete appropriate captions on page 1 of form.
   b. Rater prepares an original and two additional copies.
7. Discuss completed evaluation with ratee.
   a. Have ratee sign all three copies (this signature does not mean that ratee agrees with evaluation).
   b. Supply one copy to ratee.
8. Forward original and one copy to reviewer.

**REVIEWER**

9. Examine and sign form.
   a. After review, forward one copy to commanding officer.
   b. File remaining copy in ratee's personal folder at command.

**COMMANDING OFFICER**

10. Forward original to the Human Resources Division with **Typed Letterhead** listing members who have been evaluated.

***ADDITIONAL DATA***

*A uniformed or civilian member of the service who is absent for either the majority or the entirety of a rating period due to military service is still entitled to receive a performance evaluation. Pursuant to New York State Military Law, to compute the rating for such a member, raters are to take the average of the three performance evaluations that the member received prior to his/her absence for military duty. However, the credited rating must not be less than satisfactory (3.0) or less than the rating that the member received for the period immediately prior to his/her absence for military service. In the "Overall Rater's Comments:" caption the rater will note the length of time the member was on military duty during the evaluation period and that the evaluation is being prepared pursuant to New York State Military Law. Additional questions concerning evaluations of members of the service absent from their positions due to military service may be directed to either the Performance Analysis Unit or the Legal Bureau.*

*When a sub-managerial civilian member is transferred, the commanding officer/supervisory head will direct that the performance evaluation is completed and forwarded to the Human Resources Division. The ratee will be given a copy of the evaluation. The immediate supervisor in the new command will prepare a new performance evaluation listing tasks and standards of the ratee's new assignment.*

*If ratee performs below competent standard in the overall evaluation rating, the commanding officer MUST be the reviewer.*

*Comment on all areas rated BELOW STANDARDS or WELL BELOW STANDARDS and all areas rated ABOVE STANDARDS or WELL ABOVE STANDARDS.*

*If excessive absence, tardiness or poor performance are cited as reasons for a BELOW STANDARDS or WELL BELOW STANDARDS rating, include a copy of the appropriate form including:* ***CIVILIAN RECORD OF SUPERVISORY CONFERENCES (SUB-MANAGERIAL) (PD433-1411)****,* ***CIVILIAN LATENESS/WARNING NOTIFICATION (PD449-122)****, or* ***CIVILIAN UNSATISFACTORY PERFORMANCE WARNING (PD439-012)****, when appropriate.*

**PURPOSE** To evaluate the monthly and quarterly performance, when applicable, of police officers/detective specialists assigned to non-investigative Bureaus.

**SCOPE** The Police Officer/Detective Specialist Monthly/Quarterly Performance Review, utilizing the **OFFICER PROFILE REPORT**, measures the performance levels of uniformed members of the service performing enforcement functions.

Police officers/detective specialists assigned to non-investigative Bureaus (e.g., precinct, police service area [PSA], transit district, Strategic Response Group, etc.) performing enforcement functions will be assessed monthly utilizing the **OFFICER PROFILE REPORT** and evaluated quarterly using the **SUPERVISOR'S QUARTERLY EVALUATION**.

Uniformed members of the service whose duties do not involve enforcement activity will not prepare the **OFFICER PROFILE REPORT** nor be evaluated quarterly using the **SUPERVISOR'S QUARTERLY EVALUATION**. Such positions include:

a. Community Affairs Officer,
b. Administrative Quality of Life Officer,
c. Crime Prevention Coordinator, and
d. Auxiliary Police Coordinator.

**PROCEDURE** When preparing monthly/quarterly performance reviews of police officers and detective specialists utilizing the Police Officer/Detective Specialist Monthly/Quarterly Performance Review:

**UNIFORMED MEMBER OF THE SERVICE**

1. Access the Performance Evaluation System and print out a hard copy of the **OFFICER PROFILE REPORT** at the conclusion of each month.

***NOTE*** *The **OFFICER PROFILE REPORT** is an electronic form that is generated in the Performance Evaluation System, which compiles data from numerous Department databases to provide an accurate account of a uniformed member's performance. It will include statistical data (e.g., 7 Majors, Top 911 Locations, Top Collision Locations, etc.) unique to the precinct and platoon to which the reporting member is assigned. In addition, the **OFFICER PROFILE REPORT** will contain information from **OFFICER SELF – REPORT FORMS** and the **SUPERVISOR FEEDBACK FORMS**, when submitted (see ADDITIONAL DATA).*

2. Review and submit **OFFICER PROFILE REPORT** to designated supervisor for review by the second day of the following month.
   a. Submit **REPORT** prior to leave, or if not possible, without delay upon return to duty if scheduled for vacation or other leave.
   b. Inform designated supervisor of any excessive time off patrol for the reported month due to vacation, sick, administrative duties, details, etc.

***NOTE*** *The designated supervisor or another supervisor may print the **OFFICER PROFILE REPORT** for the uniformed member concerned, if the member is unavailable for an extended period due to vacation or other leave.*

**DESIGNATED SUPERVISOR**

3. Review member's **OFFICER PROFILE REPORT**.
   a. Evaluate the uniformed member's performance in proactively addressing community concerns.
   b. Assess the quality and caliber of the member's efforts by carefully reviewing activity including, **SUPERVISOR FEEDBACK FORMS** and **OFFICER SELF-REPORT FORMS**.
      (1) Determine the accuracy, validity, and integrity of the **OFFICER SELF-REPORT FORMS**.
   c. Provide positive feedback and comments for proactive and quality activity.
   d. Compare member's current monthly performance to other members with similar duties by referring to the "Officer Comparison" page of the **OFFICER PROFILE REPORT**.
   e. Provide guidance and direction for improvement and conduct regular follow-ups, when a deficiency is identified.
      (1) Take appropriate steps to improve the uniformed member's performance. These steps include, but are not limited to, assisting the uniformed member in identifying the conditions to be addressed.
      (2) If member fails to improve performance, confer with platoon commander/special operations lieutenant or next higher supervisor.
4. Sign **OFFICER PROFILE REPORT**.
5. Deliver completed **OFFICER PROFILE REPORTS** to platoon commander or other reviewer by the fifth day of the following month.

**PLATOON COMMANDER OR OTHER REVIEWER**

6. Review and sign **OFFICER PROFILE REPORTS**.
7. Forward completed **OFFICER PROFILE REPORTS** to operations coordinator by the seventh day of the month for filing.

**OPERATIONS COORDINATOR**

8. File copies of **OFFICER PROFILE REPORTS**.

**COMMANDING OFFICER**

9. Log into Performance Evaluation System periodically, and review completed **OFFICER PROFILE REPORTS**.

EACH JANUARY, APRIL, JULY AND OCTOBER

**DESIGNATED SUPERVISOR**

10. Log into the Performance Evaluation System to conduct **SUPERVISOR'S QUARTERLY EVALUATION** within seven days following the quarter for which the review is due (e.g., January-March, April-June, July-September and October-December).

**DESIGNATED SUPERVISOR (continued)**

a. Review activity for all three months of the quarter.

b. Rate uniformed member of the service in each of twelve performance areas and be guided by instructions on the electronic form.

(1) Documentation is mandatory for any rating above or below "Meets Standards." Examples of documentation include, but are not limited to, **SUPERVISOR FEEDBACK FORMS**, **OFFICER SELF-REPORT FORMS**, and content listed on the **OFFICER PROFILE REPORT**.

(2) **SUPERVISOR FEEDBACK FORMS**, **OFFICER SELF-REPORT FORMS** and above average activity on the **OFFICER PROFILE REPORT** are to be considered to support rating criteria.

(3) Performance Evaluation System in the Department Intranet will automatically calculate members rating as a score out of 100 points based on ratings.

c. In the "Supervisory Comments" section of the **SUPERVISOR'S QUARTERLY EVALUATION**, note the following:

(1) Any outstanding action or achievement. Examples of outstanding action or achievement include, bribery arrests, pattern robbery arrest or other action, which significantly impacts on crime or issues of community concern

(2) Any deficiencies or areas that need improvement. Include notation if member is designated chronic sick, subject of any disciplinary action or placed on performance monitoring.

11. Discuss ratee's **SUPERVISOR'S QUARTERLY EVALUATION** with platoon commander or other reviewer.

12. Sign off on completed evaluation.

13. Interview member in a private setting and discuss overall performance.

a. Review evaluation with member.

14. Forward evaluation to the platoon commander or other reviewer by the seventh day of the month following reporting period.

***NOTE*** *If a member consistently fails to perform at satisfactory levels, the supervisor will confer with the platoon commander or next higher level supervisor regarding referring the member for performance monitoring. Each quarter, the commanding officer will review all under-performing members and notify the next higher command in writing of action taken and/or recommended.*

**PLATOON COMMANDER OR OTHER REVIEWER**

15. Log into the Performance Evaluation System to review **SUPERVISOR'S QUARTERLY EVALUATION**.

a. If reviewer concurs with rater's evaluation:

(1) Sign off and enter comments.

b. If reviewer disagrees with rater's evaluation:

**PLATOON COMMANDER OR OTHER REVIEWER (continued)**

(1) Confer with rater and direct rater to re-evaluate performance based on conferral and review of activity.

(2) If reviewer still disagrees with rater:

(i) Sign and enter reasons for disagreement in comments

(ii) Prepare separate evaluation, if appropriate.

*NOTE* ***SUPERVISOR'S QUARTERLY EVALUATION*** *rating score will not be finalized until platoon commander or other reviewer reviews and concurs with rating.*

***SUPERVISOR'S QUARTERLY EVALUATION*** *may be appealed to the next higher-ranking supervisor. In all cases, the member's commanding officer (in the rank of captain or above) will make the final determination.*

16. Deliver printed copy of **SUPERVISOR'S QUARTERLY EVALUATION** to the operations coordinator by the tenth day of the month following the reporting period.

**OPERATIONS COORDINATOR**

17. Ensure **SUPERVISOR'S QUARTERLY EVALUATIONS** are finalized by the fifteenth day of the month following the reporting period.

**COMMANDING OFFICER**

18. Access the Performance Evaluation system and review **SUPERVISOR'S QUARTERLY EVALUATIONS**.

19. Personally conduct performance interview for those members who receive a numerical score of 67 or lower (out of 100) for any quarter.
   a. Provide direction and/or take necessary corrective action to improve member's performance.
   b. Inform member that continued below standard performance will, absent mitigating circumstances, results in the member being placed on performance monitoring and possible imposition of sanctions by the Personnel Review Board concerned.
   c. Record and file results of interview.

20. Notify next higher command in writing of uniformed members of the service who received a score of 67 or lower in any two quarters within a one year period.

**NEXT HIGHER COMMAND**

21. Provide oversight and direction in monitoring and improving a uniformed member's performance when they are underperforming.

22. Establish a Personnel Review Board to review all cases of members who receive a score of 67 or lower in any two quarters within a one year period.
   a. Select a minimum of three supervisory members who through assignment and/or knowledge of the member's performance are appropriate for inclusion for the Personnel Review Board.

**PERSONNEL REVIEW BOARD CONCERNED**

23. Review cases and recommend corrective action to be taken.
   a. Corrective action may include change of assignment within the command, intraborough or interborough transfer, transfer from administrative command and/or disciplinary action.

**NEXT HIGHER COMMAND**

24. Review recommendations of Personnel Review Board concerned and make final determination and/or recommendation.
    a. Endorse recommendation concerning transfers and/or disciplinary action, through channels, to the Chief of Personnel.

***ADDITIONAL DATA***

*The **OFFICER SELF-REPORT FORM** can be accessed on a member's Department mobile phone through the CRAFT application and will allow uniformed members of the service to document notable actions that they consider to be positive (e.g., achievements in crime prevention, problem-solving, community engagement, etc.).*

*The **SUPERVISOR FEEDBACK FORM** can be accessed on a supervisor's Department mobile phone through the CRAFT application and will allow the supervisor to highlight commendable actions by a uniformed member of the service (e.g., supervisor observes or becomes aware of exceptional community interaction, uniformed member of the service makes an arrest that closes a precinct pattern, etc.). The **FORM** will also allow supervisors to note areas that may need improvement and indicate what actions were taken to address the deficiency. In addition, minor violations of Department regulations committed by uniformed members of the service can be documented using the **FORM**. The **FORM** can also be completed by supervisors for uniformed members outside of their command (e.g., UMOS assigned to supervisors on details, etc.).*

*Commanding officers will be responsible for determining performance standards within their respective commands and resolving all issues within their command relative to the Monthly Performance Review. Precinct, PSA and transit district commanding officers will also review and direct the conditions to be addressed consistent with applicable crime control strategies and areas of community concern.*

# ADMINISTRATIVE GUIDE

| Section: Evaluations | | Procedure No: 331-10 |
|---|---|---|
| **APPEAL OF EVALUATION - UNIFORMED MEMBER OF THE SERVICE** | | |
| DATE EFFECTIVE: 09/11/26 | LAST REVISION: R.O. 81 | PAGE: 1 of 2 |

**PURPOSE** To permit a uniformed member of the service in permanent rank to appeal their evaluation.

**SCOPE** This procedure does not apply to uniformed members of the service who are in the rank on probation (e.g., entry-level probationary police officers, probationary sergeants, probationary lieutenants or probationary captains).

**PROCEDURE** When a uniformed member in permanent rank wants to appeal a **PERFORMANCE EVALUATION**:

**RATER**

1. Inform commanding officer.

**COMMANDING OFFICER**

2. Act as initial hearing officer.
   a. Schedule interview with members concerned (i.e., rater, reviewer and ratee named on **PERFORMANCE EVALUATION** form), within thirty days of appeal notice.

**NEXT HIGHER COMMAND**

3. Schedule interview and serve as the hearing officer if the commanding officer is the rater on the **PERFORMANCE EVALUATION** form.

**COMMANDING OFFICER/ NEXT HIGHER COMMAND**

4. Attempt to resolve the appeal.
5. Notify the Performance Analysis Unit, via **Typed Letterhead**, within three days of the hearing, detailing the outcome of the hearing or whether the member is going to continue the appeal process to the next level.

**RATEE**

6. Submit a report on **Typed Letterhead**, within thirty days of the hearing, if appeal is NOT RESOLVED at rater/commanding officer/next higher command level, as follows:
   a. Uniformed members of the service below the rank of captain - Personnel Officer concerned
   b. Captains and above – Personnel Officer, Chief of Personnel.

**PERSONNEL OFFICER CONCERNED**

7. Review the matter by interviewing appropriate parties and examining pertinent records.
8. Present findings to Borough/Bureau Commanding Officer or Chief of Personnel.

**BOROUGH/ BUREAU COMMANDING OFFICER/ CHIEF OF PERSONNEL**

9. Evaluate findings presented by personnel officer and render decision.

**PERSONNEL OFFICER CONCERNED**

10. Report decision of Borough/Bureau Commanding Officer or Chief of Personnel in quadruplicate, within three days of receipt of **Typed Letterhead** and interview of parties, as follows:
    a. ORIGINAL - to reviewer named on evaluation form, who will inform rater and ratee of findings and direct preparation of new evaluation, if necessary. Place a copy of report in ratee's command personnel folder
    b. DUPLICATE - to member appealing (i.e., ratee)
    c. TRIPLICATE - forward to Human Resources Division, Personnel Records Group for inclusion in ratee's personnel folder
    d. QUADRUPLICATE - forward to Performance Analysis Unit.

***ADDITIONAL DATA***

*CAUSE FOR AN APPEAL OF PERFORMANCE EVALUATION*

*A uniformed member of the service in permanent rank has the right to appeal the contents, recommendations, or overall rating of their performance evaluation ONLY if cause for appeal stems from:*

*a. Factual error,*
*b. Rater's misinterpretation of instructions,*
*c. Bias or prejudice on the part of the rater,*
*d. **PERFORMANCE EVALUATION** is completed and based upon OTHER THAN performance factors.*

*A uniformed member of the service has the right to review comments and recommendations made by a reviewer named on the **PERFORMANCE EVALUATION** form; however, such comments and recommendations are not causes for appeal by the ratee. Such a review by the ratee is for the ratee's informational purposes only.*

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# ADMINISTRATIVE GUIDE

| Section: Evaluations | | Procedure No: 331-11 |
|---|---|---|
| **APPEAL OF EVALUATION - CIVILIAN MEMBER OF THE SERVICE** | | |
| DATE EFFECTIVE: 10/06/26 | LAST REVISION: R.O. 94 | PAGE: 1 of 2 |

**PURPOSE** To permit a civilian member of the service to appeal an evaluation.

**SCOPE** This procedure does not apply to individuals who have not completed their probationary period or have served less than two years in a provisional status.

**PROCEDURE** When a civilian member wants to appeal a performance evaluation:

**RATER** 1. Inform commanding officer.

**COMMANDING OFFICER** 2. Schedule interview with members concerned (rater, reviewer and ratee), within thirty days of appeal notice.

***NOTE*** *If the commanding officer is also the rater, the rater's immediate supervisor will schedule the interview and serve as the reviewer. If ratee performs below desirable standard, commanding officer MUST be reviewer.*

3. Attempt to resolve appeal.

***NOTE*** *If the matter is not resolved after review by the commanding officer, upon the written request of the ratee to the respective bureau/borough personnel officer for further appeal, a review board will be empanelled at the borough or equivalent level. The respective bureau/borough personnel officer will be responsible for convening the review board. The review board must resolve the appeal within thirty days from receipt of the written request for appeal to the respective bureau/borough personnel officer. For Patrol Services Bureau personnel, the review board will consist of:*

*a. Borough personnel officer,*
*b. Borough adjutant,*
*c. Borough Equal Employment Opportunity (EEO) liaison, and*
*d. Commanding officer from other than the command of the ratee..*

*For bureaus or divisions other than the above, the review board will consist of:*

*a. Personnel officer,*
*b. Bureau executive officer,*
*c. EEO liaison, and*
*d. Division commander from other than the command of the ratee.*

**RATEE** 4. Prepare **Typed Letterhead**, to respective bureau/borough personnel officer requesting further appeal, if appeal is not resolved at the command level, and further review is desired.

**PERSONNEL OFFICER** 5. Convene review board.
a. Appeal must be resolved within thirty days of receipt of request for appeal.

**PERSONNEL OFFICER (continued)**

b. Review board will prepare report on **Typed Letterhead** and forward to ratee, rater, and Performance Evaluation Support Unit.

**PERFORMANCE EVALUATION SUPPORT UNIT**

6. Modify the performance evaluation if directed by the findings of the Review Board.

***NOTE*** *The determination of the review board may be further appealed to the Police Commissioner or the Police Commissioner's designee for a final determination.*

**RATEE**

7. Prepare **Typed Letterhead**, to the Police Commissioner requesting final review if further appeal beyond the determination of the review board is desired.

***NOTE*** *The Police Commissioner, or the Police Commissioner's designee, will make written notification of the final determination of ratee's appeal.*

*A civilian member of the service has the right to review comments and recommendations regarding their performance evaluation. A civilian member of the service has the right to appeal the contents, recommendations, or overall rating of their performance evaluation, ONLY if cause for appeal stems from:*

*a. Factual error,*
*b. Rater's misinterpretation of instructions,*
*c. Bias or prejudice on the part of the rater, or*
*d. Evaluation is based upon other than performance factors.*

# ADMINISTRATIVE GUIDE

| Section: Employee Rights/Responsibilities | | Procedure No: 332-01 |
|---|---|---|
| **EMPLOYMENT DISCRIMINATION** | | |
| DATE EFFECTIVE: 10/10/25 | LAST REVISION: R.O. 100 | PAGE: 1 of 13 |

**PURPOSE** To process and resolve all complaints of employment discrimination, sexual harassment, and/or related retaliation made against Department employees and applicants.

**SCOPE** Federal, State, and/or City laws, and/or Department policy prohibits employment discrimination based on a person's actual or perceived membership in a **protected class.** Employees and applicants for employment who have a complaint of employment discrimination, sexual harassment, and/or related retaliation, or have any questions regarding these complaints, are directed to contact the Office of Equal Employment Opportunity (OEEO). Uniformed and civilian supervisors and managers are required to make all employment decisions in accordance with the Department's Equal Employment Opportunity (EEO) policy. Uniformed and civilian supervisors, managers, and EEO Liaisons must report allegations of sexual harassment and any observations of conduct of a discriminatory or retaliatory nature.

All EEO complaints will be handled under the direction of the OEEO. In appropriate cases, the investigation will be conducted in conjunction with the Internal Affairs Bureau and other Department units as necessary or required.

Prohibited conduct includes the following:

1. Employment Discrimination
   a. Discrimination
   b. Harassment and/or Hostile Work Environment
2. Sexual Harassment
   a. Hostile Work Environment
   b. Quid Pro Quo
3. Retaliation for Protected Activity
   a. Reasonable Accommodation
   b. Prior and/or current complaints

All forms of employment discrimination, sexual harassment, and/or retaliation, are prohibited both in the actual workplace and in any location that can be reasonably regarded as an extension of the workplace.

Employees and applicants should file a complaint with the OEEO at the earliest opportunity if the employee or applicant believes that they have been the victim of employee discrimination, sexual harassment, and/or retaliation, by any uniformed or civilian employee of the Department.

***NOTE*** *A complaint made in good faith will not be considered a false accusation. Knowingly making a false accusation of discrimination, sexual harassment, or retaliation, or knowingly providing false information during the course of an investigation of a complaint may be grounds for discipline.*

**DEFINITIONS**

EMPLOYMENT DISCRIMINATION – Discriminatory treatment regarding any terms, conditions, or privileges of employment, including, but not limited to, hiring, assignments, working conditions, salary and benefits, evaluations, promotions, training, transfers, career development and advancement, leave of absence, recruitment, testing, discipline, termination, or any other application or selection process relating to employment in which an individual is treated less well or is subjected to inferior terms, conditions or privileges, or employment based on actual or perceived status of a person's protected class.

HARASSMENT AND/OR HOSTILE WORK ENVIRONMENT – Harassment based on one or more protected classes, which has the purpose or effect of unreasonably interfering with work performance or creating an intimidating, hostile, offensive, or abusive work environment. This includes offensive or objectionable conduct relating to any protected class including, but not limited to, derogatory or demeaning statements, slurs, jokes, epithets, gestures, notes, materials, images, intimidation, ridicule, insults, discourteous, disparaging, or disrespectful remarks, or communications in violation of this policy.

EXTENSION OF THE WORKPLACE – Including but not limited to an off-site Department sanctioned social function or off-duty conduct that impacts the workplace (e.g., phone calls, text messages, e-mails, and social media usage negatively impacting the workplace can constitute harassment).

PROTECTED CLASSES:

AGE – Protection from discrimination and harassment based on actual or perceived age, except where lawful age requirements apply.

ARREST, CONVICTION RECORD, OR PENDING CASE – Having a prior arrest or conviction record or pending case. However, there are exceptions to this law as the New York City Police Department (NYPD) is a public safety organization.

CAREGIVER STATUS – A person who provides direct or ongoing medical/disability care to a minor child or care recipient.

COLOR – Protection from discrimination and harassment based on actual or perceived color, including complexion or skin pigmentation. This covers preferences or aversions to particular skin tones.

CONSUMER CREDIT HISTORY – Protection from adverse treatment in employment based on consumer credit history – including creditworthiness, payment history, debts, bankruptcies, judgments, and liens. Certain positions such as police officer and high-level roles are exempt.

**DEFINITIONS (continued)**

DISABILITY – A physical, medical, mental, or psychological impairment, or a history or record of such impairment, whether perceived or actual. Pregnancy may also be considered a temporary disability if there are medical conditions arising from the pregnancy or childbirth.

FAMILIAL STATUS – Protection from discrimination based on familial status, including pregnancy, having a child under 18, securing legal custody of a minor, or living with minors under the care of a parent, guardian, or designee.

GENDER/SEX (INCLUDING PREGNANCY, CHILDBIRTH, OR RELATED MEDICAL CONDITIONS) – The term gender encompasses an individual's actual or perceived sex, as well as biological or socially determined characteristics used to classify individuals as male or female.

GENDER IDENTITY OR EXPRESSION – Protection from discrimination and harassment based on actual or perceived gender identity or expression. This includes an individual's self-image, appearance, behavior, or other gender-related characteristics, regardless of sex assigned at birth. It encompasses identities that may not be distinctly male or female and includes non-conforming and transgender individuals.

HEIGHT – Covered persons are protected from discrimination and harassment based on their actual or perceived height.

IMMIGRATION OR CITIZENSHIP STATUS – Protection from discrimination based on a person's immigration or citizenship status. Employers must verify identity and work eligibility.

MARITAL STATUS OR PARTNERSHIP STATUS - Single, unmarried, married, divorced, separated, or widowed persons, as well as all individuals in a domestic partnership.

NATIONAL ORIGIN OR ETHNICITY – Protection from discrimination based on actual or perceived national origin or ethnicity. This includes unfavorable treatment because an individual or their ancestors are from a particular country or part of the world, or due to cultural characteristics like accent, physical traits, or ethnic background.

PREDISPOSING GENETIC CHARACTERISTICS – Protection from discrimination based on inherited genetic traits that are medically or scientifically believed to predispose an individual or their offspring to a disease or disability. This includes traits identified through genetic tests or inferred from family medical history.

**DEFINITIONS (continued)**

RACE – Protection from discrimination and harassment based on actual or perceived race. This includes personal characteristics associated with race, such as hair texture, protective hairstyles, skin color, or certain physical features.

RELIGION/CREED – Protection from discrimination based on actual or perceived religion or creed. This includes individuals who belong to organized religions and those with sincerely held personal religious beliefs.

SALARY OR PAY HISTORY – Agencies cannot ask about a job applicant's salary history during the hiring process including on applications or in interviews. Salary history includes current or prior wages, benefits, or other compensation, but not objective measures of productivity, such as sales figures. Exceptions apply for internal transfers, promotions within or among city agencies, and positions where compensation is set by collective bargaining.

SEXUAL ORIENTATION – Protection from discrimination based on actual or perceived sexual orientation, including an individual's romantic, physical, or sexual attraction to others or lack thereof.

SEXUAL AND REPRODUCTIVE HEALTH DECISIONS – Protection from discrimination based on actual or perceived decisions regarding sexual and reproductive health services. This includes choices related to fertility treatments, sexually transmitted disease prevention, testing and treatment, family planning services, contraception, sterilization procedures, pregnancy testing, abortion, and hormone therapy, or transition-related care for transgender individuals. Retaliation against individuals for exercising these rights is prohibited.

STATUS AS A VETERAN OR ACTIVE-DUTY MILITARY SERVICE MEMBER – Protection from discrimination based on actual or perceived uniformed service, including current or prior service in the armed forces or reserves.

UNEMPLOYMENT STATUS – Protection from discrimination based on an applicant's unemployment status. Employers may not base hiring decisions, compensation, or employment terms on an individual's unemployment unless there is a substantial job-related reason. Certain public agency actions and appointments from eligible lists are exempt from this prohibition.

VICTIM/SURVIVOR OF DOMESTIC VIOLENCE, SEX OFFENSES, AND/OR STALKING – Protection from discrimination and harassment based on being a victim or survivor of domestic violence, sex offenses, or stalking. This includes individuals subjected to acts or threats of violence (excluding self-defense) by a current or former spouse, someone they share a child with, cohabitants, or individuals in a romantic or intimate relationship.

**DEFINITIONS (continued)**

WEIGHT – Covered persons are protected from discrimination and harassment based on their actual or perceived weight.

PROHIBITIED CONDUCT:

SEXUAL HARASSMENT - is a form of gender/sex discrimination. Sexual harassment includes harassment based on sex, sexual orientation, self-identified or perceived sex, gender expression, and gender identity. Sexual harassment can occur between any individuals, regardless of their gender or sex, rank or title, and protections extend to NYPD employees, applicants and any non-employee who is an independent contractor, subcontractor, contract worker, vendor, consultant, freelancer or other person providing services pursuant to a contract in the workplace or client, customer, or visitor.

Sexual harassment is unwelcome sexual advances, request for sexual favors, and other verbal or physical conduct of a sexual nature. Sexual harassment occurs when: (a) Submission to such conduct is made either explicitly or implicitly a term or condition of an individual's employment; or (b) Submission to or rejection of such conduct by an individual is used as the basis for employment decisions affecting such individual; or (c) Such conduct has the effect of unreasonably interfering with an individual's work performance or creating an intimidating, hostile, or offensive work environment.

There are two types of sexual harassment: "hostile work environment" and "quid pro quo."

HOSTILE WORK ENVIRONMENT (HWE) SEXUAL HARASSMENT: HWE sexual harassment is conduct that is directed at an individual; because of their sex, sexual orientation, gender identity, gender expression, or status of being a transgender and has the purpose or effect of unreasonably interfering with an individual's work performance or creating an intimidating, hostile, or offensive work environment. HWE sexual harassment includes:

a. Unwanted verbal or physical advances, sexually explicit derogatory statements, or sexually discriminatory remarks made by someone that are offensive or objectionable to the recipient and that cause the recipient discomfort or humiliation, and/or interfere with the recipient's job performance.
b. Visual material such as pictures, posters, calendars, graffiti, objects, promotional material, reading materials, or other materials that are sexually demeaning or pornographic.
c. Sexual oriented words, gestures, noises, remarks, jokes, pranks, or comments.
d. Repeated requests for dates or romantic gestures, including gift-giving.
e. Physical acts of a sexual nature, such as touching, pinching, patting, grabbing, kissing, hugging, brushing against, or poking another. Physical acts also include serious offenses such as rape, sexual battery, molestation, or attempts to commit these assaults.

**DEFINITIONS (continued)**

f. Interfering with, destroying, or damaging a person's workstation, tools, or equipment, or otherwise interfering with the individual's ability to perform their job; sabotaging an individual's work; bullying, yelling, and name-calling; or intentional misuse of an individual's pronouns.

g. Sex stereotyping, which occurs when someone's conduct or personality traits are judged based on other people's ideas or perceptions about how individuals of a particular sex should act or look, including remarks regarding an individuals' gender expression, such as wearing a garment typically associated with a different gender identity, or asking employees to take on traditional gendered roles.

QUID PRO QUO (QPQ) SEXUAL HARASSMENT: QPQ sexual harassment occurs when a person of authority trades, or attempts to trade, something work-related in exchange for sexual favors. This can include hiring, promotion, continued employment, or any other terms, conditions, or privileges of employment and occurs between an employee and someone with authority. Quid pro quo sexual harassment includes, but is not limited to:

a. Offering or granting better working conditions or opportunities in exchange for a personal and/or sexual relationship.

b. Threatening adverse working conditions (e.g., demotions, tour change/alternation, or post changes) or denial of opportunities if a personal or sexual relationship is refused.

c. Using pressure, threats, or physical acts to force a personal or sexual relationship.

d. Retaliating for refusal to engage in a personal and/or sexual relationship.

***NOTE*** *Sexual harassment, quid pro quo, and hostile work environment can also occur outside the workplace.*

RETALIATION FOR A PROTECTED ACTIVITY – It is a policy violation to retaliate against anyone exercising rights under this policy. Retaliation includes coercion, threats, or interference, directly or indirectly, against those who file discrimination complaints, participate in investigations, start a civil action for discrimination, or request accommodations. It includes any action with negative effects on employment terms, conditions, or privileges, during or after employment.

Adverse actions can include, but are not limited to, reprimands, suspensions, demotions, terminations, loss of benefits, injury to reputation, or threats outside of work hours, are prohibited if based on discriminatory or retaliatory motives. Retaliation also covers those who report discrimination or harassment, support such reports, participate in protected activities, oppose policy violations, or request accommodations. These actions are considered "protected activity."

**DEFINITIONS (continued)**

REASONABLE ACCOMMODATION – Any modification or reasonable adjustment provided by the employer that assists employees and qualified applicants to perform the essential functions of their jobs and enjoy the benefits and privileges of employment. The accommodation cannot create an undue hardship for the Department.

The denial of reasonable accommodations for disabilities; religious beliefs, observances, and practices; victims of domestic violence, sexual and stalking offenses; and pregnancy, childbirth, and related medical conditions (including lactation needs) that do not create undue hardship or direct threat is prohibited. The department is required to engage in a cooperative dialogue with covered persons to determine an effective accommodation under which the employee can perform the essential functions of the job. The obligation to engage in a cooperative dialogue can arise when agencies know, or should have known, that the covered person may need an accommodation. Any accommodation is considered reasonable unless it causes an undue hardship for the agency or direct threat to the agency.

***NOTE*** *Any member of the service who has been found to have engaged in such retaliation, discrimination, or harassment will be subject to disciplinary action regardless of the findings of the initial EEO investigation or proceeding.*

CONFIDENTIALITY – The OEEO and all Department uniformed and civilian supervisors, managers and EEO Liaisons will treat each complaint with CONFIDENTIALITY. This means that information obtained from the complaint revealed during the course of the investigation conducted by the OEEO will not be discussed with other personnel except as necessary to investigate and resolve the complaint or as required by law. Complainants should make every effort to maintain the confidential nature of this process. Witnesses and respondents of an EEO investigation shall not discuss the nature of the complaint being investigated by the OEEO or any aspect of an open or closed OEEO case with anyone except their union representative and/or legal counsel. Failure to maintain confidentiality as defined will result in disciplinary action.

EQUAL EMPLOYMENT OPPORTUNITY (EEO) LIAISONS – At least one or more trained EEO Liaisons must be designated in every command throughout the Department to provide assistance to complainants, witnesses, and others regarding any EEO matters. Generally, EEO Liaisons are non-supervisory members of the service who serve voluntarily with the recommendation of their Commanding Officer and approval of the OEEO. EEO Liaisons are mandated reporters. For further information about the EEO Liaison Network, contact the Program Coordinator at [redacted].

**DEFINITIONS (continued)**

MANDATED REPORTER – All uniformed and civilian supervisors, managers, and EEO Liaisons. Mandated reporters must immediately report workplace discrimination, sexual harassment, and/or retaliation to the OEEO, when they:

a. Observe conduct of a discriminatory nature; or
b. Observe or become aware of an allegation or complaint of employment discrimination, sexual harassment, and/or retaliation regarding EEO matters.

***NOTE***

*The member must report and shall not investigate the observed conduct, allegation, or complaint of employment discrimination, sexual harassment, and/or retaliation. In order to ensure confidentiality, supervisors, managers, and EEO Liaisons must not make any entries regarding a complaint of employment discrimination and/or related retaliation in any official Department record.*

*All complaints must be filed with the NYPD OEEO within one year from the date of the last occurrence of a discriminatory action. The one-year time period for filing complaints of employment discrimination, including related retaliation with the New York City Police Department, shall not serve as a limitation upon the Department's authority to discipline members of the service as otherwise authorized pursuant to applicable law.*

**PROCEDURE**

When a member of the service or an applicant for employment believes that employment discrimination, sexual harassment, and/or retaliation relating to EEO has occurred:

**MEMBER CONCERNED**

1. File a complaint of employment discrimination, sexual harassment, and/or related retaliation by doing the following:
   a. Office of Equal Employment Opportunity by telephone at [redacted] by email at [redacted], in writing, or in person at [redacted] or
   b. Notify a mandated reporter, uniformed or civilian, as described above.

***NOTE***

*After business hours and on weekends, the OEEO receives messages via office voice mail, and e-mail and will return phone calls on the next business day.*

*Non-supervisory members of the service may telephone the OEEO anonymously to file a complaint and/or discuss matters regarding employment discrimination and/or related retaliation. An investigator assigned to the OEEO will be able to provide guidance and take appropriate follow-up action. Members concerned should understand that the cooperation of complainants and witnesses may be needed to rectify or address a problem of employment discrimination. Non-supervisory members of the service may report an allegation(s) of employment discrimination and/or related retaliation in writing anonymously by preparing a detailed written report and forwarding the report to the Office of Equal Employment Opportunity,* [redacted]

***NOTE (continued)*** *A non-supervisory member of the service is strongly encouraged to report any complaint or issue to the OEEO.*

***COMPLAINT OF EMPLOYMENT DISCRIMINATION (PD413-151)*** *forms will be readily available for viewing and printing on the Department Intranet.*

**MANDATED REPORTER**

2. Immediately upon observing conduct or becoming aware of an allegation or complaint of employment discrimination, sexual harassment, or retaliation relating to an EEO issue:
   a. Notify the OEEO immediately
      (1) If outside the business hours of Monday through Friday, 0800 to 1800 hours, leave a message on voice mail with contact number and an investigator assigned to the OEEO will contact caller; and/or send email to [redacted].
   b. Obtain OEEO case or inquiry number and name of the investigator.
   c. Be guided by information received from the OEEO.
3. If matter is issued an OEEO case number, forward confidential report Typed Letterhead to the OEEO (DIRECT), within five business days.

***NOTE*** *A mandated reporter receiving any allegations of possible employment discrimination, sexual harassment, and/or related retaliation against oneself must immediately notify the OEEO. Do not make any other notifications to other members of the command to preserve confidentiality. Improper notifications may result in disciplinary action.*

*A mandated reporter who fails to report an allegation of possible employment discrimination, sexual harassment, and/or retaliation, to the OEEO as required, and/or who fails to take such actions as directed by the OEEO to prevent employment discrimination, can be subject to disciplinary action.*

*The Department prohibits the display, in any form, of offensive sexual, ethnic, racial, religious or other discriminatory material. Refer to A.G. 332-02, "Sexual, Ethnic, Racial, Religious, or Other Discriminatory Slurs Through Display of Offensive Material," for guidelines on handling incidents involving the display of offensive material.*

**OFFICE OF EQUAL EMPLOYMENT OPPORTUNITY**

4. Notify commanding officer/manager, if and/or when appropriate.
5. Emphasize to the commanding officer/manager and all others concerned that reprisal or retaliation against complainants and/or witnesses is against the law and allegations of retaliation will be investigated and, if substantiated, members will be subject to disciplinary action.
6. Record required data in appropriate OEEO record and assign a case or inquiry number to all complaints.

***NOTE***

*Upon receiving a complaint, an investigator assigned to the OEEO will attempt to contact and interview the complainant. The investigator will advise the complainant that they may meet with an investigator to discuss the complaint at the OEEO or at a mutually agreed upon location before, during, or after work hours to protect their confidentiality. Additionally, the member will be advised that they may be accompanied by a representative of their choice.*

*Members are reminded that they do not have to notify a supervisor if they agree to meet with an OEEO investigator during non-working hours.*

*However, if a complainant wishes to meet with an investigator during working hours, the investigator will make a confidential notification to the command's integrity control officer, assistant integrity control officer, executive officer, commanding officer, or other supervisory member not involved in the complaint to have the complainant appear at the OEEO. Supervisors cannot unreasonably deny permission to attend the meeting. A member's appearance at the OEEO must not be documented on any official Department record.*

*In order to encourage members of the service to come forward, all communications between complainants and the OEEO relating to employment discrimination, sexual harassment, and retaliation complaints will be kept confidential consistent with the above statement regarding CONFIDENTIALITY. Any person who is interviewed in the course of an investigation shall have the right to be accompanied by a representative of their choice.*

**OFFICE OF EQUAL EMPLOYMENT OPPORTUNITY (continued)**

7. Instruct member filing complaint about options for handling complaint and/or refer member to other personnel for assistance. This may include:
   a. Investigation by the OEEO;
   b. Mediation by a neutral mediation service;
   c. Referrals for the member of the service (e.g., Health & Wellness, etc.),
   d. The member of the service filing a formal complaint with an outside agency; and/or
   e. Referral of the member concerned to other personnel for assistance if it appears that the complaint does not involve an EEO issue.
8. If it is determined that an investigation is to be conducted, notify respondent in person or via email of the nature of the allegation(s), when necessary:
   a. Remind respondent that employment discrimination, sexual harassment, and/or related retaliation will not be tolerated and may be subject to discipline.
9. After completion of the investigation and when appropriate, forward results of the investigation conducted by the OEEO to the Police Commissioner.
10. Notify complainant and respondent in writing of the outcome of the investigation and recommended findings.

**COMMANDING OFFICER/ MANAGER**

11. Address the matter as directed by and under the guidance of the OEEO.
12. If directed to forward a confidential report on Typed Letterhead to OEEO (DIRECT), include the following:
    a. Refer to OEEO case number; and
    b. Report what corrective action was taken to address the complaint and describe any steps taken to preclude a reoccurrence.
13. Take all reasonable steps necessary to prevent any member of the service from engaging in additional employment discrimination, sexual harassment, and/or related retaliation.

***ADDITIONAL DATA***

*MEDIATION*

*In appropriate cases, certain EEO complaints will be referred for mediation by a neutral mediator at a neutral location. Mediation is a dispute resolution program designed to help resolve EEO complaints at the earliest stage possible without the need for a formal investigation. The procedure is not adversarial but is a means of finding a mutually acceptable end to the parties' differences. This process is voluntary, and the parties must mutually agree to the outcome. If the parties cannot agree upon a resolution, the matter will be referred back to the OEEO for appropriate action. If a resolution is reached after mediation, no notations concerning the matter will be made on the respondent's Central Personnel Index file.*

*INVESTIGATION*

*At the conclusion of a substantiated investigation, the OEEO will forward a confidential report of the investigation to the Police Commissioner. The Police Commissioner will review the report prepared by the OEEO and make a final determination regarding the investigation and any recommendation for corrective action. Disciplinary action shall be taken in accordance with any applicable provisions of law, rules and regulations, and collective bargaining agreements. In addition, findings of unsubstantiated are also reviewed by the Police Commissioner.*

*When charges and specifications are pending or preferred against a member of the service, an allegation of discriminatory treatment raised as a defense to the charges by the respondent member of the service shall vest in the exclusive jurisdiction of the Deputy Commissioner, Trials until the charges and specifications have been resolved. After the charges and specifications have been resolved, jurisdiction over the allegation of employment discrimination shall be assumed by the OEEO upon written request of the affected party. In all other disciplinary matters, any allegation of employment discrimination raised by the member of the service concerned must be immediately reported to the OEEO.*

*ADDITIONAL PLACES WHERE A COMPLAINT OF DISCRIMINATION MAY BE MADE*

*Any member of the service or applicant for employment who believes that they have experienced discrimination has a right to file a formal complaint with the federal, state or local agencies listed below. A person does not give up this right when the person files a complaint with the Department's OEEO. The following local, state, and federal agencies enforce laws against discrimination:*

***ADDITIONAL DATA (continued)***

*NEW YORK CITY COMMISSION ON HUMAN RIGHTS (NYCCHR)*

*One year for employment discrimination and three years for sexual harassment, both from the date of the last occurrence of discriminatory action (New York City Administrative Code, Title 8, Chapter 1).*

*Main Office (Manhattan)*
*22 Reade Street*
*New York, NY 10007*
[redacted]

*Brooklyn Community Service Center*
*25 Chapel Street, Suite 1001*
*Brooklyn, NY 11201*
[redacted]

*Bronx Community Service Center*
*1932 Arthur Avenue, Room 203A*
*Bronx, NY 10457*
[redacted]

*Queens Community Service Center*
*153-01 Jamaica Avenue, 2nd Floor*
*Jamaica, NY 11432*
[redacted]

*Staten Island Community Service Center*
*60 Bay Street, 7th Floor*
*Staten Island, NY 10301*
[redacted]

*NEW YORK STATE DIVISION OF HUMAN RIGHTS (NYSDHR)*

*One year for employment discrimination (New York Executive Law, Article 15, section 297) (may not file if civil action filed first) and three years for sexual harassment, both from the date of the last occurrence of discriminatory action.*

*One Fordham Plaza, 4th Floor*
*Bronx, NY 10458*
[redacted]

*UNITED STATES EQUAL EMPLOYMENT OPPORTUNITY COMMISSION*

*300 days from the date of the last occurrence of discriminatory action, regardless of whether there has been a prior filing with another agency. A member of the service is advised to contact the United States Equal Employment Opportunity Commission directly for guidance on this issue (42 USC, Section 2000e-5 [c]).*

***ADDITIONAL DATA (continued)***

*New York District Office*
*33 Whitehall Street, 5th Floor*
*New York, NY 10004*
[redacted]

NYPD

# ADMINISTRATIVE GUIDE

| Section: Employee Rights/Responsibilities | Procedure No: 332-02 | |
|---|---|---|
| **SEXUAL, ETHNIC, RACIAL, RELIGIOUS, OR OTHER DISCRIMINATORY SLURS THROUGH DISPLAY OF OFFENSIVE MATERIAL** | | |
| DATE EFFECTIVE: 03/17/25 | LAST REVISION: R.O. 12 | PAGE: 1 of 3 |

**PURPOSE** To eliminate the display of offensive sexual, ethnic, racial, religious or other discriminatory material throughout the Department.

**SCOPE** It is the goal of the Department to ensure a discrimination free work environment. In furtherance of this goal, the Department prohibits the display of offensive sexual, ethnic, racial, religious or other discriminatory material.

One form of employment discrimination which may create a hostile work environment is the display of sexually explicit material in the workplace. Other forms of a hostile work environment can occur through the display of offensive ethnic, racial, religious or other discriminatory materials or graffiti, whether they deface Department property or not. Such displays might be in the form of, but are not limited to, postings, pictures, tattoos, graffiti drawn on Department property (e.g., lockers, vehicles, in toilet facilities, **ACTIVITY LOGS [PD112-145]**, Notice of Parking Violations, summonses, or any other Department forms, etc.), or an adult movie/program or other offensive material shown through the use of a any electronic storage media or device (e.g., video cassette, DVD/CD, flash drive, hard drive, etc.), or received through an adult channel from a cable/satellite company, or audio recording or broadcast, or an email communication(s), text message(s), or through any electronic or other device.

No form of defacement of Department property, display of offensive materials, sexually explicit television programs, videotapes or DVDs, derogatory email communications, text messaging or voice mail communications, in or using Department facilities or resources, is acceptable. Commanding officers, managers and supervisors shall keep their work sites free from such displays.

**PROCEDURE** When a display of offensive material is discovered:

**MEMBER CONCERNED**

1. Any **non-supervisory member of the service** who becomes aware of the display of offensive material is ***strongly encouraged*** to report it to any of the following:
   a. The Office of Equal Employment Opportunity (OEEO) by telephone at [redacted], by email at [redacted], by facsimile at [redacted], in writing, or in person at 375 Pearl Street, 15th Floor, Suite 4, New York, NY 10038; or
   b. Supervisor (uniformed or civilian); or
   c. Manager; or
   d. Commanding officer; or
   e. Equal Employment Opportunity (EEO) Liaison.

***NOTE*** *Trained EEO Liaisons have been designated throughout the Department to provide assistance to complainants, witnesses and others regarding any EEO matter. For further information about the EEO Liaison Program, contact the Program Coordinator at* [redacted].

*After business hours and on weekends, OEEO receives messages via office voice mail and will make return phone calls on the next business day.*

A SUPERVISOR WHO BECOMES AWARE OF THE DISPLAY OF OFFENSIVE MATERIAL WILL AS SOON AS POSSIBLE:

**SUPERVISORY MEMBER**

2. Telephone facts to OEEO during business hours or the next business day, Monday through Friday, 0800 to 1800 hours, and be guided by information received from OEEO.
   a. During non-business hours, leave a message with a contact number on the voice mail and:
      (1) Photograph the offensive material; and
      (2) Take immediate steps to secure, remove and/or cover the offensive material from public display.
3. Safeguard the offensive material if possible, and prepare **PROPERTY CLERK INVOICE (PD521-141)** using Finest Online Records Management System (FORMS) Property.
   a. Invoice the material as investigatory evidence.
4. Make Command Log entry of details.
   a. Do not describe or identify the specific offensive material/object that was discovered.
5. Notify commanding officer/manager.
6. Forward confidential report on Typed Letterhead to the Commanding Officer, OEEO (DIRECT) within five business days. Include the following information on the report:
   a. OEEO case number,
   b. Photo(s) of the offensive material and a copy of the **INVOICE**, if applicable.

***NOTE*** *In addition to reporting the observation to OEEO, corrective action may take the form of removing the offensive material if it is a magazine or poster, etc., or submitting a request via the "Work Order – System Login" application via the Department Intranet."*

**OEEO**

7. Ensure that the commanding officer/manager is notified of the display of offensive material.

**COMMANDING OFFICER/ MANAGER**

8. Inform/advise members of command, as appropriate, upon receiving a complaint of a display of offensive material, or having witnessed such display that:
   a. A display of offensive material has occurred and that such display violates Department policy
      (1) **DO NOT** describe or identify the specific offensive material/object that was discovered

**COMMANDING OFFICER/ MANAGER (continued)**

b. This behavior will not be tolerated and is subject to disciplinary action.

9. Confer with the OEEO and determine appropriate follow-up and/or investigatory action.
10. Notify the OEEO promptly by telephone of the results of any investigation.
11. Forward confidential report on Typed Letterhead to the Commanding Officer, OEEO (DIRECT) within five business days. Include the following information on the report:
    a. Refer to OEEO case number
    b. Report the results of the investigation and what corrective action was taken to address the matter and describe any steps taken to preclude a reoccurrence.

***ADDITIONAL DATA***

*It will be incumbent upon all supervisors, and in particular the operations coordinator and the desk officer, when they make their daily inspections to ensure that no form of offensive material is displayed. Also, all Department vehicles will be inspected by the operator prior to use to ensure that there is no graffiti or any other form of offensive sexual, ethnic, racial, religious or other discriminatory material displayed. Should any such material be found in a Department vehicle, the procedures detailed above will be followed.*

*In addition, the following rules regarding audio recordings and broadcasts, cable/satellite television services or the use of electronic storage media or devices (video cassettes, DVDs/CDs, flash drives, hard drives, etc.) in Department facilities will be adhered to:*

*a. Sexually explicit audio broadcasts, television programs or videos shall not be listened to, shown or viewed in Department facilities, unless necessary as part of a documented, on-going, official investigation*

*b. Premium channels, which provide sexually explicit material, will not be permitted to be received on any cable/satellite receiver at a Department facility*

*c. Commanding officers/managers or supervisor designee will contact cable/satellite television companies and have them "block out" any stations received on the basic package which routinely show sexually explicit programming, if possible.*

*Commanding officers/managers must stress to their subordinates that these forms of behavior will not be tolerated.*

# ADMINISTRATIVE GUIDE

| Section: Employee Rights/Responsibilities | Procedure No: 332-03 |
|---|---|

**MEMBER OF THE SERVICE SEEKING TO NOTIFY THE DEPARTMENT OF TRANSGENDER OR GENDER NON-CONFORMING TRANSITION, OR STATUS**

| DATE EFFECTIVE: | LAST REVISION: | PAGE: |
|---|---|---|
| 09/11/26 | R.O. 81 | 1 of 3 |

**PURPOSE** To provide guidance to members of the service who decide to notify the Department of their transgender or gender non-conforming transition, or status.

**SCOPE** A member of the service's transition should be treated with as much sensitivity and confidentiality as any member of the service who is going through a significant life experience. Transgender members have the right to discuss their gender identity or expression openly, or to keep that information private. Transgender members decide when, with whom, and how much to share their private information. This policy will guide transgender members that choose to share information about their own gender transition.

**DEFINITIONS**

GENDER IDENTITY - An individual's internal sense of gender which may be the same or different from their assigned sex at birth. Gender identity is distinct from sexual orientation.

GENDER EXPRESSION - An individual's characteristics and behaviors (e.g., appearance, dress, mannerisms, speech patterns, social interactions, etc.) that may be perceived as masculine or feminine.

TRANSGENDER - An individual, whose gender identity or expression is not typically associated with their assigned sex at birth.

GENDER NON-CONFORMING - An individual, who has or is perceived to have, gender characteristics and/or behaviors that do not conform to traditional or societal expectations.

TRANSITION - The process in which an individual changes their gender from their assigned sex at birth to their gender identity. The duration of a transition may differ for each individual. A transition may include, but is not limited to:

a. Informing family, friends and co-workers of gender identity
b. Obtaining medical services (i.e., hormones, surgery, etc.)
c. Name and legal gender changes.

**PROCEDURE** When a member of the service decides to notify the Department of their transgender or gender non-conforming transition, or status:

**MEMBER CONCERNED**

1. Request meeting with commanding officer, or representative from the Office of Equal Employment Opportunity regarding transgender or gender non-conforming transition, or status.
   a. Any supervisor or representative from a fraternal organization, union, etc. may be present during meeting at the request of the member concerned.

**COMMANDING OFFICER OR REPRESENTATIVE, EQUAL EMPLOYMENT OPPORTUNITY DIVISION**

2. Discuss the following with member of the service:
   a. The preferred name the member is requesting to use (may be different from legal name)
   b. Member's gender identity and how the member is requesting to be addressed (i.e., gender specific pronouns)
   c. Inquire if, and/or when, the member is requesting to inform co-workers and other command staff
   d. Locker room and restroom accessibility.

***NOTE*** *Mayor's Executive Order 16 and New York City Local Law No.3 mandates that all employees of New York City agencies are allowed to use facilities (i.e., restrooms and locker rooms) that most closely align with their gender identity or expression without being required to show identification, medical documentation, or any other proof or verification of gender.*

   e. Member may request a new **IDENTIFICATION CARD (PD416-091)**
      (1) If member requests a new **IDENTIFICATION CARD**, notify the Shield, ID, and Uniformed Services Group.

***NOTE*** *The Shield, ID, and Uniformed Services Group it will take a new Department photograph and issue the transitioning member a new **IDENTIFICATION CARD**, if requested. Documentation will not be required in order to update the member's photograph; however, supporting documentation (i.e., court order, marriage certificate, birth certificate, valid government identification, etc.) will be required for name and legal gender changes.*

   f. Member may request an application for transfer to another command
      (1) If member requests a transfer, have member comply with the applicable Department procedure (i.e., *A.G. 329-12, "Uniformed Members of the Service - Transfer Procedure,"* etc.) and/or utilize the Personnel Online System for Transfers (P.O.S.T.)
         i. Notify the Personnel Bureau regarding the member's transfer request.

***NOTE*** *The Personnel Bureau will make every effort to accommodate reasonable requests for transfer; however, members are reminded that all transfers are subject to the needs of the Department.*

   g. Other concerns that the member may have regarding their transgender or gender non-conforming transition, or status.
3. Notify the following regarding member's transgender or gender non-conforming transition, or status:
   a. Personnel Bureau
   b. LGBTQIA+ Outreach Unit
   c. Employee Assistance Unit
   d. Member's immediate supervisor
   e. Any other member of the service, if deemed appropriate.

**MEMBER CONCERNED**

4. Comply with *P.G. 304-16, "Personal Information via Department Intranet,"* and use the Centralized Personnel Resource System to update personal information (e.g., name, gender, etc.).
5. Notify commanding officer and/or Office of Equal Employment Opportunity regarding any compliance issues or concerns (i.e., locker room accessibility, **IDENTIFICATION CARD** issuance, etc.) related to transgender or gender non-conforming transition, or status.

***ADDITIONAL DATA***

*DRUG SCREENING TESTS*

*When it becomes necessary to perform a drug screening test, a staff member will be assigned that matches the gender identity as specified by the transgender or gender non-conforming member.*

*Members of the service with questions regarding this procedure should call the Office of Equal Employment Opportunity.*

NYPD

**PURPOSE** To regulate off duty employment of uniformed members of the service, except that off duty employment performed with the Paid Detail Unit.

**DEFINITIONS**

SECURITY FIELD - Includes guard service, payroll driver/cashiers, personal escorts (bodyguards), and employment in check cashing establishments, etc.

WATCHGUARD LICENSE - Issued by the New York State Secretary of State, upon a written request obtained from the Office of the Personnel Bureau, licensing a uniformed member of the service to engage in the off duty employment of providing guards in a security related field.

CLASS I FEDERAL FIREARMS LICENSE - Issued by the Department of Treasury, Bureau of Alcohol, Tobacco and Firearms, to persons engaged in the business of selling firearms at wholesale or retail.

DEALER IN FIREARMS LICENSE - Issued by local licensing officer to any person, firm, partnership, corporation or company who engages in the business of purchasing, selling, keeping for sale, lending, leasing, or in any manner disposing of, any pistol or revolver.

OWNERSHIP INTEREST - An interest in a firm held by a member of the service, or by that member of the service's spouse, domestic partner, or unemancipated child when the member of the service, or the member of the service's spouse, domestic partner, or unemancipated child exercises managerial control or responsibility over the firm.

**PROCEDURE** When a uniformed member of the service wishes to engage in off duty employment or maintains an ownership interest in a firm, or when any member of the service wishes to engage in the practice of law off duty:

**UNIFORMED MEMBER OF THE SERVICE**

1. Prepare **OFF DUTY EMPLOYMENT APPLICATION/ NOTIFICATION (PD407-164)**.
   a. Enter total number of hours to be worked each week.
      (1) Do not use terms such as "varies" or "changes."
   b. Enter name and address of corporation in space captioned "Outside Employer" if applicant is an officer of a corporation.
      (1) Do not use term "self employed" if applicant is part or sole owner of corporation.
   c. Enter name of president of corporation if employed by corporation.
   d. Enter function of the corporation in space captioned "Describe the Type of Business."
   e. Describe functions to be performed in space captioned "Describe Specific Duties and Responsibilities."

**UNIFORMED MEMBER OF THE SERVICE (continued)**

2. Deliver completed **OFF DUTY EMPLOYMENT APPLICATION/ NOTIFICATION** to commanding officer.
   a. If off duty employment involves dealing in firearms outside the City of New York, also deliver a copy of completed application for a Class I Federal Firearms License.
      (1) After subsequent issuance by the Bureau of Alcohol, Tobacco and Firearms, provide a copy of the license to commanding officer and Separation and Outside Employee Services Unit.
   b. If off duty employment involves dealing in firearms outside the City of New York, also deliver a copy of completed **APPLICATION FOR LICENSE AS A GUNSMITH OR DEALER IN FIREARMS (INDIVIDUAL) (PD625-043)** or **APPLICATION FOR LICENSE AS A GUNSMITH OR DEALER IN FIREARMS (PARTNERSHIP) (PD625-042**). After subsequent issuance by the local licensing officer, provide a copy of the license to commanding officer.

**COMMANDING OFFICER**

3. Interview applicant and determine if conditions of off duty employment are within Department guidelines.
4. Forward completed **OFF DUTY EMPLOYMENT APPLICATION/ NOTIFICATION** for signature and recommendations to the borough commander/counterpart for security related fields only.

**BOROUGH COMMANDER/ COUNTERPART**

5. Return **OFF DUTY EMPLOYMENT APPLICATION/ NOTIFICATION** to member's commanding officer indicating approval/disapproval.

**COMMANDING OFFICER**

6. Ascertain that applicant understands "Guidelines/Prohibitions" as outlined in "Additional Data" statement.
7. Confer with applicant's immediate supervisor.
8. Confer with Office of First Deputy Commissioner to determine whether reason exists for disapproval of **OFF DUTY EMPLOYMENT APPLICATION/NOTIFICATION**, if applicant is on modified assignment and enter results of inquiry on **OFF DUTY EMPLOYMENT APPLICATION/NOTIFICATION**.
9. Enter recommendations, sign and forward all approved, disapproved and renewal **OFF DUTY EMPLOYMENT APPLICATION/ NOTIFICATION(S)** or notice of termination or change in employment to the Separation and Outside Employment Unit.
   a. Inquire 'Employee Inquiry Report' via the Centralized Personnel Resource (CPR) System for status of application.
   b. Advise member whose **OFF DUTY EMPLOYMENT APPLICATION/NOTIFICATION** has been DISAPPROVED that such decision may be appealed.

**COMMANDING OFFICER (continued)**

10. Monitor on duty performance of member engaged in off duty employment.
11. Recommend revocation of permission if outside employment interferes with member's responsibility to the Department.
12. Advise applicant of possible revocation of permission to engage in off duty employment should member become subject of disciplinary action or classified as "chronic sick."
13. Re-examine approved **OFF DUTY EMPLOYMENT APPLICATION/ NOTIFICATION** of newly transferred/temporarily assigned member to ensure that current assignment does not result in a conflict of interest or corruption hazard.

**UNIFORMED MEMBER OF THE SERVICE**

14. Submit new **OFF DUTY EMPLOYMENT APPLICATION/ NOTIFICATION** to report any change in status of employment (i.e., change of employer, duties, location of employment, etc.).
15. Submit renewal **OFF DUTY EMPLOYMENT APPLICATION/ NOTIFICATION** for continuing off duty employment beyond each twelve month period at least ten days prior to expiration of current approved request.
16. Prepare a report on **Typed Letterhead** requesting review of **OFF DUTY EMPLOYMENT APPLICATION/NOTIFICATION** that has been disapproved and submit to Commanding Officer, Human Resources Division.

**SEPARATION AND OUTSIDE EMPLOYMENT SERVICES UNIT**

17. Review **OFF DUTY EMPLOYMENT APPLICATION/ NOTIFICATION** and determine if conditions of off duty employment are within Department and Board of Ethics guidelines and rulings.
    a. Contact the Legal Bureau, if necessary.
    b. If employment presents conflict of interest:
        (1) Advise employee of provisions of New York City Charter, Section 2604, "Prohibited Interests and Conduct" and that such employment is not appropriate
        (2) Advise employee to forward report on **Typed Letterhead** detailing reasons for appeal, if employment is denied, to Deputy Commissioner, Legal Matters, as per *A.G. 316-18, "Conflicts of Interest Board."*
18. Assign Off Duty Log Number and insert in appropriate caption on **OFF DUTY EMPLOYMENT APPLICATION/NOTIFICATION**.
19. Request records check from Intelligence Division for security related fields only:
    a. Employer,
    b. Individual or premises to be protected, if appropriate, and
    c. Disapprove **OFF DUTY EMPLOYMENT APPLICATION/ NOTIFICATION** if records exist at the above unit that would preclude employment.
20. Complete "Final Action:" section of **OFF DUTY EMPLOYMENT APPLICATION/NOTIFICATION** and sign.
21. Distribute copies of **OFF DUTY EMPLOYMENT APPLICATION/NOTIFICATION** as follows:

**SEPARATION AND OUTSIDE EMPLOYEE SERVICES UNIT**

a. ORIGINAL – place in member's Personnel Folder
b. DUPLICATE – return to command of origin for file
c. TRIPLICATE – return to member concerned
d. QUADRUPLICATE - forward to Medical Division.

**COMMANDING OFFICER**

22. Advise and instruct member whose **OFF DUTY EMPLOYMENT APPLICATION/NOTIFICATION** has been APPROVED, regarding:
    a. Guidelines/prohibitions listed in "Additional Data" statement
    b. Carrying of weapons in other states. (New York City police officer status does not license member to carry weapon in another state; authorization must be obtained from state concerned).
23. Instruct member applying for Watchguard License of "Guidelines for Watchguard License" (see ADDITIONAL DATA statement).
    a. Direct member to report to Human Resources Division to prepare affidavit and comply with instructions received.
24. Direct integrity control officer to verify that members concerned comply with prohibition against requesting overtime compensation for off duty employment related arrests.
25. Indicate on **OFF DUTY EMPLOYMENT APPLICATION/ NOTIFICATION**, after approval and prior to forwarding to Separation and Outside Employment Services Unit, that a copy of the Class I Federal Firearms License is attached, if applicable.
    a. Forward copy of Class I Federal Firearms License, and **APPLICATION FOR LICENSE AS A GUNSMITH or DEALER IN FIREARMS (INDIVIDUAL) or APPLICATION FOR LICENSE AS A GUNSMITH or DEALER IN FIREARMS (PARTNERSHIP**), and New York State License and **APPLICATION FOR LICENSE AS A GUNSMITH or DEALER IN FIREARMS (INDIVIDUAL) or APPLICATION FOR LICENSE AS A GUNSMITH OR DEALER IN FIREARMS (PARTNERSHIP)** to Commanding Officer, Firearms and Tactics Section, after recording license numbers on member's **FORCE RECORD (PD406-143)**.

**COMMANDING OFFICER FIREARMS AND TACTICS SECTION**

26. Maintain a file of members who have obtained Class I Federal Firearms Licenses or New York State Dealer in Firearms licenses for dissemination to inquiring ranking members of the service in cases of suspensions, modified assignments, removal of firearms, etc.

**INTEGRITY CONTROL OFFICER**

27. Audit **OVERTIME REPORTS (PD138-064)** submitted by uniformed members of the service to ensure that requests do not pertain to off duty security employment related arrests and advise commanding officer of findings.

***ADDITIONAL DATA***

*<u>GUIDELINES</u>:*

*The following guidelines apply to <u>ALL</u> off duty employment:*

*a. Off duty employment MUST BE:*

*(1) Performed outside regular hours of police duties.*

*(2) Approved prior to starting or changing employment, AND for EACH EXTRA job or change of job for the same employer.*

*(3) Approved in writing from the Chief of Patrol, (Commanding Officer, Movie/Television Unit), IF employment involves working as a technical advisor/consultant for motion picture or television productions.*

*(4) Performed not exceeding twenty hours each week when a uniformed member on approved Family Medical Leave engages in off duty employment.*

*b. A uniformed member of the service may engage in off duty employment without prior approval:*

*(1) During the period of suspension without pay, OR*

*(2) While on continuous vacation and/or terminal leave immediately after filing an application for retirement. During a period of suspension without pay or vacation/terminal leave pending retirement, the member concerned remains officially a member of the service and, as such, may NOT engage in any type of employment or activity which, by existing law, is prohibited to police officers, or which may constitute a conflict of interest or create the appearance thereof (see GENERAL PROHIBITIONS).*

*c. Excessive sick leave or other evidence indicating off duty employment impairs ability to perform assigned police duties is cause for revocation of approval to engage in off duty employment.*

*d. A request for permission to work while off duty may be disapproved even though it does not specifically fall within the "Prohibitions" section or violate the "Guidelines" sections contained herein.*

*e. A uniformed member of the service seeking part time employment in another City agency, or in ANY other governmental jurisdiction or agency MUST prepare **Certification of Compatibility for Dual Employment (a Certification of Compatibility for Dual Employment (DP1021A)** for City Mayoral Agencies or **Certification of Compatibility for Dual Employment (DP1021B)** for all other governmental agencies or jurisdictions). These forms are available at the Human Resources Division, Separation and Outside Employment Services Unit, who will process forms upon completion.*

*f. Uniformed members of the service engaging in or seeking off duty employment are reminded that the law prohibits certain types of employment. Some members while engaging in bona-fide occupations, may unknowingly, in the normal pursuit of their particular off duty occupation, be violating one of these statutes. Members may consult with Legal Bureau.*

*g. Section 2604(a)(1) of the New York City Charter prohibits public servants from taking a position in a firm which the public servant knows, or should know, is engaged in business dealings with the City. "Position" is broadly defined and includes an officer, director, manager, employee, trustee, attorney, agent, broker or consultant to the firm. The definition of "firm" includes an individual seeking business on their own behalf, and as a sole proprietor. "Business dealings" are defined as any transactions involving the sale, purchase, rental, or disposition of any goods, services, or property; any license, permit, grant or benefit; and any performance of or litigation with respect to any of the above. It is quite possible that a member not completely familiar with these provisions could find themselves in violation of the law. For example, if a member has*

***ADDITIONAL DATA (continued)***

*been approved as a vending machine salesperson or dealer, they would be violating this statute if they were to take a position with a firm or enter into a contractual agreement with any City agency or representative thereof, to place a vending machine in any building or upon property owned or leased by the City of New York or any of its agencies.*

*h. The Charter prohibits members from engaging in any business, transaction or private employment which is in conflict with the proper discharge of their official duties; using, or attempting to use their position to obtain any financial gain, or other benefit, including employment for themselves or any person "associated" with them ("associated" is defined to include a spouse, domestic partner, child, parent or sibling and a person with whom a member has a business or financial relationship); and disclosing any confidential information which is obtained as a result of a member's official duties or using such confidential information for any financial gain or other benefit.*

*i. A uniformed member of the service is prohibited from holding any position or engaging in business dealings which involve the manufacture, sale or recommendation of any alcoholic beverage. However, employment is permitted in a premises licensed to sell beer at retail for off-premises consumption (supermarkets and grocery stores). Also see A.G. 304-06, "Prohibited Conduct."*

*j. A member may not accept any valuable gift from any person or firm which the member knows or should know, has or intends to have business dealings with the City.*

*k. Uniformed members of the service may write fiction or non-fiction books and articles on their own time and receive compensation provided that the restrictions contained in P.G. 212-76, "Information Concerning Official Business of Department" are adhered to.* ***OFF DUTY EMPLOYMENTAPPLICATION/NOTIFICATION*** *should be submitted in this regard to the extent that members of the service are being paid for their writing.*

*l. A member of the service may be employed as technical or background advisor/consultants by television and film production companies. The consulting position may relate either to a particular incident (e.g., a homicide, robbery, rescue effort, etc.) or to a specialized field of expertise (e.g., arson, explosives, aviation, etc.). Again, the restrictions contained in P.G. 212-77 "Release Of Information To News Media" and 212-76 "Information Concerning Official Business of Department" MUST be adhered to,* ***APPLICATION/ NOTIFICATION*** *must also be submitted for these positions. In addition, prior to entering into any contractual relationship of this nature, members of the service are advised to seek private legal counsel. The sale of exclusive proprietary rights, based on the involvement of an individual in a particular incident, is strictly prohibited. For example, a member of the service assigned to the Aviation Unit can be retained as a consultant or advisor on general technical matters or for background on a particular incident; they cannot sell exclusive "rights" to a production company for the story of the officer's role in that incident.*

*(1) A written approval from the Chief of Patrol, (Commanding Officer, Movie/Television Unit) is required, IF employment involves working as a technical advisor for motion picture or television productions.*

*m. Many of the off duty employment prohibitions and guidelines involve conflict of interest related issues as addressed in Chapter 68 of the New York City Charter. Each member of the service should be familiar with those provisions. In certain limited circumstances, a member of the service may hold an otherwise prohibited*

***ADDITIONAL DATA (continued)***

*position with written approval of the Police Commissioner, and a determination by the Conflicts of Interest Board that the position would not conflict with the purposes and interests of the City. Conflict of interest questions or questions regarding waivers may be directed to the Deputy Commissioner, Legal Matters.*

*n. Department equipment, supplies, letterhead, personnel, or any other Department resources may not be used for off duty employment.*

*o. Not permitted if related to or concerned with matters that any City agency is required to inspect, approve or license, unless authorized.*

*p. Not permitted if the employment creates a prohibited subordinate-superior financial relationship.*

*<u>GENERAL PROHIBITIONS</u>:*

*Off duty employment is PROHIBITED when ANY of the following conditions exist:*

*a. Member is a probationary police officer with less than one year aggregate service who has not completed Entry Level Training in the Police Academy.*

*b. Existing law prohibits a police officer from employment in such job or premises.*

*c. Off duty employment is also prohibited, as follows:*

*(1) Interferes or conflicts with regular or emergency police duties.*

*(2) Requires the Police Department uniform or shield to be worn or used in any manner in any off duty employment, except if approved by the Paid Detail Unit.*

*(3) Affects member's ability to perform police duties.*

*(4) Exceeds twenty hours each week, except when performed during vacation period or when on terminal leave.*

*(5) Is to be performed three hours immediately prior to regular tour of duty.*

*(6) Requires member to be an officer, organizer, or hold a position in an employee organization, i.e., labor union, or member will become involved in a strike or labor dispute.*

*(7) Requires uniformed member to work, unless authorized, for an organization licensed or inspected by the Police Department.*

*(8) Is knowingly performed for a person who has a criminal arrest record.*

*(9) Is required to be performed when member is on sick report, sick leave or disability.*

*(10) Involves the guarding of licensed premises.*

*(11) Involves employment in any premises licensed by the State Liquor Authority, pursuant to the Alcoholic Beverage Control Law, <u>except</u> that employment is permitted in a premises licensed to sell alcoholic beverages as long as they are not handled by the applicant.*

*(12) Involves employment by a uniformed member of the service in precinct to which assigned. (However, a uniformed member assigned to a command whose jurisdiction encompasses more than one precinct may be permitted to engage in off duty employment within the area to which assigned, unless circumstances of such employment would constitute a conflict of interest or a corruption hazard, i.e., member's ability to provide off duty services while on duty).*

*(13) Involves employment as a process server,* anywhere.

*(14) Involves operating or having a financial interest in an arcade, video or pinball game.*

*(15) Involves working, owning, driving, training, selling goods or services or obtaining licenses relating to horse racing activities, race horses, tracks or firms either owning or dealing in the racing of horses.*

***ADDITIONAL DATA (continued)***

*(16) Involves the consultation/installation/repair of burglar alarms and security systems.*

*(17) Involves employment as a street vendor within New York City.*

*(18) Involves employment as a locksmith within New York City.*

*(19) Involves being employed in any capacity as a second hand dealer (except used cars) or second hand dealer purchasing and selling precious metals (gold, silver, etc.).*

*(20) Requires uniformed member of the service to perform investigative duties or secure a New York State investigator's license.*

*(21) Involves the guarding of diplomatic personnel and/or the premises of diplomatic personnel.*

*(22) Involves employment by a foreign government.*

*PROHIBITIONS FOR ATTORNEYS ENGAGED IN OFF DUTY EMPLOYMENT*

*In addition to complying with any other relevant Department policy, procedure, or prohibition, members engaging in off duty employment as attorneys will also adhere to the following:*

*a. Members shall not represent private interests for compensation before any City agency or appear anywhere, directly or indirectly, on behalf of private interests in matters involving the City.*

*b. Members shall not appear as attorney or counsel against the interests of the City in any litigation in which the City or other government agency is a party, or in any action or proceeding in which the City or other government agency is a complainant.*

*c. Members shall not serve as an attorney, or represent any party in any matter in negligence cases or criminal cases in state courts within the City's five boroughs.*

*d. Members shall not accept fees for referring a criminal or negligence case pending in state courts within the City's five boroughs.*

*e. In addition to the general prohibition against superiors and subordinates entering into any business or financial relationship (see A.G. 304-12, "Financial Restrictions"), members shall not appear as attorneys or counsel for, or represent in any manner, a higher ranking or lower ranking member of the service in/assigned to their same command. The Conflicts of Interest Board has determined that a "business or financial relationship" exists when an attorney performs legal services whether or not the attorney receives compensation.*

*GUIDELINES FOR SECURITY RELATED OFF DUTY EMPLOYMENT:*

*a. In addition to complying with the Guidelines and General Prohibitions, uniformed members accepting off duty employment in the private security field are advised that:*

*(1) They will not, in most instances, be entitled to or receive legal representation and/or indemnification from the City. Those benefits of City employment are afforded to municipal employees only when they act within the scope of their employment and in discharge of official duties.*

*(2) By virtue of that employment, relinquish the power and authority conferred by the laws of the State of New York as a police officer. However, when an officer effects an arrest in furtherance of the private employer's interest they are acting primarily on behalf of that employer, not in discharge of their duties as a police officer. Uniformed members*

***ADDITIONAL DATA (continued)***

*of the service in their private capacity may not investigate crimes for private employers and ordinarily should be the complainant and not the arresting officer for off duty situations which arise (for example: trespass and burglary situations) unless the exigencies of the circumstance require that they act in an arresting capacity.*

*(3) Because the City will not ordinarily indemnify uniformed members of the service against claims brought by individuals for action taken in connection with off duty employment, it is recommended that uniformed members of the service ascertain whether their private employer maintains liability insurance covering the off duty employment and affords legal representation and indemnification for acts or omissions occurring during off duty employment and in furtherance of employer's interests.*

*(4) All rules and regulations established by the Police Commissioner must be complied with fully.*

*(5) All court time, both arraignment and follow-up appearances directly related to any duties and responsibilities in the off duty employment may not be performed on Police Department time nor may overtime compensation be received for such time from the City of New York. Accordingly, **OVERTIME REPORTS** should not be submitted in connection therewith. Further, it is the uniformed member's responsibility to see that the off duty employer/client has Workers' Compensation on coverage for guards to cover any injury or disability received in their employment. It is also understood that the City has a claim on any monies paid by Workers' Compensation that would duplicate paid sick leave by the City.*

*(6) **OFF DUTY EMPLOYMENT APPLICATION/NOTIFICATION** must be submitted to the Separation and Outside Employment Services Unit for each employer/company and include all locations of assignment (if additional space is needed attach a separate sheet). For each new assignment, even if for the same employer, a new request for approval must be submitted, with the employer's name, and new location of person or premises to be protected.*

*(7) Members may NOT work in off duty employment as security guards at a location where a strike or labor dispute is ongoing.*

*(8) If a uniformed member of the service's firearm is discharged or member is injured as the result of an assault, while employed off duty in a security related capacity in New York City only, the precinct of occurrence must be notified immediately by the uniformed member involved. Incidents occurring outside the City of New York require immediate notification to the Operations Unit. The **THREAT, RESISTANCE OR INJURY (T.R.I.) INCIDENT REPORT** must be completed and verified for all such incidents (see P.G. 221-04 "Firearms Discharge by Uniformed Members of the Service").*

*a. To expedite processing, a member requesting permission to engage in off duty employment in the security field is authorized to personally deliver the completed **OFF DUTY EMPLOYMENT APPLICATION/NOTIFICATION** to the Employee Resources Section.*

***ADDITIONAL DATA (continued)***

*GUIDELINES FOR WATCHGUARD LICENSE:*

*In addition to complying with the Guidelines, General Prohibitions and Guidelines for Security Related Employment, uniformed members of the service will comply with the following re: Watchguard License:*

*a. If the uniformed member intends to form a corporation and employ any other person in a Watchguard Service capacity, then the requirements of New York State laws regarding watchguard licensing must be complied with. "Watch, guard or patrol agency" as defined by the General Business Law (Article 7 Section 71, sub. 2) shall mean and include the business of watch, guard or patrol agency and shall also mean and include, separately or collectively, the furnishing, for hire or reward, of watchmen or guards or private patrolmen or other persons to protect persons or property or to prevent the theft or misappropriation or concealment of goods, wares or merchandise, money, bonds, stocks, choses in action, notes or other valuable documents, papers, and articles of value, or to procure the return thereof or the performing of the service of such guard or other person for any of said purposes. The foregoing shall not be deemed to include the business of persons licensed by the industrial commissioner under the provisions of section twenty-four-a or subdivision three-b of section fifty of the Workers' Compensation Law or representing employers or groups of employers insured under the Workers' Compensation Law in the State Insurance Fund, nor persons engaged in the business of adjusters for insurance companies nor public adjusters licensed by the superintendent of insurance under the Insurance Law of this State.*

*b. Uniformed members of the service employed in a Watchguard Service shall comply with all rules, regulations, guidelines and prohibitions, regarding off duty employment. In addition, members will comply with Department directives, regarding integrity monitoring procedures.*

*c. Uniformed members of the service applying for a Watchguard License must comply with the following:*

*1) Prepare required Affidavit at Separation and Outside Employment Services Unit after **OFF DUTY EMPLOYMENT APPLICATION/NOTIFICATION** has been prepared and approved.*

*2) Submit a list of all clients or prospective clients of Watchguard Service, including names, addresses and specific location of business, to the Intelligence Division for records check.*

*(a) If member has no clients at time of making **OFF DUTY EMPLOYMENT APPLICATION/NOTIFICATION**, the Affidavit will state that fact and may be approved, if the member applying agrees to submit the identifying data of prospective clients prior to entering an employment agreement with such clients.*

*3) Maintain an updated and unified list of all clients, locations, etc., which must be made available for Departmental inspection.*

*(a) The Separation and Outside Employment Services Unit will maintain a separate folder for each approved Watchguard License containing a list of clients, locations and copies of approved **APPLICATIONS/NOTIFICATION** of all uniformed members of the service employed by such Watchguard Service.*

*4) That the corporation or the member concerned will not have a client who is the subject of a criminal investigation or a premises licensed by the Alcoholic Beverage Control Board or a diplomat, or any other client that the Police Commissioner may disapprove on the grounds that such*

***ADDITIONAL DATA (continued)***

*employment would not be in the best interests of the Department.*

5) *Will not have any client located within precinct of assignment, that is, if the off duty employment is of a premises, it may not be located in the precinct. If the off duty employment involves the security of an individual, he may not reside within the precinct of assignment.*

6) *The corporation or the member concerned will not provide services to clients who are then engaged in active labor strikes.*

7) *The corporation or member concerned will not advertise or represent that its employees are members of the New York City Police Department or that it operates under its auspices.*

8) *Will not employ a uniformed member of the service of any rank assigned within Watchguard Licensee's immediate command or employ any member of higher rank.*

9) *Provide Separation and Outside Employment Services Unit with names and addresses of all employees, both uniformed members of the service and others.*

10) *Do not employ other members of the service until such members present approved* ***OFF DUTY EMPLOYMENT APPLICATION/NOTIFICATION****.*

NYPD

# ADMINISTRATIVE GUIDE

| Section: Employee Rights/Responsibilities | Procedure No: 332-05 |
|---|---|

**RANDOM DRUG SCREENING FOR UNIFORMED MEMBERS OF THE SERVICE NOT ASSIGNED TO SELECT DETECTIVE BUREAU SUB-UNITS, INTERNAL AFFAIRS BUREAU (IAB) OR AS PROBATIONARY POLICE OFFICERS IN TRAINING AT THE POLICE ACADEMY**

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**PURPOSE** To randomly drug screen uniformed members of the service not assigned to select Detective Bureau sub-units, Internal Affairs Bureau, or as probationary police officers in training at the Police Academy for illegal drug/controlled substance usage.

**SCOPE** The Department's goal is to ensure the safety of its employees and the public by maintaining a drug/controlled substance free work environment.

Uniformed members of the service assigned to select Detective Bureau sub-units, Internal Affairs Bureau or as probationary police officers in training at the Police Academy will be subject to separate random drug screening procedures.

**PROCEDURE** To identify uniformed members of the service not assigned to select Detective Bureau sub-units, Internal Affairs Bureau or as probationary police officers in training at the Police Academy for random illegal drug/controlled substance screening:

**COMMANDING OFFICER, MEDICAL DIVISION**

1. Request the Information Technology Bureau (ITB) to identify uniformed members of the service for automated random drug screening by utilizing the Department's personnel database.
   a. Individual members selected for random drug screening will be identified by social security number.
2. Direct members selected for random drug screening to appear at the Medical Division at appropriate date and time.

**UNIFORMED MEMBER OF THE SERVICE SELECTED FOR SCREENING**

3. <u>MUST</u> report to Medical Division when notified, except if such member is on:
   a. Sick report
   b. Regularly scheduled day off
   c. Military leave
   d. Annual vacation
   e. Terminal leave
   f. Bereavement leave.

***NOTE*** *Members previously scheduled for individual days off (other than regular days off) may be excused from the test with the approval of the bureau chief concerned. Members scheduled for court or training on the 8x4 tour will appear for testing immediately upon completion of court or training session. Members scheduled for a 12x8 tour on the testing day will appear for testing immediately upon completion of their scheduled 12x8 tour. Members reporting sick on the testing date will be required to visit a Department surgeon and obtain approval for excusal from the test.*

**UNIFORMED MEMBER OF THE SERVICE SELECTED FOR SCREENING (continued)**

4. MUST submit to a drug screening test. Refusal to submit to test will result in suspension from duty and will be grounds for dismissal from the Department.
5. Prepare **DRUG SCREENING QUESTIONNAIRE (PD407-1519)** listing all medications ingested or prescribed in the last ninety days, prior to testing.
6. Present shield and **IDENTIFICATION CARD (PD416-091)** at the testing location to ensure proper individual has reported for testing.
7. Comply with instructions received at testing location.

***ADDITIONAL DATA***

*When hair samples are required, three hair samples will be collected, cut as close to the skin as possible. The samples should be collected from the same body area, preferably the head. The samples will be individually placed in separate laboratory supplied "Sample Acquisition Cards," and sealed by the collector in the presence of the test subject. These cards will be placed in separate plastic bags, sealed by the collector, and initialed and dated by the test subject. Two hair samples will be forwarded to the contracted laboratory for analysis. The third hair sample will be secured at the Medical Division for use in testing, should the test of the first two hair samples reveal positive results for illegal drugs/controlled substances. Appropriate chain of custody will be maintained at all times.*

*Except in unusual circumstances, samples will be taken at a facility operated by the Medical Division, or at another health care facility.*

*In the event that the member concerned is unable to provide adequate hair samples as required in this procedure, the Commanding Officer, Medical Division, or designee, will be contacted. The Commanding Officer, Medical Division, or designee, may authorize the collection of alternate specimen(s) to complete the drug screening test.*

*When urine samples are required, two urine samples will be collected, each in a separate vial. Prior to testing, the drug screening serial number assigned by the Medical Division and date of test will be affixed to each vial. The serial number will be logged separately with the member's name and maintained at the Medical Division. The member being tested and the witness will then initial the vial stickers. The vials will be sealed in the member's presence after the urine samples have been collected. Appropriate chain of custody will be maintained at all times.*

*Privacy and dignity will be protected. Hair and urine samples will be collected under maximum feasible privacy. Except in unusual circumstances, only one person of the same sex, consistent with the member of the service's gender identity, will be present with the test subject to observe the urine sample being provided. For chain of custody purposes, that same person will also collect the hair samples.*

*One or more scientifically accepted initial screening samples will be employed in analysis. A positive report will be made only after final confirmation testing has been conducted. Negative test samples will not be maintained; instead, they will be destroyed.*

***ADDITIONAL DATA (continued)***

*A member whose test is positive may, within sixty days of notification of such result, submit a written request to the Department Advocate's Office for further independent testing of the third sample by a laboratory certified by the State of New York Department of Health, and approved by the Medical Division to conduct the particular type of forensic drug testing (i.e., urine or hair) being requested. All additional testing expenses, including chain of custody, will be paid by the affected member of the service. The results of the additional test will be forwarded by the independent laboratory to the Medical Division. The Medical Division will then forward the results to the Department Advocate's Office. The affected member/counsel will be notified of the results by the Department Advocate's Office.*

*Positive test results, which indicate illegal drug/controlled substance use, will result in Department Charges and Specifications, and suspension from duty.*

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# ADMINISTRATIVE GUIDE

| Section: Employee Rights/Responsibilities | Procedure No: 332-07 |
|---|---|

**DRUG SCREENING TESTS FOR UNIFORMED MEMBERS OF THE SERVICE APPLYING FOR ASSIGNMENTS TO DESIGNATED SPECIALIZED UNITS**

| DATE EFFECTIVE: | LAST REVISION: | PAGE: |
|---|---|---|
| 05/03/24 | R.O. 24 | 1 of 3 |

**PURPOSE** To screen for illegal drug/controlled substance usage by uniformed members of the service applying for assignment to designated specialized units.

**SCOPE** The Department has a substantial interest in ensuring uniformed members of the service applying for assignments to designated specialized units do not use illegal drugs/controlled substances. In these assignments, the strictest precautionary safeguards are necessary to ensure members maintain the highest ethical standards and performance.

**DEFINITION** DESIGNATED SPECIALIZED UNITS - For the purpose of this procedure, the following units will be included: Internal Affairs Bureau, Detective Bureau, Intelligence and Counterterrorism Bureau, Chief of Special Operations, Highway District, Quality Assurance Section, and any other unit subsequently designated a specialized unit for the purpose of this procedure.

**PROCEDURE** Uniformed members of the service applying for assignments to designated specialized units:

**UNIFORMED MEMBER OF THE SERVICE**

1. MUST sign form indicating that they understand that drug screening is part of the application process for assignments to designated specialized units.
   a. The drug screening can occur at any time after the application has been submitted, or after member is temporarily or permanently assigned to the designated specialized unit.

***NOTE*** *Prior to being notified to report for a drug screening test or prior to being temporarily or permanently assigned to a designated specialized unit, applicants may withdraw their application with no penalty or requirement to submit to drug screening by submitting a written request to their commanding officer*.

2. MUST submit to a hair analysis drug screening test when notified to report for drug screening. Refusal to submit to the test will result in suspension from duty and will be grounds for dismissal from the Department. All applicants will be tested.

***NOTE*** *In all cases, if a uniformed member of the service refuses to submit to a test, the permanent command will be responsible for suspending member and complying with A.G. 318-06, "Suspension From Duty - Uniformed Member of the Service."*

3. Prepare **DRUG SCREENING QUESTIONNAIRE (PD407-1519)** listing all medications ingested or prescribed in the last ninety days, prior to testing.

**UNIFORMED MEMBER OF THE SERVICE (continued)**

4. Present shield and **IDENTIFICATION CARD (PD416-091)** to be checked at the testing location to ensure proper individual has reported for testing.
5. Comply with instructions received at testing location.

***ADDITIONAL DATA***

*When hair samples are required, three hair samples will be collected, cut as close to the skin as possible. The samples should be collected from the same body area, preferably the head. The samples will be individually placed in separate laboratory supplied "Sample Acquisition Cards," and sealed by the collector in the presence of the test subject. These cards will be placed in separate plastic bags, sealed by the collector, and initialed and dated by the test subject. Two hair samples will be forwarded to the contracted laboratory for analysis. The third hair sample will be secured at the Medical Division for use in testing, should the test of the first two hair samples reveal positive results for illegal drugs/controlled substances. Appropriate chain of custody will be maintained at all times.*

*Except in unusual circumstances, samples will be taken at a facility operated by the Medical Division, or at another health care facility.*

*In the event that the member concerned is unable to provide adequate hair samples as required in this procedure, the Commanding Officer, Medical Division, or designee, will be contacted. The Commanding Officer, Medical Division, or designee, may authorize the collection of alternate specimen(s) to complete the drug screening test.*

*When urine samples are required, two urine samples will be collected, each in a separate vial. Prior to testing, the drug screening serial number assigned by the Medical Division and date of test will be affixed to each vial. The serial number will be logged separately with the member's name and maintained at the Medical Division. The member being tested and the witness will then initial the vial stickers. The vials will be sealed in the member's presence after the urine samples have been collected. Appropriate chain of custody will be maintained at all times.*

*Privacy and dignity will be protected. Hair and urine samples will be collected under maximum feasible privacy. Except in unusual circumstances, only one person of the same sex, consistent with the member of the service's gender identity, will be present with the test subject to observe the urine sample being provided. For chain of custody purposes, that same person will also collect the hair samples.*

*One or more scientifically accepted initial screening samples will be employed in analysis. A positive report will be made only after final confirmation testing has been conducted. Negative test samples will not be maintained; instead, they will be destroyed.*

*Positive test samples will be maintained by the analyzing laboratory in a secure area, and will remain confidential unless and until Department disciplinary Charges and Specifications are served. A member whose test is positive may, within sixty days of notification of such result, submit a written request to the Department Advocate's Office for further independent testing of the third sample by a laboratory certified by the State of New York Department of Health, and approved by the Medical Division to conduct the particular type of forensic drug testing (i.e., urine or hair) being requested. All additional testing expenses, including chain of custody, will be paid by the affected*

***ADDITIONAL DATA (continued)***

*member of the service. The results of the additional test will be forwarded by the independent laboratory to the Medical Division. The Medical Division will then forward the results to the Department Advocate's Office. The affected member/counsel will be notified of the results by the Department Advocate's Office.*

*Positive test results, which indicate illegal drug/controlled substance use, will result in Department Charges and Specifications, and suspension from duty.*

*Uniformed members of the service screened under this procedure will continue to be subject to drug screening pursuant to the Department's random drug screening procedures.*

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# ADMINISTRATIVE GUIDE

| Section: Employee Rights/Responsibilities | Procedure No: 332-08 |
|---|---|

**RANDOM DRUG SCREENING FOR UNIFORMED MEMBERS OF THE SERVICE ASSIGNED TO SELECT DETECTIVE BUREAU SUB-UNITS AND INTERNAL AFFAIRS BUREAU (IAB)**

| DATE EFFECTIVE: | LAST REVISION: | PAGE: |
|---|---|---|
| 10/12/23 | R.O. 51 | 1 of 3 |

**PURPOSE** To randomly screen uniformed members of the service assigned to select Detective Bureau sub-units and Internal Affairs Bureau (IAB) for illegal drug/controlled substance usage.

**SCOPE** The Department and individual members assigned to select Detective Bureau sub-units and Internal Affairs Bureau have a substantial interest in ensuring that uniformed members of the service assigned to these commands do not use illegal drugs/controlled substances. In these assignments, the strictest precautionary safeguards are necessary to ensure that members maintain the highest standards of integrity and performance. Uniformed members of the service assigned to commands other than select Detective Bureau sub-units and the Internal Affairs Bureau (IAB) will be subject to separate random drug screening procedures.

**DEFINITION** DETECTIVE BUREAU SUB-UNITS – For the purpose of this procedure, the following units will be included:

1. Citywide Investigations Division and all subunits,
2. Specialty Enforcement Division and all subunits,

**PROCEDURE** To identify uniformed members of the service assigned to select Detective Bureau sub-units and Internal Affairs Bureau (IAB) for random illegal drug/controlled substance screening:

**SUPERVISOR, INFORMATION TECHNOLOGY SERVICES DIVISION**

1. Prepare a computer program that utilizes the Department's personnel databases to randomly identify uniformed members of the service assigned to select Detective Bureau sub-units and IAB for drug screening.
   a. Individual members selected for random drug screening will be identified solely by social security number.

**CHIEF OF DETECTIVES/ DEPUTY COMMISSIONER, IAB**

2. Direct members selected for random screening to appear at the Medical Division at appropriate date and time.
3. Provide the Medical Division's Drug Screening Unit with a listing of members selected for random screening along with dates and times they are scheduled to appear.

**UNIFORMED MEMBER OF THE SERVICE SELECTED FOR TESTING**

4. MUST report to the Medical Division when notified EXCEPT if member is on:
   a. Sick report
   b. Regularly scheduled day off
   c. Military leave
   d. Annual vacation
   e. Terminal leave
   f. Bereavement leave.

***NOTE*** *Members previously scheduled for individual days off (other than regular days off) may be excused from the test with the approval of the bureau chief/deputy commissioner concerned. Members scheduled for court or training on the 8 x 4 tour will appear for testing immediately upon completion of the court or training session. Members scheduled for a 12 x 8 tour on the testing day will appear for testing immediately upon completion of their scheduled 12 x 8 tour. Members reporting sick on the testing day will be required to visit a Department surgeon and obtain approval for excusal from the test.*

**UNIFORMED MEMBER OF THE SERVICE SELECTED FOR TESTING (continued)**

5. MUST submit to a drug screening test. Refusal to submit to the test will result in suspension from duty and will be grounds for dismissal from the Department.
6. Prepare **DRUG SCREENING QUESTIONNAIRE (PD407-1519)** listing all medications ingested or prescribed in the last ninety days, prior to testing.
7. Present shield and **IDENTIFICATION CARD (PD416-091)** at testing location to ensure the proper individual has reported for testing.
8. Comply with instructions received at testing location.

***ADDITIONAL DATA*** *When hair samples are required, three hair samples will be collected, cut as close to the skin as possible. The samples should be collected from the same body area, preferably the head. The samples will be individually placed in separate laboratory supplied "Sample Acquisition Cards," and sealed by the collector in the presence of the test subject. These cards will be placed in separate plastic bags, sealed by the collector, and initialed and dated by the test subject. Two hair samples will be forwarded to the contracted laboratory for analysis. The third hair sample will be secured at the Medical Division for use in testing, should the test of the first two hair samples reveal positive results for illegal drugs/controlled substances. Appropriate chain of custody will be maintained at all times.*

*Except in unusual circumstances, samples will be taken at a facility operated by the Medical Division, or at another health care facility.*

*In the event that the member concerned is unable to provide adequate hair samples as required in this procedure, the Commanding Officer, Medical Division, or designee, will be contacted. The Commanding Officer, Medical Division, or designee, may authorize the collection of alternate specimen(s) to complete the drug screening test.*

*When urine samples are required, two urine samples will be collected, each in a separate vial. Prior to testing, the drug screening serial number assigned by the Medical Division and date of test will be affixed to each vial. The serial number will be logged separately with the member's name and maintained at the Medical Division. The member being tested and the witness will then initial the vial stickers. The vials will be sealed in the member's presence after the urine samples have been collected. Appropriate chain of custody will be maintained at all times.*

*Privacy and dignity will be protected. Hair and urine samples will be collected under maximum feasible privacy. Except in unusual circumstances, only one person of the same sex, consistent with the member of the service's gender identity, will be present with the test subject to observe the urine sample being provided. For chain of custody purposes, that same person will also collect the hair samples.*

***ADDITIONAL DATA (continued)***

*One or more scientifically accepted initial screening samples will be employed in analysis. A positive report will be made only after final confirmation testing has been conducted. Negative test samples will not be maintained; instead, they will be destroyed.*

*Positive test samples will be maintained by the analyzing laboratory in a secure area, and will remain confidential unless and until Department disciplinary Charges and Specifications are served. A member whose test is positive may, within sixty days of notification of such result, submit a written request to the Department Advocate's Office for further independent testing of the third sample by a laboratory certified by the State of New York Department of Health, and approved by the Medical Division to conduct the particular type of forensic drug testing (i.e., urine or hair) being requested. All additional testing expenses, including chain of custody, will be paid by the affected member of the service. The results of the additional test will be forwarded by the independent laboratory to the Medical Division. The Medical Division will then forward the results to the Department Advocate's Office. The affected member/counsel will be notified of the results by the Department Advocate's Office.*

*Positive test results, which indicate illegal drug/controlled substance use, will result in Department Charges and Specifications, and suspension from duty.*

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# ADMINISTRATIVE GUIDE

| Section: Employee Rights/Responsibilities | Procedure No: 332-09 | |
|---|---|---|
| **DRUG SCREENING TESTS FOR UNIFORMED MEMBERS OF THE SERVICE AS A CONDITION OF CIVIL SERVICE PROMOTION** | | |
| DATE EFFECTIVE: 02/16/22 | LAST REVISION: I.O. 13 | PAGE: 1 of 3 |

**PURPOSE** To screen for illegal drug/controlled substance usage by uniformed members of the service as a condition of civil service promotion.

**SCOPE** The Department has a substantial interest in ensuring that uniformed members of the service being considered for promotion through civil service examinations do not use illegal drugs/controlled substances and maintain the highest standards of integrity and performance.

**DEFINITION** CIVIL SERVICE PROMOTION - For the purpose of this procedure, a civil service promotion is a promotion that is received as a result of a competitive civil service examination. Promotions to the following ranks are considered civil service and are covered by this procedure: Sergeant, Lieutenant and Captain. Under this procedure, all candidates for civil service promotions are subject to drug screening.

**PROCEDURE** When candidates for a civil service promotion are required to submit to a drug screening test as per their official Notice of Examination:

***NOTE*** *The required screening can occur prior to promotion or after promotion during the probationary period.*

PRE-PROMOTION PROCEDURES

Uniformed members of the service may withdraw as candidates for promotion with no penalty or requirement to submit to drug screening by submitting a written request to their commanding officer. This request should be made after receiving a notification of promotion but prior to actual promotion and prior to receiving a notification to report for a drug screening test. The candidate's commanding officer will immediately forward two copies of the request to the Chief of Personnel (original through channels, copy DIRECT).

POST-PROMOTION PROCEDURES

After being promoted but prior to receiving a notification to report for a drug screening test, uniformed members of the service may seek restoration to their prior civil service title with no penalty or requirement to submit to drug screening, by submitting a written request to their commanding officer, who will immediately forward two copies of this request to the Chief of Personnel (original through channels, copy DIRECT).

**UNIFORMED MEMBER CONCERNED**

1. Must submit to a hair analysis drug screening test when notified to report for drug screening.
   a. Refusal to submit to the test will result in suspension from duty and will be grounds for dismissal from the Department.
   b. All uniformed members of the service will be tested as a condition of civil service promotion.

***NOTE*** *In all cases, if a uniformed member of the service refuses to submit to the test, the permanent command will be responsible for suspending the member and complying with A.G. 318-06, "Suspension From Duty-Uniformed Member of the Service."*

2. Prepare **DRUG SCREENING QUESTIONNAIRE (PD407-1519)** listing all medications ingested or prescribed in the last ninety days, prior to testing.
3. Present shield and **IDENTIFICATION CARD (PD416-091)** at the testing location to ensure that the proper individual has reported for testing.
4. Comply with instructions received at testing location.

***ADDITIONAL DATA*** *When hair samples are required, three hair samples will be collected, cut as close to the skin as possible. The samples should be collected from the same body area, preferably the head. The samples will be individually placed in separate laboratory supplied "Sample Acquisition Cards," and sealed by the collector in the presence of the test subject. These cards will be placed in separate plastic bags, sealed by the collector, and initialed and dated by the test subject. Two hair samples will be forwarded to the contracted laboratory for analysis. The third hair sample will be secured at the Medical Division for use in testing, should the test of the first two hair samples reveal positive results for illegal drugs/controlled substances. Appropriate chain of custody will be maintained at all times.*

*Except in unusual circumstances, samples will be taken at a facility operated by the Medical Division, or at another health care facility.*

*In the event that the member concerned is unable to provide adequate hair samples as required in this procedure, the Commanding Officer, Medical Division, or designee, will be contacted. The Commanding Officer, Medical Division, or designee, may authorize the collection of alternate specimen(s) to complete the drug screening test.*

*When urine samples are required, two urine samples will be collected, each in a separate vial. Prior to testing, the drug screening serial number assigned by the Medical Division and date of test will be affixed to each vial. The serial number will be logged separately with the member's name and maintained at the Medical Division. The member being tested and the witness will then initial the vial stickers.*

*The vials will be sealed in the member's presence after the urine samples have been collected. Appropriate chain of custody will be maintained at all times.*

***ADDITIONAL DATA (continued)***

*Privacy and dignity will be protected. Hair and urine samples will be collected under maximum feasible privacy. Except in unusual circumstances, only one person of the same sex, consistent with the member of the service's gender identity, will be present with the test subject to observe the urine sample being provided. For chain of custody purposes, that same person will also collect the hair samples.*

*One or more scientifically accepted initial screening samples will be employed in analysis. A positive report will be made only after final confirmation testing has been conducted. Negative test samples will not be maintained; instead, they will be destroyed.*

*Positive test samples will be maintained by the analyzing laboratory in a secure area, and will remain confidential unless and until Department disciplinary Charges and Specifications are served. A member whose test is positive may, within sixty days of notification of such result, submit a written request to the Department Advocate's Office for further independent testing of the third sample by a laboratory certified by the State of New York Department of Health, and approved by the Medical Division to conduct the particular type of forensic drug testing (i.e., urine or hair) being requested. All additional testing expenses, including chain of custody, will be paid by the affected member of the service. The results of the additional test will be forwarded by the independent laboratory to the Medical Division. The Medical Division will then forward the results to the Department Advocate's Office. The affected member/counsel will be notified of the results by the Department Advocate's Office.*

*Positive test results, which indicate illegal drug/controlled substance use, will result in Department Charges and Specifications, and suspension from duty.*

*Uniformed members of the service screened under this procedure will continue to be subject to drug screening pursuant to the Department's random drug screening procedures.*

# ADMINISTRATIVE GUIDE

| Section: Employee Rights/Responsibilities | Procedure No: 332-10 | |
|---|---|---|
| **DRUG SCREENING FOR UNIFORMED MEMBERS OF THE SERVICE AS A CONDITION OF DISCRETIONARY PROMOTION** | | |
| DATE EFFECTIVE: 02/16/22 | LAST REVISION: I.O.13 | PAGE: 1 of 3 |

**PURPOSE** To screen for illegal drug/controlled substance usage by uniformed members of the service as a condition of discretionary promotion.

**SCOPE** The Department has a substantial interest in ensuring that uniformed members of the service being considered for discretionary promotions do not use illegal drugs/controlled substances and maintain the highest standards of integrity and performance.

**DEFINITION** DISCRETIONARY PROMOTION - For the purpose of this procedure, a "discretionary" promotion is a promotion that is not received as a result of a competitive civil service examination. Promotions to the following ranks are considered discretionary and are covered by this procedure: Detective Specialist, Detective Third Grade, Detective Second Grade, Detective First Grade, Sergeant/Special Assignment, Sergeant/Supervisor Detective Squad, Lieutenant/Special Assignment, Lieutenant/Commander Detective Squad, Deputy Inspector, Inspector, Deputy Chief, Assistant Chief, Bureau Chief and Chief of Department. Under this procedure, all candidates for discretionary promotions are subject to drug screening.

**PROCEDURE** Uniformed members of the service who are candidates for discretionary promotion:

**UNIFORMED MEMBER CONCERNED**

1. Sign form **DRUG SCREENING NOTICE-DISCRETIONARY PROMOTION (PD481-030)** which indicates that the member understands that drug screening is part of the candidate process for discretionary promotion.
   a. The required screening can occur at any time after the form is signed, but not more than ninety days prior to promotion, and not more than eighteen months after the candidate has been promoted.

PRE-PROMOTION PROCEDURES

Members may withdraw as candidates for promotion with no penalty or requirement to submit to drug screening by submitting a written request to their commanding officer. This request should be made after receiving a notification of promotion but prior to actual promotion and prior to receiving a notification to report for a drug screening test. (If the candidate has already signed the **DRUG SCREENING NOTICE-DISCRETIONARY PROMOTION** form, but has not yet been promoted, the candidate may still withdraw from consideration at any time prior to receiving a notification to report for a drug screening test). The candidate's commanding officer will immediately forward two copies of the request to the Chief of Personnel (original through channels, copy DIRECT).

**UNIFORMED MEMBER CONCERNED (continued)**

POST-PROMOTION PROCEDURES

After being promoted but prior to receiving a notification to report for a drug screening test, members of the service may seek restoration to their prior title with no penalty or requirement to submit to a drug screening test, by submitting a written request to their commanding officer, who will immediately forward two copies of the request to the Chief of Personnel (original through channels, copy DIRECT).

2. Must submit to a hair analysis drug screening test when notified to report for drug screening.
   a. Refusal to submit to the test will result in suspension from duty and will be grounds for dismissal from the Department.
   b. All uniformed members of the service will be tested as a condition of discretionary promotion.

***NOTE*** *In all cases, if a uniformed member of the service refuses to submit to the test, the permanent command will be responsible for suspending the member and complying with A.G. 318-06, "Suspension From Duty-Uniformed Member of the Service."*

3. Prepare **DRUG SCREENING QUESTIONNAIRE (PD407-1519)** listing all medications ingested or prescribed in the last ninety days, prior to testing.
4. Present shield and **IDENTIFICATION CARD (PD416-091)** at the testing location to ensure that the proper individual has reported for testing.
5. Comply with instructions received at testing location.

***ADDITIONAL DATA*** *When hair samples are required, three hair samples will be collected, cut as close to the skin as possible. The samples should be collected from the same body area, preferably the head. The samples will be individually placed in separate laboratory supplied "Sample Acquisition Cards," and sealed by the collector in the presence of the test subject. These cards will be placed in separate plastic bags, sealed by the collector, and initialed and dated by the test subject. Two hair samples will be forwarded to the contracted laboratory for analysis. The third hair sample will be secured at the Medical Division for use in testing, should the test of the first two hair samples reveal positive results for illegal drugs/controlled substances. Appropriate chain of custody will be maintained at all times.*

*Except in unusual circumstances, samples will be taken at a facility operated by the Medical Division, or at another health care facility.*

*In the event that the member concerned is unable to provide adequate hair samples as required in this procedure, the Commanding Officer, Medical Division, or designee, will be contacted. The Commanding Officer, Medical Division, or designee, may authorize the collection of alternate specimen(s) to complete the drug screening test.*

***ADDITIONAL DATA (continued)***

*When urine samples are required, two urine samples will be collected, each in a separate vial. Prior to testing, the drug screening serial number assigned by the Medical Division and date of test will be affixed to each vial. The serial number will be logged separately with the member's name and maintained at the Medical Division. The member being tested and the witness will then initial the vial stickers. The vials will be sealed in the member's presence after the urine samples have been collected. Appropriate chain of custody will be maintained at all times.*

*Privacy and dignity will be protected. Hair and urine samples will be collected under maximum feasible privacy. Except in unusual circumstances, only one person of the same sex, consistent with the member of the service's gender identity, will be present with the test subject to observe the urine sample being provided. For chain of custody purposes, that same person will also collect the hair samples.*

*One or more scientifically accepted initial screening samples will be employed in analysis. A positive report will be made only after final confirmation testing has been conducted. Negative test samples will not be maintained; instead, they will be destroyed.*

*Positive test samples will be maintained by the analyzing laboratory in a secure area, and will remain confidential unless and until Department disciplinary Charges and Specifications are served. A member whose test is positive may, within sixty days of notification of such result, submit a written request to the Department Advocate's Office for further independent testing of the third sample by a laboratory certified by the State of New York Department of Health, and approved by the Medical Division to conduct the particular type of forensic drug testing (i.e., urine or hair) being requested. All additional testing expenses, including chain of custody, will be paid by the affected member of the service. The results of the additional test will be forwarded by the independent laboratory to the Medical Division. The Medical Division will then forward the results to the Department Advocate's Office. The affected member/counsel will be notified of the results by the Department Advocate's Office.*

*Positive test results, which indicate illegal drug/controlled substance use, will result in Department Charges and Specifications, and suspension from duty.*

*Uniformed members of the service screened under this procedure will continue to be subject to drug screening pursuant to the Department's random drug screening procedures.*

# ADMINISTRATIVE GUIDE

| Section: Employee Rights/Responsibilities | | Procedure No: 332-11 |
|---|---|---|
| **VOLUNTARY DRUG TESTING** | | |
| DATE EFFECTIVE: 04/06/22 | LAST REVISION: I.O. 41 | PAGE: 1 of 1 |

**PURPOSE** To request permission to voluntarily take a drug screening test to determine illegal drug/controlled substance use.

**SCOPE** This procedure is available to members of the service (uniformed and civilian) who are the subject of unsubstantiated allegations of illegal drug or controlled substance use where the reasonable suspicion standard has not been met. Prior to requesting permission to take a voluntary drug screening test, which will consist of both hair and urine analysis, the member involved is entitled to consult with an attorney or appropriate line organization representative.

**PROCEDURE** When a member of the service (uniformed or civilian) requests to voluntarily take a drug screening test:

**MEMBER OF THE SERVICE**

1. Prepare a request on **Typed Letterhead**, addressed to the Chief of Personnel, asking permission to voluntarily take a drug screening test.
   a. The request must contain:
      (1) The circumstances under which the member was accused of illegal drug/controlled substance use, and
   b. The request may contain:
      (1) The name of the union representative or attorney consulted regarding taking the drug screening test.
2. Deliver the request, personally, to the Chief of Personnel or designee.

***NOTE*** *The request must be delivered to the Chief of Personnel, or designee, within twenty-four hours of the time the member of the service became aware of the allegation of illegal drug/controlled substance use.*

**CHIEF OF PERSONNEL/ DESIGNEE**

3. Upon receipt of request, verify that the member of the service was in fact the subject of an allegation of illegal drug/controlled substance use.
4. Determine if member of the service became aware of the allegation of illegal drug/controlled substance use within twenty-four hours of delivery of request.
5. Direct member of the service to report to the Medical Division for voluntary drug screening, which consists of hair and urine analysis.

***ADDITIONAL DATA*** *The restrictive nature of this procedure should result in a limited number of drug screening tests; however, the existence of this procedure will contribute to the goal of a drug free Department.*

*This procedure is not available to members of the service who have been notified to report for drug screening pursuant to the Department's random drug screening procedures.*

*Uniformed members of the service screened under this procedure will continue to be subject to drug screening pursuant to the Department's random drug screening procedures.*

# ADMINISTRATIVE GUIDE

| Section: Employee Rights/Responsibilities | Procedure No: 332-12 | |
|---|---|---|
| **COUNSELING SERVICES UNIT DRUG SCREENING FOR UNIFORMED AND CIVILIAN MEMBERS OF THE SERVICE** | | |
| DATE EFFECTIVE: 11/18/21 | LAST REVISION: I.O. 110 | PAGE: 1 of 2 |

**PURPOSE** To screen uniformed and civilian members of the service for alcohol and illegal drugs/controlled substances at the completion of the Counseling Services Unit Program.

**SCOPE** The Department's goal is to ensure the safety of its employees and the public by maintaining a drug/controlled substance free work environment.

**PROCEDURE** When uniformed and civilian members of the service are screened for alcohol and illegal drugs/controlled substances at the completion of the Counseling Services Unit Program:

**COMMANDING OFFICER, MEDICAL DIVISION**

1. Ensure the supervisor, Counseling Services Unit schedules all members of the service (uniformed and civilian) participating in the Counseling Services Unit Program for a urine drug screening analysis, prior to the completion of the program.

***NOTE*** *The purpose of the urine drug screening is to detect the presence of alcohol and/or illegal drugs/controlled substances.*

**SUPERVISOR, COUNSELING SERVICES UNIT**

2. Schedule and notify all members of the service (uniformed and civilian) who are about to complete the Counseling Services Unit Program to appear at the Medical Division at the appropriate date and time.

**MEMBER OF THE SERVICE**

3. MUST report to Medical Division when notified, except if member is on:
   a. Sick report
   b. Bereavement leave
   c. Terminal leave.

***NOTE*** *Members scheduled for court may be directed to appear for testing immediately upon completion of court, or rescheduled as appropriate. Members reporting sick on the testing date will be required to visit a Department surgeon and obtain approval for excusal from the testing.*

4. MUST submit to a urine drug screening analysis. Refusal to submit to the test will result in suspension from duty and will be grounds for dismissal from the Department.
5. Prepare **DRUG SCREENING QUESTIONNAIRE (PD407-1519)** listing all medications ingested or prescribed in the last ninety days, prior to testing.
6. Present shield and **IDENTIFICATION CARD (PD416-091)** at the testing location to ensure that the proper individual has reported for testing.
7. Comply with instructions received at testing location.

***ADDITIONAL DATA***

*When urine samples are required, two urine samples will be collected, each in a separate vial. Prior to testing, the drug screening serial number assigned by the Medical Division and date of test will be affixed to each vial. The serial number will be logged separately with the member's name and maintained at the Medical Division. The member being tested and the witness will then initial the vial stickers. The vials will be sealed in the member's presence after the urine samples have been collected. Appropriate chain of custody will be maintained at all times.*

*Except in unusual circumstances, samples will be taken at a facility operated by the Medical Division, or at another health care facility.*

*Privacy and dignity will be protected. Samples will be collected under maximum feasible privacy. Except in unusual circumstances, only one person of the same sex will be present with the test subject to observe the urine sample being provided.*

*One or more scientifically accepted initial screening samples will be employed in analysis. A positive report will be made only after final confirmation testing has been conducted. Negative test samples will not be maintained; instead, they will be destroyed.*

*A member whose test is positive may, within sixty days of notification of such result, submit a written request to the Department Advocate's Office for further independent testing of the third sample by a laboratory certified by the State of New York Department of Health, and approved by the Medical Division to conduct the particular type of forensic drug testing (i.e., urine). All testing expenses, including chain of custody, will be paid by the affected member of the service. The results of the retest will be forwarded by the independent laboratory to the Medical Division. The Medical Division will then forward the results to the Department Advocate's Office. The affected member/counsel will be notified of the results by the Department Advocate's Office.*

*Positive test results, which indicate illegal drug/controlled substance use, will result in Department Charges and Specifications, and suspension from duty.*

*Uniformed members of the service subject to screening under this procedure will also be subject to drug screening pursuant to the Department's random drug screening procedures.*

# ADMINISTRATIVE GUIDE

| Section: Employee Rights/Responsibilities | Procedure No: 332-13 | |
|---|---|---|
| **END OF PROBATION DRUG SCREENING FOR PROBATIONARY POLICE OFFICERS** | | |
| DATE EFFECTIVE: 11-18-21 | LAST REVISION: I.O. 110 | PAGE: 1 of 3 |

**PURPOSE** To drug screen probationary police officers during their end of probation medical exam prior to coming off probation.

**SCOPE** The Department's goal is to ensure the safety of its employees and the public by maintaining a drug/controlled substance free work environment.

**PROCEDURE** When probationary police officers submit to drug screening during their end of probation medical exam prior to coming off probation:

**COMMANDING OFFICER, MEDICAL DIVISION**

1. Ensure that the supervisor, Drug Screening Unit schedules all probationary police officers for end of probation medical exams (which will include hair and urine analysis test) prior to the concerned member's end of probation.

***NOTE*** *Ordinarily, this will occur within six months of the date that the member is scheduled to end their probationary period.*

**SUPERVISOR, DRUG SCREENING UNIT**

2. Schedule and notify probationary police officers to report for their end of probation medical exam, including drug screening, at the Medical Division at the appropriate date and time.

**PROBATIONARY POLICE OFFICER**

3. MUST report to Medical Division when notified, except if member is on:
   a. Sick report
   b. Regularly scheduled day off
   c. Military leave
   d. Annual vacation
   e. Bereavement leave.

***NOTE*** *Members scheduled for court or training may be directed to appear for testing immediately upon completion of court, or rescheduled as appropriate. Members reporting sick on the testing date will be required to visit a Department surgeon and obtain approval for excusal from the testing.*

4. MUST submit to a hair and urine analysis. Refusal to submit to the test will result in suspension from duty and will be grounds for dismissal from the Department.
5. Prepare **DRUG SCREENING QUESTIONNAIRE (PD407-1519)** listing all medications ingested or prescribed in the last ninety days, prior to testing.
6. Present shield and **IDENTIFICATION CARD (PD416-091)** at the testing location to ensure that the proper individual has reported for testing.

**PROBATIONARY POLICE OFFICER (continued)**

7. Comply with instructions received at testing location.

***ADDITIONAL DATA***

*When hair samples are required, three hair samples will be collected, cut as close to the skin as possible. The samples should be collected from the same body area, preferably the head. The samples will be individually placed in separate laboratory supplied "Sample Acquisition Cards," and sealed by the collector in the presence of the test subject. These cards will be placed in separate plastic bags, sealed by the collector, and initialed and dated by the test subject. Two hair samples will be forwarded to the contracted laboratory for analysis. The third hair sample will be secured at the Medical Division for use in testing, should the test of the first two hair samples reveal positive results for illegal drugs/controlled substances. Appropriate chain of custody will be maintained at all times.*

*Except in unusual circumstances, samples will be taken at a facility operated by the Medical Division, or at another health care facility.*

*In the event that the member concerned is unable to provide adequate hair samples as required in this procedure, the Commanding Officer, Medical Division, or designee, will be contacted. The Commanding Officer, Medical Division, or designee, may authorize the collection of alternate specimen(s) to complete the drug screening test.*

*When urine samples are required, two urine samples will be collected, each in a separate vial. Prior to testing, the drug screening serial number assigned by the Medical Division and date of test will be affixed to each vial. The serial number will be logged separately with the member's name and maintained at the Medical Division. The member being tested and the witness will then initial the vial stickers. The vials will be sealed in the member's presence after the urine samples have been collected. Appropriate chain of custody will be maintained at all times.*

*Privacy and dignity will be protected. Hair and urine samples will be collected under maximum feasible privacy. Except in unusual circumstances, only one person of the same sex will be present with the test subject to observe the urine sample being provided. For chain of custody purposes, that same person will also collect the hair samples.*

*One or more scientifically accepted initial screening samples will be employed in analysis. A positive report will be made only after final confirmation testing has been conducted. Negative test samples will not be maintained; instead, they will be destroyed.*

*Positive test samples will be maintained by the analyzing laboratory in a secure area, and will remain confidential unless and until Department disciplinary Charges and Specifications are served. A member whose test is positive may, within sixty days of notification of such result, submit a written request to the Department Advocate's Office for further independent testing of the third sample by a laboratory certified by the State of New York Department of Health, and approved by the Medical Division to conduct the particular type of forensic drug testing (i.e., urine or hair) being requested. All additional testing expenses, including chain of custody, will be paid by the affected*

***ADDITIONAL DATA (continued)***

*member of the service. The results of the additional test will be forwarded by the independent laboratory to the Medical Division. The Medical Division will then forward the results to the Department Advocate's Office. The affected member/counsel will be notified of the results by the Department Advocate's Office.*

*Positive test results, which indicate illegal drug/controlled substance use, will result in Department Charges and Specifications, and suspension from duty.*

*Probationary police officers who graduated from the Police Academy and are subject to screening under this procedure will also be subject to drug screening pursuant to the Department's random drug screening procedures.*

NYPD

# ADMINISTRATIVE GUIDE

| Section: Employee Rights/Responsibilities | Procedure No: 332-14 | |
|---|---|---|
| **INVESTIGATION OF INCIDENTS OF RETALIATION AGAINST MEMBERS OF THE SERVICE** | | |
| DATE EFFECTIVE: 03/17/25 | LAST REVISION: R.O. 12 | PAGE: 1 of 2 |

**PURPOSE** To provide guidelines in accordance with the provisions of the Whistleblowers Law for the investigation of allegations of retaliation made by members of the service who have voluntarily reported misconduct or corruption.

**DEFINITION** WHISTLEBLOWERS LAW - An Administrative Code provision which encourages City employees to report improper conduct, i.e., corruption, criminal activity, conflict of interest, gross mismanagement or abuse of authority, within their respective agencies. This law protects City employees who report such wrongdoing from any form of retaliation, i.e., dismissal, demotion, suspension, disciplinary action, negative performance evaluation, any action resulting in loss of staff, office space or equipment or other benefit, failure to appoint, failure to promote, or any transfer or assignment or failure to transfer or assign against the wishes of the affected employee.

**SCOPE** The Department has the responsibility to encourage members to come forward and voluntarily provide information regarding misconduct and corruption. Inherent in this responsibility is the ability to protect those members from retaliation. IT IS THE POLICY OF THIS DEPARTMENT THAT RETALIATION AGAINST ANY MEMBER OF THE SERVICE FOR VOLUNTARILY PROVIDING INFORMATION REGARDING MISCONDUCT AND CORRUPTION WILL NOT BE TOLERATED.

**PROCEDURE** When a member of the service believes they are the victim of retaliation for voluntarily providing information regarding misconduct or corruption.

**MEMBER OF THE SERVICE**

1. Notify Internal Affairs Bureau Command Center.

**UNIT RECEIVING NOTIFICATION**

2. Notify Internal Affairs Bureau and forward all pertinent information.
   a. Make reasonable efforts to protect the anonymity and confidentiality of the employee making the allegation.

**MEMBER CONCERNED, IAB COMMAND CENTER**

3. Record pertinent information and assign a log number.
4. Have an immediate preliminary investigation conducted to obtain all available facts and evidence.
   a. Indicate results in log.

***NOTE*** *Members of the service should comply with the provisions of A.G. 332-01, "Employment Discrimination," to lodge a complaint of retaliation regarding an equal employment opportunity issue. Allegations of retaliation involving equal employment opportunity issues (employment discrimination, sexual harassment, etc.) MUST be referred to the Office of Equal Employment Opportunity for investigation.*

**INTERNAL AFFAIRS BUREAU**

5. Evaluate each complaint to determine whether the case may fall within the purview of the Whistleblowers Law.
6. Refer cases requiring further investigation concerning violations of the Whistleblowers Law to either the Internal Affairs Bureau or Office of Equal Employment Opportunity, as applicable.

***NOTE*** *Only the Internal Affairs Bureau or the Office of Equal Employment Opportunity are authorized to conduct investigations involving allegations of retaliation against any member of the service for voluntarily having provided information regarding misconduct or corruption. Allegations which do not violate the Whistleblowers Law will be referred to the appropriate investigative unit concerned for additional action.*

**IAB INVESTIGATIVE GROUP**

7. Forward report through channels upon completion of investigation.

***NOTE*** *Due to the need to maintain the confidentiality of investigations to the extent possible, the Office of Equal Employment Opportunity will not be required to forward reports of employment discrimination retaliation. These reports will remain on file at the Office of Equal Employment Opportunity until such time that disclosure thereof is necessary.*

**DEPUTY COMMISSIONER, INTERNAL AFFAIRS**

8. Forward report and recommendations to the Police Commissioner.

***ADDITIONAL DATA*** *Members of the service are reminded that resources (i.e., Employee Assistance Unit, Chaplains Unit, Police Officers Providing Peer Assistance [POPPA], etc.) are available to provide help in addressing a personal or professional problem.*

*To obtain additional resources, information and guidance, members can refer to the Personnel Bureau's Department Intranet homepage. Once on the homepage, members are directed to click on the "Employee Assistance" folder in the "Documents" Section.*

# ADMINISTRATIVE GUIDE

| Section: Employee Rights/Responsibilities | | Procedure No: 332-15 |
|---|---|---|
| **GRIEVANCE - UNIFORMED MEMBER OF THE SERVICE** | | |
| DATE EFFECTIVE: 01/07/26 | LAST REVISION: R.O. 6 | PAGE: 1 of 3 |

**PURPOSE** To adjudicate grievances of uniformed members of the service - Police Officer through Deputy Chief.

**DEFINITIONS** GRIEVANCE – For the purpose of this procedure shall mean:

A claimed violation, misinterpretation or inequitable application of the provisions of the collective bargaining agreement;

A claimed violation, misinterpretation or misapplication of the written rules, regulations or procedures of the Police Department affecting terms and conditions of employment. Grievances shall not include disciplinary matters;

c. A claimed violation, misinterpretation or misapplication of the Guidelines for Interrogation of Members of the Police Department as contained in the collective bargaining agreement;
d. A claimed improper holding of an open-competitive rather than a promotional examination;
e. A claimed assignment of the grievant to duties substantially different from those stated in the grievants job title specification.

COMMANDING OFFICER - immediate commanding officer of the aggrieved employee.

REVIEWING OFFICER - the superior officer in charge of the next higher command or level above the commanding officer.

PERSONNEL GRIEVANCE BOARD – composed of the following members: Commanding Officer, Office of Labor Relations (Chair), Chief of Department or designee, Chief of Personnel or designee. The grievants shall be represented by their individual union presidents or designee.

GRIEVANT - an employee or group of employees asserting a grievance or the Union or both, as the context requires.

**PROCEDURE** When a uniformed member of the service has a grievance:

**GRIEVANT**

1. Continue to perform assigned duties and obey lawful orders.

STEP I

2. Present grievance to commanding officer either orally or in writing within 90 days of occurrence.
   a. The grievant may permit employee representative to present grievance, if desired.

**COMMANDING OFFICER**

3. Carefully consider the grievance objectively, with a view toward harmonious interrelationships within the command and good order of the Department.

***NOTE*** *At every step of the grievance procedure, the grievant and the commanding officer considering the grievance shall work for a satisfactory adjustment. The supervisor shall have the right to summon any persons considered necessary for an equitable adjustment. Proceedings will be informal.*

4. Advise grievant, within five days of submission of grievance, of decision reached.
5. Take necessary action, within scope of authority, to resolve grievance.

STEP II

**GRIEVANT**

6. Prepare three copies of the grievance within ten days of receiving the commanding officer's decision if further review is desired and include:
   a. Concise statement of grievance and,
   b. Results of proceedings during step I
7. Forward two copies to designated reviewing officer and retain one copy for personal record and use.

**REVIEWING OFFICER**

8. Forward one copy to grievant's commanding officer, requesting their comments.
9. Carefully consider grievance and make determination.
10. Advise grievant and commanding officer within ten days of decision reached.
11. Take necessary action within scope of authority to resolve grievance.

STEP III

**GRIEVANT**

12. Prepare five copies of the grievance within ten days of receiving reviewing officers decision if further review is desired and include:
    a. A concise statement of the grievance, and
    b. The results of the proceedings during Step I and II.
13. Forward four copies through channels to the Chair, Personnel Grievance Board and retain one copy for personal record and use.

***NOTE*** *There are certain grievable disputes which have Department-wide application or are of such a scope as to make adjustments at Step I or Step II of the grievance procedure impracticable, and therefore such grievances may be instituted at Step III of the grievance procedure by filing the required written statement of the grievance to the Chair, Personnel Grievance Board or their designee, either on their own, or through a union representative.*

**CHAIR, PERSONNEL GRIEVANCE BOARD**

14. Forward one copy of the grievance to the reviewing officer concerned, requesting their comments.
15. Convene meeting of the Board at least once each month to discuss and consider properly referred grievances.

**CHAIR, PERSONNEL GRIEVANCE BOARD (continued)**

16. Advise grievant, union representative, commanding officer, and reviewing officer of decision reached within seven days.
17. Take necessary steps to implement decisions resolving the grievance.
    a. Issue where appropriate, through the Chief of Department, orders and instructions consistent with this procedure.

STEP IV

**CHAIR, PERSONNEL GRIEVANCE BOARD**

18. Refer grievance to the Police Commissioner for final determination if unable to adjust matter.

***ADDITIONAL DATA***

*The Police Commissioner shall make a final agency determination within ten working days following receipt of the grievance. This determination shall be made after appropriate consultation with any and all parties to the grievance, including the Chair, Personnel Grievance Board and/or Board members and copies shall be sent to the grievant and the union.*

*Within twenty days following the receipt of any Police Commissioner's Step IV decision, the Union shall have the right to bring grievance unresolved at Step IV to impartial arbitration pursuant to the New York City Collective Bargaining Law and the Consolidated Rules of the New York City Office of Collective Bargaining.*

*The grievance procedure is designed to operate within the framework of, and is not intended to abolish or supersede, existing rules and procedures providing for additional methods of redress. These include, but are not limited to, the existing rights of a grievant to request an interview with the Police Commissioner. Any questions concerning this procedure should be referred to the Commanding Officer, Office of Labor Relations.*

*The availability of the grievance or arbitration procedure shall not justify a failure to follow lawful orders.*

*The grievant shall have the right to present a grievance in accord with the procedure provided herein, free from coercion, interference, restraint or reprisal.*

*The informal resolution of differences or grievances is urged and encouraged at all levels of supervision.*

*An employee may present their own grievance through the first four steps of the grievance procedure listed below either individually (with aid of the employee's own counsel if the employee so chooses), or through the union, provided, however, that the union shall have the right to have a representative present at each step of the grievance procedure.*

*Under the grievance procedure, a grievance must be initiated within 90 days following the date on which the grievance arose or the date on which the grievant should reasonably have learned of the grievance, whichever date is the latest.*

# ADMINISTRATIVE GUIDE

| Section: Employee Rights/Responsibilities | | Procedure No: 332-16 |
|---|---|---|
| **OFFICIAL TRIPS BY DEPARTMENT REPRESENTATIVES** | | |
| DATE EFFECTIVE: 07/06/26 | LAST REVISION: R.O. 64 | PAGE: 1 of 4 |

**PURPOSE** To obtain permission and/or funds to leave the City on official business excluding trips required for return of prisoners, subpoenas or investigations.

**PROCEDURE** When an official trip will result in a benefit to the City of New York and benefit may only be obtained by making such trip:

**MEMBER OF THE SERVICE**

1. Prepare a request on **Typed Letterhead**, addressed to Police Commissioner, seeking authorization to attend and appropriate funding for trip, including:
   a. Identity (name, rank or title) and command of member(s) making trip.
   b. Time and date of departure and return.
   c. Destination (include organization or agency to be visited).
   d. Hotel/office and telephone number where member can be reached.
   e. Statement explaining how the trip will result in a benefit to the City of New York that cannot be obtained locally or by other means.
   f. A complete and itemized estimate of expenditures to be incurred must be included (i.e., transportation, lodging, meals, registration), regardless of the source of funding.
      (1) Miscellaneous expenses must be identified and listed.
      (2) Backup material (i.e., brochures, registration fees, etc.) must be submitted with trip papers.

***NOTE*** *All expenditures must be in compliance with limits as set by the Office of the Comptroller. The Director, Audits and Accounts Unit will supply current limits, upon request.*

   g. Rank/title and name of member designated in command of unit if unit commander makes trip.
   h. Statement requesting that Director, Audits and Accounts Unit is authorized to advance necessary funds.

***NOTE*** *All trips must be within Office of the Comptroller guidelines, regardless of who is paying for the trip. NO OVERTIME IS PERMITTED.*

2. Prepare **Mayor's Form 1-2:**
   a. Enter "Police Department" in box captioned "Agency"
   b. Give a brief synopsis and justification for the trip in the box captioned "Purpose of Trip and Benefit to City"
   c. Enter estimated cost for one person in area captioned "Estimate of Cost of Trip Per Person," for the following:

**MEMBER OF THE SERVICE (continued)**

(1) Travel - airline, train, City car or personal car
   (a) No airplane travel is permitted between the City of New York and Albany; nor between New York and Washington, D.C.

***NOTE*** *Airline and train reservations must be made through the City's DESIGNATED TRAVEL AGENCY. As this contract is periodically awarded to a new vendor, contact Audits and Accounts Unit for the current authorized travel agency.*

(2) Hotel expenses (including taxes), as approved by the Audits and Accounts Unit

(3) Meal expenses are not permitted for one day trips, i.e., when a member leaves and returns to the City on the same day without a stayover; meal expenses for days of departure and return are allowed when travel requires tour to begin before 0700 hours and/or the tour ends after 1900 hours.

3. Prepare an **OFFICIAL LETTERHEAD (PD158-151)**, for Police Commissioner's signature, indicating details of trip (i.e., destination, reason, etc.), and address as follows:

First Deputy Mayor
Office of the Mayor
City Hall
New York, New York 10007

   a. **OFFICIAL LETTERHEAD** must be undated and the closing should read:

Sincerely,
(Name)
Police Commissioner

4. Submit request, **Mayor's Form 1-2**, **OFFICIAL LETTERHEAD** (addressed to the First Deputy Mayor) and backup material, if any, to commanding officer.

***NOTE*** *Trip papers must be submitted to the Police Commissioner's Office no later than 40 business days prior to travel, or 50 business days, if travel is out of country.*

**COMMANDING OFFICER CONCERNED**

5. Endorse, indicating APPROVAL/DISAPPROVAL.
   a. If APPROVED, forward request, **Mayor's Form 1-2**, **OFFICIAL LETTERHEAD** (addressed to the First Deputy Mayor) and backup material, if any, through channels, to the highest-ranking member concerned.

***NOTE*** *If DISAPPROVED, an immediate telephone notification will be made to commanding officer of requesting member.*

**HIGHEST RANKING MEMBER CONCERNED**

6. Endorse and forward request, **Mayor's Form 1-2, OFFICIAL LETTERHEAD** (addressed to the First Deputy Mayor) and backup material, if any, to the First Deputy Commissioner.
   a. For trips where any portion of travel expenses, including discounted or waived registration fees, are paid for by an outside entity, including by a foreign government entity, forward request, Mayor's Form 1-2, **OFFICIAL LETTERHEAD** (addressed to the First Deputy Mayor) and backup material, if any, to the Deputy Commissioner, Legal Matters.

***NOTE*** *Highest ranking member concerned as specified in this procedure is the commanding officer in the chain of command one step below the Police Commissioner, i.e., First Deputy Commissioner, Intelligence and Counterterrorism Bureau, Deputy Commissioner, Legal Matters, Deputy Commissioner, Trials, Deputy Commissioner, Public Information, Deputy Commissioner, Strategic Initiatives, Chief of Department and Chief of Internal Affairs Bureau.*

*When required to forward a request to the Deputy Commissioner, Legal Matters pursuant to step "6a" above, such requests will be processed simultaneously. The Deputy Commissioner, Legal Matters will coordinate with the Office of the Police Commissioner to ensure that the results of agency counsel review and any additional documentation, if required, are provided to the Police Commissioner.*

**FIRST DEPUTY COMMISSIONER**

7. Enter recommendation and forward all papers to Police Commissioner.

**COMMANDING OFFICER, OFFICE OF POLICE COMMISSIONER**

8. Forward all three copies (original white, pink and yellow) of the **Mayor's Form 1-2** to Office of the Mayor for approval, if approved by Police Commissioner.

***NOTE*** *If APPROVED by the Office of the Mayor, the pink copy of Mayor's Form is returned to the Police Commissioner's Office for processing and forwarding to the Director, Audits and Accounts Unit.*

9. Process request as follows: if DISAPPROVED by Police Commissioner/Office of the Mayor:
   a. Original - to originating command, through channels
   b. Duplicate - filed in Police Commissioner's Office

UPON COMPLETION OF TRIP

**MEMBER OF THE SERVICE**

10. Prepare **EXPENSE REPORT (PD102-061)** and submit, with supporting documentation, to the Audits and Accounts Unit within ten days after completion of travel, regardless of the method of original payment or reimbursement.

**DIRECTOR, AUDITS AND ACCOUNTS UNIT**

11. Initiate appropriate measures to ensure receipt of **EXPENSE REPORTS** and supporting documentation, if not submitted in a timely manner.

***ADDITIONAL DATA***

*When a vehicle is to be utilized as the primary means of transportation to and from the destination (rather than by airline, railroad or bus) the member must ascertain the availability of a Department vehicle by inquiring in the following order:*

*a. At their respective command*

*b. If none is available at the command level, inquire at the member's respective bureau or overhead command*

*c. If a vehicle is not available at the bureau/overhead command, the member should contact the Confidential Rental and Lease Office (CRALO), Fleet Services Division.*

*If there is a vehicle available at Fleet Services Division, the member must submit a request on **Typed Letterhead** to Commanding Officer, Fleet Services Division requesting approval for the assignment of a Department vehicle, by CRALO, for the pending travel.*

*This protocol does not apply to the rental of a vehicle upon arrival at a destination by airline or railroad where the vehicle is to be used only for local transportation at that site.*

*Any questions regarding this procedure should be addressed to the Director, Audits and Accounts Unit.*

*Commanding officer of member required to leave the City on official business may request services of Department aircraft. Forward request to Chief of Department, including identity of member, time, date, and reason for flight, and statement from Commanding Officer, Aviation Unit, that aircraft is available.*

RKH

# ADMINISTRATIVE GUIDE

| Section: Employee Rights/Responsibilities | | Procedure No: 332-17 |
|---|---|---|
| **UNION RELEASE TIME** | | |
| DATE EFFECTIVE: 01/07/26 | LAST REVISION: R.O. 6 | PAGE: 1 of 3 |

**PURPOSE** To allow union representatives time to conduct labor activities.

**DEFINITIONS** FULL RELEASE - Permits a union representative to engage in authorized union activities full time without loss of pay.

PARTIAL RELEASE - Permits a union representative to devote a regular part of job time to authorized union activities without loss of pay.

AD HOC RELEASE - Permits a union representative to conduct union activities for a specific situation or purpose with or without loss of pay.

**PROCEDURE** When a union representative requests release time for union activities:

**COMMANDING OFFICER/ SUPERVISORY HEAD**

1. Ascertain whether union representative is certified by the Commanding Officer, Office of Labor Relations for FULL, PARTIAL OR AD HOC release time.
2. Assign FULL and PARTIAL release time representatives to Day Squad duty hours.

***NOTE*** *Although uniformed union delegates at unit commands are considered PARTIAL RELEASE representatives, they will be treated as, and guided by provisions for, AD HOC RELEASE representatives.*

**MEMBER OF THE SERVICE**

3. Prepare **Digital Leave of Absence Request** as indicated:
   a. FULL RELEASE
      (1) Submit an electric copy at least five days prior to beginning of each month
      (2) Indicate number of work days from 0001 hours, the first day of the month, until 2400 hours, the last day of the month
      (3) Check box "Full Pay"
      (4) Enter "Full Release Under E.O. 75" and member's union title under "REASONS."
   b. PARTIAL RELEASE
      (1) Submit an electric copy at least five days prior to scheduled release time
      (2) Indicate tour(s) or hours authorized
      (3) Check box "Full Pay"
      (4) Enter "Partial Release Under E.O. 75" and member's union title under "REASONS."
   c. AD HOC RELEASE
      (1) Submit an electric copy at earliest opportunity
      (2) Indicate tour(s) or hours requested

**MEMBER OF THE SERVICE (continued)**

(3) Do NOT check either "No Pay" or "Full Pay" box

(4) Enter "Ad Hoc Release-E.O. 75," union designation, particular activity and authority for release, e.g., FINEST or telephone message, under "REASONS."

***NOTE*** *Civilian members of the service with the capability to enter leave of absence requests direct into CityTime, are also required to prepare a Digital Leave of Absence Request.*

An alternate delegate requesting release time will indicate certified *delegate's name and reason such delegate is unable to attend. Uniformed union alternate delegates may be released only when the certified delegate is on sick report, or has a scheduled court appearance, or is on vacation out of the city.*

**MEMBER OF THE SERVICE**

4. Submit to commanding officer/supervisory head, NO LATER THAN FIVE DAYS AFTER END OF EACH MONTH, two copies of **City of New York, Labor Management Joint Activity Report (OMLR-28)**, including:
   a. Released under E.O. 75 with or without pay
   b. Vacation leave
   c. Other leaves, with or without pay
   d. Sick leave.

***NOTE*** *Negative reports will be submitted*.

5. Do NOT use abbreviations not readily understood by persons outside the Department, e.g., IAB, CCRB, PBBS, etc.

**COMMANDING OFFICER/ SUPERVISORY HEAD**

6. Review **Digital Leave of Absence Request** and **City of New York, Labor Management Joint Activity Report(s)** for accuracy.
7. Verify and attest to accuracy of entries re: annual leave, sick leave and/or other authorized leaves of absence by signing name below delegate's signature on monthly **City of New York, Labor Management Joint Activity Report**.
8. Ensure that member is NOT granted overtime payments, compensatory time or meal allowance in connection with union release time excusal.

***NOTE*** *All Ad Hoc requests for leave with pay under Executive Order 75 will be approved only with authorization from the Commanding Officer, Office of Labor Relations by a FINEST or telephone message. Any other Ad Hoc leave under Executive Order 75 without such authorization shall be deducted from the member's leave balance*.

10. Forward to Commanding Officer, Office of Labor Relations:
    a. An electronic copy of the **Digital Leave of Absence Request** and **City of New York, Labor Management Joint Activity Report(s)** for FULL and/or PARTIAL RELEASE representatives, not later than the tenth day of each month.

**COMMANDING OFFICER/ SUPERVISORY HEAD (continued)**

b. Original **Digital Leave of Absence Request** for AD HOC RELEASE representatives, no later than one week after approval.

11. File duplicate copies in member's personal folder.

12. Submit report to the Commanding Officer, Office of Labor Relations identifying those members who fail to submit proper reports.

a. The Commanding Officer, Office of Labor Relations will notify commanding officers/supervisory heads of what action, if any, is to be taken when members fail to submit required reports. Such action may include de-certification and loss of pay for the period in question.

***ADDITIONAL DATA*** *The Commanding Officer, Office of Labor Relations will resolve all questions pertaining to union release time representatives.*

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# ADMINISTRATIVE GUIDE

| Section: Employee Rights/Responsibilities | | Procedure No: 332-18 |
|---|---|---|
| **FIREARMS PROFICIENCY REQUIREMENT** | | |
| DATE EFFECTIVE: 02/16/22 | LAST REVISION: I.O. 16 | PAGE: 1 of 3 |

**PURPOSE** To ensure that uniformed members demonstrate and maintain minimum proficiency in the use of firearms.

**SCOPE** This procedure will apply when a uniformed member, who claims to be medically and/or psychologically unable to use firearms, is deemed fit for full duty by the Medical Division.

**PROCEDURE** Upon being deemed fit for full duty assignment:

**UNIFORMED MEMBER OF THE SERVICE**

1. Report as directed by Commanding Officer, Medical Division to the Firearms and Tactics Section for firearms qualification.
2. Demonstrate proficiency by achieving the Department's standard passing score.

UPON FAILURE OF UNIFORMED MEMBER OF THE SERVICE TO QUALIFY WITH FIREARM(S)

**SUPERVISOR, FIREARMS AND TACTICS SECTION**

3. Notify Absence Control and Investigations Unit (ACIU) immediately.
4. Fax **FIREARMS SCORE SHEET (PD124-141)** to ACIU.

**SUPERVISOR, ABSENCE CONTROL AND INVESTIGATIONS UNIT**

5. Direct uniformed member of the service concerned to report to medical specialist designated by the Medical Division for examination.
6. Maintain appropriate records of notifications and the results of said examination.
7. Request member to complete **Notice of Failure to Qualify with Firearms**.
8. Witness signature of member on **Notice**.
   a. Retain original for unit file
   b. Provide member concerned with copy.
9. Advise member of the availability of remedial firearms training.

***NOTE*** *Uniformed members must demonstrate and maintain minimum proficiency in the use of firearms. The Department's policy is that minimum proficiency is a condition of employment for uniformed members. Members failing to qualify within ninety days of signing the* ***Notice of Failure to Qualify With Firearms*** *will receive* ***CHARGES AND SPECIFICATIONS (PD468-121)*** *and face an administrative hearing under Section 75 of the New York State Civil Service Law, "Removal and Other Disciplinary Action." Members found to be incompetent after an administrative hearing will be removed from the Department.*

IF MEMBER HAS NOT QUALIFIED WITHIN 90 DAYS OF NOTICE

**SUPERVISOR, ABSENCE CONTROL AND INVESTIGATIONS UNIT**

10. Consult with Department Advocate's Office.
11. Comply with *A.G. 318-03,* "*Preparation of Charges and Specifications or Schedule 'C' Command Discipline*" as appropriate.

***NOTE***

*Members of the service are reminded that existing Department programs provide one hundred rounds of ammunition and the use of a Department firearms range for practice. Members are also reminded that it is their responsibility to take corrective action on their own time and at their own expense. Instruction is available through the Firearms and Tactics Section by appointment. Members may call to arrange for training.*

*Commands will photocopy and utilize the* ***Notice of Failure to Qualify With Firearms****, depicted in Appendix "A", as necessary.*

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**APPENDIX "A"**

## Notice of Failure to Qualify With Firearms

Date: _____

**TAKE NOTICE** that you have failed to achieve the minimum passing score in your most recent attempt at firearms qualifications on (date): _____. You have not qualified with firearms since (date): _____. This Department has deemed you medically and/or psychologically fit to perform full duty with firearms.

Firearms proficiency is an essential function of the job of police officer and is a condition of your employment as a uniformed member of the service. You are hereby required to demonstrate and maintain minimum firearms proficiency within ninety days of this notice.

It is your responsibility to contact the Firearms and Tactics Section and take the firearms requalification course. If you fail to do so, the Department will schedule an appointment for you to take this course prior to ninety days after the date of this notice.

Your failure to demonstrate minimum proficiency within the above time limit will result in formal action being taken against you pursuant to Section 75 of the New York State Civil Service Law, "Removal and Other Disciplinary Action." If there is an affirmative finding of incompetence after an administrative hearing which is approved by the Police Commissioner, this action will result in your removal from the Department.

You are reminded that existing Department programs provide one hundred rounds of ammunition and use of a Department range for practice. In addition, you may contact the Firearms and Tactics Section to arrange for additional remedial firearms training. However, be aware that is your responsibility to take whatever steps are necessary for you to qualify with firearms including practice on your own time and at your own expense.

Acknowledgement of subject uniformed member of the service.

| Rank | Name (Last, First, M.I.) Print | Signature | Tax Registry # | Date |
|---|---|---|---|---|
| | | | | |

**Witness:**

| Rank | Name (Last, First, M.I.) Print | Signature | Tax Registry # | Date |
|---|---|---|---|---|
| | | | | |

# ADMINISTRATIVE GUIDE

| Section: Employee Rights/Responsibilities | Procedure No: 332-19 | |
|---|---|---|
| **REVIEW OF CENTRAL PERSONNEL INDEX FILES BY MEMBERS OF THE SERVICE** | | |
| DATE EFFECTIVE: 09/11/26 | LAST REVISION: R.O. 81 | PAGE: 1 of 2 |

**PURPOSE** To permit members of the service to review their Central Personnel Index file.

**DEFINITION** CENTRAL PERSONNEL INDEX (CPI) - a central repository of information from various administrative, disciplinary and investigatory units throughout the Department.

**SCOPE** The Department uses the Central Personnel Index (CPI) system to make informed decisions about assignments, promotions, positions of special trust, and other administrative actions. To alleviate apprehension and concern among members of the service (uniformed and civilian) as to the types of information maintained by the Department, the Central Personnel Index file of each member of the service will be open to individual members for review.

**PROCEDURE** When a member of the service requests to review their Central Personnel Index file:

**MEMBER OF THE SERVICE**

1. Request appointment with integrity control officer to review Central Personnel Index file.

**INTEGRITY CONTROL OFFICER**

2. Review member's file and redact information that may identify witnesses, complainants, or an active case, prior to review.
3. Conduct review with requesting member in private and answer questions regarding entries.
4. Utilize opportunity to reinforce policies and procedures, to promote integrity, and to deter conduct precipitating negative entries.

***NOTE*** *Members of the service are not permitted to take their file out of reviewing office, or make any photocopies of their file.*

**MEMBER OF THE SERVICE**

5. Appeal in writing, on **Typed Letterhead** to commanding officer for investigation and review, if member believes that information contained in the Central Personnel Index file is inaccurate or incomplete.

**COMMANDING OFFICER**

6. Confer with integrity control officer upon receipt of appeal, regarding its validity.
7. Direct integrity control officer to conduct a preliminary investigation of grounds of appeal.

***NOTE*** *As part of the preliminary investigation, the integrity control officer will contact the appropriate source command (i.e., Internal Affairs Bureau, Human Resources Division, Medical Division, Department Advocate's Office, etc.), for information concerning the Central Personnel Index file entry in question.*

**COMMANDING OFFICER (continued)**

8. Inform appealing member of findings, if preliminary investigation indicates that the entry is appropriate.
9. Endorse appeal to the appropriate command through channels for final determination, if preliminary investigation discloses member's appeal is verified.

**CHIEF OF PERSONNEL/ I.A.B./ DEPARTMENT ADVOCATES OFFICE**

10. Review appeal and if valid, take necessary corrective action.
11. Inform member, through channels, of action taken and change in entry, if any.
12. Endorse back to member through member's commanding officer with findings, if invalid.

***ADDITIONAL DATA*** *A member of the service is permitted to view their Central Personnel Index file once per calendar year. Ranking officers wishing to review their Central Personnel Index files will submit their request to borough/bureau commander/supervisory head.*

*Allegations of misconduct ("M" Cases) or corruption ("C" Cases) which result in a final disposition of "exonerated" or "unfounded" will be sealed in the member's Central Personnel Index by the Internal Affairs Bureau. Sealed allegations and command disciplines will only be available to the Internal Affairs Bureau for statistical evaluations and internal investigations. Additionally, these records will be made available to the Legal Bureau and the Employee Assistance Unit, as necessary, to enable those commands to perform their respective responsibilities.*

# ADMINISTRATIVE GUIDE

| Section: Employee Rights/Responsibilities | Procedure No: 332-20 |
|---|---|

**GUIDELINES FOR MEMBERS OF THE SERVICE (UNIFORMED AND CIVILIAN) GOVERNED BY THE FAIR LABOR STANDARDS ACT (FLSA)**

| DATE EFFECTIVE: | LAST REVISION: | PAGE: |
|---|---|---|
| 11/18/21 | I.O. 110 | 1 of 3 |

**PURPOSE** To set forth the guidelines for compliance with the provisions of the Fair Labor Standards Act (FLSA).

**DEFINITION** COVERED EMPLOYEES - For the purpose of this procedure, those members of the service (uniformed and civilian) covered by the Fair Labor Standards Act (FLSA).

**PROCEDURE** To record compensatory time earned by covered employees:

**COMMANDING OFFICER/UNIT SUPERVISOR**

1. Have three different compensatory time banks established for all employees as follows:
   a. CIVILIAN MEMBERS OF THE SERVICE
      (1) All pre-Fair Labor Standards Act compensatory time earned prior to April 15, 1986.
      (2) Post-April 14, 1986, non-Fair Labor Standards Act compensatory time earned under forty hours of time actually worked per week.
      (3) Post-April 14, 1986, Fair Labor Standards Act compensatory time earned after forty hours of time actually worked per week.

   b. UNIFORMED MEMBERS OF THE SERVICE
      (1) All pre-Fair Labor Standards Act compensatory time earned prior to April 15, 1986.
      (2) Post-April 14, 1986, non-Fair Labor Standards Act compensatory time earned under one hundred and seventy-one hours of time actually worked in a twenty eight day cycle.
      (3) Post-April 14, 1986 Fair Labor Standards Act compensatory time earned after one hundred and seventy-one hours of time actually worked in a twenty eight day period.

**CIVILIAN MEMBER OF THE SERVICE**

2. Accrue, if a covered employee, up to 240 hours (one hundred and sixty hours of overtime at time and one-half equals the two hundred and forty hours "cap").

**UNIFORMED MEMBER OF THE SERVICE**

3. Accrue up to four hundred and eighty hours (three hundred and twenty hours at time and one-half equals the four hundred and eighty hours "cap").

***ADDITIONAL DATA***

*The "cap," as stated in steps 2 and 3 above, is a "rolling cap" which began April 15, 1986 and is maintained during the term of an individual employee's employment. Once a covered civilian or uniformed member of the service has reached the "rolling cap," cash overtime must be paid.*

*It is incumbent upon all supervisors and managers to ensure enforcement of overtime authorization requirements.*

*A member of the service (uniformed or civilian) who has accrued Fair Labor Standards Act compensatory time, upon termination or separation of employment, must be paid for the unused Fair Labor Standards Act compensatory time at the rate of compensation not less than:*

*a The average regular rate received by such member during the last three years of the member's employment, or*

*b. The final regular rate received by such member, whichever is greater.*

*Commanding officers/supervisory heads shall be aware of the following general considerations:*

*a. Working time of covered employees must be carefully scheduled and monitored to avoid unpaid overtime claims*

*b. Employees will not be permitted to work during their meal periods without written authorization*

*c. A strict system of record keeping of employees' time worked and taken is absolutely mandatory*

*d. Current terms and conditions of collective bargaining agreements will remain in full force and effect as long as they do not differ from the Fair Labor Standards Act.*

*Employees must be compensated for "working time." The work week for all employees, except uniformed members of the service, is defined as the seven calendar days beginning at 0001 hours Sunday and ending 2400 hours the following Saturday (one hundred and sixty-eight hours). Overtime compensation at time and one-half for all hours actually worked in excess of forty hours in an established seven day work week is generally required for all non-exempt employees. Uniformed members will receive Fair Labor Standards Act overtime after actually working in excess of one hundred and seventy-one hours within a twenty eight day period. Supervisors and managers concerned must ensure that each covered employee records the employee's starting time at the beginning of the scheduled workday and at their scheduled finishing time.*

***ADDITIONAL DATA (continued)***

*The following civilian titles are exempt from the provisions of the Fair Labor Standards Act:*

*Accountant*
*Administrative Accountant*
*Administrative Engineer*
*Administrative Manager*
*Administrative Staff Analyst*
*Appraiser*
*Architect*
*Assistant Accountant*
*Assistant Advocate*
*Assistant Architect*
*Assistant Building Custodian*
*Assistant Chemist*
*Assistant Commissioner*
*Assistant Counsel*
*Assistant Deputy Commissioner*
*Assistant Deputy Director, Employment Section*
*Assistant Mechanic Engineer*
*Assistant Project Coordinator*
*Assistant Purchasing Agent*
*Assistant to Police Commissioner*
*Associate Accountant*
*Associate Chemist*
*Associate Staff Analyst*
*Associate WC Benefits Examiner*
*Associate Quality Assurance Specialist*
*Attorney*
*Benefits Examiner*
*Building Custodian*
*Case Management Nurse*
*Chaplain*
*Chemist*
*Chemist Trainee*
*Chief Clerk*
*Chief Psychologist*
*Civil Engineer*
*Community Associate*
*Community Coordinator*
*Computer Aide, Level II and III <u>ONLY</u>*
*Computer Associate, Technical Support, all Levels*
*Computer Associate Operations all Levels*
*Computer Associate, Software, All Levels*
*Computer Programming Analyst*
*Computer Specialist, Software, All Levels*
*Computer Systems Manager*
*Confidential Investigator*
*Coordinator of Canine Training*
*Counsel to Police Commissioner*
*Dentist*
*Director, Crime Laboratory*
*Deputy Commissioner*
*Deputy Director, Employee Management Division/Employment Section*
*Director, Civilianization*
*Director, Civilian Participation*
*Director, Crime Laboratory*
*Director, Department Advocate*
*Director, Fleet Services Unit*
*Director, Information Technology Services Division*
*Director, Printing Section*
*Director, Psychological Services*
*Director, Strategic Technology Division*
*Director, Training*
*Electrical Engineer*
*First Deputy Commissioner*
*Laboratory Microbiologist, All Levels*
*Motor Vehicle Supervisor*
*Principal Administrative Associate, Level 3*
*Principal Chemist*
*Principal Fingerprint Technician*
*Principal Statistician*
*Principal Storekeeper*
*Principal Program Research Analyst*
*Project Coordinator*
*Psychologist*
*Purchasing Agent, All Levels*
*Quantitative Analyst*
*Retirement Benefits Counselor, Level 2*
*Secretary of Department*
*Senior Building Custodian*
*Senior Custodial Assistant*
*Senior Electrical Engineer*
*Senior Motor Vehicle Supervisor*
*Senior Psychologist*
*Senior Storekeeper*
*Staff Analyst*
*Staff Nurse*
*Statistician*
*Stock Handler*
*Storekeeper*
*Supervising Chief Surgeon*
*Supervising Human Resources Specialist*
*Supervising Nutritionist*
*Supervising Retirement Benefits Examiner*
*Supervisor of Building Custodians*
*Supervisor, Radio Repair Operations*
*Surgeon*
*X-Ray Technician*

# ADMINISTRATIVE GUIDE

| Section: Employees Rights/Responsibilities | Procedure No: 332-21 | |
|---|---|---|
| **REASONABLE ACCOMMODATIONS FOR EMPLOYEES AND APPLICANTS** | | |
| DATE EFFECTIVE: 08/19/25 | LAST REVISION: R.O. 74 | PAGE: 1 of 4 |

**PURPOSE** To process and resolve all reasonable accommodation requests from employees and applicants.

**DEFINITIONS** REASONABLE ACCOMMODATION - Any modification or reasonable adjustment provided by the employer that assists employees and qualified applicants to perform the essential functions of their jobs and enjoy the benefits and privileges of employment. The accommodation cannot create an undue hardship to the Department.

**PROCEDURE** When an employee or applicant requests a reasonable accommodation:

EMPLOYEES REQUESTING A REASONABLE ACCOMMODATION OTHER THAN FOR PRAYER OR TO EXPRESS BREAST MILK

**MEMBER OF THE SERVICE**

1. Complete all relevant captions of **REASONABLE ACCOMMODATION REQUEST (PD407-015B)** and, if necessary, attach supporting documents.
   a. Prepare **REASONABLE ACCOMMODATION REQUEST MEDICAL DOCUMENTATION (PD407-0113)** for accommodation based on a physical or mental disability, if required.
2. Submit form(s) and documents via email to Office of Equal Employment Opportunity (OEEO).

**OFFICE OF EQUAL EMPLOYMENT OPPORTUNITY**

3. Review request and confer with employee to assess employee's need(s).
4. Confer with employee's operations coordinator/counterpart, if necessary, to determine if reasonable accommodation will have any effect on command operations.
5. Notify employee and employee's commanding officer, in writing, of determination.

EMPLOYEES REQUESTING A REASONABLE ACCOMMODATION TO EXPRESS BREAST MILK

**MEMBER OF THE SERVICE**

6. Notify OEEO of the need for an accommodation prior to returning to work, or as soon as practical.
7. Complete all sections of **REASONABLE ACCOMMODATION REQUEST**.
   a. Indicate a description of anticipated schedule and time needed.
8. Submit form(s) and documents via email to OEEO.
9. Notify immediate supervisor of **REASONABLE ACCOMMODATION REQUEST**.

**IMMEDIATE SUPERVISOR**

10. Notify commanding officer upon receipt of **REASONABLE ACCOMMODATION REQUEST**.
11. Grant preliminary approval of **REASONABLE ACCOMMODATION REQUEST** pending final written determination from OEEO.
12. Confer with requesting member of the service to determine:
    a. Appropriate schedule, and
    b. Preferred location to express milk.
13. Confer with operations coordinator/counterpart if assistance is required in complying with **REASONABLE ACCOMMODATION REQUEST**.

**DESK OFFICER/ IMMEDIATE SUPERVISOR**

14. Assist with locating an appropriate space that complies with *A.G. 327-02, "Management of Lactation Pods and Lactation Rooms in Department Facilities."*

***NOTE***

*An employee must be provided 30 minutes of paid break time during their scheduled tour to express breast milk. When time is needed in excess of 30 minutes, employers shall further permit an employee to use their existing paid break time or their meal time to express breast milk. Overtime will not be given for the sole purpose of expressing breast milk. If an employee elects to continue to work details, as part of their reasonable accommodation, the employee must continue to be accommodated and granted relief to express breast milk in a manner that is consistent with the employee's accommodation during their regular assignment. Employees with a reasonable accommodation are exempt from being assigned to details/mobilizations outside of their command with the exception of Headquarters Security. Employees with a reasonable accommodation that are assigned to details within their command, should remain in close proximity to the command to ensure accessibility to lactation spaces.. When immediate relief is not available, the employee may be asked to postpone a break for a maximum of thirty minutes.*

*Members are reminded that OEEO has designated lactation spaces in various commands. Any questions regarding this note may be directed to the Office of Equal Employment Opportunity.*

**OFFICE OF EQUAL EMPLOYMENT OPPORTUNITY**

15. Inform employee within five business days that request has been received.
16. Review request and confer with employee to assess employee's need(s).
17. Notify employee and employee's commanding officer, in writing, of determination.

<u>EMPLOYEES REQUESTING A REASONABLE ACCOMMODATION FOR PRAYER</u>

**MEMBER OF THE SERVICE**

18. Complete all relevant sections of **REASONABLE ACCOMMODATION REQUEST**.
    a. Indicate a description of anticipated schedule and time needed.
19 Submit form(s) and documents via email to OEEO.
20. Notify immediate supervisor of **REASONABLE ACCOMMODATION REQUEST**.

**IMMEDIATE SUPERVISOR**

21. Notify commanding officer upon receipt of **REASONABLE ACCOMMODATION REQUEST**.
22. Grant preliminary approval of **REASONABLE ACCOMMODATION REQUEST** pending final written determination from OEEO.
23. Confer with requesting member of the service to determine:
    a. Length and time of prayer,
    b. Time of day for prayer, and
    c. Location to pray.
24. Confer with operations coordinator/counterpart if assistance is required in complying with **REASONABLE ACCOMMODATION REQUEST**.
    a. Inform requesting member of location of designated prayer space.

***NOTE*** *Commands that do not have a designated prayer space established by a previously filed reasonable accommodation shall make every effort to identify a space that is clean, well-lit, private, and shielded from view (excluding a restroom).*

**OFFICE OF EQUAL EMPLOYMENT OPPORTUNITY**

25. Review request and confer with employee to assess employee's need(s).
26. Notify employee and employee's commanding officer, in writing, of determination.

APPLICANTS REQUESTING A REASONABLE ACCOMMODATION

**CANDIDATE ASSESSMENT DIVISION/ MEDICAL DIVISION/ HUMAN RESOURCES DIVISION**

27. Direct applicant to complete relevant captions of **REASONABLE ACCOMMODATION REQUEST**, and if necessary, to attach supporting documents.
28. Submit form(s) and documents via email to OEEO.

**OFFICE OF EQUAL EMPLOYMENT OPPORTUNITY**

29. Review request and confer with applicant to assess the applicant's need(s).
30. Notify applicant and hiring personnel, in writing, of the determination.

***ADDITIONAL DATA*** *Employees can be accommodated for their reasonable need to express breast milk for up to three years following childbirth. The Department shall designate a room or other location which shall be made available for use by such employee to express breast milk in accordance with the provisions of A.G. 327-02, "Management of Lactation Pods and Lactation Rooms in Department Facilities."*

*Interns (paid and unpaid), auxiliary police officers, and consultants are also permitted to submit a **REASONABLE ACCOMMODATION REQUEST**.*

***ADDITIONAL DATA (continued)***

*An employee or applicant may appeal the reasonable accommodation determination by forwarding an appeal request on* ***Typed Letterhead*** *addressed to the Commanding Officer, Police Commissioner's Office, and by attaching any additional documentation relevant to the request for an appeal. An employee or applicant who submits an appeal will receive a written response informing them of the outcome of said appeal.*

*Retaliation is prohibited against any person requesting a reasonable accommodation. Any member of the service who engages in such retaliation or harassment will be subject to disciplinary action.*

*All documentation and information filed in support of an employee's or applicant's request for an accommodation is to be kept strictly* ***confidential****, except when supervisors and/or other necessary personnel need to be informed about work restrictions or other conditions related to the reasonable accommodation.*

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# ADMINISTRATIVE GUIDE

| Section: Employee Rights/Responsibilities | | Procedure No: 332-22 |
|---|---|---|
| **UNIFORMED MEMBER – PAID DETAIL EMPLOYMENT** | | |
| DATE EFFECTIVE: 09/11/26 | LAST REVISION: R.O. 81 | PAGE: 1 of 4 |

**PURPOSE** To regulate off duty employment of uniformed members of the service performed with the Paid Detail Unit.

**PROCEDURE** When a uniformed member of the service in the rank of captain or below wishes to engage in off-duty employment with the Paid Detail Unit:

**UNIFORMED MEMBER OF THE SERVICE**

1. Prepare **PAID DETAIL ENROLLMENT APPLICATION AND PARTICIPATION AGREEMENT (PD 407-043)**.
2. Deliver completed **PAID DETAIL ENROLLMENT APPLICATION AND PARTICIPATION AGREEMENT** to commanding officer.

***NOTE*** *Those uniformed members of the service wishing to seek off-duty employment through the Paid Detail Unit must be on full duty status, with no position limitations. Additionally, members who are designated Chronic Sick – Category 'B' or who are on level two or three monitoring are excluded from participating in the Paid Detail Program. Probationary police officers must have at least one full year of service at the time of application (inclusive of their time spent at the Police Academy's Recruit Training Section). Executive members in the rank of captain who wish to participate in the program must be approved by the Deputy Commissioner, Management and Budget, prior to participation.*

**COMMANDING OFFICER/ DEPUTY COMMISSIONER, MANAGEMENT AND BUDGET**

3. Review application and determine if member is eligible.
4. Ascertain that applicant understands "Guidelines" and "General Prohibitions" as outlined in "Additional Data" statement.
5. Confer with applicant's immediate supervisor.
6. Notify applicant of decision to approve or disapprove application.
7. Return **APPROVED** application to requesting member.
8. File **DISAPPROVED** application inrequesting member'spersonnel folder.

**UNIFORMED MEMBER OF THE SERVICE**

9. Return **APPROVED** application, with Commanding Officer/Deputy Commissioner, Management and Budget's signature, along with a signed W-9 form via Department mail or in person to the Paid Detail Unit.

***NOTE*** *W-9 forms **MUST** contain the requesting member's Social Security Number. The Paid Detail Unit will keep W-9 forms on file in the event they are requested by a particular vendor.*

**PAID DETAIL UNIT**

10. Review **PAID DETAIL ENROLLMENT APPLICATION AND PARTICIPATION AGREEMENT**.
11. Approve or disapprove application and inform requesting member of decision.
12. Notify approved members to appear in person, while off-duty, with Department **IDENTIFICATION CARD (PD416-091)**, to the Paid Detail Unit, to set-up account within the **Paid Detail System (Internet Assignment System)** application.

**INTEGRITY CONTROL OFFICER**

13. Access the Department's intranet webpage each month to ascertain Paid Detail activities of individual members assigned to command, including times and locations.
    a. Select an appropriate representative sampling and compare against command roll call and overtime records to ensure there are no discrepancies.
    b. Include in command overtime self-inspection program.

**LIEUTENANT PLATOON COMMANDER**

14. Access the Department's intranet webpage to ascertain active Paid Detail locations and times of assignment within the precinct, at start of tour.
    a. Make a Command Log entry indicating results of inquiry into active Paid Detail locations, including times of assignments.
    b. Print reference copy of Paid Detail assignments scheduled during tour and attach to roll call.

**BOROUGH/ BUREAU ADJUTANT**

15. Maintain list of executive members in the rank of captain authorized to participate in the Paid Detail Program.
16. Access the Department's intranet webpage each month to ascertain Paid Detail activities of individual executive members assigned to borough/bureau, including times and locations.
    a. Select an appropriate representative sampling and compare against command Paid Detail Assignment Report and **EXECUTIVE WEEKLY TIME RECORD (PD433-1418)** to ensure there are no discrepancies.

***ADDITIONAL DATA***

*GUIDELINES:*

*The following guidelines apply to ALL uniformed members performing Paid Detail employment:*

*a. Members must enter their last scheduled tour and next scheduled tour on the **PAID DETAIL CARD (PD 407-168)**,*

*b. Members must perform their Paid Detail assignment in the patrol uniform of the day and adhere to A.G. 304-07, "Personal Appearance," A.G. 305-01, "General Uniform Regulations," A.G. 305-03, "Uniforms," and A.G. 305-08, "Required Equipment,"*

*c. Members are required to have their Department radio on and tuned to the proper frequency, while performing a Paid Detail assignment,*

*d. Members are required to make digital **Activity Log** entries at the commencement and conclusion of each Paid Detail assignment as well as any time the member goes on meal or takes police action,*

*e. Members are required to take proper police action and must adhere to P.G. 208-01, "Law of Arrest,"*

*f. Members on Paid Detail assignments who effect arrests will call the patrol supervisor, precinct of occurrence, to the scene,*

*(1) In general, members performing a Paid Detail assignment will not be assigned to process arrests unless directed by an on-duty NYPD supervisor or they were personally involved in the underlying incident. Any arrest processing performed by a member on a Paid Detail assignment will be completed on police overtime.*

***ADDITIONAL DATA (continued)***

*g. Incidents which necessitate the response of the patrol supervisor, require a notification to the Paid Detail Unit. Similarly, should members performing Paid Detail sustain an injury while taking police action, a notification to the Paid Detail Unit must also be made. If after hours, members must leave a detailed message,*

*h. The City of New York will represent any officer who is sued while working a Paid Detail providing that the actions of the officer fall within the scope of section 50-K of the General Municipal Law. The officer must be acting within the scope of their duty as a New York City police officer, be acting to further the interest of the municipality, and not violate rules or regulations of the Department,*

*i. An injury incurred while performinga Paid Detail assignmentwill not be considered line of duty unless the injury is sustained while a member is taking enforcement action. Line of duty status will not be granted to members who do not follow Department guidelines and/or are injured performing any non-enforcement work,*

*j. At the conclusion of a Paid Detail assignment, members of all ranks are required to present **PAIDDETAILCARD** to a vendor representative for signature. The original (white) copy must be signed by a designatedsupervisor (CO, XO, or ICO) of the member concerned. The second (blue) copy is to be retained by the vendor for payroll purposes. The member concernedwill retain the third (pink) copy for their records,*

*k. Executive members of the service are to prepare a weekly Paid Detail Assignment Report to be submitted to their overhead command along with **EXECUTIVE WEEKLY TIME RECORD**,*

*l. Members who improperly prepare the **PAID DETAIL CARD** or whose actions or omissions pose payment problems for the vendor may lose their eligibility in the Paid Detail Program,*

*m. Members who fail to follow any Department or Paid Detail Program rule, regulation, or guideline may be banned from returning to work for a specific vendor, suspended from eligibility, or dropped from the program. Additionally, they may face disciplinary action by the Department,*

*n. Members who need to cancel a Paid Detail assignment with less than 48 hours' notice may only do so in light of a police related exigency (i.e., arrest, court, detail, mandatory training, etc.), sick report, or a documented emergency,*

*o. All members canceling an assignment with less than 48 hours' notice must make a notification to the Paid Detail Unit. If outside business hours, members must leave a detailedmessage. When the officeis closed, membersmust leave a voicemailat extension [redacted]nd leave the following information: date and time member is calling, tax number, specific job and paid detail number of the assignmentbeing canceled,*

*p. Members reporting sick must notify the Paid Detail Unit in addition to notifying the Sick Desk. After business hours, members are required to leave adetailed message,*

*q. No cancellations will be accepted for overtime notifications unless the notification is marked "ordered" and is signed by a supervisor at the members command,*

*r. Upon notification of a cancellation, a supervisor from the Paid Detail Unit will determine what documentation must be provided. Members will be removed from the Paid Detail eligibility list until the documentation is received,*

*s. Failure to make a timely notification, or failure to appear at a Paid Detail assignment without good cause, may lead to suspension or removal from the program as determined by the Commanding Officer, Paid Detail Unit,*

*t. Members must sign in and out on the NYPD Paid Detail Attendance Sheet in addition to any log/sheet kept by individual vendors,*

*u. The vendor will provide the members with post location, meal and break policy, and any condition(s) that may require police attention,*

***ADDITIONAL DATA (continued)***

*v. Evidence indicating Paid Detail employment impairs a members' ability to perform assigned police duties is cause for revocation of approval to engage in Paid Detail employment, and*

*w. Members are automatically deactivated when promoted, transferred, placed on monitoring or are "Chronic Sick -Category B."*

*<u>GENERAL PROHIBITIONS:</u>*

*a. Uniformed members of the service are not authorized to work off duty, in uniform, other than on a Paid Detail assignment administered by the Department.*

*b. Members of all ranks may not perform more than 20 hours per week of Paid Detail assignments and may not perform a Paid Detail assignment for longer than 10 hours in duration. This includes members who wish to perform Paid Detail assignments while on vacation.*

*(1) In the event a vendor asks a member to remain at the location beyond the scheduled tour, the member may do so if they wish but are by no means obligated. Should a member elect to stay, an immediate notification to the Paid Detail Unit must be made. However, in no case may a member continue to work within three hours of their regularly scheduled tour of duty or go beyond the monthly allocation of 80 hours.*

*c. Members performing a Paid Detail assignment are not authorized to take their meal period during the first or last hour and one-half of their tour, except in emergency situations.*

*d. Members on leave (e.g., military, educational, family, etc.) and assigned to Extended Leave Services (ELS) are prohibited from participating in the Paid Detail Program.*

*e. Members of all ranks on pre-separation leave are permitted to participate in the Paid Detail Program for no longer than one year from the date in which their separation leave begins.*

*f. Members are <u>NOT</u> permitted to work a Paid Detail assignment within three hours of the start of their regularly scheduled tour.*

*g. Members may <u>NOT</u> perform a Paid Detail assignment within one hour of the conclusion of their regularly scheduled tour.*

*h. Members may <u>NOT</u> request lost time in order to perform a Paid Detail assignment.*

*i. Under no circumstances may members switch a Paid Detail assignment or perform a Paid Detail assignment scheduled by another member. A Paid Detail assignment must be performed by the member who scheduled the assignment. Failure to comply with this directive will result in immediate and indefinite suspension from the Paid Detail Program as well as Department discipline.*

*j. Paid Detail assignments may only be performed while off duty. As such, Department vehicles are NOT authorized to be used while performing Paid Detail assignments, which includes traveling to and from vendor locations. This applies to all members of the service, including members in the rank of captain.*

*k. All members participating in the program are prohibited from performing Paid Detail assignments within the geographical confines of their assigned command.*

*l. To ensure operational efficiency and oversight, commanding officers and executive officers may not perform Paid Detail assignments simultaneously. Additionally, integrity control officers and assistant integrity control officers may also not perform Paid Detail assignments simultaneously.*